

FROM BONIFACE TO BANK BURGLAR

OR

THE PRICE OF PERSECUTION

HOW A SUCCESSFUL BUSINESS MAN, THROUGH
THE MISCARRIAGE OF JUSTICE, BECAME
A NOTORIOUS BANK LOOTER

BY

GEORGE M. WHITE

ALIAS GEORGE BLISS

BELLOWS FALLS, VT.

TRUAX PRINTING COMPANY

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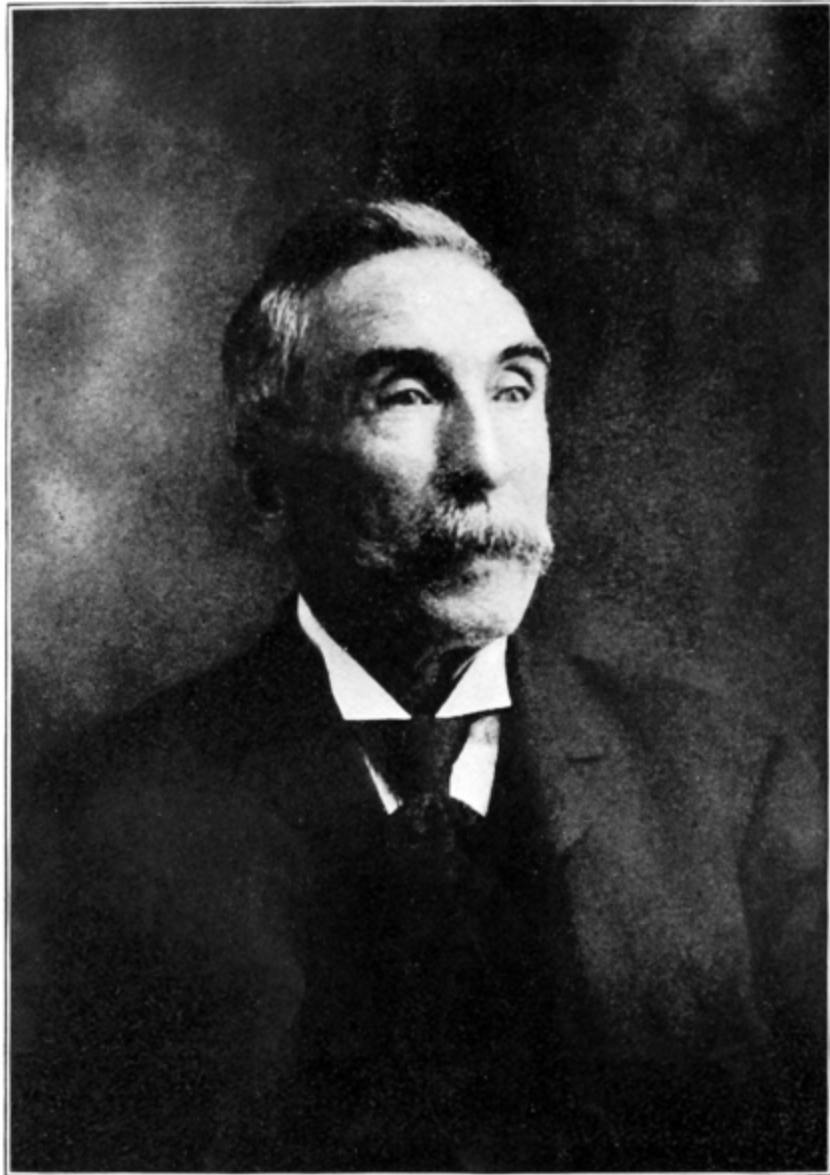
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George Miles White

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PREFACE

While paying the penalty of a last misdeed, I resolved that no more of life's precious years should be spent in sowing to the wind and that my life's sun should not set in eternal night; and I have been able to keep my resolution. In the awful moments of lonesomeness in the prison cell, I conceived the idea of publishing my life history in so far as I could make it interesting to the financial world and general public. Many hours of solitude, while others slept, I devoted to rummaging through the past in search of facts, dating them from the innocent days of my young manhood and resurrecting them from period to period, until I succeeded in compiling a life history which, I sincerely trust, will prove not only a helper to those who have the care of great sums of money devolving upon them, but will also be accepted by those tempted to depart from the path of rectitude as a warning not to be lightly regarded.

I have endeavored to be accurate in my treatment of each part of this history, and if there shall be discovered an error here and there, kindly, dear reader, attribute it to a lapse of memory. I kept no record of events, for in leading the life of a transgressor it is not conducive to safety; so I have been forced to depend solely upon my memory, which, as it dwelt on the past, soon became alive again with old scenes. Acts long forgotten returned to me clothed as they were more than twoscore years ago, and I found myself living over the bright days, the dark days, the days of wealth, and the days of poverty. I started to write a small book, but facts crowded upon me until I have been enabled to issue a volume of no mean proportions.

G. M. WHITE.



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FROM BONIFACE TO BANK BURGLAR

PART I

CHAPTER I

MY HOTEL DAYS

“Here I am back again, Ellis, my dear boy!” I said to my clerk in the Central House, as comfortable and inviting a country hostelry as the average man of travel would want to make an occasional visit to, if I do say it myself.

“Glad of it, Mr. White,” returned Ellis Merrill, as he reciprocated my hearty hand-grasp. He had been with me in the hotel business for some time, and I rather fancied him. And he was a most trustworthy young man too.

I glanced at the register on the desk, as any hotel proprietor is apt to do after several days’ absence.

“Ah,” remarked I, as my eyes fell on two names—“Wyckoff and Cummings. They came yesterday. Are they together?”

“Yes, Mr. White; and they seemed to be mighty well stocked with cash. Up to date they’ve been very prompt in paying their bills; in fact, have paid for everything in advance.”

I glanced over a file of business papers. Then I said: “It seems they’ve hired one of our best teams for three days, paid for it, and will return tomorrow. That’s good business, Ellis.”

“Right you are, sir.”

I gossiped more about my guests,—as to what business they might be engaged in, and the like.

“Mr. Wyckoff told me that he’s a United States deputy marshal. As to his companion, he didn’t say anything,” said Merrill. “I allowed him to

have about the best team we had in the stable, on the representation that he was a government official.”

This was in the spring of 1864, when there was much reason to believe that the war between the North and South over the negro was drawing to a close. I was a resident of Stoneham, Massachusetts, and, after a fashion, felt pretty well satisfied with myself and surroundings. I was the owner of a hotel, a large livery with a fine stock of horses and vehicles, besides a grocery business in which I employed several clerks, and a goodly interest in Towle & Seavy’s wine house at 21 Congress Street, Boston. Also, I had a few parcels of real estate in Stoneham, which were increasing in value. In these days of colossal fortunes, the total of my worldly possessions then would be of no account; but I, the holder of thirty thousand dollars and a happy home, surrounded by a happier family, my father and mother still living, and I barely thirty, with the spirits of youth, felt, as I have just said, pretty well satisfied with my life and the world generally.

I had just returned from a delightful visit to my paternal home in Vermont, to find this United States deputy marshal and his friend, James Cummings, guests at my hotel. I must confess to having a feeling of curiosity as to what they looked like, which may have been a trifle effeminate in me; so I was not sorry when, the next day, this Mr. Wyckoff, unaccompanied by his friend, drove up to the hotel. Aside from curiosity, I had the excusable characteristic, usually found in public-house proprietors, of wanting to cater to patrons with full purses and a disposition to spend money freely. Naturally, I greeted Wyckoff effusively and made him a welcome guest. He seemed to be of a good sort; a bright, stirring young fellow, with a pleasing address and a ready flow of language. I was very much interested in his conversation on war topics, his knowledge, it seemed to me, being based on a wide experience. He appeared to be well versed in the financial opportunities of the war, particularly as to army contracts,—how they were obtained and the large amount of money that was being made out of them.

Wyckoff was not the first marshal to stop at my hotel, for in those tumultuous times they popped up frequently in search of deserters from the army. I confess to taking a great liking to him, and when in a few hours he left the hotel, saying he must go on farther, I felt genuine regret, in which there was not mingled an avaricious thought.

“I hope you’ll stop here whenever you come down this way,” I said to him at parting.

“I certainly shall,” was his reply; “and I’m quite likely to be along soon, too. I liked the team I had, and all of your hotel accommodations. If I do come, I shall need another team no doubt, and I hope you’ll let me have your best.”

“That you shall, Mr. Wyckoff. The best service of my house and stable shall be yours.”

The next I saw of him was in September, when he put up with me again. He engaged one of my best spans and was away three days. Later in the same month he was my guest, and, hiring another outfit, was gone three or four days. In October I saw him, but in a most unexpected manner, as shall be related in due time.

Affairs prospered with me in the usual happy channel, and day by day saw me adding a few dollars to my little fortune. I saw no speck, portentous of trouble, on life’s horizon, nor did I discover anything that foretold disaster. My business was firmly established and my credit was of the highest order. For my honesty I was respected, and as for wisdom, I was supposed to possess as much, if not more, than the average resident of my town. On an occasion I had been a postmaster, with all the honor that office of the United States government confers upon one living outside of the great cities. As I have said, life was flowing like a placid river, when, one day, James Cummings, the companion of Marshal Wyckoff, registered at the Central House. Now I did not like this man from the first, though he seemed a good enough fellow and talked freely of his affairs and his home in Rochester, New York, where there was a big fruit-tree nursery, of which he said he was an agent. I had not met him on his first visit, and it was not until I had seen the register and asked who the stranger in the bar-room was, that I knew Marshal Wyckoff’s friend.

Presently Merrill told me Cummings wanted a team to make a hurried journey to Keene, New Hampshire, something like a hundred miles distant. I objected to sending my horses on a trip like that; but Cummings insisted that he must meet Wyckoff at Keene the following night, as they had a very important matter to transact there.

“I have certain business interests to look after in Lowell and Nashua,” declared Cummings, “and I can’t get through in time to make railroad connections to Keene.”

I said it was not possible to accommodate him, that my time was occupied sixteen hours out of twenty-four, and that I hadn’t a man in the stable who knew the way to Keene. If a team was furnished, Cummings was told, I would have to go along with it, and that I didn’t feel like doing, as the trip would require too much of my time. But he insisted that it was of the utmost importance to him and Wyckoff that he get to Keene. Having in mind that Wyckoff was such a good fellow, and desiring very much to be of service to him, though I couldn’t see my way clear to spare the time, I told Cummings that I would undertake the journey, provided I was paid twenty-five dollars a day and my expenses. I really hoped that I had fixed a figure that would not be accepted, for the regular charge was nearly one-half less. But to my astonishment, he took me up. Indeed, I have reason to believe, having learned more of Cummings, that I could have had double the amount I asked, for he snapped me up in a breath.

Early the next day we started with one of my finest double turnouts. The roads were heavy with mud, yet the trip to Lowell was accomplished in excellent season. There Cummings had me drive him to the American House, where I waited for him nearly an hour. He told me he had called on a man who put him on the track of a very important matter, but he was careful not to tell me what his business was. The time was passing in an uninteresting way, to my mind, and I would have been glad enough to listen to any sort of drivel. Somewhere about noon we reached Nashua and put up at the Indian Head Hotel. Cummings had another engagement, which left me alone for more than an hour. He seemed a little excited on returning, but said nothing, other than that he was getting through with his business in fine shape, and we would reach Keene in time to see Wyckoff according to their agreement. After a needed bite to eat, we resumed our journey, and got to Keene about eight o’clock, just as darkness had well come down. Cummings congratulated me on the quick trip we had made, as I let him down at the Cheshire House, after which I put up at Harrington’s Eagle Hotel, having known the genial-faced proprietor since my early boyhood days. While I was at supper, a tap on the shoulder caused me to look up. Beside me stood Marshal Wyckoff. Before I had time to speak he took a

seat opposite me, and remarked with a smile, "I caught you napping!" Then he added: "Cummings has received word from his business house in Rochester to start back at once, and he must leave on the first train. Indeed, he has already gone."

I said something commonplace at this, and then Wyckoff went on, "I've got a matter of importance to look up at Claremont, about forty-five miles from here, and I'd like you to drive me there to-morrow."

I knew that the distance would be too much for my horses, so I said that I'd take him there if he'd hire a rig in Keene. This was agreeable to him, and on the following morning we got an early start, I having engaged a team from Layton Martin's stables, and arrived at Claremont about midday. At Wyckoff's request we drove to a hotel, where I remained while he went to transact the business for which he came. We were off for Keene not long after one o'clock, and passing through Surrey about supper-time, I drove Marshal Wyckoff to the residence of a kinsman of mine, where we pulled up and had a hearty meal. My companion made a great impression on my relatives, who urged him with much earnestness to visit them if ever he chanced to be in the neighborhood again. Resuming our way, we reached Keene not long after nightfall. The following day, with my team, we went to Concord, Massachusetts, where the marshal got a train for Boston—or so he told me. I started for Stoneham, with the better part of a hundred dollars in my pocket, which had been paid me for my services. On the way I thought not a little of Marshal Wyckoff. Never had I come in contact with a man so active in business affairs, yet so affable, considerate, and generous. Withal, he was a most jolly companion, and I say once more that I felt great regret at parting with him. It was foolish of me, no doubt, but I have to record the fact. When we next met, seven months had intervened.

CHAPTER II

THE WALPOLE BANK BURGLARY

B. F. Aldrich was the cashier of the Walpole Savings-bank, and the bank was in his general merchandise store. Thus it can be readily understood that the village of Walpole wasn't much from the viewpoint of map-makers, though its residents were not a little proud of their abiding-place.

These facts being known, it will not be difficult to imagine the consternation of the Walpole people, when one morning, just prior to Thanksgiving Day in 1864, they got out of bed to find that their only bank had been robbed of nearly half a hundred thousand dollars. At first it was doubted; but not long delayed was the confirmation, and it came with all the thunder that such events create in small villages. Soon, scared and white-faced men, women, and children, depositors and bank officials, crowded to Aldrich's store. I will not deal with the clamoring ones who thought their savings of years, perhaps, were gone forever. My object is more to tell how the robbery became known and in what manner the burglars were apprehended. I have it from an eye-witness that Cashier Aldrich was in a state bordering on frenzy at times, and at others seemed to be on the verge of a collapse. The keys found dangling in the store door were his, and had been undoubtedly left there to hide the identity of the real perpetrators of the crime. Any one with reason would not deny that, and Aldrich realized his awful position only too well.

He told the bank officials that the store door was strongly secured, when he left, late the previous night; but upon waking the next morning, he missed the keys from his trousers pocket, the trousers being found on the floor in the hall. He could not believe that any one had been in the house

during the night, for not a soul had heard a sound. He could not make himself believe that he'd been so careless as to leave the keys in the store door, but to be certain, no time was lost in making an investigation.

All his worst fears were confirmed. The keys were dangling in the lock, the safe had been opened with a key, and papers were scattered over the floor. Every dollar of the cash and bonds had been taken. The bank was ruined, and great was the excitement in Walpole for many days.

The town constables and the sheriff of the county looked wise for several weeks, but got no trace of the burglars. The depositors of the bank were wroth at this, and declared that some action that would bring results must be taken. Herbert T. Bellows, one of the largest of these, led the movement. He was powerful in social and political life, and more able to lose his interest in the bank than almost any one else. He said that good detective work would be sure to result in the recovery of some of the property. So he went to New York City for detectives. Bellows was determined that his wealth should not be taken from him without his putting forth a great effort to recover it. The New York police force sent Timothy Golden and James Kelso, two of the ablest sleuths of which it could boast, and placed them at his disposal. They hadn't been at work long when it was concluded that the robbery had not been committed without the assistance of some one familiar with the routine of Aldrich's store. The directors were told that the cashier's story of the loss of the keys was exceedingly flimsy, and that it looked very much as though he knew more about the robbery than he cared to tell.

"We admit that it is a delicate matter," said Detective Golden, with great decision, "but unless your cashier can offer a better explanation, you'd better direct us to arrest him."

The directors repelled this conclusion with the greatest vigor. Cashier Aldrich, they declared, had not been unfaithful to his trust. They said they'd stake their reputations and lives, if necessary, on it. However, Golden and Kelso believed he was guilty, and pushed their investigation on that line. Their persistence in this belief, after many weeks, began to weaken the confidence of some of the bank officials, and it was only a matter of a very few days, when he would have been arrested, that an unexpected clew turned up. It served to change the tide of suspicion from Aldrich, who

eventually came from under the cloud, with his character undefiled. It was like giving him a new life. For many weeks he'd borne the torture—that mental agony that must come to the innocent man suspected of a crime by those who had once believed him to be honest beyond question.

At the verge of casting Aldrich in jail the detectives were suddenly called back to New York. It was long past the time when a tangible clew was expected from that quarter, but at last one of the government bonds taken from the Walpole Bank had turned up in the United States Treasury at Washington. It had been purchased from a man named Cummings, by a reputable business man of Scranton, Pennsylvania. Armed with this information, the detectives interviewed the Scranton man, who told them he understood that Cummings was an agent for a fruit-tree nursery at Rochester, New York, and that he was said to be a friend of a Dr. Hollister at Providence, a hamlet on the outskirts of Scranton. Golden and Kelso went to Providence, though they didn't believe that Cummings would be the real game they were after. However, if he proved to be a link in the chain that would lead them to the "looters" of the Walpole Bank, they would be satisfied. Arriving in Providence, Dr. Hollister was found, but Cummings wasn't there. The doctor at once became a mystery in the case. While insisting that Cummings was merely one of his patients, his information was so unsatisfactory, and so evidently reluctant was he to assist the detectives, that they began to suspect him of knowing more about the Walpole burglary than he cared to tell.

The result was that Dr. Hollister was arrested, and extradited to New Hampshire as quickly as the law would allow. It proved to be a fruitless piece of work of the detectives and undoubtedly a most unpleasant experience for the doctor. They could only prove that Cummings had been his patient, which was less than nothing. An early hearing resulted in the prisoner's discharge from custody and his return to Pennsylvania. As for Golden and Kelso, they were deeply chagrined, to say the least. They felt happy indeed, when, finally, no serious financial loss through a criminal libel suit came of the arrest.

But the tireless energy they'd put in the case was at last rewarded. Cummings was located in New York City. Thither they returned, but arrived one day too late, for the bird had flown. However, as Golden was talking to the housekeeper, his eyes fell on a sensational weekly story paper lying on a

table, which bore the name of Cummings,—and he gained the information from the housekeeper that the paper had been changed to another address. As she apparently knew little or nothing about Cummings, the detectives went to the office of the story paper. There they found that the paper was being sent to “M. Shinburn, Saratoga, New York.” This was a mighty small clew to follow. At their wits’ end, however, the detectives decided to make the trip. Possibly they might find Cummings there.

It was not difficult to find “M. Shinburn.” The gossips in Saratoga believed him to be a wealthy business man who had recently located there and who had purchased a large farm on the outskirts of the village, where he lived with a brother, whose name, they had heard, was Frank. The few who had made his acquaintance found him to be of a most affable sort. Indeed, they declared that he had come from the South or West, and had bought the farm about a month previous. Just when he first put in an appearance at Saratoga they could not tell, however.

As the days wore on, many little characteristics in Shinburn made the detectives believe that he was not all he professed to be. They felt certain that it would be a wise move to arrest him; yet there was the Dr. Hollister *fiasco* still fresh in their minds, and to make another mistake was something not to be relished. At last, driven to desperation by circumstances, Golden told Kelso that the risk must be taken; and it was—but I will allow the former to relate, in his own way, what came of it.

“We were at our last ditch,” said he, “when we decided to take him in. It was a big risk,—much like a plunge in the dark,—but we determined to do it. The favorable opportunity came one night right after the theatre. Kelso and I waited on the outside, and when Shinburn came to the street, we pinched him. Now, mind you, it was just speculation. Well, he put up the stiffest kind of a kick, but we would not let up on him until every pocket had been turned inside out and every scrap of paper examined. We found on him five coupons cut from bonds, and two railroad bonds, all stolen from the Walpole Bank. Of course that settled it for keeps. We locked him up, and then, armed with only our nerve, we searched his house, his brother Frank putting up a big holler, and found files, skeleton keys, wax impressions, and other burglars’ tools. Among the keys we discovered was a duplicate that would open the outer vault door of the Ashuilot Bank at Keene.”

I have it from Golden that Cashier Faulkner of the Ashuilot was about unnerved when shown how easily the key opened the vault door. He realized how narrow had been his escape from an experience like that of Cashier Aldrich. The detectives told him there was no doubt that the Ashuilot would have been robbed as soon as the excitement of the Walpole case had died out.

Shinburn was taken to New Hampshire and locked under a strong guard in the jail at Keene. Meanwhile the detectives took up the trail after James Cummings, which led them to Philadelphia, where he was arrested a few days later. In his possession were something more than five thousand dollars in currency, undoubtedly the result of the bond sale. He was extradited to New Hampshire and lodged in the same jail with Shinburn. District Attorney Lane was handed the money by Golden and Kelso.

CHAPTER III

ONE SHERIFF I KNEW

“Good afternoon, George!”

“How do you do? Upon my word, sheriff, but you’re the last man I expected to see in Stoneham to-day. How’s business in Fitchburg?” Such was my response to Sheriff Butterick, who, with a young man, very sprucely dressed, had called at my hotel. It was a delightful afternoon on the second day of June in 1865.

“Shake hands with Mr. Golden—Mr. Tim Golden!” said the sheriff, introducing his companion, and a warm hand-clasp followed. I told the sheriff that I was pleased to meet any friend of his in all seasons. I laughed loudly when Mr. Golden said:—

“I suppose you don’t know you’re under arrest, Mr. White?”

“Why, certainly I do,” was my answer, being perfectly willing to carry on the joke. “What’s the charge? Chicken-roost theft, bank robbery, or high-handed murder?”

I turned to Sheriff Butterick, and a laugh died on my lips. I’d caught a peculiar light in his eyes, and it sobered me up in a moment. I looked again at Mr. Golden. A silver shield of some sort was on his vest, and he was holding his coat back that I might read an inscription on it. “New York City Detective Bureau” was what I saw.

“I’m Tim Golden, one of the New York detective force,” said he. “I’m here with the sheriff to get you for that Walpole Savings-bank job.”

“Bank job?” I repeated, failing to catch his meaning.

“Yes, the Walpole bank burglary.”

I had begun to feel a little upset. The worst I could think of was, that by the barest possibility I had made a business mistake and that a lawsuit was confronting me. At the mention of a bank burglary I felt that little worriment vanish, and bursting into a laugh, I cried: "Come, come! you can't persist in that joke, sheriff, for it won't work. Try another, old fellow."

Detective Golden's next words frightened me, for I realized that he was in earnest.

"This is serious, Mr. White. You're wanted in New Hampshire for that Walpole bank burglary, and there is no dodging it."

"Burglary! Why, man, my business affairs occupy me from sixteen to twenty hours a day, and I've been at it every day."

"Can't help that," said Golden.

"But I can." I felt my anger rising rapidly.

"You had time enough to be much in the company of Mark Shinburn," said the detective, looking at me, his eyes half closed. There was a harsh appearance about his face I failed to like when he did that.

"And who's Shinburn?" I asked. "Never have I heard of such a name."

"You were with him a lot last fall."

"It's a mistake—a big mistake!" I insisted angrily.

"But you have heard of Wyckoff?" insinuatingly inquired Detective Golden. I started. Any one else as innocent as I would have done the same. I had actually forgotten Wyckoff; yes, I had been with him last fall when he made the trip to Claremont and Concord.

"True, I have heard of Wyckoff, a deputy marshal who stopped at my hotel and hired my teams, and I did drive him from Keene to Claremont and to Concord," said I. "But what of it? Is that bank burglary?"

"It seems to be of no use, Mr. White," put in the sheriff, "for that Wyckoff you were trundling about the country is Mark Shinburn, now under arrest at Keene. I confess the whole thing is a puzzle to me, but Golden, here, says you're mixed up in the case somehow, and you'll have to come up to Keene with us."

“But it is an outrage,” cried I, following up the outburst with an argument much too long for the occasion, for it profited me nothing. Not a word I could say would in any way straighten out the tangle. In short, I was under arrest. Detective Golden asked me if I would go with him to New Hampshire without extradition formalities.

“Of course I’ll go, if I must go at all; but, being innocent of this mess, I hate to be treated in such an ignominious manner. It is not the result I dread, for an innocent man can’t be proved guilty in this age. Yes, I’m ready to go with you now.”

And I went on to my fate—a fate I could not have foreseen. What a trip it was—one I never shall forget. We arrived at Keene, a lively though old-fashioned town, and the county-seat of Cheshire County, and I was, for the first time in my life, behind prison bars.

After all the years since that tremendous affliction, the like of which turns black hair to gray and the smooth brow into furrows, I can’t bring myself to a calm retrospection of the scenes in which I was powerless in the strong hands of my unscrupulous enemies. But in all the blackness that memory still brings up to me, I have one bright remembrance of the faithfulness of my relatives and close friends, who, thank God, believed me innocent then, and do to this day.

While awaiting the action of the law and consulting frequently with my lawyers, I had ample time to learn the inside story of the Walpole bank robbery, of which I had no knowledge, save what I heard from neighbors and the newspapers. I had no pecuniary interest in the bank; therefore, when the arrest came, I had forgotten that a crime of that sort had been committed. Many of its details were told me later, by Detective Golden, and such as he didn’t know were supplied me by others, among whom were my legal advisers.

CHAPTER IV

THE UNEQUAL FIGHT

May no other man realize what I suffered in the weeks of confinement in the jail at Keene.

Innocent of the crime of burglary, a man who had always stood up boldly among his fellow-men, looking all squarely in the eye, to be thus ignominiously, horribly entangled in the meshes of the law was to set upon him the torments of hell. I doubt, if there be a corner set apart, in the infernal region, in which certain condemned ones must meditate forever over their evil deeds, whether their mental agony will be a tittle of the writhing anguish that besieged my soul, until I was left a wreck of my former self.

Ay, the torture I endured—an indescribable, lingering horror—can in no manner be compared with the most excruciating physical distress that mortal may bear and survive, except to demonstrate, by comparison, the insignificance of the latter. So far apart are they, that they stand as the East from the West, the remotest Past from the remotest Future.

I was at times far removed from a calm contemplation of my position, and on more than one occasion wondered if my brain would retain its normal reasoning. Once I feared that I would go stark mad, with the wild rush of a thousand fancies, pursuing each other through my brain, like so many little green-eyed imps. Oh, it was horrible. And there came moments when I cursed man and God, and raved that man was a misnomer for all that was devilish and that God was only a myth. Again, and I was being sifted, as it were, through a sieve of the finest mesh, that part of me left in the sieve being transformed into all that was vile, and my pulverized self passing through, all the good in me, being blown to the four winds of

heaven. No doubt that this was a fantasy, yet as I lay in my cold cell I was so vividly impressed that it seemed a hideous reality.

Following such an affliction, there would come calmer moments, in which I was able to contemplate my condition, in much the same manner as a hardened criminal. When this mood possessed me, I had an awful, haunting dread of what the future might hold to rule my after days. But, as the time passed, and I had frequent consultations with my attorney; talked of the associations I had had with the man Wyckoff, whom I had come to know as Mark Shinburn; discussed my arrest at Stoneham, when I believed, at first, that I was the victim of a joke; and went over the various stages of my case, I began, at intervals, to be somewhat philosophical.

It was a hard matter to realize, that I, an innocent man, was actually under arrest and locked in the same jail with professional criminals, and accused, jointly with them, of burglary. Yet more difficult was it to believe that this man Shinburn was Wyckoff, the United States deputy marshal and guest at my hotel. Though he was identically the same smooth, affable gentleman in jail that I had met and travelled with the year before, I found it almost impossible at times to believe that he was a criminal—which I knew from the accumulating evidence. Day after day I came in contact with him, talked with him, discussed the evidence for and against him, and heard him confess to being sorry that his acts had involved me. I had liked Wyckoff the deputy marshal, and I liked none the less Mark Shinburn, though he was the means of my undoing.

My attorney, A. V. Lynde, with whom I had done no little real-estate business, often visited me in jail, and we discussed the points that were held by the prosecution to be positive proof of my guilt. There was my journeying about the country with Shinburn and Cummings, while they were, at the same time, plotting to rob the Walpole Bank, and many other points that were brought against me, but of a still more circumstantial nature. All these matters were laid before me, and I could well understand how some people might honestly believe me guilty.

As I lay in jail, I did not know that the avarice of a stockholder of the Walpole Bank would lead him to persecute me almost beyond measure. I did not think that he would, with good reason to believe me guiltless, use his influence to set one of the real criminals free, and set the law upon me,

in order that he might recover the loss he had sustained through the robbery. I did not know that he would continue his persecution until every dollar of my wealth was stripped from me, and I was left at the mercy of my friends to defend my innocence. But so it was.

While I lay in jail, asking day by day for a hearing, the coils of injustice were being tightened about me. The prosecution did not show its hand by any too quick action. It was only when the process of the law must be carried out that there was no longer secrecy kept by those who held my fate in their hands. I had asked for an immediate hearing on the day of my arrest, but it had been denied me. One would have thought that a man who had borne a good reputation in a community bordering on the very jail that held him, would have been given more consideration than a professed criminal. It was not so. The earliest opportunity given me to be heard was four weeks after my arrest. Then I was afforded only a chance to plead not guilty to the charge, for the district attorney, F. F. Lane, asked for an adjournment for two weeks and was given it. What conspiracy was hatched during those two weeks, I shall allow the facts to tell in their undeniable way.

The jail was one, for strength, that modern builders might copy with profit to governments. It was of granite walls, two feet thick, with double-barred windows and ponderous doors, well secured with massive locks. The main floor of the jail proper was used for small fry thieves and petty offenders, but the second floor contained three cells which were used for the safe keeping of those charged with murder and felony. Shinburn, Cummings, and I occupied these cells. The two end ones were light, but that in the middle was on the order of a dungeon. My cell was large, and two windows opened from it to the street.

One morning, shortly after the adjourned hearing, I missed Cummings. No meals were brought to him that day, and when I could speak to the jailer's wife, she told me that he had been set free. At the first opportunity I communicated with Shinburn, whose cell was the farthest from mine. He said that Cummings had been let out of the back door of the jail, so to speak, after relinquishing all claim to the five thousand dollars he had when Detective Golden arrested him.

“Although the district attorney knew that Jim sold the bond to the Scranton man, it was not possible to prove that the cash found on him was received from the sale,” said Shinburn; “and when Jim said he’d let up on the dust in case there was no conviction, Lane let him go. What’s more, Jim’s railroad fare was paid to Rochester.”

Galling to me were these facts, if facts they were; and I had no reason to doubt Shinburn in view of the positive information that Cummings was no longer a prisoner. What a turn of fate was it, indeed, that wrought out the freedom of a guilty man and left me, the innocent one, still in jail! Was it any wonder that I groaned aloud and wondered whether there was a God?

I now recall with what rapidity my case was called after the district attorney had gotten Cummings out of the way. It was put forward with all the vigor that I had clamored for six weeks prior, and excuses were made that the delay was caused by the difficulty in framing the case. As the time for the hearing drew near, I had a feeling that I was in deadly peril, though Mr. Lynde assured me that there was no doubt that I would not be held for the grand jury.

At last the day of the hearing before the magistrate came, and Shinburn and I were taken into court. Mr. Lynde represented me, while Don H. Woodward, a bright young attorney, had been retained by Shinburn. The latter’s brother Frank, of Saratoga, had come East to look after his interests. At times I had hopes that I would be free at the close of the hearing, and again I would be despondent. I knew that I ought not to be where I was, and it did seem to me that no circumstances ought to be convincing enough to long imprison an innocent man. The discharge of Cummings, by what means I never quite knew, created a grave doubt in me; besides, I hadn’t much faith in the wisdom of the magistrate at the hearing.

Mr. Lynde made a good representation for me, and so did Woodward for Shinburn. In taking up my case, Mr. Lynde asked for a separate hearing on my behalf, on the ground that the facts in the charge were vastly different from those Shinburn must meet. This, District Attorney Lane opposed with all his legal power and personal influence. All the pleading that my attorney or I could do fell on unsympathetic ears, apparently. My plea, as an innocent man, for the administration of common, humane justice, was as futile as was Mr. Lynde’s. It was ruled that Shinburn, the

guilty, and White, the innocent, must be examined together. And we were. The facts were against him, and I, with him for a millstone about my neck, as it were, was held to await the action of the grand jury. Shinburn, being guilty of the crime charged, had hoped to escape, and it seemed to me that I had a right to.

Thus was I doomed to stand in the same prisoners' dock with him, my case tightly fastened to his with legal thongs,—the innocent and the guilty to stand or fall together! What an unequal fight, what an injustice, was dealt me!

In my declining years I often wonder, if there be a Supreme Ruler,—and I believe there is,—whether, on the Judgment Day, there'll not be an awful reckoning for those who were so unjustly against me in my vain battle to establish my innocence.

Realizing how matters were going, I asked Mr. Lynde to retain the services of Mr. Woodward, and as I bade him good-night at the jail, we'd decided to call to our aid also, ex-Judge Cushion and John M. Way, both of whom I knew very well. The bail in my case was fixed at fifteen thousand dollars, and in Shinburn's, five thousand more. I hoped to be out into the world again, before many hours, no matter what the future held for me beyond the grand jury. As I meditated over the release of Cummings and the action of the magistrate, I actually would not have been surprised if Shinburn had been discharged, while I, alone, was held to an accounting.

While I had lain in jail, Herbert Bellows began a suit in tort in Middlesex County, Massachusetts, and, attaching my property, sacrificed it at a forced sale. Though the trial of the suit was never had, I was stripped of my property and left financially helpless, save for the loyalty of my friends. Notwithstanding this lack of means, these friends, not a few of them my creditors, came to my assistance, and I was admitted to bail. In the meantime the grand jury handed down a joint indictment against Shinburn and myself, and the case was placed on the calendar of the October term of the Cheshire County Court.

CHAPTER V

HANGING OF THE MILLSTONE

It was toward the middle of October that Shinburn and I were brought to trial, in the meantime the grand jury having presented indictments against us, but that didn't seem to affect me greatly, for the reason that I was becoming more hopeful every day. Having been admitted to bail and afforded an opportunity to be among my friends once more, the despondency which attacked me in jail had given way to a feeling of almost certainty that I would be declared not guilty. My attorneys, the day before the trial, having examined all of our witnesses, from Stoneham and Boston, were even more sanguine than I. John M. Way told me that the prosecution could no more convict me than it could walk on air. In fact, he said there wasn't "a peg to hang a hat on." And as to Shinburn, though he had not been able to get bail, his counsel said there would be no trouble in proving an alibi for him. If Shinburn, who, I had no doubt, was guilty, could hope to escape, how much more reason was there for me to expect a verdict of acquittal.

The trial day came, but our case was not called until long after noon. A big crowd was in the court-room, as widespread interest had been caused by the predicament which I was in. There were hundreds of people present from several counties, a great many of whom could not obtain admittance, owing to the lack of room.

I sat with my counsel, while Shinburn was seated twenty feet away, with his. My attorneys had planned to make a great fight for a separate trial, and had come to court primed with material to wage the battle. While District Attorney Lane, who I knew was as persistent as ever to convict me, was trying to get a jury, I had an opportunity to look about me. Herbert T.

Bellows was there to press the charge against us, and as I looked in his face, I could see that he had no sympathy for me. Two women and a man, sitting not far from Shinburn, were pointed out to me as Mrs. and Miss Kimball and Frank Shinburn. The former, mother and daughter, and the latter, Shinburn's brother from Saratoga, had come to testify to an alibi for him. The women, I was told, had dined in a Boston hotel with him, at the time of the burglary. Another friend, whose name was said to be William Matthews, of New York City, sat near Shinburn and was present to testify that the latter was in Boston at the time of the burglary; and again, in testimony as to character, would swear that he knew the prisoner in New York, as a respectable Wall Street broker.

There were many of my friends present, which included my Boston business partners, Charles Meriam, a broker who had done no little business for me, and my friends and my employees from Stoneham. Besides these, I saw, what was dearer than all, my relatives, sitting there to say by their acts that they believed me innocent, though the whole world should be against me.

Disregarding the district attorney's anxiety to get a jury together, we registered a plea of not guilty to the crime of burglary, and Judge Cushion, addressing Judge Doe, the ruler of the court, asked for a separate trial of the indictment against me.

"We do not, your honor, dispute the law," said he, "but we wish to plead for a deep consideration of the merits of the case. It has been set forth that the prisoner Shinburn and my client, Mr. White, must, under the construction of the statutes of this state, be tried together, because the acts alleged to have been committed by one are linked with the acts committed by the other, as charged, and that this is the best procedure, in order to best serve the interests of the state, to the end that the law shall be vindicated and those punished who committed the Walpole bank burglary.

"Now, your honor, there is no man who stands firmer than I for the elevation of the moral and legal standards. I would see men walk in the best paths of citizenship, and I would have the people look upon the law as something too pure and unsullied to be lightly held, instead of being obeyed for fear of the consequences. I would have the law respected because it is right, and not because there is a penalty if it is violated. But in the case of

the prisoners before the court to-day, there is a distinct difference. In Shinburn we have a man about whom there is nothing known in this community. He may be guilty of the charge of burglary or he may not. So far as I know, he is falsely accused. But, as to George White, my client, many of you here know, and I know, that until this damnable accusation was brought against him he was untouched by the shadow of suspicion.

“There are, no doubt, many in this court-room to-day who have known him as child and man, and who know him to be all that a well-bred youth and man should be. Born almost on this very soil, he has been educated, instructed in business affairs, and by his diligence and unusual energy has won the respect of all who have personally known him, and such as have not been fortunate enough to have an intimate acquaintance with him have respected him for the fine business reputation that his efforts have won. From one pursuit to another he went on, only to become more and more successful, and until the day that this awful charge was laid at his door, no man had dared to breathe a vile word against his splendid character. I doubt if he had an enemy in the world the day of his arrest, and, as far as I know, he has none to-day.

“But a robbery was committed in Walpole; a bank was unlocked with the cashier’s keys, and several thousands of dollars were appropriated. Presently we find that two men, accused of that crime, have been apprehended. In the course of an investigation by the authorities, it was developed that these men, one alleging himself to be a United States deputy marshal, had hired, at various times, horses and carriages from the livery stable owned by my client, Mr. White, and that on an occasion he drove them to the points they desired, as he had been engaged to do. Having acted as their servant, and having been well paid for it, Mr. White returned to the pursuit of his business, and was in entire ignorance of the fact that the two men he had thus served were, at the very time, plotting to rob the Walpole Savings-bank, as is charged in the indictment.

“Now I claim, your honor, that in Mr. White, an innocent citizen, a reputable business man, whose character is above the awful imputation against him, we have an unusual case; and that this court of justice, in view of the fact that all men are entitled to every privilege whereby they may establish their innocence, is bound to respect those rights.

“In Mr. White we have a man known to the community in which he is to be tried. In the moral court he has been on trial before his fellow-men all his life, and the verdict has been handed down, that he has done well. We find that the magistrate who held him for the grand jury declared that he must stand trial, side by side, with a man who is an entire stranger in the community; and why? Because, your honor, this man saw fit to hire horses and vehicles from him! One of the men who went to Mr. White’s stable and engaged a carriage, and who was apprehended and charged with the Walpole bank burglary, has been set free. Why is it that the man Cummings, about whom we know nothing, is given a clean bill of health, while my client here, Mr. White, whose life has been an open book, is held to prove his innocence? If the prisoner Shinburn, who, with Cummings, hired vehicles from Mr. White, is guilty, why is not the man Cummings brought before the bar to answer? Instead of that, your honor, the district attorney has arraigned one of the accused and permitted the other to go, and my client, Mr. White, seems to have been brought in to fill up the vacancy.

“But of the man Shinburn I know nothing. It is alleged, however, that bonds were found in his possession, the same the property of the Walpole Bank, and it is also charged that he was seen in Keene shortly before the burglary. As I have stated, I know nothing of this, but I do know that the evidence, such as it is, is entirely different from that alleged against my client. I do know that he had nothing to do with stolen bonds, that none were found in his possession, that he had no guilty knowledge that he had been driving criminals about the country, and that, in view of these facts, he is entitled to a separate trial from that given the other prisoner at the bar.

“And now, your honor, in the name of common justice, in the name of humanity, I ask, ay, demand, that Mr. George White, the honorable business man of Stoneham, be given a fair opportunity to prove his innocence of this infamous allegation the district attorney has made against him. And, your honor, the way to accord him that right which the constitution bestows on him, in my opinion, is to give him a separate trial. In the name of justice I demand that right.”

Judge Cushion’s plea made a profound impression, it seemed to me, on every one in the court-room; not excluding Judge Doe and the district attorney. There was an intense feeling within me that I would be accorded the privilege for which my counsel had spoken. Judge Doe looked at the

district attorney as if to say, "I'll hear you now," and Mr. Lane arose and began his short opposition, in a cold, hard voice.

"We have a case against two men," said he, "and they are before the court—Mark Shinburn and George White. The Walpole Savings-bank burglary was committed by two men, and we are prepared to show by competent testimony that the prisoners at the bar are guilty of the crime with which they are charged. They are jointly indicted, are jointly guilty, and they, according to the law of this state, must be tried together.

"The prisoner White was a poor farmer but a few years ago. It is not possible that he could have honestly accumulated the wealth he now possesses. Where did he get it? He was seen driving about the country with the prisoner Shinburn at the time the plot to rob the Walpole Bank was being concocted. These are the plain facts which the state will prove. There can be no legal decision rendered by the court which will accord the prisoner White a separate trial. I will quote the law."

District Attorney Lane then read at length from the criminal law of the state, and sat down.

Don H. Woodward, as I have said, was a young attorney, and never had had an opportunity to show his powers. Undoubtedly fired by the injustice which had been meted out to me, he pressed into the fight with an energy that even surprised himself. He spoke of the unfairness of the law that precluded a separate trial for the prisoners, and then proceeded to bitterly arraign the district attorney. Seldom has a prosecutor been compelled to listen to a flaying such as was administered him by this dashing young lawyer. His words were fearless, and at times he charged the district attorney with being influenced by ulterior motives.

"A man was arrested in Saratoga, your honor," said he, "a business man, a broker. That man is the prisoner, Mr. Mark Shinburn. Bonds were found on him by the police. Two weeks later a man known to the district attorney as James Cummings was apprehended and held in the jail with Shinburn by Mr. Lane. The first knowledge of the whereabouts of the property taken from the Walpole Bank was obtained through the sale of one of the government bonds, and the man who sold the bond was James Cummings. When the detectives arrested him, they found more than five thousand dollars in his possession, the result of the sale of one or more of

the stolen bonds. This man Cummings placed bonds in the keeping of my client, Mr. Shinburn, to be sold in the open market. The result of doing a legitimate business for a man who has turned out to be a 'looter' of the Walpole Bank, is that my client is before this court accused of the crime of burglary.

"Now, your honor, I wish to show, in plain words, that mighty queer proceedings have been going on since the arrest of this man Cummings, and particularly since a third prisoner, Mr. George White, was brought into the case. The district attorney has placed himself, through certain acts, mighty near where a foul cesspool of conspiracy can be scented. Whether he has readied that condition of his own volition, or whether the powerful political influence of a stockholder of the Walpole Bank has forced him into it, I am not in the position to say. But I do charge that there has come into this case an element that should bring to the cheeks of all honest men the blush of shame.

"Why, your honor, the district attorney brings into this court two men, one a respectable business man and broker of Saratoga, New York, and the other an honorable gentleman known to this community for nearly all his life, and charges them with an infamous crime. He has come here to ask a jury to convict them and your honor to pass sentences that shall put them in state prison, to their everlasting disgrace, the loss of their citizenship, the loss of their fair reputations, and what is more, the district attorney would further tear the bosoms of loving mothers and fathers already grievously afflicted with sorrow. All this District Attorney Lane would do, in face of the fact that he has allowed James Cummings, the actual Walpole burglar, the Walpole stolen bond seller, to go entirely free of prosecution. He dare not deny it, your honor. And why has he done this? Ask Herbert T. Bellows, sitting in this court-room, and perhaps he can tell you and the others why this unheard-of thing has been done. Will Mr. Bellows speak out? No, sir—not he! Neither will the district attorney.

"Why, your honor, the very money found on Cummings was from the sale of one or more of the Walpole bonds. When Detective Golden arrested him, this money was confiscated and turned over to District Attorney Lane. While it may not be proved that it was the fruit of the bond-selling, it can be proved that Cummings sold the stolen bonds. My client, Mr. Shinburn, sold no bonds, neither did Mr. White; but Cummings did. Why was Cummings

allowed to slip out of the back door of the jail, your honor? Will the district attorney tell us? What has become of the five thousand and more dollars? Was that money the price of the release of the 'looter' of the Walpole Bank? If so, who prompted District Attorney Lane to accept the price, if he did?

"Again, your honor, I wish to call your attention to the fact that the defendants, through their counsel, made persistent efforts to get an early hearing, but it was denied them at the instigation of District Attorney Lane. For six long weeks their pleas were disregarded, and in the meanwhile the district attorney made a dicker with Cummings, the Walpole bank burglar, and in that bargain this Cummings turned over to Mr. Lane more than five thousand dollars. Then the enterprising burglar was set at liberty, to continue his preying upon the public, it being done in a star chamber proceeding, and supplied with money to pay his railroad fare to Rochester, New York. I state all this, your honor, with a view of opening your eyes to what is going on in this case, and with the hope that the prisoners, so infamously charged, may be given the benefit of this warning.

"All of this looks very plain to me, sir. Cummings was arrested with a large amount of cash in his possession, and some one wanted it, and he was willing to give it up, provided he was set free. Two men, it is alleged, your honor, robbed the Walpole Bank. Mr. Shinburn was arrested and would do for one prisoner; but if Cummings were given his liberty, who would take his place? That was the question. Where was the second victim to come from? Ah, a thought strikes some one! A certain hotel keeper and liveryman in Stoneham let teams, according to the district attorney, to a man resembling Mr. Shinburn, one of the defendants here. Excellent! Grand idea! The liveryman was arrested, and was none other than Mr. George White, the other defendant here. The men behind this case got detectives from New York to journey to Stoneham and drag into this awful mess this respectable business man; and we find him in court before your honor to-day, the second victim, standing in the shoes which Cummings should fill. Is not this an infamous state of affairs, your honor? I charge that the district attorney set James Cummings free. I charge that Cummings did not take the five thousand dollars with him, and that the district attorney paid for the railway ticket that took him to Rochester. If ever there was a case of compounding a felony, then this is one. In view of all these facts, your honor, I say that the prisoners at the bar should be granted separate trials."

Judge Doe had listened to this impassioned speech with much interest, apparently, but without any delay decided that Shinburn and I must be tried together. Asking for a moment in which to consult, Judge Cushion, and Mr. Woodward and the others of Shinburn's and my counsel drew aside and earnestly discussed the attitude of the court and district attorney. My counsel believed me to be innocent and Shinburn guilty, yet in view of the ultimatum that both must be tried at once, it was a question whether there could be found a way to further fight for separate trials, or, bowing submissively to the ruling, proceed to establish a joint defence in which the innocent and guilty must stand or fall together.

"It's sink or swim, gentlemen!" Judge Cushion told the others at the termination of the conference; and they returned to the tables.

Well, when court adjourned that afternoon, a jury to try us had been chosen, Sumner Warren being its foreman, and the preliminaries had been accomplished so that the prosecution was ready to call its witnesses the first thing the next morning. As for my feelings, they had undergone a great change since the convening of the court. All the fear that possessed me after the hearing at which I was denied a separate chance to prove my innocence, was upon me again. The hopefulness of the morning had resolved into the gloom of night. I must fight my way through the great cloud that beset me, handicapped by the case of a man I had no reason to doubt was guilty of the crime with which he stood accused. Linked with a criminal, I must prove my innocence or be convicted a felon.

My lawyers said there was no reason for me to feel despondent; that we would win despite all that was pitted against us; that there wasn't any evidence upon which the jury could possibly base a verdict of guilty, though they might be ever so prejudiced. As to the jury being a fair and well-disposed body of men, Judge Cushion said he had no doubt of that. I took all this as poor comfort, however, and in my hotel that night there was precious little sleep for me. After a long, weary vigil, the dawn came, and with it the nerve-distracting trial, which lasted ten days.

I shall not go into the details of the testimony. Herbert Bellows was a witness, testifying to the ownership of the bonds found in Shinburn's pockets; and another witness declared that Shinburn was a man he'd seen riding in a rig, between Walpole and Keene, early in the morning following

the burglary, and upon being asked to identify the other man with Shinburn, said I looked very much like him. Detectives Golden and Kelso swore to the facts surrounding Shinburn's arrest, and to the search in the Saratoga farm-house where burglars' tools were discovered. Other witnesses told how I let horses and carriages to Shinburn, and drove him to Claremont and Keene, and that I had engaged a turnout from Layton Martin's stables to do so. All of which I had done; but was it not horrible to sit and listen to the criminal construction placed upon these innocent acts? to listen to the motive attributed to me? And still other witnesses swore that I had accumulated a fortune in two years, that was impossible of accomplishment through honest means, and that being the case, I must have gotten the money somewhere, and why not from the Walpole Bank? At times I writhed under these damning words, and it was with the utmost difficulty that I was restrained, time and time and again, from springing to my feet and crying out that they who talked thus were liars. Glad I am that my friends made me hold my peace!

At last the prosecution rested and the defence called its witnesses. Frank Shinburn told the jury that his brother was a broker and that James Cummings placed the bonds in Mark's hands for sale. Shinburn's sister corroborated him. On cross-examination this testimony was shaken, particularly that of the brother. Mrs. Kimball and her daughter testified that they dined with Shinburn and Billy Matthews at the Revere House in Boston at the very time District Attorney Lane alleged he was in Keene plotting the burglary. These women were honest in giving this testimony, but a subsequent examination of the hotel register showed that the dinner took place the day after the robbery. William Matthews swore that Shinburn was a broker who did much business in Wall Street, New York City, and that he had often sold bonds for him, and that he'd dined with the prisoner and the two women in the Revere House, Boston, as had been testified to.

My witnesses from Boston testified to the business which took me to that city every day, from ten o'clock in the morning until evening. The time for every day in the week prior and after the burglary was accounted for. One of my partners in the Boston firm of Towle & Seavy told of the manner in which I had accumulated wealth. Several bank officials testified to the dates on checks which showed where I was at vital moments,—the moments when I was supposed to be actually engaged in robbing the

Walpole Bank. A number of witnesses testified to various business ventures in which I was engaged with John M. Way and several other reputable business men, and how many checks passed in this business; and Charles Meriam, a broker of Boston, swore to the sums of money that he received and invested for us, all of which made a perfect accounting of the prodigious wealth which the district attorney had conjured up against me. A. V. Lynde went on the stand and told of my real-estate transactions with him; how I had bought tracts of land from him and how I had dealt at all times honorably. My clerks, Ellis Merrill and Fred Benson, told in detail of my strict attention to business; of how I got up every week day at five o'clock in the morning, attended to my business in Stoneham, and leaving that in charge of my employees, went to Boston to look after my business interests there. After finishing in Boston I would return to Stoneham to look after things at the close of the day. In fact, all of my time was well accounted for, making a complete alibi. Ellis Merrill testified to the fact that he had been the first to meet Wyckoff and Cummings at the Central House; that I was away when they came, and that he let a team to them of which I knew nothing until my return from Vermont. All these witnesses testified to my splendid business and social reputation, my honesty, veracity, and integrity. Fully twenty witnesses, all intimate friends, took oath on my behalf, to combat the testimony of a few witnesses, none of whom could swear positively to a point against me, except that I drove about the country a man who, they swore, was Shinburn.

Shinburn was not wanted by his counsel to take the witness stand; but I impatiently awaited my time to tell what I could, in the minutest detail, of my movements that could in any way be dragged, even by conspiracy, into the case. At last Judge Cushion called my name, and I arose to testify. District Attorney Lane was on his feet in an instant, protesting loudly that I had no right to witness for myself, that it was contrary to the New Hampshire laws; and he quickly quoted from the statutes.

Judge Cushion answered back in clarion tones, that, law or no law, I must be given an opportunity to explain many circumstances; that the law of God and common sense entitled me to every opportunity to prove my innocence. He declared that I could easily explain away all the ugly suspicion that attached to me through my association with the bogus United States deputy marshal. But it was a fruitless argument for me. Judge Doe

decided that I could not testify on my own behalf, and in this manner another thong was added to those already binding the millstone to my neck. The remainder of the trial was a vague dream to me. Judge Cushion made a masterly plea for the defence, and Assistant District Attorney Wheeler, the brightest legal brain then attached to Mr. Lane's office, wove a web of evidence about Shinburn and spoke of my suspicious acquaintance with the man Wyckoff. I know the judge wept as he pleaded my case, and I know that Lawyer Wheeler was bitter in his arraignment of Shinburn. Standing out prominently in my memory, however, are the words he chose in closing his "summing up" for the prosecution. They were directed to the witness William Matthews.

"And this is the sort of a witness they bring from the reeking hells of New York to be a witness in a New Hampshire court of justice," he cried, pointing to Matthews. I thought it was a terrible thing to hear said of a man, and wondered why this friend of Shinburn's did not measure the assistant district attorney's length on the floor, in front of the very eyes of the judge and jury.

Judge Doe charged the jurors to consider well the facts in the testimony, and told them what was evidence and what was not. It was a hard, merciless review of the case, and I shivered with apprehension. It struck me like a chill wind from a damp, mouldy cavern. The jury retired, and when it was evident that they would not bring in a verdict that day, I was taken to a cell to await the morning. Oh, the uncertainty, the horror of it all!

As I was conducted to the court-room the next day, it did not take long to tell what the verdict was; for I could read the dreaded news in the face of Sumner Warren, the foreman, as he and the other jurymen filed to their seats. I felt faint with the strain.

"Guilty!" I heard Sumner Warren say, in response to the clerk's solemn question.

"Guilty!" I groaned to myself. "Was ever there such injustice?"

"Bad enough, but I'm glad it's no worse, George," said my good friend and attorney, Mr. Lynde. "We'll have you free—a disagreement is as good as an acquittal, in this case."

“How? what? why?” I stammered, all but dazed.

“Shinburn has been convicted, but the jury has disagreed in your case!” said he. “That’s why they were out all night. Six of them believe you are not guilty.”

“Thank God!” I breathed. “Then six of them believe that I could not be guilty of the awful crime charged to me. But how in God’s name can *any* of them believe it?”

I could not see all the hope that my attorneys seemed to derive from the situation. I wanted to be entirely free from the horrible accusation. Six men, under oath to render a verdict according to the evidence, had determined that I was guilty, though I was innocent. I was half condemned, and to me that meant a stigma would ever be hovering about my reputation, and some one always would believe that I was not the good man I claimed to be. Judge Cushion freely expressed the opinion that there would never be another trial; that I would be admitted to a nominal bail, if not allowed to go on my own recognizance, and that in due time the indictment would be dismissed. Despite the depression that the verdict had left upon me, I went to the jail that morning with a faint hope.

Later in the day Shinburn was sentenced to ten years at hard labor in the Concord state prison. He took the judge’s words with an indifference which I couldn’t understand. In fact, a little later, in his cell, I saw him making eyes at a pretty woman who lived in a house across the street, just back of the jail. She was married, and seemed to enjoy very much the many sly flirtations she had had with him from her windows. I thought that she was better off attending to her husband’s affairs than wasting her smiles on a man convicted of burglary. But then, there was never a gauge that would truly measure the taste of women. Some of them do most unaccountable things where a man is concerned.

At the first opportunity Shinburn told me that he was really sorry I’d got into trouble at all, but congratulated me on the prospect of my getting entirely free of the charge. He seemed to entertain the same idea with my counsel as to the outcome of my case, and expressed the wish that he’d been as fortunate as I.

During the day I had a long consultation with Judge Cushion and my faithful attorneys, who said that they would get Judge Doe to fix a bail for me at the earliest possible moment. I urged them to do so, as I wanted to get away from the terrible haunting thoughts that besieged me. I said that prison bars were not conducive to pleasant thoughts.

At about five o'clock that day I saw Shinburn, coat and hat on, come out of his cell. He had unlocked his door, as I could plainly see, with a key that looked very much like a piece of heavy tin. He relocked it, motioning me to keep silent, and slipped behind the grated door through which the jailer and his wife were expected to appear, almost any minute, from the corridor into the cell room. I waited. Almost immediately the couple came in and passed over toward his cell; why he was not discovered with only the grated door between him and the jailer, I can't understand. The instant the way was clear he slipped from behind the door and, waving his hand to me, disappeared. In an instant the visitors to Shinburn's cell found it empty, and then there was excitement enough for all hands in the jail.

The next morning I heard how Shinburn fared as far as those engaged in pursuing him would tell. Upon passing from my view he had hastened downstairs, and through the apartments of Jailer Wilder, threw up a window sash in the parlor, and jumped into the yard. Getting into the street, he encountered Under-sheriff Davis, who chanced to be passing the jail. Dodging him, Shinburn started eastward out of the village toward the woods. The under-sheriff, recovering from his surprise, began yelling like a madman, and started in pursuit, followed by a crowd of shouting villagers. Soon there was a mob after him, but not one of them was armed, and it was supposed that Shinburn was no better off.

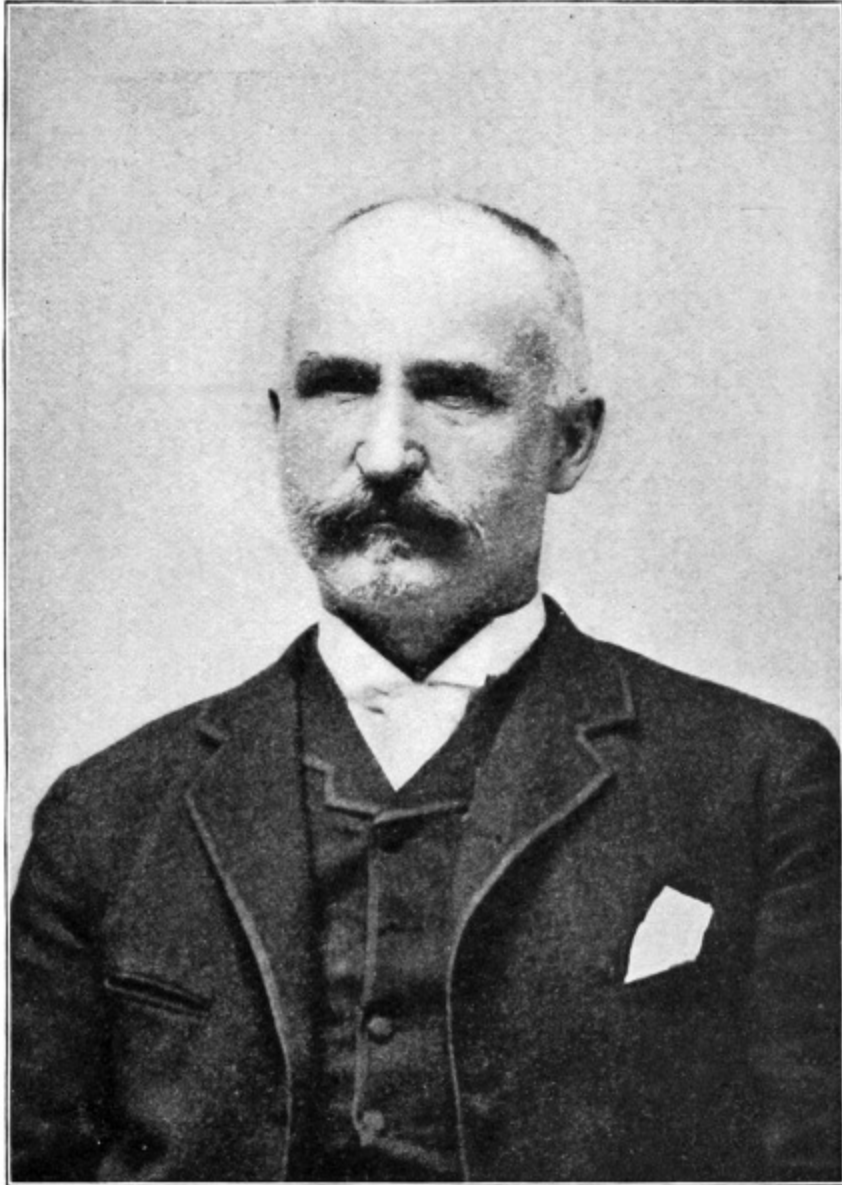
For three-quarters of a mile the fugitive kept ahead of his pursuers, and by that time he had reached the woods, in front of which was a tall fence. Climbing over it, he coolly seated himself on a log and waited for his enemies to come near. When they had, he drew his revolver and, covering them, said sudden death was awaiting any one who attempted to cross over the fence. Not one dared to disobey him.

In the meantime Jailer Wilder, arming himself, followed on after the first party. When Shinburn saw reënforcements approaching, he got up from the log, and, smiling cheerfully, said, "Now you see me and now you

don't!" At this he turned and plunged into the woods and was lost to view. He left his overcoat behind, for it had retarded his escape.

For several hours, according to the story I was told, the woods were searched, but Shinburn was not found. Later I heard there was a wholesome dread of the pistol he carried, and that none of the party was too venturesome. Jailer Wilder was at loss to know where Shinburn got a key to his cell door and where he had obtained a revolver. I was asked more than once, but of a truth I knew nothing of the plan of escape. It was as much a surprise to me as it was to the sheriff.

High-sheriff George Holbrook made an investigation which resulted in putting upon the jailer the suspicion that he conspired in Shinburn's escape. Subsequently Wilder was removed from office, and the stigma of it he carried with him to his grave. But be it recorded here, that he was innocent beyond all doubt. In later years I had it from Shinburn's own lips, that the unfortunate jailer was blameless; and that his descendants may know it, even at this tardy day, is why I have been thus earnest and painstaking in recording the fact.



Maximilian Shinburn

CHAPTER VI

PERSECUTION

I awoke the next morning, with a start, from a night of interrupted slumber. The closing hours of the trial and the escape of Shinburn had command of my brain till it was a relief to open my eyes and become conscious of my surroundings. As I thought of Shinburn away from the horror of the jail, I will not attempt to deny that I had a sense of gladness for him. I had seen considerable of this man in jail, and I had to confess to myself that he possessed the rare faculty of winning the friendship of almost any one. He had won mine as the fictitious deputy marshal, and knowing him at length as the bank burglar, I could not do else but like him. His whole-souled, generous nature shone through his criminal craft, until at times I found myself wondering if he really were a felon,—wondering if I were not in a dream. When this mood was dissolved, and I realized that he was a criminal of exceptional cunning,—all he'd been proved at the trial,—I asked myself what it was that had sent him on to the commission of crime. At times, when I would hear his soft, gracious voice, look in his kindly blue eyes, and admire his genial smile, it was not difficult to fancy him standing in a pulpit, preaching the word of God. But I am digressing too much.

These thoughts gave way to the more important matter of getting bail. Now that the jury had disagreed, my counsel applied for my release, believing that only nominal bail would be required; but imagine their astonishment when Judge Doe announced he'd increased it to twenty thousand dollars. This was as outrageous as it was unexpected, in view of the issue of the trial. Had I not been declared innocent, practically, by some of the jurymen? Was not their action sufficient in itself to warrant the authorities, on the moral ground, if on no other, in giving me the benefit of the doubt, so far as bail was concerned? My counsel were up and doing,

unsparing of words in protesting against the injustice, proceeding almost to the point of offending Judge Doe. And my loyal friends again came to the rescue. Speedily setting about, they subscribed the new bail, and in a few days my release was once more applied for. To our consternation this sum was declared to be insufficient, and when an explanation was demanded of Judge Doe, he answered by increasing the bond to forty thousand dollars.

“And if that is offered,” he declared coldly, “I’ll make it eighty thousand dollars!”

Here was persecution absolute. His decision was a flat refusal to accord the right guaranteed me by the constitution,—the right of admission to bail, charged as I was with a felony only. A constitutional guaranty had been swept away like so much waste paper. My trial had been a travesty on justice, and then to crown that, I was being persecuted, was hopelessly bound in the toils of a relentless, powerful enemy, it seemed. I must remain in jail to await another trial—bear the agony longer—helpless, because a certain influential man had schemed to drag my wealth from me to reimburse himself and others. As to getting my wealth, that, indeed, had been accomplished. My business had been seized and sold, and I was penniless and dependent. What more did they want? Would the human vultures not be satisfied until my body had been thrust in a prison cell and kept there for years—until torture had devoured it? Was there, I cried out to God, no limit to the persecution of an innocent man? Where was that boasted justice, that love and that piety of the Puritans? Had mammon ridden roughshod over and crushed out those high ideals of old New Hampshire? I found no answer, not even an echo of my words from the four bleak walls of my prison-house.

As the weeks wore on and there was no relief, the evil that persisted in forcing itself upon me, from time to time, and which I had as often conquered, came back again with still greater force. Made reckless to the danger point by the power of my wrongs, I fostered the evil thoughts until they were almost my ruling passion. I swore one day I would no longer willingly submit to such inhuman treatment; that I would be a law unto myself, and that I would accept the consequences, be what they might.

The dreary autumn days had merged into winter when the decision to break out of jail became an accepted thought. Day and night I meditated

over a plot that would make freedom from my cell certain. My friends, aroused over the injustice heaped upon me, were only too willing, at last, to lend their aid. All the tools, clothing, and money needed would be forthcoming at the proper time, and I believed that God would forgive any one who would brave a violation of the law to succor an unfortunate one like me.

At last I completed a plan, and when February came I had secreted in my cell the saws, files, and other implements necessary to cut my way to freedom. In the cell with me at that time was a young burglar named Woods, whom I did not much trust, but felt obliged to include in my plans. He, naturally, was willing, and from then on we labored together in one common interest.

It looked like a hopeless job at the beginning, barred and triple barred as the cell window was. There were two sets of inner iron bars in trellis work, and attached to the set nearest to the window sash by four iron rods in sockets was yet an outer trellis. The only way to get through this network of bars was to cut an opening in the two inner trellises, large enough to admit the passage of our bodies, and sever the inner ends of the four rods supporting the outer trellis. This done, the outside trellis could be pried off, when it would drop in the jail yard. But all this necessitated sawing twenty-seven square inches of iron—a tremendous undertaking, as can be readily understood. However, I was determined to succeed, even to the surmounting of greater difficulties.

I decided that the sawing must be done in the daytime, else the rasping of the saw would attract the attention of some one in the jail. Besides, Sheriff Aldrich, who had succeeded Jailer Wilder after Shinburn's escape, slept in an apartment on the floor below, and not any too far away for our purpose. By daylight we could work fairly well by dodging people passing in front of the jail and those who occasionally came in the corridor leading to the cell. From the inside was where we must expect the most interference. Believing that I could best throw off suspicion, in case any one came near while we were busy, I had Woods do the sawing. The points most pregnable were pointed out, and we began. At once it became a most difficult and tedious job. The weather was frigid, and when we weren't shivering with apprehension lest we be discovered, we were being badly nipped by Jack Frost. Very frequently people passed in the road, or Jailer

Aldrich came in the corridor, or there was danger of our work attracting the attention of some one of the prisoners below. There were days when we accomplished scarcely anything, owing to the almost incessant interference; while on other days we made hopeful advancement. Finally, after two weeks of work and worry, we had cut, all but the shreds, an aperture in the inner trellises, sufficiently large, we believed, through which we could crawl. The shreds we would cut the afternoon before we made the exit. The four bars holding the outside trellis had been similarly treated. Then, having been provided with what we needed to make the journey, we set the following midnight as the hour for our surreptitious exit. The next evening, after supper, we finished the opening in the bars and prepared for the vital moment. We had a stout piece of wood in the cell to use as a lever for prying off the outside trellis, and at midnight, all being ready, I proceeded. Despite my greatest effort, the lever would not move the trellis, and when Woods added his weight, there was no better success. I was shocked and disappointed. It seemed that we had not sawed near enough to the severing point, so far as the four rods supporting the outer trellis were concerned. I had feared that the thing would fall off before we were ready and spoil our escape. The stick seemed too short to furnish the leverage needed. I looked about for something better, feeling satisfied I wouldn't find it in the cell. Suddenly it flashed across me that I could use a part of the iron bedstead, and I cut off one of its legs, and we went at the work again like madmen, as time was fast leaving us in a sore predicament. Even the new lever didn't avail us anything further than to show me that we had made the opening in the inner trellises too small. We were confronting a critical situation indeed.

It would soon be daylight, and the jailer would call with our morning meal; and if the aperture in the grating was not filled, we could not expect anything but discovery.

"What can we do, White?" asked young Woods, pale-faced. It was bad enough, he thought, to be in jail for burglary without facing a charge of attempting to escape from it.

I recalled we had cosmetic. Perhaps the iron-work could be kept in place with it until we could get something better. I put the patches of grating back in their places and filled the crevices with the cosmetic. It didn't seem to me they would stay in. Any vibration, I thought, might tumble them out.

“It’s the best we can do, Woods,” I said, not cheerfully; “and as to that lame bed, we’ll have to be mighty careful it doesn’t betray us. We’ll see that it is carefully made,—no one can do that job so well this morning as one of us.”

“I’ll be the chambermaid,” Woods said, with a laugh that had a false ring in it.

“By cracky, how my back hurts!” I said, with a groan, as I doubled forward and hobbled about the cell. “I never had such a peculiar pain in my life.”

“Must have caught it from the open window,” suggested the young man. “Hope it won’t make you sick. Better get a porous plaster from Aldrich. Mother allers uses ’em.”

“The ordinary kind won’t cure my pain, lad,” I answered, with a laugh and straightening up; “I’ve got to have some pitch—the real pine. Nothing else will relieve me.”

Woods looked mystified.

“Wait,” said I.

When Jailer Aldrich brought in breakfast, he was sorry to see me in such “rheumatiz” distress, and I had little difficulty in inducing him to fetch me a quantity of pitch with which to make a “home-made” porous plaster. It was to be differently applied than he dreamed. It was not difficult to obtain the pitch, because Aldrich usually supplied the prisoners with any necessities.

With it I patched up the grating so that it would stand inspection at long distance, though a casual examination close by would have meant instant exposure. However, that day we began to make the opening in the inner trellises five inches larger. On the third day we received a fright that caused me to tremble for an hour afterward and wonder how it all turned out so well for us. High-sheriff George Holbrook and two visitors came unexpectedly upon us, despite my precaution. It was with great difficulty that we assumed our normal conditions. Any other time I would have been glad to see them, but now it was simply, it seemed to me, like playing tag with discovery. Holbrook must not be allowed to get near the window or all would be over. I never was too much of a talker. I had often declared I

would never make a book agent or an insurance solicitor, but how I did chatter away at them. I said anything, nothing, talked of all subjects I could think of, until it seemed I must have driven them away in disgust. Indeed, they were about to depart when the sheriff moved toward the window.

“Holbrook!” I cried, in sheer desperation. “Here—see this!” and caught up a law book Don Woodward, one of my counsel, had loaned me. I don’t know what I said or read and I don’t care, for it did the trick. Holbrook and the visitors a moment or two later had gone. Woods was near the window, trembling. I sat down and wiped the clammy sweat from my brow. My heart was beating sluggishly; and for a few minutes my vision was dazed and I could see naught but dancing sparks like little stars. I came mighty close to swooning.

“We’ve got to get out of this to-night, Woods,” I said, on recovering. “It won’t do to spend another day here under these conditions.”

And we went to work again and at dark had finished the sawing, practically. Five minutes more of that kind of work would suffice.

Clothed, a rope of blankets ready, and in every way fitted for our journey, we waited for midnight. I well remember the weather—severely cold and plenty of snow on the ground. We were to race for the farm-house of Woods’s father, two miles out of Keene. There, without Mr. Woods’s permission, we were to get a horse and sleigh.

At last the hour came, and with the bed leg for a lever I pried at the outer trellis. Thank goodness, this time it moved, and I shoved it outward, expecting it to fall to the ground. Fate was with us—instead, one of the shreds of iron tenaciously hung fast and answered as a hinge. The two hundred and fifty pounds of iron swung back almost noiselessly against the masonry and remained there. Had it fallen, the crash, notwithstanding the snow, might have aroused Jailer Aldrich, sleeping not far away. The rest of the journey to *terra firma* was not difficult. With blankets tied end to end, we let ourselves down to the ground, and, scaling the stone wall, quit the jail at one o’clock in the morning. We found it pretty hard plodding through the snow. Getting to Woods’s barn, we stealthily as possible hitched up the horse, but not without some trouble with the family watch-dog. However, Woods succeeded in quieting him, and, getting off with no further discovery, we were soon driving at a fast pace through Surrey, past Walpole,

and toward Bellows Falls. When near the bridge over the Connecticut River we passed a noisy sleighing party, among whom I recognized, by his voice, Sheriff Stebbins of Charlestown, Sullivan County. We kept our heads well down in our coats and felt glad when we'd got by without being discovered. Several years after that I saw Sheriff Stebbins at Charlestown under rather peculiar circumstances.

We encountered nothing unpleasant in the six miles drive from Bellows Falls to Saxton's River, where lived a fine old uncle of mine. He and my aunt had a comfortable place on the outskirts of the village, and although they knew we were fugitives, they made us welcome. My aunt prepared a nice breakfast while I sent Woods to the village with his father's rig, instructing him to leave it there to be returned and gave him money to pay for the hire of another. He came back, and after breakfast we resumed our journey toward Londonderry. It was my plan to drive over the Green Mountains into New York State, and, getting rid of the team, to strike out for a large city, probably New York. Woods had a cousin in Londonderry, where he said we could get some food for ourselves and fodder for the horse, after which the next point to be made would be Salem, just over the Vermont border in New York. This we did to a dot. I, being ready to continue the journey from Salem by rail, directed Woods to drive the team from there eastward twelve miles to a village, where he was to put it in charge of the stage driver who journeyed regularly to Saxton's River. Thus the liveryman would get back his property in the good condition we found it. Woods was to make Troy or any other place he saw fit.

By rail from Salem to Troy, thence to New York, was a matter of only a few hours, and as I whirled along I had ample time to meditate over my lot; but the more I thought of what I had gone through, the more I seemed to be forced down to by-paths into which I had never dreamt of setting foot. After a time I compelled myself by sheer force to think of other things—what I would do, whether I would go farther west or remain in New York, and whether it would be wise to immediately ask for employment in some big dry-goods store there. I knew I could do passably well as a clerk in that line, for the experience in my father's store and in my own later would stand me in hand.

At Albany I managed to get a newspaper, but saw nothing in it about my escape. A few hours later I was in New York. It was a dreary day, but

after all there was a sense of freedom about me. I was no longer in a grewsome cell at Keene. I was away from those months of horror. Reflecting over what I had done, I felt certain that a reward would be offered for my capture. In plain terms I realized that I was a fugitive from justice. As the word “justice” came to me I seemed to fill up with hatred. What a travesty my experience had proved the word to be. I shuddered at the possession of such thoughts, for hitherto I had been a firm believer in the righteous adjustment of all things; had been a sincere believer in the law. Again I stifled these ugly feelings that surged up within me.

Starting out for lodgings, I soon found them and sat down to lay out my plans. Again despite all my best efforts to the contrary, the terrible experiences dating from the second day of June would come to the fore, and I seemed to hear evil voices urging me to forsake all that was good and plunge into the swift-flowing current of vice. But, as on other occasions when I’d battled with evil, I could see the faces of my father and mother looming up in this train of thought, like a shaft of silver light athwart a threatening cloud, and I could hear, it seemed, the earnest solicitation of my loyal friends to be courageous though the worst come, and that they would stand by me until the last. When these good thoughts gained the ascendancy, again I resolved to profit by it, and straightway set about to seek honest employment in which I could make a fresh start, endeavor to fight down my persecutors, and rebuild my fortune.

I found a clerkship in A. T. Stewart & Company’s retail dry-goods house after some effort, and though the wage was small and the prospects of an advancement were not encouraging, I began once more to take on a little hope. I succeeded in communicating with my friends at home in good time, but obtained precious little encouraging information. A reward of a thousand dollars had been posted throughout the country for my apprehension, and it was with a feeling that only a man can know who has experienced woes like mine that I read the description of the desperate bank burglar, George White, and of his midnight escape from jail along with another burglar.

The first knowledge in the jail of our escape came from a citizen passing just at daylight. He saw the rope of blankets hanging from the open window, and, rushing excitedly into the jail, woke up Jailer Aldrich with the cry, “Better look after your boarders—there’s a blanket hanging out of the

jail windows.” Poor Aldrich, I was afterward told, rushed about as though bereft of his reason.

Another piece of unpleasant news was the row made by the liveryman of Saxton’s River. It seems that Woods had disregarded my instructions as to the team we hired from there, and, instead of paying for it with the money I gave him, had it charged against me. Besides that he had driven to Troy, got intoxicated, and while attempting to sell the outfit was arrested and taken back to Keene. The liveryman, ascertaining who had engaged the team, lodged a complaint against me, and in the minds of some people I had become a horse thief as well as a bank burglar. Eventually the liveryman recovered his turnout unharmed. Later, though, through my brother, I paid him one hundred and twenty-five dollars to escape an indictment for horse stealing. Woods’s love for liquor and disregard of my instructions was the means of casting further odium on me.

I had been in Stewart’s nearly three weeks when I learned that Shinburn had been recaptured and sent to Concord prison to complete his sentence. I was sorry to hear this. Indeed, I felt despondent for several days over the mishap to that criminal, regardless of my effort to shake off the almost unaccountable feeling. I hadn’t succeeded when a development forcibly turned my attention into another channel. My hopes, which had grown wonderfully since my employment, were suddenly dissipated like a morning mist before an August sun. One morning a man whom I had known intimately in Boston—indeed, considered to be a trusted friend—came to the store. He was as much surprised at the meeting as I was frightened. There was no opportunity to evade him, so I made the best attempt I could to be unconcerned, and declared my delight at seeing him. We shook hands heartily and talked over my predicament, not forgetting to speak of the reward that was offered for my return to New Hampshire. He expressed sympathy for me and bemoaned the fact that I had been dealt with so unjustly, and held me blameless for escaping from my enemies. We were about to say adieu when I asked him if he would mention anything of our meeting when he returned to Boston.

“On my honor, no!” he answered with a ring in his voice which sounded true and friendly.

“I hope not,” said I, gratefully, “for I’ve been pretty badly handled, and I’m trying hard to get myself together again. If they find I’m here, it’ll be all day with me.”

And so we parted, but in my heart there came a heaviness, a sense of depression that I couldn’t shake off, try as I would. I had a premonition that this friend, regardless of his protestations, would be sadly tempted by the reward. I felt that he would argue that I would sooner or later be captured, and that there was no reason why he shouldn’t get the benefit of the thousand dollars. In the scales, his friendship on one side and avarice on the other, I believed that the former would prove the lighter weight. Indeed, I was so deeply impressed with impending danger that I resigned that day, drew five dollars due me, and left the store forever. It was well that I acted thus promptly, for not many hours subsequently the police were searching for me. My friend’s faithfulness had been of the kind that wouldn’t stand the test. In the balance, weighed against his love for money, his friendship for me had proved many ounces too light.

Verily, I was being persecuted to the end.

PART II

CHAPTER I

SIDETRACKED

Hunted out of honest employment, I found myself very much in the position of the pursued rabbit; therefore I was compelled to seek the first cover that presented itself. I had been robbed of every dollar of my hard-earned fortune. A fugitive from justice, there was a reward proclaimed abroad for my arrest, though I was an innocent man. All this was awful to realize, the bitterness of it eating still deeper into my soul. What would the end be?

Anxious to begin life afresh, I had sought a strange city and under a new name had attempted to do it, but fate was horribly, relentlessly cruel. What would I do? where could I turn? I had only five dollars in the world, and that wouldn't carry me far. Alas, I was not unlike the hunted rabbit. I had been the victim of a cruel game of life. It was a most critical period at which I had arrived. The fatal line must soon be crossed. Good and evil would fight out their battle. In the jail at Keene I had been besieged by thoughts that made me shudder, but the evil that battered my soul now was as the blackness of hell in comparison. Bitterness was rapidly eating into my worst nature; the tender words of a fond father and the sweet prayers of a loving mother were fast becoming far-off sounds in my dulled ears. Recollections of the sort that sear consciences came to the fore, uppermost being the words I had heard from the lips of an old conductor of the Fitchburg railway, not far from my home. I had often been with him on his trips and talked with him, for he was well known to me in my youthful days. How well I remembered the words. They burn in my brain even to-day, as well they should, for they played a strong part in the influence which sent me on to a life of reaching out for that which was not lawfully mine.

“See that fine property?” this conductor said to me one day, as he pointed out a big country residence; and when I nodded assent, he added, “Well, I’ve got a first mortgage on that.” Presently he said, with a meaning I could not misunderstand, “We conductors have the name of knocking down fares, so we may as well have the game.”

Twice on the trip he made that remark. For several years the meaning of the words “name” and “game” lay dormant in my mind, but how freshly it came back to me in the moment of my standing balanced between the narrow path of rectitude and the broad road of crime. Homeless, desolate, hunted like a real criminal, a reward hanging over my head, made a good soil in which the seeds of evil deeds might take quick root. To whom in this extremity might I turn? I asked this question of myself many times, and the only reply was the echo of my own words. There was a Boston man in the city with whom I was well acquainted, and who knew my side of the case thoroughly, and whose sympathy I had. I must have some money, therefore I appealed to him, and he loaned me twenty dollars. This, with five I had, constituted my cash capital. The remainder of it was my brain, and it shall be seen to what purpose I put it, ere many days passed.

There was another man in New York I knew—Shinburn’s friend Matthews; Billy, he called him. I remembered that his address was 681 Broadway, so I determined to look him up. Knowing Shinburn, I ought not to have been surprised at anything in Matthews, but I was actually dumfounded when I learned that 681 Broadway was a notorious gambling house kept by one Harvey Young, and that Matthews was a faro dealer there. Young’s place was at that time an attractive resort for the younglings of New York’s rich men, thousands of whose dollars passed over the green cloth every night. I now knew why Mr. Wheeler, the assistant prosecutor, in summing up at the Keene trial, had pointed out Matthews and asked the court in scornful tones to look upon the sort of man “they bring from the reeking hells of New York to be a witness in a New Hampshire court of justice.” Undoubtedly the New York detectives had known that much of Matthews and had told it to Mr. Wheeler.

But I had reached and passed the fatal line now, and it seemed to me that I wasn’t sorry to learn what this man Matthews was,—an employee in a gambling den. Even if he were a criminal like Shinburn, I felt that I didn’t care. When I rang the bell, a man who looked like a servant answered it,

and to my inquiry said Matthews wasn't in, but would be that night. I said I would come again, and did several hours later. I had only met Matthews speaking with Shinburn in the jail at Keene, altogether perhaps a half-dozen times. He was a dapper, earnest little fellow, and seemed in all ways a better man than I imagined a gambler could be. I was greeted heartily by him, and he told me that my escape wasn't news, an account of it having been in the newspapers. My face must have been a delineator of my determination to do something desperate, for he asked me if he could assist me in any way. I told him he might, and that there could be none too much haste to suit me.

"You see the fix I am in by accommodating your friend Shinburn, whom I believed to be a government official," I said with great feeling. "I had a clerkship here, but have been forced to resign it, that I may keep clear of arrest. Here I am, practically on my knees; and, frankly, I don't know what to do. Can you help me on my feet again?" I knew what was in my mind to do, for I was desperate, and I awaited his answer with anxiety.

"What can I do?" he asked; "you certainly are in a peculiar fix."

"I've got to get out and hustle," exclaimed I, while trembling in every joint.

"What do you mean?"

I meant to say steal, but my tongue couldn't, seemingly, utter the word. Swallowing hard, I asked him to put me in with some of Shinburn's friends; and thus was forged the first link in the chain that was to fasten me to a criminal career for many years. A few days later Matthews introduced me to George Wilson, a partner of Mark Shinburn. He took me to Wilson's rooms at 303 Bleecker Street, where there was assembled the first gang of safe burglars I ever set eyes on.

Wilson was forming a prospecting party which was going West in search of banks whose vaults could be cleaned of cash and salable bonds and securities. With him were Big Bill, another of Shinburn's partners hailing from Canada; Eddie Hughes, *alias* Miles; and John Utley, a partner of the latter. The trio last named had just returned from a failure to crack a bank at Schuylerville, New York. Surprised in their work by a constable, they would have been arrested had this country official possessed the nerve to tackle them. Finding himself pitted against three big, husky fellows, he

retired for reënforcements; but while he was thus engaged, the quarry reached Saratoga, boarded a train, alighted at Troy, and thus clouding the trail, managed to arrive safely in New York.

In the proposed party was another of the crooked fraternity, whom Wilson described as Tall Jim, he making the fifth one—and a mighty fine sort of a fellow he proved to be. Then I was mentioned as the sixth and last member. The introduction of my name precipitated a row, perhaps through the fact that I was a stranger, not only to the party, but to the art of bank “burgling.” However, George Wilson had proposed me for membership, which was sufficient to squelch all the objectors, with the exception of Jack Utley, who seemed to take a dislike to me from the start.

“What does this man know about robbing banks?” growled he. “You’d see his heels showing their color at the first bark of one of them Western dogs.”

I half believe that Wilson would have listened to Utley’s protests, which were many, had it not been for Matthews, who put up a strong argument on my behalf. However, Wilson soon settled the matter by announcing that I must be considered in, whereupon Utley ceased his objections. But he did a lot of grumbling on the side, and I could see that he would not, of his own volition, do me a favor in the future, should I need one even more than at the moment.

All being ready in a few days for the launching of the enterprise, we started out. It was in the middle of April, 1866, and spring had opened up in excellent style as if for our convenience. Big Bill, Eddie Hughes, Tall Jim, and I went to Pittsburg, where we were to begin prospecting for loot. When the first bank selected to fall under our attack had been settled upon, Wilson and Jack Utley were to be notified by telegraph, to follow on immediately with the necessary tools.

No man can tell what my feelings were, when at last I found myself pushing out into the world of crime, hitherto unknown to me, unless he were placed identically where I was. There were moments when I was at the point of abandoning the short road of contemplated crime, which would soon lead me into the absolutely broad road of crime committed. In such moments as these, retrospection would bring up before me the green hills of Vermont, the far-away old homestead I loved so well, the dear old folks at

home; the happy days in Stoneham, with its prosperous years, when I could walk forth in God's free air and be respected and honored by those who knew me, and no hand was raised against me.

All these bright remembrances would come up to me, with powerful influences for good; but when the real present crowded in, and crushed back those dreamlike days, I had to ask where I could go, if I cut away from the men with whom I had cast my lot. Nowhere among those I had known; for was I not a man with a price on my head? I could not return to the Vermont hills and the old place and dwell openly with my dear old folks, nor even in secret be near them; for not then would I be safe from the clutches of the law. Nor could I wend my way back to the later home of my prosperity; for there the same hand, the same hard injustice of the law, would close in on me. No! I was an outlaw, not daring to clasp hands with any one save those of the outlawed men with whom I was now associated. One by one the influences for good were counted and laid away. What could I do—I, an innocent man with the scales of justice weighing against me. And one by one I buried the thoughts of those things, which were no longer to be my stepping-stones along life's journey, as far as I could tell, and passed on to what the unsolved future held in reserve for me. Come what might, I would accept the gauntlet thrown down to me by a cruel fate.

I put up at the Scott House in Pittsburg. When Big Bill, Eddie Hughes, and Tall Jim concluded to spread out and canvass the surrounding country, they assigned me to look over a small bank in Allegheny City, near by. We were to meet again in five days, at my hotel. I felt that a considerable responsibility had been placed on my shoulders for one so young in the business, therefore I determined to try my best and disprove, if the chance came my way, what Jack Utley had said of me. Somewhat to my disappointment, the bank I inspected proved to be an impracticable undertaking, so the experienced ones said on their return, and I had to wait for another opportunity to show what sort of an inspector of lootable banks I was. When all the reports were in, that of Tall Jim's seemed to be the most alluring, so it was voted to make a strike at his bank, which was in Wellsburg, a small town in Brooks County, West Virginia, several miles below Steubenville, on the left bank of the Ohio River.

The next day Wilson and Utley, having been notified, joined us, fully prepared for business, whereupon we started by rail to Steubenville, leaving

there on foot early in the evening. We followed the railroad track until we reached a point about opposite Wellsburg. Here a boat was borrowed without a consultation with its owner, and in this way we rowed across to the other shore, where we set it adrift. When within three-quarters of a mile of the village, we camped in a piece of woods, thick enough to make a good hiding-place. Being the greenhorn of the party, I was detailed the “chief cook and bottle-washer” of our feeding department, and immediately upon getting into camp I was sent hustling for provender. I made for the village in the fresh hours of the morning and foraged for food, and later prepared our first meal in camp. During the daylight hours Tall Jim and Eddie Hughes took a turn in town to investigate, and when they returned, which was near evening, all hands excepting the cook went away again. They were absent several hours, and when they came back I had prepared a breakfast for them, consisting of cold ham, sardines, bread, and hot coffee.

There was nothing the matter with the appetites of the lads, unless they could be called devouring. Though I had provided a goodly quantity, one meal made a sad inroad on my larder. When the inner man of my associates had been somewhat satisfied, all but the cook stretched themselves out for a sleep. I, not unwilling to do my part, stood at picket duty until they awoke, late in the afternoon, when I managed to get another meal together. I cannot refrain from saying that furnishing food to my comrades was much like shovelling coal into the mouth of a mine, as far as satisfying them was concerned. Never in my hotel days had I come across such hungry two-legged animals. But enough of this, and to the other and more important subject.

CHAPTER II

VISITED BY THE WHITECAPS

Eddie Hughes was to be the leader in the crack at the Wellsburg Bank, and soon he, with suggestions from others, laid out the plan. I took no part except that of the snubbed one at the hands of the snubber, Jack Utle, who lost no opportunity to exercise that much-relished self-constituted right. I don't know but that I enjoyed it as much as he, for the time had come when I disliked him so much that his snubs were more acceptable to me than would have been his praise.

The bank which we were to break was a single story affair of stone, constructed with the strength of an arsenal. Evidently the bank officials had had some experience with guerilla attacks during the Civil War, just closed, for the building was fortified much like a stronghold and seemed fit to resist any attack, like a miniature Gibraltar. There was a great door of oak, heavily ironed on the inside, while the windows were strongly protected by iron shutters. Besides this resistance, the bank had a robust night watchman whose appearance indicated that he would not sneak in a corner and hide in case of a meeting with some one anxious to get at the funds he was guarding.

Tall Jim said there were two ways of getting in the bank—with a gatling gun being one, and the other an adroit manipulation of a certain amount of duplicity applied to a night watchman.

“There's a gas-house not far from the bank in charge of a one-armed watchman,” explained Jim, “and he's a warm friend of the bank watchman. This I know, for I kept my eye on them a long time last night. I think we can use the one-armed fellow to a good purpose; in other words, work the sympathetic dodge on the other fellow.”

Jim was confident that the gas-house man could be captured without any trouble.

“We can run him up to the bank door, and then—”

“Well,” grumbled Jack Utley, “and then what?”

“As I said,” continued Tall Jim, disregarding the interruption, “we have no gatling gun, so we’ll have to use this one-armed man, he being the next best weapon to force a way into the bank.”

As no better means were offered, his plan was accepted, and immediate preparations were made to begin the work at ten that night. We broke camp and moved to the outskirts of the village, hardly half a dozen minutes’ walk from the bank, and close by the river. Tall Jim and Big Bill went after a skiff which they had rounded up previously, but much time was wasted in getting the oars, the owner having taken great pains to stow them away against just such a quest as ours. This means for our escape being provided, we were ready for the start, and hoping for the best for us, which of course would be the worst for the people of the town.

It was what the poetic fellows would call a beautiful night. The moon, big and full, was impudently bright, I thought, for such an undertaking as we had on foot; in which thought I was not alone. But the hour had come when we must strike, as our funds were getting low and food was far from plenty, and as to stealing it, the experienced ones of the party would not do that, such a thing being far below their trade. It got to be half an hour of midnight, when, with our shirts on the outside of our coats and white masks on our faces and feet thrust in rubbers, we, a constituted band of whitecaps, descended upon the one-armed night watchman. Hughes, Jim, and Big Bill got him without a struggle, before he knew what was on foot. I trow he was more than half frightened out of his wits as his eyes lit on the grotesque-looking figures we presented. The poor maimed one was told that the whitecaps had him, and that death would be his, handed him on anything but a golden platter, if our slightest command was disobeyed; while on the other hand obedience would merit his release without harm, presently.

We presented a queer spectacle indeed in the moonlight, as with the watchman in the fore, we started for the bank. Hughes and Tall Jim had him in durance, Big Bill trailed next, while Wilson, Jack Utley, and I formed the

tail end of the procession. I shall never forget the ludicrous picture the poor one-armed fellow presented, with his face white as chalk and his teeth chattering like a fast-working sewing-machine needle. He was like so much putty in the hands of his supposed white-capped subjectors.

In the meantime I was reminded that I had to run back to our rendezvous, the moment the bank watchman was secured, after the burglar tools, which it was thought not wise to bring on the scene too early in the game. All we had brought with us was a pair of stout handcuffs, which were in the possession of Jack Utley, ready to be snapped on the bank watchman.

As our one-armed assistant must be instructed in the enforced rôle planned for him, Tall Jim undertook the task, being better able to perform it, he being a handy man with language of the forceful kind. Under the penalty of death the one-armed watchman was told that he must boldly walk up to the bank door, taking no pains to step lightly, while two of our men tiptoed beside him, giving the impression to the watchman inside that no more than one person was at the door. Then he was to rap and ask for admittance. What was told the tool, to be used as a bait to induce the bank watchman to open the door, I will leave for the important moment. If the first attempt failed, it was agreed that some sort of a game would be played, with the whitecap dodge much in evidence.

It was getting to be, as each moment passed, a mighty interesting experience, and I felt fading from me much of the reluctance which from time to time came to the fore and seemed to warn me away from the path I was pursuing, if indeed it had not all gone. I could feel myself really enjoying the situation; a sort of fascination for the work seemed to have taken hold of me. This same attraction, I must relate, ruled my doings the whole of my criminal career, overshadowing any desire for amassing wealth; for I can truly say that a longing for riches never drove me to the commission of crime, and to the breaking of the laws of my country which I loved.

As I recollect the scene of the night, it was better entertainment than many a stage performance I have since witnessed. At the right moment the gas-house watchman, purposely, under the direction of his captors, walked heavily up the bank steps, while Tall Jim and Hughes, treading softly, gave the impression that there was no one with him. The remainder of the party

hovered near, but kept well within the shadows of the bank building. When the signal was given, the one-armed man thumped vigorously on the oaken door and called loudly: "Bill, Bill! oh, Bill! I've mashed my hand—it's bleeding bad—let me in!"

There was no response, and Hughes ordered him to rap again, which he did, in a most earnest fashion. I was afraid that some one sleeping in a near-by store might be awakened. If the bank watchman couldn't hear the pounding, he must be a sound sleeper indeed. Our very pliable tool thumped against the great door again, this time with the result that a voice from within shouted out, "Who's there?"

"Me, Bill!" answered our one-armed man, in compliance with his promise. "I've jammed my hand bad." Again there was a long silence, so it seemed to me; nothing but silence. I could hear my heart throb with excitement, as loudly, I imagined, as the thumping made by the watchman. Prodded again by Hughes, he rapped once more, and for the third time we listened for an answer, but none came. The watchman called again: "Bill, don't you hear me? I've smashed my hand and I'm bleeding to death. For heaven's sake open the door!"

"Oh, go to thunder!" came in a roar from within; a most sympathetic response, indeed, to a man in imminent danger of bleeding to death, and the men friendly too, as Tall Jim had informed us.

There was a wait of fully three minutes, which seemed like as many hours to me, but not another sound came from inside the bank. Tall Jim agreed with Hughes that the jig was over, so we retreated cautiously. We didn't know, but felt inclined to believe, that the bank watchman had seen our approach, and thinking that we really were whitecaps, or perhaps guessing more accurately as to our mission, had remained discreetly inside his stronghold, quite satisfied that his one-armed friend would not bleed to death. I have since concluded that we were mighty lucky that some cold lead did not find a lodgment in the carcass of one or more of us.

The game being over, even before it had begun, we marched the gas-house man to where he had been picked up, and proceeded to dispose of him in a way to insure our safe departure. We certainly had no blame to put on him, for had he been one of us of his own free will, he couldn't have done better. As a tool, he responded to our bidding with the same directness

that a needle responds to the magnet. But for our safety he must be made to believe that we were actually a band of whitecaps, and not a lot of hungry bank looters. Tall Jim was the spokesman:—

“See here, one-armed chap,” said he, in a threatening voice, “our faces are covered, and you don’t know us, though some of us do you. More of us have seen the man in yonder bank, and he’s the feller we’re after. We’ll show him what happens to a man trotting around with another man’s wife, before morning.”

The old man was trembling with apprehension; not over the bank watchman’s doings, as alleged, but for fear of what we might do with him. He managed to gasp out, “I—I—never heard Bill wuz after wimmen; I—I think ye must be mistaken, sirs.”

“But we know, and that’s enough!” Tall Jim hissed the words much like a stage villain; and I laughed to myself, though I’d have felt better could I have roared freely, there was so much earnestness in the poor fellow’s voice.

“Oh, it don’t seem possible, sirs, it don’t,” he said tremblingly.

“He’s been tracing around with the wife of one of my friends here, I tell you, old man; and what’s more, she’s in the bank with him this moment.”

“I didn’t see her go in, sir; and if a wooman did go there, sir, I couldn’t help it, sir.”

“Well, I did,” insisted Tall Jim, with affected fierceness. “I saw my friend’s wife go in that bank, early in the evening, and she’s been there ever since. Now, sir, there’s going to be a little rail-riding done before sunrise, and at the end of the journey there’ll be found a big smoking kettle of tar and a fine fat tick of soft geese feathers; and when we’re through, there’ll be a new sort of a bird in this community, and we’re going to make it out of your friend the watchman. We’ll soon be in the bank, so don’t have any doubt about it.”

“Oh, gentlemen, let me go!” pleaded the poor fellow, at this harangue from Jim. “I h’ain’t been runnin’ ’round with wimmin, and if I had, I h’ain’t got a place t’ take ’em, except this gas-house; and what wooman would come here?”

“We believe you,” replied Tall Jim; “and the only way to prevent two birds, like I’ve described to you, being made, and the last bird is likely to be a dead one, is for you to point your face toward that gas-house door, and going inside, stay there till daylight. Then, when you think of what you’ve heard and seen to-night, just call it all a dream, and be sure to forget the dream so you can’t tell it to any one. What’s your answer, old man?”

“My answer, sir, my answer, sir—yes—yes, sir, I promise you all, everything, sir,” cried the bewildered man. I was glad that he was soon to be out of his trouble.

“Well, then, you’re free, and there’s the door,” said Jim, giving the fellow a shove that sent him hurtling toward the gas-house; “and don’t dare to come out till sunrise, and then don’t be in too much of a hurry about it. In with you!”

Though at times I was filled up to the bursting point with laughter over the ridiculousness of the scene, it seemed a trifle hard to thus treat the poor fellow, maimed as he was; but I presumed our safety depended somewhat upon the close tongue this man kept, at least for a few hours. But as I saw his dark form stagger into the doorway, I was not sorry. Then we lost no time in getting to the skiff and putting ourselves on the other side of the river, where we set out on foot toward Steubenville. Some of the party, particularly Jack Utley, did a lot of grumbling over the dismal failure of our first bank-breaking venture.

Before reaching Steubenville, we decided to camp in a squatty wood through which we had come on our journey out, it seeming to offer a fair hiding-place. At daylight I went to the village and got some provisions. After breakfast the gang went to sleep, while I did picket duty again. About ten o’clock in the morning Tall Jim and Hughes made a trip to Steubenville and canvassed it, but returned shortly, reporting their failure to find any bank there worth tackling. When the question of funds came up, some one suggested taking an inventory, which was done, with the result that our combined capital was a little less than ten dollars. This showed all hands that something must be done forthwith to replenish our treasury; for with the furnishing of each meal the situation was growing worse. I had in mind what my task would be, presently, in the way of supplying food for these

gullets, and with little or no cash to do it. It made me faint-hearted to think of it.

With a determination to take immediate action, Tall Jim's list of banks was consulted earnestly, the outcome being the selection of a rich little bank at Cadiz, Ohio. As we were to lose no time, it was decided that enough of our funds must be used to take us by rail to Cadiz Junction; but from there, for different reasons, it was deemed best, as a precautionary measure, to walk the remainder of the way, some ten miles. Arriving at the junction, we found that Cadiz was at the other end of a spur extending from the main line of the road. When within a safe camping distance, we selected a spot in a dense part of a wood and waited for daylight. Then I set before the hungry ones the remainder of my hard-pressed larder, and that stowed away, all hands, including the cook, fell into a sleep, the need of which I badly felt. Eddie Hughes and Tall Jim awoke about ten o'clock and went to Cadiz. They spent a good part of the morning there prospecting, but on returning I could see a "promised land" sort of a look on their faces; and when Hughes said, "We'll soon have plenty of money," I really had a feeling of satisfaction steal over me, which I didn't think myself capable of possessing under such circumstances; at least not yet. With this news, the gang's appetites seemed to wax greater; and I, therefore, was compelled to make a trip to town after such a supply of food as I could obtain with my limited pocket-book. I presented myself in camp, pretty soon, with some bacon, a fair quantity of bread, and none too much coffee; but, do my best, I couldn't make the meal fit the increasing desires of my hungry ones. Whether it was the country air that urged on these appetites to greater accomplishments, or the rapidly decreasing funds with which to renew the larder, made me misjudge these demands, I will not attempt to determine. However, I took hope from Tall Jim and Hughes, and continued to do my best, uncomplainingly. At dark, George Wilson and I remained in camp, while the others walked to Cadiz for further observations, all returning by two in the morning. Tall Jim and Hughes were very much elated over the second visit, but I didn't hear much of the reason for it then. At dawn I prepared a mighty meagre meal, after which there was more sleeping until two o'clock in the afternoon. Then I was given something to do, which was more to my taste than being chief cook of the gang, though it was no sort of a job a first-class bank burglar would delight in doing. It was to inspect a hand-car shanty near the railway about a mile this side of Cadiz, and to ascertain if it

were kept locked, and, in fact, make preparations for a quick escape by rail to Cadiz Junction. I returned in good season, fully satisfying my associates with the report I made them. Before dark I dished out the last round of food, much limited in quantity, which having been eaten, there was a general hustling to get ready for the job, it being decided to do it that night. I would say at this point that it was Saturday, and further, that I did not put another morsel of food in my mouth, save two raw eggs and a nibble at a chicken's drumstick, until two o'clock in the morning of the following Thursday. While this fast was at its height I had the roughest experience of all my eventful life.

CHAPTER III

THE CADIZ BANK LOOT

We were to be ready at ten o'clock that night to begin our work, and the hour having come upon us almost too soon, there was not a little hurrying to the various points at which each man had his part to perform. I, having been assigned to the car shanty, proceeded there, my purpose being to break through the lock and have the car ready to be pushed on to the track the moment my companions came to me. I was cautioned to make no mistake; not to be misled, by any one else walking on the track, into the belief that my time had come to act, and thus spoil the scheme for our escape. It is needless to say that I quite realized my inexperience; nevertheless I, with rising spirits, assured all hands, more for Jack Utley's ears than any one else, that I would perform my part well, and that I was no fool. I think my self-assurance rather pleased George Wilson, for he smiled toward me in an approving way.

It was dark that night, so I picked my steps to the railway cautiously, while the others started for Cadiz, which was the last I saw of them for four hours. Arriving at the car shanty, I soon had nothing to do but wrestle with my own thoughts, for I was absolutely alone, with nothing to divert me for two hours at least. It was so much different from being in the company of one or more of the gang. Then I was either busy at some menial work for them, or asleep, and had no time for my thoughts to run riot. Now I began to feel the lack of that assurance of which I had so recently boasted. Away from Utley's sneers and jeering words, I felt none of that antagonism which usually ruled me. Instead of it, the past came back—first my wrongs, then my younger days, when life was like a dream; and I thought that, no matter what had befallen me, no matter how much injustice had been served out to me, I should have stood up against it, and proclaimed to the very last my

innocence; and, that availing me naught, to have suffered martyrdom, as others much better than I had suffered. How I was tortured with these reflections as the moments dragged by! Once I did resolve, that, getting safely back to New York and well out of the life I was now leading, I would renounce my companions forever, and make another and more persistent effort to travel in a better path. While reason remains with me I will never forget the mental racking that I endured as those four long hours crawled on.

The part I had to do had been well performed, so far as I could proceed, and it was, I imagined, not far from two o'clock when it seemed to me I heard the distant beating of feet coming from the direction of Cadiz. The wind was blowing rather heavily toward the village, now and then, one gust stronger than another, so my ears may have been attuned to its fitfulness, and I had really heard no more than that. But listening intently for the least indication of the approach of my companions, I could detect no repetition of the tread of feet. At the moment, however, I caught the tones of a distant bell striking out two o'clock. Four hours had passed and not a sign of them—my associates. I thought of the word “associates.” They were mine in crime of a truth, for already I was, if nothing more, criminally implicated before the fact. If at the moment the bank had actually been robbed, then I was one of a band of bank robbers, with my part in the enterprise, though small, as fully played, and I was equally guilty. With this phase of the situation so clearly before me, I turned to another, and perhaps more important one. Where were these associates? Had they come to grief; fallen into the hands of the law, and would I not be sought for as their accomplice in the crime? Perhaps the authorities had been warned that a lot of safe burglars were waiting in the neighborhood of Cadiz for game, the *fiasco* in the West Virginian village having been the means of spreading the information. All sorts of unreasonable and strange things flashed through my confused brain. Nor will I state that I was not, for a moment, on the very verge of forsaking my post, and, putting forth my best speed, placing between me and the present situation all the distance I was able to before the coming of dawn. While this impulse was with me, my ears again caught the sounds of fast-moving feet, just as I had heard them a few minutes before. I listened yet more intently, if that were possible. Yes, I could hear more than one person running toward me, though I could not see a form fifteen feet away. I reasoned that no one, save those for whom I was

waiting, would be abroad in that manner and at that hour, so I took the chance, and, with all the strength I had, the hand-car, which stood in the doorway of the shanty, was shoved down to the track. The rough hemlock planking cracked and creaked and splintered as the iron wheels ground across them, and I was on the point of lifting the car to the rails, or rather attempting to, when a man rushed up to me, almost breathless, and threw a satchel on the car. I had made no mistake, for it was Eddie Hughes. A glance at the bag showed me that it was bulging with its contents, and I knew right away that the Cadiz job had been successful. Tall Jim, Big Bill, Wilson, and Jack Utley came up, in this order, a few minutes later, blowing like steam-engines. The latter was so shy of breath that for once in his life he could not grumble. No time was lost in catching vagrant breath and less in talk, so in a jiffy the car was lifted to the track, and off we went as fast as the crank could be turned. My blood, which had been seemingly at a low ebb, began to flow hotly with the excitement, and soon the depressed spirits which had so greatly tormented me were left far behind with the old car shanty. In reality I was now the pal of crooks, actually had taken part in a bank robbery, and, for the first time in my life, was fleeing from a burglary of which I was guilty. In fact, I began to feel that it was better to have the “game” with the “name,” than otherwise. If any one condemn me for this, I pray it may be put down to an intoxication of the moment and not to a callous heart. These brain flittings gave way to thoughts of the propulsion of our “bumpous” vehicle, for in shifts of four we did our best, two men at each handle. When one pair showed signs of weariness, they were relieved by two fresh men, and so we six, in turn, kept at the work. In this manner, at least two pairs of fairly fresh arms were at the handles all the time. Notwithstanding our energetic efforts, the rails being rough and sadly out of repair, we made far from the speed we desired; so the first streak of dawn was flashing in the east when we got to Cadiz Junction, which was only ten miles on our race to safety. But, shifting the car to the main line, we pushed on eastward toward Steubenville, for about two miles. Here we put on brakes and paused for a consultation, all hands agreeing it was getting almost too light for further use of the car, and besides, we didn’t have any idea of the schedule of trains on that line. At any moment we might meet a locomotive, which, to say the least, would cause us great concern in getting out of its way, if, indeed, nothing worse resulted.

We didn't stop long to consider any question, time being too precious, but while five of us were discussing these subjects, Tall Jim had tried unsuccessfully to destroy any telegraphic communication that might, uninterrupted, aid in our capture. Not being equipped with the right sort of tools, he was compelled to give up the task, having severed only a few of the wires. He had climbed telegraph poles and done all sorts of stunts, but could not sever all the wires; therefore he might as well have spared his efforts. But, for a fact, he did his best, and I praised him for it.

By this time we had concluded that we might go on a little farther; at least until we heard a train approaching. As we might get separated at any moment and each of us have to work out his own problem of escape, Hughes handed us five hundred dollars a man, with the understanding that we keep together, if possible, until a safe hiding-place was found, where we could remain until nightfall. In the temporary refuge a plan of escape could be calmly discussed and the final division of the spoils made.

We hadn't been on the fresh start long when it was discovered that we were just ahead of the running time of a passenger train. Tall Jim chanced to recall that it was due at Steubenville a minute or so before or after five A.M. As near as Jim could tell, it was possible to run the car to the village before the train reached there, in which event we could board it and sooner get away from the neighborhood. Nevertheless there was the chance that we would not make Steubenville in season, therefore I declared that I would not endanger, not only my neck by a possible collision with a wildcat engine or the passenger train, but my freedom as well, by proceeding on an uncertainty. I argued that it had been a useless task to break a bank successfully and then throw away the spoils through a reckless disregard of caution.

"I agree with the young feller," put in Tall Jim, "and I'll not go another foot on this car."

That settled it, for Wilson and Hughes fell into our way of thinking also; and for the first time I scored one against Jack Utley, though at the moment it did not enter my head. We had been moving at a fair rate of speed while this talk was going on, and had rounded several sharp curves, blind to what we were to meet beyond them, when my strong protest bore fruit. The car was stopped and dumped over the bank with a "heave ho";

whereupon I came to the fore again, which must have seemed very much the upstart in me, and proposed what next we'd better do.

"Boys," said I, "we'd find it to our advantage not to quit the railroad here, for the bank is nothing but mellow ground. We must not leave a trail. Let our pursuers believe that we have kept to the rails. I know we can find a grassy bank near, and over it we can get to the fields without leaving any footprints."

I have no doubt that my advice would have been taken, had it not been for Utley, who would not, this time, pause for an argument.

"What's the odds," he roared, as he trotted down the soft bank, his shoes sinking into the mellow earth, half-ankle deep. I loudly entreated the others not to follow him.

"The hand-car will be missed," I cried, so vexed that I felt the hot tears burning in my eyes; "it will be known, right away, that we took it. And what then? If the people of the bank have any gumption, they'll have a special engine, with the sheriff on board, after us in no time. I'm surprised that we are not under arrest already."

"Tush," yelled Utley, who stood at the foot of the incline, "are you fools going to stand and listen to that kid? Come on out of this. Are you looking for trouble?"

I still held the attention of the boys, they feeling that my words were worth considering. I urged them to prevail with Utley, whom I knew had much influence with most of them, owing to his skill as a safe-breaking expert.

"Boys," I insisted, with all the earnestness I could master, "it will mean our undoing to follow Utley. See! he's already in that fresh-ploughed field. What better guide do we want to leave for those after us to follow?"

"Are you fools still listening to that green kid?" Utley shouted. "Come on, I say. He chatters like a parrot. Less talk and more get-away is my plan. Never mind how."

It was useless for me to protest further now. I was overruled. The party stalked down the soft bank and on after Utley, who piloted them for some distance through the sinking earth, which left a fine trail after us. I turned to

look at it, more to satisfy my wounded feelings, I guess, than anything else. It was so apparent to me that our escape was in jeopardy, that I, after taking in the full significance of the danger, determined to make another appeal. If that was of no avail, why, I would quit the party and shift for myself, regardless of the division of the money.

“Stop for a moment, lads,” said I, “and listen to me before I leave you. Most of you have been good to me and took me in when I didn’t know where to turn, but I’m not going to jail with my eyes wide open, and I hate to see you do it. As for me, I’m going to cut to that nearest field to the right of us, and get to grass. The field we’re in leads to the woods; so does that pasture lot.”

At this emphatic stand, a halt was called by Tall Jim, with the result that all but Utley came to my way of thinking, and followed my lead to the pasture; and he too, after much swearing, seeing he was in the minority, trailed along. But the mischief had been done, as I have remarked. After reaching the grass, where our course could not be traced to a certainty, we made for the woods, which, to my regret, proved to be a shallow ravine, with trees, none too thickly placed for our purpose, on either side. I announced that this was no spot for us to dally in a minute; but Jack Utley went up in opposition again, and producing a weapon in the shape of a luscious-looking apple pie, as an argument with which to beat the others into his way of thinking, sat down at the bottom of the ravine, close by a brook, and began to devour a part of it. This was too much for the others, even Tall Jim, and they sat down and joined in the pie-eating.

“In the name of common sense, lads, are you all crazy?” I exclaimed angrily. “Will you invite trouble? Mark my words, the constables will be on our track in less than an hour. Will you plan for days, win, and then throw all overboard for the lack of a little reason?”

They would not heed me, even in earnest as I was, but, with appetites more than keen, continued to greedily munch pie. I would have done the same thing had I not fully realized the danger, being hungry enough; but I ventured one more plea: “Let’s get out of this trap, boys, and find a thick woods, no matter how far we have to go. This place will be the first to be searched, seeing that we have made a beaten path almost to it. If we are

discovered, where, I put it up to you, will we find cover? There's nothing but open country on both sides of us now."

With his big, cavernous mouth—though all together he was a good-looking chap, priding himself much on being a ladies' man—filled to overflowing with pie, Utley managed to say: "Blather all you want to, greeny; we're going to stay right here till night comes. We're not fools enough to steer out into the open country by daylight, and you might as well smoke up."

If it would have availed me anything, I might have still argued; but as everything indicated to the contrary, I stopped here, though I felt that a real outpouring of hot anger upon the whole lot of them would have lifted a great pressure from my mind. Up to the moment of getting the money the lads had used excellent judgment, but since then all but Tall Jim had seemed to lack even the brains of an idiot. And as for Jim, I saw that a big appetite had suddenly clouded his intellect.

"Stay here if you like," I said, as calmly as I was able; "stay here and lose all you've gained, but do it at your own risk, and don't think, when it is too late, that you've not been warned. As for me, I'm going to strike for safety."

Thus firing my last warning gun, I left them at their pie-eating, and began a search for a hiding-place suited to my own ideas. After much diligent scouring over several acres of land, about an eighth of a mile farther down the ravine, and a little from it, I found a shelving ledge below which was a sort of cave, where I believed a dozen men could stow themselves away by a little squeezing. Though not much of a cave to my mind, it seemed to be a place that might not be discovered, though a right good search of the neighborhood was made. Its mouth was pretty well hidden in all directions by a scrubby growth of bushes, though any one in hiding in it could without much trouble see the ravine and hear any one approaching from that quarter. So, returning, I, with renewed arguments and armed with the possibilities of my discovery, induced the lads, including the pig-headed Utley, to occupy the new refuge, they in the meantime having taken my advice not to leave the slightest trace of our course from the ravine. Having accomplished this, I experienced a grim satisfaction I could not conceal from Utley. I felt confident that I had warded off, in a measure,

the danger which he had brought upon us by his headstrong plunging down the railroad bank and in the ploughed field.

I had been deceived as to the space in the cave, for I must tell it, that I may be truthful on all points, that when all hands were inside, and well out of the casual view of any one of the expected searching party, there was scarcely an inch left in which to move or change one's position. But it was, at all events, a real hiding-place.

It may appear rather of the dime-novel order, but in chronicling this most thrilling experience of my life I must tell that we had not been in our retreat more than an hour when we were set a-tremble by hearing voices in the ravine. When they were near enough to be distinguished, we heard sufficient to make us know who the disturbers were and what they were after. Our feelings can be imagined as we, remaining almost breathless, listened to the shouts and heard the searchers beating into every nook and corner of the ravine. And as the moments passed we could hear them getting nearer and nearer. Presently the pursuers were not more than a dozen feet away.

CHAPTER IV

AN EXPENSIVE CHICKEN

At midnight the first telling stroke in the attack on the Cadiz Bank was made when Eddie Hughes, with a pair of nippers, “turned off” the key in the front door of the cashier’s house. With him were Big Bill, Jack Utley, and Tall Jim. On the outside of the house was George Wilson, standing on guard, ready to send a warning if danger were approaching from that quarter.

“You remain here in the front hall,” said Hughes to the trio, as he vanished in the still greater darkness, his only guide being the occasional flash of a bull’s-eye. He found the cashier’s sleeping room without much trouble. On a chair at the bedside was the cashier’s trousers, and in the bed lay their owner and his wife. Both were sleeping soundly. Hughes decided that the bank keys he wanted were either in the clothing or under the cashier’s pillow. If under the pillow, so much the more hazardous the undertaking. He flashed his light on the sleepers’ faces to make certain all was right. The keys were found in the trousers, and Hughes had them in hand, when, evidently disturbed by the instant glimmering of the light, the cashier awoke. It was a critical moment, and Hughes, knowing it, was prepared. Instantly, and probably before the victim was fully aware of the true situation, he felt strong hands about his throat and his face forced in the bedclothing. The noise of the struggle roused the wife, who cried out to know what was the matter. It was a terrifying position for her, to be thus awakened from a sound sleep and in the dark, to hear strange noises and get no reply to her call. Immediately she became quiet, and from all accounts I believe she fainted from fright.

In the meantime, the men in the hall, being on the alert, heard the cry and hastened to the assistance of Hughes. Tall Jim threw a light for an instant on the scene, and Big Bill helped to subdue the cashier. Realizing at last his predicament, the latter ceased to resist, and, cowed by the threat of violence to him and his wife, promised implicit obedience. Then they were securely bound hand and foot, and left lying in bed, with Wilson, who had been called in, to remain on guard.

Having secured the keys, Hughes and his associates hastened to the bank. While they were away, Wilson kept stern guard over his captives, telling them that if they kept quiet, they would not be harmed. Ninety-nine persons out of a hundred would have done just as this cashier did, under the circumstances. Knowing my associates as I afterward found them, it was well for the cashier and his wife that they obeyed the instructions to the letter. They were a desperate lot in a pinch.

In the meanwhile, Hughes led the way to the bank, where they made a cautious survey of the surroundings, and finding them favorable, proceeded to make the final strike for the loot. The watchman, who had been under surveillance the night before, had shown every indication of being a faithful employee, so it was necessary to make certain just where he was. This was accomplished by peeping through a window which did not face the street. The watchman was sitting behind the counter with his back to the door, and, in the dim light not far from him, he seemed to be awake.

The importance of making a clean job of overcoming this bar to the vault was not lost to Hughes, so it was decided that the unlocking of the bank door must be done so quietly that at least one of our party would be up to the counter before the watchman knew of his presence. So, with this in mind, Hughes worked the nippers on the key in the front door lock. It turned without a click under the deft handling of the expert, and the door was swung open far enough for Hughes to peep in. The watchman sat motionless. At the silent signal, all but Tall Jim sprang over the counter only a step from the door, and were on top of the victim ere he could make an outcry, or for that matter knew what was amiss. It took less than a minute to stuff a rag in his mouth, blindfold him, and bind him securely to his chair. Hughes stood on guard while Utley and Big Bill went at the vault lock. The keys did their work, and it was the matter of but a few minutes to transfer the cash and bonds to a satchel there for the purpose. Besides this, the lads

tied up a big bag of silver coin, weighing much more than the average man would care to carry a great distance, even travelling at his leisure. It was a question, considering the anticipated flight for safety, whether it were wise to burden the party with the coin; but Jack Utley said they'd better take it along, and so it was decided. Ready to quit the bank, the doors were left as they were found, and a quickstep was taken back to the cashier's house after Wilson. They found everything satisfactory there, and with a parting warning to the cashier that one of the party would remain on guard outside of the house, hurried away as rapidly as they could, being much hampered by the bag of silver. When all hands became convinced that the load was much like a millstone about their necks, Hughes threw it over a barnyard fence, somewhere on the outskirts of the village. Notwithstanding, this tossing away of so much money was done with many qualms of regret, and I, upon hearing of it, in a measure could understand the feelings of my associates. No doubt some early-rising farm lad that day made big, round eyes when he espied the prize. Subsequent information has not enlightened me as to whether the bag of coin ever found its way back to the Cadiz Bank. Unhampered by money,—so strange would be the term without the explanation,—the lads now made a dash for the hand-car shanty, Hughes, being fleet of foot, leading with the precious black bag of treasure tightly gripped.

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There being no one in the house besides the cashier and his wife, no relief came to them till their negro serving-woman, who slept at home, reported for duty at five A.M. On going to the pantry, its tumbled condition led her to suspect something was amiss. A moment later and she had discovered her master and mistress in their wretched plight and released them. But for Jack Utley's pantry thieving, in which he, among other things, carried off two pies, they would have remained prisoners some time longer. As soon as possible the cashier was at the bank, where he found the poor night watchman in his unpleasant situation. Severing the bonds, he demanded to know how it all had happened, not forgetting to berate the poor fellow for being overcome by the robbers. No doubt the cashier had forgotten his own helplessness in his vain search for something soothing for his mind, fully realizing that he and the other officials of the bank had a grave situation to face. He lost little time, however, in this sort of

meditation, but, ascertaining in a general way what the loss was, alarmed the constables and sent a fleet-footed messenger to the house of the sheriff, some distance away. Then he went to the bank president's residence, knocked him out of bed, and, pale-faced, told him briefly what had happened, after which there was a consultation as to what steps must be taken to capture the burglars and recover the property. At the earliest moment telegrams were sent to the near-by cities and railway stations, asking that all suspicious men be detained, with the hope that such a drag-net would bag the game.

About this time the section men found their car shanty broken open and empty. They had not heard of the bank robbery, but on complaining of their loss to the authorities, the latter at once saw a clew that might put them on the track of the bank looters. There was only one way that the hand-car could be run, and that was toward Cadiz Junction, ten miles away. Those for whom they sought had at least three hours the start, they argued, so the problem which confronted them was to reduce that advantage, and the only thing to accomplish it was a locomotive. That was hired and steamed up in the shortest possible time, and when it was ready to move, a posse of constables, several deputy sheriffs, and still others not vested with official authority, all armed for any encounter, was at hand, and, piling aboard, the pursuit soon began.

A close watch was kept on both sides of the track with the hope of soon finding the hand-car. It was not believed that the burglars would do other than make a break for the more open country. The question was how far they would go by rail before branching off into the wooded land, which was not inconsiderable in that particular neighborhood. Not coming across the car at Cadiz Junction, the pursuers learned, a little beyond there to the eastward, that one had been seen going in that direction, so, putting on all steam, they sped toward Steubenville. Presently the overturned car was sighted, and the party got down to reconnoitre; whereupon they found many footprints, which lay like a beaten path from the railroad side, across the fence and into a ploughed field.

Satisfied that the game for which they sought was not far off, as the marks in the soft earth were still fresh, the pursuers examined their weapons, and, quitting the track, bent to the trail. They lost it upon reaching the field of grass, but, sighting a ridge of trees, decided that there was the

point to which their game would steer. Reaching the woods, they began to make a thorough search, presently coming across footprints alongside a brook, besides some crumbs, which they made out to be bread. Here, they declared, the men they wanted had breakfasted. The footmarks led to a stone a few feet up the ravine. There they ended, to the confusion of the posse, which then began to make a search of any hiding-place they could find. For hours they kept at it, many times giving up their task, and as many times going at it again.

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“That was a d—d narrow call!” whispered Tall Jim to me, as we, almost breathless, listened to the tramping of receding feet.

“I don’t know how they came to overlook us,” I returned softly, as I rubbed the cold drops of sweat from my forehead. I was trembling like a leaf in a strong wind.

There we were, packed in the cave I had so fortunately found, like so many figs in a box. A moment before several of our pursuers had been standing on the rocky ledge above us, talking in our very ears. Not more than ten feet away, we heard them declaring their belief that we were hiding in that very neighborhood; that we had had no opportunity to get away, for if that were the case some of the farmers thereabouts would have seen us. Twice before this some of the posse had been on the same shelving rock and discussed us without stint, for the most part their talk being far from complimentary to us; yet on one occasion I heard a man speak as to our sagacity in so skilfully keeping clear of their most diligent “search and scouring of every nook and corner,” as he described it. From the moment we heard the approach of our enemy, when they beat into every hole and seam of the ravine in a vain search there; from the moment they discovered the crumbs of pie that Jack Utley introduced in the ravine, which caused the posse to declare that the trail was getting hot,—we lay in our hole in the ground, with a few scrub trees or bushes between us and discovery, wondering what the outcome would be. When I say “we,” I mean all but Eddie Hughes and George Wilson. They appeared to be so exhausted for want of sleep that they would slide off into a snoring match that I could only break off by the frequent use of a pin. At the time the pursuers made the second visit to the rock over us, I vow that I jabbed it into Wilson’s leg a

score of times, to suppress a rising, insistent snore, and then the pain was so great that it awoke him enough to induce a bad humor. He was about to rip out an oath, which I smothered at its birth by pressing my hand hard over his mouth and whispering in his ear. Then he awoke to the danger we were in. Between caring for these sleepers and wondering how long it would be before we would be marched to jail, if we escaped with our lives, I passed a most uncomfortable day, to say the least. It was well toward the fading of the afternoon when the enemy paid us a final visit; and when an hour had worn by and nothing more was heard of them, we began to take hope. Tall Jim had remarked many times in that hour upon the narrow margin that had lain between us and discovery.

“We owe it to you, George!” he said to me half a dozen times. “That ravine was a mighty hot place soon after we left it.”

I said nothing to these reminders of my sound judgment, but I felt a sense of satisfaction, as no doubt any one would, under similar circumstances.

Finally the shades of night began to come down, and with them we crawled from our cramped quarters, and having scanned the immediate neighborhood as best we could in the twilight, found our way to the brook in the ravine, where we treated ourselves to a good wash and quenched our thirst, using our hands for cups. Feeling somewhat better, but subject to very serious clamorings for food, we started for the Ohio River, hoping to follow it until we reached Wheeling. We had not gone far when I became convinced that we were moving in the wrong direction, and so informed the lads. Jack Utley, still smarting over the morning’s experience, insisted that we were on the right course. He was so positive, while I, though convinced in my own mind, would not declare so to a certainty, that the boys would not say nay to him. So, snubbing me and insisting upon calling me an upstart, Utley continued his leadership. About midnight, or thereabouts, we came to a small stream of water, which we were forced to wade, with the result that we had a good wetting added to our discomfort, the water coming well up to our waists. Reaching the other side, to my astonishment Utley, who was still in the lead, started up-stream.

“Now, see here, lads,” said I, savagely, “we are all wrong as to our course.” I added, “Do you want to make the Ohio River?”

“Certainly,” replied Tall Jim.

“Well,” I went on, “this stream empties into the Ohio, and you’ll never find it by going up hill.”

“You have a cheek to tell me what course to take,” put in Utley, angrily, adding a curse by way of emphasis. Turning to Wilson, he asked, “Are you going to stick with me, or are you for that interloper?”

With this thrust at me, he resumed the course up-stream, the others following meekly; and I, hardly knowing what to do under the conditions, trailed on, but doing some pretty tall thinking. After what seemed about half an hour, Tall Jim called on Utley to halt and declared he thought I was right. This brought forth an argument from the obstructionist, and considerable time was wasted in high words, but to my relief it resulted in our course being reversed. Retracing our steps, we continued alongside the stream, and as we pushed on the moon showed its face, in some respects to our advantage, in others not so much so. In the first place, it made travelling, which had been difficult, easier, the darkness often causing us to pitch headlong into pitfalls, and, on the other hand, the better light made a much surer mark of us, should we chance upon our enemies. As it was not within our power to control the queen o’ the night, we tramped on, taking a great chance of losing our liberty. Finally I decided to brave the bulldozing tactics of Jack Utley, and, addressing my words to George Wilson, though in a way to all, I said, “It’s sheer folly to expose ourselves like this!”

But Wilson cautioned me to refrain from expressing my views a few minutes longer, which I did, though feeling that we were walking into the lion’s mouth. It was somewhat near two o’clock when we came to a pike road, running parallel with the stream, and upon pursuing it for a short distance, we came up to a small village. The lads were inclined to pass through it, but then I would not be kept quiet.

“I’ll not go a step farther,” was my decision. “Here we are, in a light fit to read a newspaper, taking this tremendous chance. I’ll not do it longer.”

Addressing myself to Wilson, I continued: “You must know that the whole country has heard of the robbery by this time, and here we are, six of us, wandering through a strange land, half the time not knowing where we are going. It’s simply a case of breaking in jail, instead of keeping out of it.”

Again Wilson urged me to stick to him and the gang, and to show a disposition to be ruled by the majority, whatever my private opinions might be.

“Now, George,” I went on, “if there is anything coming to me, I’ll meet you in New York and get it.”

Still he, in a most kindly way, urged me to keep along with them, declaring it would not be for much longer. As I owed considerable to him for admitting me to the gang, and as he had always treated me in the most cordial manner, I consented to go on with them for a short time. In the meantime, I will say that we didn’t pass through the heart of the village!

I think we had gone about two miles farther when we sighted the Ohio River. There we paused for a moment, to realize what we had accomplished. It came back forcibly that we had passed over a very eventful Sunday and a night of travel into Monday, and had, in fact, been on the move or the anxious seat for more than twenty-four hours. Indeed, much had happened since we made that precipitous flight from the Cadiz car shanty. I shall never forget it.

Having our course well in hand now, we soon came up to the railroad, which would take us direct to Wheeling. As we plodded along the ties, we had less to think about our bearings, and consequently more time to lend an ear to the yearnings of our stomachs. We were much in need of food to sustain our strength, for there was no telling what we yet had to encounter. Jack Utley was particularly hungry; or if not more so than the rest of us, he was less philosophical about it, for he presently insisted that he must appease the inner man at any risk whatsoever.

“I’ll tackle the first hen-roost I spot,” said he, emphatically.

“Better starve the stomach a little, than bar the whole body,” spoke up Tall Jim, with an observable emphasis on the word “bar,” which I interpreted to mean jail. Thus thinking, I nudged Jim, by whose side I was walking.

Just then we came abreast of a barnyard, upon spying which Utley started on a sharp trot toward it. I had a vision of dogs, flying men, and clews thick enough to capture a regiment. I presume it would have been

fully as well if I had kept my own counsel, but here was a man not only endangering his own neck, but putting me in the same fix with him.

“Jack Utley, you fool!” I cried to him as loudly as I dared, “don’t you dare to do it. What’s hunger alongside of our liberty?”

All I heard was a smothered reply, the tenor of which I could guess without hitting wide of the mark, and he went on his way, while we continued on ours, hearing no sound for upward of three minutes. Then there came to us a loud squawking of a chicken, which was quickly stifled, only to be succeeded by a chorus of similar squawks, the difference in them being their tones, some tenor, others of a lower scale of voice, the whole making a most discordant and disheartening din to our ears. I seemed to see ourselves in a pretty mess. There lay the farm-house, plain in the moonlight, and just in the rear was the barn. Two minutes later Utley came rushing up behind us with a big fowl stuffed under his coat, but a dead one, he having wrung its neck.

The curses we flung at him from all sides were like so much water on a duck’s back, his only retort being something about his stomach,—that it had to be considered once in a while. I feared the worst would come of this experience, and so remarked to the whole lot of them. As we went on I thought I heard the slam of a door, and, halting the lads for an instant, listened intently, but heard nothing more like it.

After hurrying forward for two miles or more, a deep cut was encountered, through which the track went, curving somewhat to the left where the bank on either side was the highest. Notwithstanding the bright moonlight, there was plenty of shadow at this curve, and not knowing what the darkness might conceal from us, we halted while Hughes went to investigate. He returned in a few minutes, and we could tell by his manner that he had something interesting to relate.

“What do you think,” said he, in beginning, “I found at the other end of the cut? There was a shanty with several straw bunks in it. I did the soft-foot and found there wasn’t any one inside, but there had been, for the straw was yet warm from the duffers that had lain in it. A little beyond the shanty, sitting against a pile of ties, I saw two men, smoking pipes, because I could see the fire of the tobacco. On the way back I tripped my foot against

something, and, by—, if it wasn't a rope stretched across the track. It was lucky for me that I hit it just as I did, else there would have been a row."

Immediately I saw in this rope a trap that had been laid for us. It was expected that any one hurrying along that way would stumble over the rope and thus give an alarm. Evidently the men hanging about the shanty were officers of the law, waiting for us, but as it was getting very late they had given up the idea of seeing us that night. I was about to say this to Hughes, but he continued: "It was well for us that the moon was up and we thought best to investigate that cut. It was a trap dead set for us, boys, you can bet your very last cent."

"Right you are, Eddie," said Big Bill, who seldom said anything. It was a pretty important matter that brought an unnecessary word from him.

There was nothing to be done but to make a wide *détour*, which we did, returning to the railroad about half a mile below the shanty. Continuing this route until half daylight, we concluded to leave the track and strike off into the country and camp there for the day. We had gone a mile, or such a matter, when we came up to a strip of woods in which was a deserted hut.

"Here's where I eat chicken," said Utley, as soon as he set eyes on the place. "I don't stir from here, cops or no cops, till my belly stops grumbling. Do you all hear?"

I waited for one of the others to protest against building a fire, but no word came, so I spoke up, though much against my will: "For heaven's sake, Utley, don't attempt to roast your chicken here. It's daylight now, and smoke can be seen for miles. It'll betray us, as sure as hades."

"Now, youngster, stop your confounded blathering," was his reply. "I'll tell you once for all, my belly isn't going hungry when chicken's around."

And, true to his threat, he started a fire, which sent up a cloud of smoke, and after half an hour he passed around portions of the fowl, which, though not well enough cooked, was most grateful eating. I was too hungry to refuse a drumstick when George Wilson handed me one, and I confess that I ate it greedily, not having had a morsel to eat for fully thirty-six hours. I had disdainfully declined to partake of Utley's pie in the ravine away back.

“Now that you’ve made a smoke, Jack,” said I, “let’s move our camp to another clump of woods I see about a mile farther on, before the fire of another sort comes on the heels of your smoke.”

My persuasion was potent, and presently we were located in a sort of hollow on a wooded side-hill. At the base of the hill was a thick undergrowth, and beyond that was a brook in a meadow. We had a splendid vantage, from which we could see any one approaching from the lowland. But our rear faced the railroad, and at the top of the hill was an open ploughed field. As to danger coming from over the hill at the rear, most of us thought that it wouldn’t reach us that way.

The time had now come when the treasure satchel was to be opened and the division made. Eddie Hughes was master of the treasury, and as such divided the cash and bonds into six equal parts. This was interesting to me, for I wasn’t sure that I would be reckoned in a share and share alike, but would be put off with a few hundred dollars. The total amount of the haul was a few hundreds more than two hundred and fifty thousand dollars, consequently I was given forty-two thousand for my share, seven thousand of which was in paper money.

Strange things have happened in my life of turmoil, but no incident has impressed me in so peculiar a manner as when my eyes fell on the first twenty-dollar bill handed me by Hughes. I read on the face of the bill the name of “C. L. Beals, Cashier,” and when I saw after this signature, “First National Bank of Winchendon, Massachusetts,” I knew that the author of that signature was a man with whom I had done thousands of dollars’ worth of business, had sold him carload upon carload of grain and other merchandise. It seemed as though there must be some hidden significance in that strip of paper money, belonging away up in New England, coming into my possession as a part of the proceeds of the first bank burglary in which I had engaged. There I sat on the side-hill on Ohio soil and looked long on this reminder of my own native hills far away.

Presently George Wilson asked me if I were magnetized by the money god, which aroused me from my revery. I said nothing of what had so engrossed me, deeming it too sacred for discussion. I carefully wrapped my treasure in a piece of brown paper which Hughes gave me, and put it in my pocket. All but Wilson did likewise. He scratched away some dead leaves

from under a log and hid his share there. It was in a small satchel. He said that he wouldn't lose it in case we were surprised by the constables.

In thinking over my treasure I could not but feel some satisfaction in possessing it, though I had committed a crime. But a week before I had left New York with only a few dollars, five of which I could actually claim as my own. Here I was, the owner of more than forty thousand dollars. I felt myself growing so satisfied with having this money, gained through crime, that I tried to crush the feeling. It seemed impossible. There was some compensation, at least, in having the "name" and the "game." Hitherto I had had the "name" and some one else had the game. In the former case I had been dealt out rare injustice, in which I had lost my hard-earned competence, but now, though I had the name of being a thief, yet I also had the "game," and that several thousands of dollars more than I had ever possessed. But on the heels of these reflections, some of which were far from soothing, I was presently drawn to the fact that I was not yet out of the woods, possibly my reverie being interrupted by hearing Big Bill tell what his plans would be when he got back to New York.

"Better not count your chickens before they're hatched," was my comment, in a tone of warning, yet withal said good-naturedly.

Jack Utley, who had been discussing Big Bill's plans, seized upon the opportunity to take another thrust at me. Said he: "You're always conjuring up bugaboos. How the devil is it possible for the cops to trail us here in these woods?"

"Squawking fowls and smoking fires, Jack Utley," I retorted, being unable to refrain from poking back at him. He shrugged his broad shoulders, smothered an oath, and went back to the air-castle building with Bill. After they had tired of that pastime, they and the others spread themselves out on the ground and prepared to sleep. Before Wilson dropped off he and I had agreed to leave the party at nightfall and strike out on our own hook. I told him that he might rest easy; that I would stay on guard, as I feared that we would not get out of our troubles so easily as some of us thought.

The day wore on slowly enough, as I watched the declining sun or kept my ears trained for any suspicious sounds and my eyes alert for anything

that might indicate the approach of the enemy. I longed for twilight, when Wilson and I would leave the gang.



CHAPTER V

A ROCK CLEFT FOR ME

Jack Utley's persistent disregard of all caution worried me much. As I thought of his chicken-stealing episode and of the fire he insisted upon having in the old hut, it occurred to me that we might even at the moment be under the surveillance of some of our enemies. Seeing the smoke in the distance, they might have suspected that we were the cause of it, and, circling to our rear, come over the hill and rush down on us. I determined to keep a close watch on all sides.

I was gazing up the hill, a little to the right of our camp, somewhere about four o'clock, when I detected the sound of fast-approaching feet. Instantly my heart was set beating at a furious rate. Scenting danger, I hurriedly roused the lads, telling them what I had heard, and warning them to get ready for flight. Even as I finished a horseman came in view, but from his position I wasn't certain that he'd seen us. We all crouched low, and were beginning to feel that all was well, when he wheeled about and planted his horse on the hillside only a few rods below us and a little to the left. Immediately he yelled:—

“Come on with the guns, boys. Here they are, like woodchucks in their holes.”

This shout was responded to by half a dozen farmers on foot, most of them armed with either a shotgun or a pistol. Down they came upon us, firing and yelling at the same time. Their deliberation told me better than words that they had a perfect knowledge of what the game was they were after. And what was worse, they showed unmistakably that they would get us, even if they had to fight to the end. My fears, therefore, that we would

be traced had not been groundless, after all. Jack Utley's foolhardiness was reaping its penalty, and we all must suffer.

At the first shout of the horseman below, who seemed not to be armed, we dashed down the hill, diagonally away from him. He made no move to intercept us. As a matter of fact, he was in range of his comrades' guns and did not dare to get too near us, around whom the small shot and some bullets were flying thick as hail. George Wilson and I kept together as best we could, but presently I heard him groan, and a side glance showed me that his left arm was hanging limp at his side. One of my fingers was stinging from the glance of a shot, which, however, left no wound.

"Follow me, George," I shouted, as I ran toward a thick wall of undergrowth, and he came on. I reached the bushes, followed, as I supposed, by Wilson, and, making as wide a path as I could for him, pushed on, never looking behind, though I lost my hat and had my face sadly scratched with the sharp twigs. Presently I was conscious that more than Wilson were after me, and, not knowing who they might be, I redoubled my speed, and, avoiding the fate of the hapless wife of Lot as told in Holy Writ, did not look behind, but bounded over a wide brook and dashed across a meadow, leaving those following some distance to the rear in a few minutes. Then I paused to catch my wind, and saw, to my surprise, Jack Utley and Big Bill coming as fast as they could in my direction, but George Wilson was nowhere to be seen. I was much disappointed over this, and felt that I ought to have paid more heed to him, wounded as he was, though I remembered what the lads had said once about the sort of chivalry I had in mind: that the misfortune of one man was not sufficient reason for his mate or mates to risk capture to go to his relief; for, as they put it, one man in jail and the others out with money could do more to aid him than a thousand men in jail with him.

When my associates came up we resumed our flight, wondering the while what had become of the other half of the party, and how it was that none of our pursuers was in sight. We decided that they had gone after the lads who had fled in another direction, and in the mix-up we had got away. Our best means of escape seemed to be up a road which led past a farmhouse. As we ran, a woman, near whom were several children, all gazing at us, called out that three of the robbers had turned into the left fork of the road a few rods ahead of us. We realized right away that the woman

believed us to be some of the pursuers, instead of the pursued, and it was thought best for our safety to let her retain that opinion.

As we turned into the right fork, which seemed to be only a narrow path through thick woods, the woman shouted to us, "They went the other way." Utley called back that two of the pursuing party had already gone that road, and that it would be better if we took the right fork. Thus assuring the good woman, we broke into a smart pace and soon left her behind a turn in the road. Our route was little travelled, winding here and there, but averaging to the right, occasionally through a sparse wood and sometimes across a rocky chasm, and finally into a ravine, at the end of which, a considerable distance over a valley, could be seen a hill of no mean height. After hastening on for ten minutes, it became evident to me that my companions were beginning to feel that dangerous sort of security which I so dreaded.

"Let's foot it as fast as we can for that hill ahead," I said, pointing it out, "and having climbed to the other side, we can double back on our pursuers, and come pretty near the point from which we were driven."

To my satisfaction there was no balking at this, and, starting with renewed vigor and speed, we had been going perhaps five minutes when I saw, with much concern, that Big Bill was handicapping us not a little. His upward of two hundred pounds of flesh and bone were retarding him mightily.

"Come, come, Bill!" I called back to him; "for goodness' sake, run. We'll never get clear of this gang."

"I can't, I'm tuckered," he gasped; "you fellers had better go on, if you're in a hurry."

At that moment I spied what appeared to be a deserted coal mine, only a little distance from the road. Stopping, I pointed it out to my associates and suggested that it was our only chance, since Bill was unable to keep up the pace.

"We'll get in that, wade or swim through the water, as it may be," I explained, "and perhaps we can hide from the enemy till night comes; then we can go on again."

Utleigh objected to this, in the meantime eyeing the pool of water, which looked more like liquid mud than anything else, with great concern. I vow it seemed to me that he was fearful of soiling his soft hands or ruffling his collar; and such a time it was, indeed, to have so great an admiration for himself!

“Very well,” I replied to his objections, “I’m going in that hole, and you and Bill can trot as you will.” And leave them I did without another word. They continued on up the ravine, while I picked my way to the opening in the mine. I found it, as I have said, full of water that had the appearance of clay. The light shone back through the opening for thirty feet. An ordinary sized man could not stand erect, reckoning from the surface of the water to the roof. I could see fully fifty feet in this hole as I grew more accustomed to the interior, and I believed I saw a rocky shelf, easily accessible above the water. Immediately beyond it all appeared to be darkness. As I regarded it, there seemed to be only one way to reach that sweet refuge before me, and that was by getting through the mudpool.

Hiding my treasure under some leaves where there seemed to be no danger of it being disturbed, and taking a careful note of the location, I held my pistol in one hand over my head and stepped in the little mud lake, so to speak, expecting that I would have to swim to the rock. I found, much to my relief, in the beginning at least, that the water was not more than shoulder high, and gave promise of being no deeper as I advanced. Again and again, with the utmost difficulty, I kept my feet from fastening into the heavy bottom. Presently I felt myself sinking into a still more dangerous bed of some yielding substance, from which it seemed almost an impossibility to withdraw my feet. I was alarmed. If this continued, I knew what it meant to me—death by drowning at the very least, and perhaps worse: slow starvation, with death longed for at the end, unless some one came to hear my cries, and released me from a horrible imprisonment.

With hope all but gone, I made one more effort, which must have been the strength of madness, and succeeded in getting a half-dozen feet farther on, where there seemed to be firmer bottom. A cold perspiration like that I have heard visits the dying was on my brow and I was trembling like an aspen. It was well for me that I had reached a more secure footing. Looking about, I saw the rock for which I had started, and much nearer than I had believed it to be. How beautiful it looked, covered as it was with clay wash

and amid its damp, unsightly surroundings. As I rested for a moment my mind was filled with the old song I had so often, in younger days, heard my father and mother sing; that hymn familiar in every part of the globe:—

“Rock of Ages, cleft for me,
Let me hide myself in Thee.”

For the first time in my life I caught the real spirit of what they must feel who, fully realizing their helplessness in the depths of sin, suddenly know that in the Saviour, emblemized in the Rock of Ages, they have found their eternal refuge.

I say I believe that they must feel as I did, when, exhausted, staggering, and on the verge of falling down in the mudpool, I finally dragged myself up the incline to the rock, that precious rock, and fell upon its sustaining bosom. I could not have gone a foot farther, for the battle with the treacherous mud bottom had shorn me of all the strength and nerve I possessed. In a moment I would have sunk into the death trap which seemingly yawned for me.

I lay on the rocky shelf for fully five minutes, perhaps longer, ere I could find strength to draw my body entirely from the water. Then, with my clothing hanging like so much lead to my weak frame, and shivering with the chill of the atmosphere until my teeth were chattering, I painfully crawled farther back on the precious support, wondering if, after all my wrong-doing, it had not been cleft for me.

For fully half an hour I had no wish or inclination to stir. It was yet daylight when I finally got myself together, and then for the first time I had leisure to notice my bedraggled appearance. I was a sight to behold, being veneered with a sort of clay wash that rendered me, I'll warrant, to one fifty feet away, not unlike my surroundings. I was a man of clay, but not of the pure quality, for I found my clothing underneath, after a little vigorous rubbing. So would appear the baser metal through the wash of fine gold, after similar treatment. The only anxiety I felt now was the possibility that the enemy would discover the mine. They might know in the beginning, what I had learned after a terrible experience, that it was an undeveloped coal mine, and, too, they might have a better way of investigating it. I could

only hope that they would feel certain no living being would have the temerity to exploit it.

Presently the murmur of voices, which grew more distinct each moment, reached me, and, steadying my nerves as well as I could, I watched and waited for developments. They came quickly, for a crowd of men, armed with muskets and shotguns, passed along the road in my view, and with them were my two associates, Big Bill and Jack Utley. It was easy to note that the latter were prisoners. In the momentary glance I had at them there was no doubt of their identity, and I heartily wished they had come along with me, though not long before I had felt truly gratified for their leave-taking. Many times had Utley's pig-headedness gotten us into trouble, from which some of us managed to pull the party through; but his last perversity had been the undoing of himself and Big Bill. I had feared all along that he would get us all lodged behind prison bars.

But it was fast growing dark, and I had no more time for this sort of meditation; so, crawling along the side of the rock until I reached the water, I stepped in, and keeping well up against the sloping wall of the mine entrance, I managed to get out of my hiding-place with a minimum of difficulty, as compared with my distressing experience in getting in it. Out in the free air once more, I soon possessed myself of the treasure under the leaves, and, proceeding cautiously, soon made my way back to the fork of the road near the farm-house. Here I sat in a shadow and carefully went over the situation.

I wondered whether or not George Wilson, poor fellow, had escaped, handicapped as he was, and whether Tall Jim and Eddie Hughes had done as they declared they would do, before surrendering. I shuddered. If I had dared, I think I would have prayed that no murder be committed in this affair. The thought of it made a cold chill thread my spine. At that moment I resolved that never, should I continue the life I had entered, would I kill a fellow-man, even though my life be taken as the penalty. And I have kept my word to the letter.

My thoughts returning to Wilson, I recalled that he had not had an opportunity to get his treasure satchel from under the log, when the enemy came upon us. I wondered if the searching party had found it, and counted the cost to venture back to camp and find out. Having become accustomed

to danger, I determined to recover the treasure, believing it to be well worth the risk,—not for myself, however, but for Wilson. I thought it only just to save him his treasure, if I could do so without getting my neck in too much danger. He would better have it than many another man who might find it. And there was the chance that it would never be found and that eventually the elements would destroy what could be of great benefit to even me.

Accordingly I started, skirting the woods so as to approach our late camp at the rear, in about the same manner the enemy had taken us by surprise. I proceeded with great caution, not forgetting that I might be entrapped. When I had gained a point nearly abreast the log, I struck my foot against a stone. It was well rounded and weighed fully thirty pounds. It occurred to me that this stone could be used as a decoy should any one be scheming to entrap me. Sent rolling down the hill, if some of the enemy were about, they would be quite likely to pursue the stone, while I would get the bag and flee in the opposite direction. I believed the scheme worth trying, and accordingly sent the stone crashing down the hill. Great heaven! It seemed to me that it was urged on by some unseen master hand. Down, down it rolled, bounded, and crashed through dried leaves and twigs, bushes, and against tree-trunks. With the first noise from the stone there came the sound of many feet close by, and I sped off with all my might across the field as though a thousand imps were at my heels. I never ran so in my life, not when I was a farm lad away up in old New Hampshire. Indeed, I did not stop until I had placed a mile between me and the ill-fated woods. That our pursuers had discovered the bag of cash and were in waiting for some one of our party to return and get it was beyond question. I would not venture near the place again for all the money the Cadiz bank vault could hold.

Resting for a few minutes, I listened for any indication that I had been followed, and finding none, started out on a bold plan to walk my way back to Steubenville in the very teeth of the enemy. The very daring of the thing, I believed, would see me safe on my way to New York. So determined, I struck out, as near as I could tell, on a direct route to the railroad leading to Wheeling, which we had abandoned at daybreak.

It was not much like the night before when Utley stole the chicken. Then there was a part moon, unclouded, while now there was a sort of haze that made walking rather uncertain. I picked my steps slowly, pausing now

and then to listen for anything that might be construed into a signal of danger. I gave the railway cut where the rope had been stretched a wide berth, and, coming back to the track again, continued at a rapid pace until the first streaks of dawn began to warn me that I must soon get under cover for the day. In crossing a bridge through which a turnpike ran under the railroad, I found at the back of one of the stone abutments what seemed to be an excellent hiding-place for my treasure. Carefully putting the cash and bonds far down in an opening, and placing stones over the top, I made as I hoped, a safe depository, until I could reach New York, and, fixing myself up, return and get the proceeds of my first bank loot. But again a tremor of remorse came over me at the thought of the way this treasure had come into my possession. I drowned it quickly, however, and seeing a brook not far off, drank freely to quench a terrible thirst, filled my water flask, and began to search for a hiding-place.

The first barn I visited had no hay in which I could stow myself, nor had the second, though there I discovered a couple of hen's eggs, much to my delight, yet wishing that I had come across a dozen. Carefully I put them away, and going to the next barn, was doomed to disappointment, finding no haymow in which I dared to hide. But it was growing so light that I must not go on farther, courting discovery, so I crawled under the barn through a hole in the flooring, and, squeezing myself along, I presently got to within ten feet of one of the under-pinning walls, where there was scarcely room enough for me to move my body. Setting to work with my bare hands, I dug, with much difficulty, a hole in the ground that would permit me to sit upright with some sort of comfort. The damp, sour earth I had removed was formed into a sort of breastworks, facing the direction from which I had come, while toward the wall the space between the flooring was so narrow that I feared no detection from that source. Thus intrenched, I realized for the first time that my fingers were torn and bleeding, not being accustomed to playing the part of a spade. But I bore the pain without a murmur, believing that, if I escaped capture, I must work out my salvation with much privation and no end of hardship.

That I was in for a hard day I had no doubt. In a welcome haymow I could have buried myself and caught a few minutes of needed sleep, but here I did not dare to contemplate it; besides it was so damp that I feared to catch a chill that would be the death of me. I must keep my circulation up as

best I could. I had forgotten the eggs, which I had guarded from damage during all the worming journey to my retreat, and soon I was taking the first nourishment to pass my lips since the bite of chicken about twenty-four hours previous. I ate them as slowly as I could, seemingly in an attempt to stave off the moment when I would not have anything else to eat. The burning thirst I had had for several hours was increasing, but I sipped from my flask in a most sparing manner, hoping to make my water supply last until I could replenish it.

It was not long after I had settled myself down to a long wait that I heard voices not far off, and presently two boys, probably not more than eight or ten years old, were passing the barn. I detected the sniffing of a dog at the under-pinning wall and then a furious barking and the rapid pawing of feet. Evidently the dog had scented the fresh earth I had turned up and took it to mean that there was game not far off. It made me apprehensive. I wished that such a beast as a dog never had been created. Everything but a calm facing of the situation possessed me. While my thoughts were running amuck, the boys had been drawn into a discussion by their dog. I think that this resulted in calming my nerves. One boy, the younger one I judged by his voice, declared that Major had scented a woodchuck, and that they must help him find it.

“Naw!” contradicted the other; “don’t ye know, foolish, that woodchucks don’t keep under barns?”

“They might, you funny!” argued the little fellow. “Let’s see? Sick ’im, Maje! sick ’im!”

The pattering of paws I had heard was renewed with great energy, interspersed with growls and plentiful yelps of impatience.

“Aw, come on!” called out the big boy; “they ain’t nothin’t heyar! I tell ye no woodchucks stay under barns; it’s rats!”

This display of wisdom and emphatic decision put an end to the little fellow’s case, and much to my relief Major was dragged away from the wall. But it wasn’t the end of my troubles from that source entirely, for three times during the day the pestiferous dog renewed the attack on my peace of mind, each time being called off by his masters. Between these visits I was seized with an intense desire to sleep, but, as I have said, did not

feel it safe to humor my brain. It seemed to me about like attempting to commit suicide. Twice I discovered myself drowsing away, and fearing to trust my will again, I fished a pin from my clothing and prepared to jab myself the instant I felt the drowsy desire mastering me. Afterward I found many little wounds in my arms and legs which at first I could not account for, but tardily was reminded of the manner in which I had applied that pin.

As night came on I began to feel less fearful, having an idea that discovery under these conditions would not necessarily mean capture, for I could run for it and evade any pursuit in the darkness. Having as a youth spent many days on the farm, I felt at home in the fields and hills; and now I possessed the confidence in myself, that with half a chance I could outwit those who were, no doubt, on every side, anxious to capture me. At last evening came, and I crawled out into the world again, so to speak. The word "crawled" expresses to a dot just what I did do; for not only while getting from under the barn, but after I got outside, I was so cramped that walking was impossible for several minutes. It was as though my locomotion had been suspended by rust. Presently I managed to rise to my feet, and, finding a brook behind the barn, quenched my thirst, washed myself, and refilled my flask.

Feeling very much refreshed, I headed for the railroad track and, with my eyes and ears open, arrived at the outskirts of Steubenville in the vicinity of one o'clock in the morning of Wednesday, having been tramping and dodging my enemies nearly seventy-two hours. Avoiding the principal streets, I gained the other side of the town, where I took time to decide whether I would go on foot to Pittsburg, sixty-five miles away, or seek out a barn, and, lying low until night, board an east-bound train at Steubenville and make the journey by rail. I chose the latter course and then set out to find a suitable hiding-place, daybreak being fast on my heels before I had accomplished it. The best I could do was a small barn in which there was less than a thousand pounds of hay in a loft about a man's height above the floor of a cow stable. With my water flask full, but no food to nourish my body, my stomach painfully distressing me for want of it, I burrowed under the hay, and with but a few feet between me and the stable, and no more than four feet of covering above me, I fixed myself as comfortably as I could for the day. All together it bade fair to be a much more acceptable stopping-place than the last one.

Soon after the sun rose—that I could tell by the appearance of things below me—some one came to the stable. It was the farmer or one of his men, I reckoned, but a man I knew it to be, by the unintelligible mumbling he kept up, a habit very frequently possessed by men when alone, though unconscious of it. As I lay perhaps less than a foot at times from the man's head, I could hear and sometimes see every move he made; and when he was on the stool at the side of the cow, I could hear the see-sawing "swirr" of the milk streaming down in the pail, and I heartily wished I had a big panful of the rich life-giving fluid in my almost famished stomach. For the moment I was carried back to my old farm home and its happy days, when I had milk in plenty to drink, but had not the appetite for it that possessed me as I lay in the hay-loft.

While the farmer was in the stable I did not dare to stir, the hay being thick with seed and a fine substance that would shower below through the open floor at the slightest movement I made. Having finished his morning chores, the man left, and I had the barn to myself until about noon, as near as I could judge, when I was aroused from a sort of a doze by the voices of three young girls. They had come to hunt eggs, I heard them say, and right away I wondered if it would take them up in my hay-loft. How they did chatter; I thought the music of their happy voices was about the sweetest I had listened to in many days. I lay still, for the time being, forgetful of my surroundings, just feasting my ears, when suddenly my enjoyment was turned into apprehension; for the dear little girls had taken it into their heads to transfer the scene of their egg-hunting from the lower part of the barn to the hay-loft.

Sure enough, the next minute they came scrambling up on the hay, and finding none of the article of which they were in search, began to romp, tumble, chase each other, roll over and over, and in many other ways disport themselves in the hay over me, until the seed and dust well-nigh filled my ear that was uppermost and found a way into my clothing, while my nostrils were choked so that breathing was rendered most difficult. But that was not the worst of it, for I was suddenly seized with an almost ungovernable desire to sneeze. I trembled at what the consequences might be, were I to give way to this very natural rebellion of my much imposed upon nose. I speak of it now in an attempted vein of humor, but then it was a serious predicament in which I was placed. A real healthy, atmosphere-tearing

sneeze might mean my undoing, after having come safely through many dangers to a point where I was beginning to believe that I would outwit my enemies. Once I choked back a spasm that caused my ears to snap and my eyes to bulge from their sockets. I could not possibly withstand another attack like that, I felt sure. I was in a desperate situation, when the girls, suddenly becoming weary of their romp, climbed down from the loft and ran laughing from the barn. I'll warrant they hadn't gone twenty paces, when I emitted a tornado of a sneeze that shook me from top to toe. What it would have done for me I fully realized upon hearing the stamping of hoofs among the startled cows below me. For a few minutes I lay quaking with dread, but after a little I was glad that I and the dumb brutes underneath were the only witnesses as to that sneeze. After the possibility of danger was passed, I couldn't feel otherwise than gratified over the action of nature, which had relieved me of the awful tickling in my nostrils, and left in its stead the delicious sensation of clear respiration.

The afternoon wore on without my nerves receiving further shocks, as I continued in my nest of hay. The farmer came in and did his milking, which told me that it was nearly sunset; and after I heard the slamming of doors I concluded that it was about time for me to begin my next move on the road toward New York and freedom from the dread of momentary arrest. I was dull for want of sleep, and half ill with the constant gnawing in my food-craving stomach, but I knew that I must press on; so, leaving my nest, I cautiously let myself out of a rear door of the barn, and, hunting up a brook near by, washed myself hurriedly, put more water in my flask, and started through the barnyard to the road. Suddenly my heart was set to throbbing violently by coming close up to a man standing near a fence. It was no doubt the farmer who owned the place. It was too late to retrace my steps, so, putting on a bold front, I said "Good evening" and passed on. He may have answered, that I don't know; but he did eye me curiously, as he had a perfect right to do, under the circumstances. I haven't the least doubt that a man, a stranger in fact, walking hatless in a fellow's premises about dark, is an occurrence not quite of the common order. It was gratifying to me to know that night had set in enough to hide from him the clay-washed clothing I wore and the abundance of hayseed and dust that did anything but adorn my hair.

After this experience my haste to get a hat was augmented very much, and, stopping at the first laborer's shanty I came across, I bought one not worth more than five cents, though I handed him a script half-dollar. Indeed, I did not begrudge the money, for had he said ten dollars he would have been welcome to the amount, and even double that. To divert any suspicion that the fellow might have on seeing me without a hat, I glibly told him that I had lost it in crossing the railroad bridge, having come in contact with a heavy gust of wind, such was my confounded luck. Then bidding him a pleasant adieu, I cut a switch from a convenient bush and attempted, with not much success, to whip some of the clay-wash from my clothing. On finishing I still cut a sorry figure. Next I hunted up a small store, where I purchased a collar, comb and brush, and a stiff whisk broom. Again I found a secluded spot in a side street, where I worked my broom right vigorously. This time I had the satisfaction of making my clothes somewhat presentable. No Pullman car conductor ever worked his whisk broom as I worked mine in the effort to find real cloth through the veneering of mud. I've seen one of those negroes do more hustling after dust in a minute, when he knew there was none, with a big tip in sight, than any other class of servants under the sun. The dust he found wouldn't have been much under a microscope, but in my case I trow it would have heaped up a tea-cup. With a clean collar and my hair combed and brushed as best I could, the sky having been the roof of my toilet room, I was ready to invest a little more money, so, seeking out another store, I fitted a becoming hat to my seeded locks and was helped into a topcoat good enough to keep it company. After this I began to have that feeling which the dude possesses, and, to better fit the rôle, I sought a barber-shop, where I asked to have my bristled face shaved, but declined the sympathetic barber's invitation to have my hair "cut or trimmed." Of all the men with "an eye to business," I think the barber can discount the whole lot, in making one really believe that he hasn't the slightest designs on money. He seems to think that his customer has arrived at the brink of committing the unpardonable sin if he doesn't have his hair cut, and before the argument is finished, I'll wager a hen's egg against a prize hennery that the deluded one will accept his barber as a veritable oracle; and the most curious phase of all this is that the knight of the scissors has, through familiarity with the rôle, come to believe it himself. But I venture to say that he is nearly always round when the money is handed out. But, back to my barber.

It almost brought tears to my eyes to resist the mute appeal in his,—those eyes that were even more eloquently solicitous of my welfare than his lips. But for personal reasons I had to pain him, and presently I was stretched out in a chair and had my own way about it. Goodness knows this barber may not be justly accused by me of sparing his labor, for as I sat with my eyes closed most of the time, his hands appeared to move rapidly enough, but I vow they were not so active as was his voluble tongue. When he was not bombarding me, he was exchanging words with a pair of loungers in the shop, who, like some women, must gossip about something to pass the time away. I expected to hear the Cadiz bank affair discussed, though I thought it must have reached a stage of staleness by that time. Yet, when I heard the barber broach the subject, a slight tremor, despite an effort to control myself, went over me.

“Bright youngster that Dever,” he remarked to the loungers. I listened intently.

“Yes? Who?” queried one of them.

“Jim Dever’s boy, down on the Wheeling road. You know, I s’pose, he wuz the one that put the deputies on to the robbers. No? Well, he was up that night, an’ it bein’ moonlight he sees a man at the hencoop, an’ it turned out sure ’nough to be one of ’em. He got in his pants in a jiffy, followed th’ feller, and pretty soon he sees two deputies an’ tells ’em that he thinks th’ robbers are round. Th’ deputies get up to snuff, and next day a gang of the boys swoops down on ’em.”

“Got ’em all, I s’pose,” interposed one of the loungers.

“Four of ’em,” answered the barber. “Two got away. They wuz six all told. When th’ deputies went at ’em, three scooted up a wood road in th’ ravine up there. Th’ boys cut round and got two of ’em. One got away, but they know pretty much what he looks like, an’ he is bound to be jugged in a day or two. They may get th’ other feller too. I don’t know ’bout it, ’cause them deputies are boastin’ cusses.”

“Heard thet a bareheaded man wuz seen snoopin’ about a barn four or five mile below here yesterday,” drawled a man whom I had not noticed. He was sitting in the rear of the shop. I started so visibly that the barber inquired of me, very solicitously, as to whether or not the razor was keen

enough. I said it pulled a little, whereupon he stropped it noisily. In the meantime I had a moment in which to steady my nerves and get a peep from under my eyebrows at the new speaker. I felt reassured then, for he didn't have the appearance of being any too quick-witted. Nevertheless I had been seen by some one in my tramping. I knew that I must be cautious.

As I listened to the whole story, recounted and discussed, I thought of the pig-headed Utley and of how my words had come true, even to the deputies finally locating us by the smoke at the old shanty in the woods. I was glad that, if any of us must be arrested, he had come in for his share of the harvest of his making. I may as well add, right here, that his stubbornness cost four of our party the combined sentence to prison of fifty-four years. It was a costly chicken indeed.

My thoughts were interrupted at this point by the barber asking me to have my head shampooed. To my reply in the negative, he insisted that my scalp would be ruined, it being covered with dust, and that my hair, too, was full of hayseed and ought to be cleaned. I explained that I'd been baling hay for a couple of days, that I really ought to have my head washed, but that I'd come in the next day, when I had more time. I spent no more minutes there than necessary, after the half-hour edifying conversation I was compelled to hear. Getting out, I went to the opposite side of the street, and, securing a convenient doorway for a shadow, remained there ten minutes, intently watching the barber shop. To my relief I saw nothing that made me think any one there suspected me of being one of the Cadiz bank burglars.

CHAPTER VI

'T WAS A SWEET BABE

To get out of town I determined to do at the first opportunity, and by railroad too. I looked up the best hotel I could find on short notice and consulted a time-table. A train was due eastward in forty minutes. It would be a bold move to get out of town thus, but I vowed I'd attempt it. I was certain that one man, or indeed two travelling together, would be objects of suspicion, so I went to the reading-room and waited an opportunity to strike an acquaintance with at least three men who would leave the hotel and walk to the depot together. My efforts in that direction were unfruitful as far as getting into conversation with those I desired to. However, while waiting the unexpected to turn up, I glanced at a newspaper, in which was a long article, with big head-lines, about the bank loot. According to a statement by the authorities, there was no possibility of the two men still at liberty getting away from that section of the country. They were certain to be arrested. One part of the story which interested me not a little was the sequel of the exciting experience I had had the night I returned to get George Wilson's treasure satchel. It seemed that a scheme had been laid by the enemy to capture the remainder of us by using the satchel as a bait. In searching our camp they found Wilson's money and bonds under the log. It was their opinion that men who dared so much to rob the bank would not abandon nearly half a hundred thousand dollars without an effort to regain it, so it was schemed to place a guard in hiding close by the satchel and wait, if necessary, a week. In the meantime, if the fugitives were not arrested elsewhere, one or both of them might visit the camp, when they felt convinced that the enemy had given up the search and had of course overlooked the money. It appears that I had approached the spot so cautiously that none of the watchers had heard me, nor could they see me

easily, the night, as it will be remembered, being not over light. I laughed to myself, and was on the point of bursting into a roar at what I read next, when I subdued the inclination in time. When I, so fortunately as it now appeared, tumbled the stone down the hillside, the enemy were lured into the belief, as I hoped they would be, that one or more of their game had come to the scene; and it was in their mind, that the satchel had been secured and was being carried off, and that the trap had been discovered. The tearing of the stone on its way downhill through the leaves and bushes was taken to mean the fleeing of more than one burglar, and after the stone went the deluded deputies. For more than an hour they beat about the woods and then scattered in different directions, to remain on watch for the game should they start from cover before morning. The newspaper told with great simplicity how the astute burglars had fooled the deputies, and gloated over the fact that the treasure satchel had been found and of my futile attempt to get it. Fortunate indeed was the rolling downhill of that stone. To me it was a lucky-stone of the right sort. I was mighty near jail that night.

My attention was drawn from the paper at this point by the announcement that the east-bound train was due. Immediately a porter appeared with several men, guests of the hotel, and passed out into the street. I felt sure that here was my opportunity. I allowed the party to get a short distance ahead. To my satisfaction two men, behind whom walked the porter, formed one group. The situation could not have been more to my liking,—excepting the assurance that I was safely out of my troubles. I walked up to the porter and opened a conversation.

“You started for the train sooner than I expected,” I said, slipping a half-dollar piece in his palm. He had never set eyes on me until that minute. Seeing I had struck the right gait by means of the tip, I continued: “Your house is giving much better service now than when I was here last year. I’m very much pleased with it indeed.”

Before we had gone a quarter of the way to the depot, I had accomplished what I started out to do—placing myself on the basis of a long-standing acquaintanceship with the porter, so far as outward appearances were concerned. The tip was an excellent lubricant for his tongue, too, the rattling of which would have tortured me unmercifully under other conditions. I wanted it to run at its speediest notch on this occasion, and it did wonders. No opportunity on my part was neglected to

keep it in motion. In the meantime we were falling behind the two guests, and that we might get closer I forged on a mite; enough to make the porter step a little faster. I wanted it to appear that I was the third member of this group of departing guests. On getting to the platform of the depot I felt like congratulating myself on the splendid manner in which my ruse had worked. It was well for me, I think, that I had thus planned, for about the first person my eyes met was a deputy sheriff, who was joined by another almost immediately after my arrival. I needed no one to tell me they were officers of the law, their actions plainly indicating the country sheriff. But I didn't hesitate. Keeping as near to the porter and his group as I safely could, I bought a ticket for Pittsburg, and when it was not wise to stay too near them I walked in the shadows at the end of the platform. It was a season of great anxiety to me, which was only removed when the train came in on time. Casting a last sly glance in the direction of the deputies, noting that they were peering closely at this and that person, I boarded the first coach, and when the depot was left behind began to feel that I was really out of the lion's jaws. I was soon rapidly going from the scenes of my ugly experiences, by means far more satisfactory than walking railroad ties.

My next anxiety was over the detectives at the depot in Pittsburg. They were in the employ of the railroad, and had been pointed out to me by Eddie Hughes when we were there before the start for the Cadiz robbery. I was obliged to change cars there, and would have to wait an hour for the train on the connecting road. The newspaper I had read at the hotel recited the offering of a reward for the capture of the two burglars yet at large, and I felt that the railroad sleuths might be on the watch for a man about my size. Feeling apprehensive, I knew, would not assist me a whit; therefore, upon arriving at Pittsburg about half-past one in the morning, I immediately ascertained the exact leaving time of my next train and hurried from the depot. Happily for me, not a detective was in sight, and feeling glad of it, I went in search of a restaurant, finding one, fortunately, two blocks away.

With the knowledge that I was at last nearing food and an opportunity to possess it, came a most distressing pain in my stomach. It seized me with so great a force that I was almost compelled to cry out. Only the thought that I might have to be sent to a hospital, which would, perhaps, lead to my apprehension, kept me from succumbing. Grinding my teeth to buoy up my courage, I went in the restaurant and ordered a portion of whiskey and

swallowed it at a breath. I followed that with another. While I was meditating over what I would eat, the stimulant began to have a beneficial effect. My body was strengthened and nerves soothed. Sensibly, I ordered poached eggs, ate a little bread with them and drank generously of coffee. By the time I had finished my first meal in one hundred and four hours, it behooved me to get back to the depot, which I did, not long before the train arrived.

A railroad detective was there, but he seemed to pay no attention to me, being more interested in pickpockets than in bank looters, I guessed after slyly looking him over. I climbed in the second coach the moment the train came in, but as I did so I observed that he went in the first. It occurred to me that he would pass through the whole train, scrutinizing the passengers. My imagination made it easy for me to believe that he was, after all, looking for any one answering the description of the Cadiz burglars. I began looking for some sort of an aid in the way of diverting his attention from me, should he pass through my car. I had provided myself with a ticket to Altoona, not deeming it wise to get a through ticket to New York, and it occurred to me that it might be wisdom on my part to postpone my journey until another train. But fate played a trump card for me in saving the only vacant sitting in the car, and that was beside a very pretty young woman who was holding on her lap about the cutest two-year-old cherub my eyes ever dwelt on. The mother, for so she proved to be, was well dressed, and had an exceedingly refined face. I considered it fortunate that I could sit beside her in the predicament I believed myself in. She graciously permitted me to occupy the seat, whereupon I immediately put on my best deportment, and much to my satisfaction we were in a quiet conversation when the detective walked through the car, paying not the slightest attention to me. Perhaps my precaution was not at all necessary, but I will not believe until this day that it was not a wise action on my part. I have travelled many thousands of miles on railroads, since that long-ago day, and, as I think of it now, that was one of a very few occasions when I sought out a woman for a companion on a train.

I soon learned that she was going to Harrisburg, that her husband was a dry-goods merchant there, and that she'd been away visiting and was anxious to get back, which accounted for her travelling at that unseemly hour.

It was not at all to my liking to be untruthful to so sweet a woman, but I was forced to for self-preservation. I told her that I was a salesman for A. T. Stewart and Company of New York, and was on the way to Philadelphia on business. I wondered if her husband bought his goods in the New York market, and when she said no and added that he believed that Philadelphia was the better place to trade, I good-naturedly disagreed with her, winding up by telling her that she'd better advise Mr. Harrisburg to investigate the New York market, and the prices of A. T. Stewart and Company in particular. She smiled at what she believed to be my warm recommendation of the firm employing me. We were chatting on the most familiar terms when we reached Altoona, whereat I politely requested her to join me at a meal in the Logan House. She accepted the invitation, and I, in as calm a manner as possible, lifted the child, sleeping, like an angel in all its innocence, thus relieving my matronly companion, and escorted her to the dining room. After eating a hasty meal, for which the dear little woman insisted upon paying her share, and I as insistently declining to let her, I purchased a ticket for Philadelphia, and we got on the train again. The child was awake by this time, and on much of the journey to Harrisburg I fondled, danced, kissed, and, I must declare, came to love that dear parcel of sweet babyhood. I will not open my soul enough to tell all the twinges of remorse that seized upon me as I pressed the smooth, rosy cheeks to my lips, time and time and again, while the mother, God bless her, looked proudly, innocently on, happy that even a stranger could be won by her babe. I bade these companions farewell at Harrisburg and never saw them more. While serving me as a shield to ward off the minions of the law, I shall ever regret that circumstances were so ordered that I was compelled to tell base lies to so goodly a woman as she seemed to be, and I have no doubt was. Though many years have passed since then, that babe's innocent face and merry prattle still live in my memory.

I got to the Quaker City at four o'clock in the afternoon without any happening worth mentioning, and, purchasing a complete change of clothing, including underwear, went to the Girard House, where I bathed my body, supped like a prince, and laid myself wearily in a soft bed, it being the first one in ten never-to-be-forgotten days, and slept, dreamlessly, until very late the next morning. That afternoon I was back in New York.

CHAPTER VII

POLICE SHIELD NOT WORN FOR HEALTH

“I was wondering whether you were one of the bunch captured,” remarked Billy Matthews, whom I went to see at 681 Broadway, the same day I arrived back in New York. I related, in all its details, the story of the gang’s exploits, from the moment we left Steubenville, not forgetting our abortive attempt on the West Virginia bank, how we had been surprised by the deputies, nor neglecting to tell how I used, on the train, in self-defence, the little woman and her sweet babe.

“The newspapers printed a pretty full account of the robbery,” Billy went on, “and I guessed, from the description of the prisoners, that you had managed to keep out of the pinch, and I knew that Eddie Hughes had. That fellow’s a hard one to catch when he keeps away from dope, and he hadn’t been using it for some time when he left here with you. If ever he comes to grief, it will be the poison that’ll do it.”

How prophetic these words were I shall relate in another volume. We talked considerably about Hughes, conjecturing as to whether he would come back to New York, Billy finally expressing the opinion that he was too wise, owing to the feeling of the police toward him. Hughes had not “squared up” the last “trick,” and now he possessed too much money.

The remainder of the week I occupied in preparing myself for another journey to Steubenville, but under vastly different circumstances. When, early in the following week, I found myself there, stopping at another hotel, the observer would have seen what appeared to be a highly respectable business man, attired in the newest cut of cloth, and wearing a shining beaver. It may have been unwise to thus clothe myself, some of my critics will possibly aver, having in mind the gentleman burglar of to-day and the

mission that took me there the second time; but in those days that slick, smooth knight of the jimmy we hear so much about now was unknown except in sensational novels in yellow covers. The authorities who were after me would not be looking for any one but the hard-up, trampish-looking individual I was when the Cadiz bank was looted.

I told the clerk that I was going out for a walk, and to have my room ready with all the necessaries for an extended stay at the hotel, when, late in the afternoon of the day I arrived at Steubenville, I went in quest of my treasure hidden in the railroad stone wall. I walked much faster and easier than when I came up the track a few days before, a hunted man. As I expected, I found the cash and bonds where I had left them, but I must admit being a little irritated on discovering that rats had taken a liking to some of the greenbacks and had eaten holes in them. It happened that the bills were of small denominations, consequently the loss was not so great as it would have been had the pesky things attacked the other side of the package. I went back to the hotel with a snug little fortune in my inside pocket, and without any fear of detection. I passed the barber shop where I encountered that sympathetic artist of the comb and brush, but not needing a shampoo, and for obvious reasons not wishing to renew our acquaintance, carefully avoided a too close scrutiny from that direction. By midnight I had my satchel repacked, the treasure hidden at the bottom, and, leaving a call at the desk for the first train in the morning, with the regret that I had been suddenly summoned away, turned in for a sound sleep. In a trifle more than twenty-four hours I found myself in the metropolis once more, bestirring myself on behalf of my associates in limbo. I knew of no crook to help me but Billy Matthews, my associations with the class taking in but eight men, so I appealed to him for a letter to another friend of Mark Shinburn's, who proved to be Johnny Ryan of Buffalo. Before starting west on my mission, I gave Matthews six one-thousand-dollar five-twenty government bonds to market for me.

I found Ryan an affable fellow and quite willing to use his good offices on behalf of my jailed associates, for he had been in many a bank job with them. He sought out an all-round crook, whom he introduced to me as Asa King, and together we began to form a plan. Many ways were suggested, but the simplest one was adopted. It was that King immediately proceed to Cadiz, with plenty of money, and play the part of a drunkard to the extent of

getting locked in the jail with my comrades. With them, it would then be no insurmountable task to devise a plan to break out of jail. Ryan, King, and I went to Pittsburg, King going on to Cadiz. Having known him only a few hours, I was in no position to guess how well he would play the part of a sot. I hoped that he would not make too much of an effort, whereby the game might be spoiled. When I was in Pittsburg, prior to our bank-looting expedition, I, being short of money, had taken a most disgraceful departure from the Scott House. I had left an overcoat there; it had a bad rip in the skirt, to which my attention had been called by Jack Utley. The more I examined into the character of the man, the more I became convinced that he would betray his comrades upon being assured of any leniency by the authorities. It occurred to me that he would be likely to remember my coat and make it a telling instrument in his description of me, and thus believing, I very much wanted to put any such advantage out of the way. So I asked Ryan to pay the board bill and get the coat. He did so, and I felt better satisfied. Having agreed to meet King at Wheeling, we proceeded there, and two days later he came to us with a long face and a much longer tale of failure. I learned from him something about swift-winged justice as it was practised in Ohio. The day King got to Cadiz, Tall Jim, Big Bill, and Utley were on their way to the state prison at Columbus. Jack Utley, the serpent, had obtained a shorter sentence by pleading guilty after having betrayed us, while Jim and Big Bill, hopelessly in the toils of the law, also pleaded guilty and received a fourteen-year sentence each. George Wilson, poor fellow, was still in the hospital, and awaited the same fate. Nothing could be done for him, King said, and we returned east. At Buffalo I paid Ryan and King for their assistance and went to New York, only to meet a train of stirring events.

* * * * *

“What’s up, Billy?” I inquired cheerily, upon meeting Matthews the next morning after my return; “have you been playing hookey from school and got caught at it?” His face was as long as a search-warrant and twice as grim. Somehow I expected a piece of unwelcome news, but my recent escape from a very hot trail had made me a little philosophical.

“That would be easy,” he said, smiling sickly, and passed a joke about his schooldays when the paternal hand had more than once sought

unerringly a certain region near the equator, in what many households have often designated a “warming-the-jacket” bee. Then he added: “The devil’s to pay. I’ve had bad luck trying to sell your bonds.”

“Been playing Dexter at long odds, and had the wrong end of the game, eh?” I asked, taking the matter as calmly as I could, at the same time throwing a little horse-racing chaff at him. He disregarded the pleasantry.

“I hate like the devil to tell you, George, but the bonds—they’re gone, and I can’t produce you the money in place of ’em.”

“Well?” I interrogated as cheerfully as I could under the circumstances.

“The coppers have ’em!”

“The devil you say!” I was vulgar without thinking. “You were pinched?”

“That’s just it,” admitted Matthews, and I pitied him, for there was that about the little fellow that made me feel, almost know, he was dealing squarely with me, gambler though he was. However, I did not let him in my secret on that score yet, and said, a trifle coldly: “I thought you were a shrewd man. Many of the boys have trusted bonds in your hands for the market.”

He actually was suffering after I made this slighting remark, and I was forced to relent.

“Don’t take me too seriously, old fellow,” said I, “and tell me all about it. If there’s a muddle, we must get out of it some way. It’s a mighty scarce hole that’ll let a man in that won’t let him out if he tries hard to get out.”

“There’s no use chopping matters, George,” he said; “I trusted a man too much, and I’m in deep, that’s all.”

Then Billy told me how he had taken a man with him to dispose of the bonds, a Bill Brockway, whom I didn’t know, and that they went to a broker’s office in Wall Street. Brockway, whom he thought to be “right,” proved to be all wrong by betraying him to a pair of Central Office detectives. Recollecting Tim Golden, of the Detective Bureau at 300 Mulberry Street, I expressed a curiosity to know the identity of the detectives in this case.

“Jack McCord and George Radford,” explained Billy. I had never heard of them, which was not at all strange because of my short life in New York.

“Brockway and I were arrested,” continued Billy, “and the detectives took the bonds.”

“But you got out of jail, I see,” was my comment.

“We weren’t taken to Police Headquarters. They kept the bonds and turned us loose on a promise. McCord and Radford have a habit of doing business that way with us fellers.”

“On a promise?” I inquired.

“Yes, the cops said we could go if I’d produce the man who gave me the bonds to sell. Of course Brockway, curse the traitor, was in the game with them.”

“And you agreed to produce me?” I asked.

“Yes, of course. What else could I do.”

I myself did not know, but I asked Billy if he told the detectives that I gave him the bonds. The little fellow cast a look at me that was full of contempt, and at the same time I could see that he was hurt by the mere suggestion that he would play the part of a “squealer.” For fully two minutes neither of us spoke a word, but I was giving the subject a serious consideration.

“We’ll charge the bonds to profit and loss,” said I, in conclusion.

“No use doing that,” he declared; “you’ve got to see the cops and divide with them.”

I could calmly say I would charge the bonds to the loss column, but to divide money, that had been obtained through the looting of a bank vault, with officers of the law, sworn to protect the lives and property of the people, seemed to me to be too base a proposition for consideration. I had been driven to crime through injustice of the basest sort, had connived in the robbery of a bank through sheer desperation, the result of persecution, but I had not yet, it seemed to me, sunk so low as to divide ill-gotten money with an officer in the employment of the people,—the act, as it seemed to me, placing me with him in the same category of the traitor. Up to that time

I had had no acquaintance with the New York detectives. I explained my thoughts to Billy. It caused him to smile.

“But why should I do this?” I asked; “they don’t know me from a Chinese idol.”

“But they will know you, George. You seem to forget that Tim Golden’s in this town, and a thousand-dollar reward is hanging over your head. And there’s Jim Kelso too—both of them are fly cops and know you.”

I confessed that this recollection was not refreshing. My fortunate escape from Ohio had made me think lightly of any chance of being found in this big city and carted back to New Hampshire.

“And,” continued Matthews, “Detective McCord pulls a long stroke with Jim Kelso, who’s bound to be superintendent of police one of these days. If you stay in New York, they’re sure to get you sooner or later.”

“Still, I don’t see why I should go to the front if I let the bonds slip; the cops have ’em, and that ought to be enough.”

“Now don’t presume for a minute that they’ll let you walk the streets of New York without staking them,” Billy exclaimed, his impatience thoroughly aroused by my obstinacy. “But of course you don’t know, for you’re a greenhorn; but I know it, and d—d well too.”

“Then you honestly mean that I must pay these traitorous policemen to live unmolested in this town? I can’t remain in hiding here and take my chance of keeping out of their hands?” I asked.

“That’s it, and nothing else, White. If you stay here, the small-fry thieves who play the stool-pigeon for the police will put the information up to headquarters before you realize it, and into Mulberry Street you’ll go unless you settle.”

“Ah, that’s the game, is it?” I said angrily.

“Yes, and you’ll learn to your better knowledge that the cops don’t wear the shield for their health; besides, their appetites are too hardy after dollars to let you run loose. They can pick you up to-day and within two weeks divide that one-thousand-dollar reward.”

“Well, Billy, we seem to be in a fix, and I’ll go and see these detectives, but not on my own account. For myself I wouldn’t do it. It grinds me to soil my hands in a deal with such rascals. But for you I will yield; you shall not be arrested on my account. I haven’t forgotten that it was you who aided me when I didn’t know what to do. Arrange a meeting with these detectives, and I’ll see them.”

“Good,” replied Matthews, with a relief that was very noticeable; “I was hard pressed by McCord and Radford. They’ve been after me for four days. I was told that if I didn’t produce you to-day, they’d take me to Police Headquarters, and they meant it.”

A meeting was arranged for five o’clock that afternoon, and Detective Kelso was to be there with McCord and Radford. It occurred to me that I might, through the little acquaintance with Kelso, who was associated with Tim Golden in the Walpole Bank investigation, adjust the present muddle more to my satisfaction. I was fast getting an interesting knowledge of the inside affairs of the New York Detective Bureau. So I earnestly hoped he would be one of the party.

I was at Fifth Avenue and Fifty-ninth Street, close to the entrance of Central Park, the meeting-place agreed upon, with great promptness, but I found the three detectives already in waiting. Jim Kelso had not forgotten our New England acquaintance, and greatly surprised me by the enthusiasm he displayed. I understood later that it was a characteristic of his to meet those friendly to him in this fashion, even on a shorter acquaintance, when there was a financial deal in prospect.

“Well, George,” said he, shaking my hand vigorously, “I’m glad to know you succeeded in giving those New Hampshire people the go-by.”

Then he introduced me to Jack McCord and George Radford, claiming them to be his very intimate friends, with whom I would be sure to have the most pleasant relations.

“They’re all right,” he said effusively, “and you’ll find them so.” He paused a moment, and then added, with a smile, “I understand we’ve got some bonds to sell you.”

“To sell me?” I echoed his words in the form of a question. “To sell me bonds?”

“Yes,” smiled Kelso. I understood him then, but I confess that I didn’t like his peculiar grin that time, and in subsequent years this impression never changed. There wasn’t much, if any, warmth in it. It always seemed to me that it was a smile like actors study for use on the stage. I laughed when I understood him to mean that he had some bonds to sell to me. I thought it was my play to exhibit a little nerve in dealing with these traitors, which was a most unpleasant experience the first time, so I asked Kelso why McCord and Radford hadn’t hung on to Billy Matthews when they had him under arrest. He showed his teeth in a most disagreeable way, and seemed to be on the point of saying something ugly. Presently he spoke:—

“There’s no good beating about the bush, George,” he explained, “for we know where the bonds came from, and we also know that you are one of the six men in the Ohio job. Now let’s come to the point, and it is this, pure and simple—we want our rake-off. As a matter of fact, we’re glad the Ohio fellers didn’t get you. Do you understand?”

I saw there was little profit to me in palavering with these crooks, who were sworn to serve law and justice, so I told them that we’d better get to business and that the open street was no sort of a place to transact it. They admitted that officers of the precinct in which we were might at any moment interrupt us. I called a carriage, and at their suggestion we drove to Stetson’s Hotel in Central Park, the proprietor being a brother-in-law of Radford. Comfortably seated in a private room, with whiskey served on the table before us, I said:—

“Gentlemen, let’s come down to business. What do you want for the six bonds?”

“Not a cent less than six thousand!” was what came from Detective McCord, sharp and quick, now that the negotiation was really on.

“And you’ll not get that much from me!” was my answer, just as quickly and just as firmly. “The bonds will have to be disposed of at a ‘fence’ price, and considering that my share will not, all together, be more than forty thousand dollars, I’ll pay you four thousand for the bonds and no more.”

Detective McCord did a lot of sparring, Radford jumping in occasionally with a sharp, mean thrust. Kelso kept out of the argument until

he seemed to think it was time to smooth over matters. To me Radford's manner was most irritating. I was not lacking in pluck, and once, had it been diplomacy, I would have lent him my fist. At length the sparring was interrupted by him. Said he:—

“I guess, Jack, we may as well keep the bonds and give this man twenty-four hours to sneak out of town. If we find him then, why, he can't complain. We've wasted too much time on him already.” Kelso knew Radford had gone too far, and said so.

I was firm, and none of his insinuations could move me. I believed that these traitorous policemen who would plot with crooks—actually be willing to take money from the enemy of the commonwealth—must not have everything their own way. They saw I was determined, and, avarice winning over all else, Jack McCord said:—

“Well, George says his share is only forty thousand dollars, and it may be less than that, so I think we'd better accept his offer.”

And it was settled at this figure, whereupon we set the following night as the time of the next meeting, and the place at the Fifth Avenue entrance to the Washington parade ground, down-town. I was ready to leave them at this, promising to be there at eight o'clock sharp. Now that we had come to an agreement, I wondered if our meeting in the park to make the exchange of money and bonds would go through, or whether these blackmailers and crime protectionists, after further consideration, would not, in their grasping after ill-gotten gain, make a still further demand upon me. Despite the bold front I had put on, I realized how hopelessly I was in their power, should they choose to see duty before selfish, criminal desire.

“By the way,” said I, at the moment of parting, addressing my remarks to Jim Kelso, “as the bond matter seems to be about settled, the next important thing I'm interested in is my status in this city. You know, as well as I, Kelso, that the New Hampshire authorities never had a case against me, and the truth being told, I am absolutely innocent of the charge. Isn't it so?”

“It's true, George, and I must acknowledge that you had a rough deal down-east for an innocent man.” I watched McCord and Radford for the

effect this admission would have on them, but they gave no indication that I could see.

“That being the case,” I went on to Kelso, “I ask you and these men, believing as you must that I didn’t get a fair deal, not to molest me, and if any one comes to this city after the reward, to keep me informed. Is it a bargain?”

“Don’t bother yourself about a country sheriff,” said Kelso, assuming the responsibility of the whole party, “for it’ll be a very cold day if them down-easters catch you in this town when you have us at your back; but of course we can’t do this—”

“Say no more, gentlemen,” said I, interrupting him, and speaking to them all; “it’s not necessary. I shall rely on this assurance, and I’m not asking you to work for charity’s sake.”

With that I handed each one of them two hundred dollars, and, bidding them good night, went down town, feeling that I had invested six hundred dollars not unwisely from my viewpoint. The next evening I met Jack McCord and Radford at the parade ground and paid the former four thousand dollars in large bills and received in exchange my bonds, and was really glad to get them back at the price. As I was leaving them, McCord asked me if I objected to telling him the name of the man in the Cadiz Bank job who escaped with me.

“Most assuredly I do,” was my prompt reply, and I took no pains to repress the indignation I felt at the mere suggestion of betraying Hughes. “Do you think I’m a squealer too?”

“We don’t want to send him to prison!” hastily explained Radford. “All we want is our usual percentage.”

“Well,” said I, the hot blood stinging my cheeks, “I’ll let you fellows know that I’m no Bill Brockway; and if you find the man you’re after, it will be on the level so far as I’m concerned.”

I said this in a manner that left no doubt in their minds as to my sincerity. I also let them know that Brockway’s squealing propensities were well known to me. I had begun to learn a great deal of the crook’s life in a very short time, it seemed to me.

“That was a fine hand you played against Billy Matthews,” I went on. “If you’re going to deal with crooks, I’d advise you to be on the square, and you’ll succeed better.” At this George Radford looked at me peculiarly, as though he thought that I knew more than I was telling. Jack McCord, in an attempt to put himself in as level an attitude as possible, but failing, said:—

“We fellers have to get at things the best way we can, and, as you must know, we’re not in the police business for our health.”

Swallowing my disgust, and feeling that I, even I, a bank burglar, was contaminating myself in the same atmosphere with these treacherous rascals, I said good night and hurried away, glad to get rid of them. But I saw them again, and sooner than I had hoped, for I never wanted to look on their faces after that night. But this feeling wore off in time.

Billy Matthews sought me out a week later, and said, with considerable earnestness, that I must meet Jack McCord, who had news for me of the utmost importance; that I must meet him at the Metropolitan Hotel, and if he wasn’t there, to wait until he came. Not daring to disregard this word, which amounted to a command, I went to the hotel, where McCord appeared a few minutes later. Calling me aside, he whispered, “You’re a very lucky man, White, and you’ll realize before we get through that it is a Godsend you came to know us fellers.”

“Why?” I asked; “what’s in the wind? Some one from New Hampshire here?”

“No; but a crook in that Ohio Bank job has squealed on you, and there’s a Cadiz sheriff in town with a complete description of you and Eddie Hughes, who escaped with you.”

This was startling though not unexpected news, as I knew that Utley had no love for me. No doubt he had tried to get further clemency in prison by squealing on Hughes and me. I asked McCord if there was anything further he could tell.

“Yes; Utley told the sheriff that the man with Hughes was called George, but the last name he did not know. He described an overcoat ‘George’ wore that was left in the Scott House in Pittsburg.”

At this I smiled, and McCord wondering why, I told him.

“Again you were in luck,” he went on, “for the next day after the coat was called for by your friend, a Cadiz sheriff was at the hotel inquiring for an overcoat with a peculiar-shaped tear in the skirt.”

“It certainly looks as if the trail were getting hot,” said I, not a little worried. “Where is this sheriff?”

“I don’t know, but Radford has an appointment with him this afternoon.”

“Has he asked you to find me?”

“Not in so many words, but he said we ought to know if there was a crook in town answering the description given by Utley.”

“And what did you tell him?”

“That there wasn’t a man in this city answering such a description, but that I recognized in Utley’s man a well-known Western crook.”

McCord said he would go with Radford to see the Cadiz sheriff about four o’clock in the afternoon, and that the trio were to hunt up Utley’s trunk. When that was accomplished the sheriff would be gotten out of town not later than the same evening. I was to meet McCord at the Metropolitan the following morning to learn the result. I was there, and to say that I wasn’t worried would be far from the truth.

“Well, it worked like a windmill,” laughed McCord. “Where we blew he went. By the last gust of wind we gave him he was wafted to the depot in Jersey, and must be pretty near to Ohio by this time.”

I didn’t doubt McCord’s word, though I had no further proof, consequently I felt much weight lifted from my mind. When he, having in mind the protection money that I’d paid him, said, “You now can see what our services to you people are,” I agreed with him and that an emergency of this kind fully attested to the accuracy of his statement.

“And now,” said McCord, “when Eddie Hughes comes to town, you’d better advise him to see us.”

“Very well,” I promised, “since you have learned he was my companion, why, I’ll send him to you if he shows up.”

But Eddie didn't return to New York for two years. In the meantime I heard how he escaped the day we were surprised on the hillside. He had in a most fortunate way run across a small hollow in a thicket where the dried leaves had piled up as though they had been waiting there for the purpose they served. Getting into this refuge, surrounded by the underbrush, Hughes covered himself with leaves and lay there for hours. The searching party actually tramped over him while beating through the thicket, but passed him by. Under the cover of darkness he stole away with his treasure. When he finally appeared in New York the Cadiz Bank robbery and his connection with it had become swallowed up in the swirl of more stirring events, the affairs of the grafting police and civilians having reached a most prosperous period.

CHAPTER VIII

SHERIFF SMITH'S BRIBE—THE LITTLE JOKER

Mark Shinburn, under remarkable circumstances, escaped from Concord prison, after his sudden leave-taking of the jail at Keene the day he was convicted, and his recapture and final incarceration. The prison bars at Concord held him only a few months, when his old partner in crime, John Ryan of Buffalo, and Laurie Palmer, another crook, began work on a plan to break him out of durance vile.

The manner of Shinburn's escape is soon told. He was a man who did not make many friends, but those that he had were friends indeed. One of these was Matthews. Billy used to give his mother all his winnings from the gambling house, so, eventually, he had quite a tidy sum.

One day in November, 1866, he took five thousand dollars of this sum and started for New Hampshire. There he met one of the high officials of Concord prison, and had a long talk with him. Some days later, as Shinburn's company was marching past the gate which gave ingress and egress for teams to and from the prison yard, Shinburn dropped from the line, pulled off a part of the gate that had previously been sawed nearly in two, and jumped into a rig that was standing conveniently outside of the gate.

The driver of the rig whipped up his team and was away at a fast gait before the prison officials realized what had happened. When soon the guards discovered what was occurring, they fired several shots, but the team kept right on moving and was soon out of sight in the gathering gloom. The drive was continued, with various stops for refreshments and sleep, to

Providence, Rhode Island, where Shinburn took a train and landed safely in New York.

Matthews also returned to Gotham, but had five thousand dollars less than when he went away.

Once in New York, Shinburn, being under the protecting wing of my ring of police officials, and given money by me, was safe from capture. Pursuit of offenders and escaped prisoners was not so persistent or so well conducted in those days as it is now, when the telegraph, the telephone, the camera, and the Bertillon system of measurements make it all but impossible for one to avoid detection and capture.

If I were warden of a prison now, and an inmate thereof escaped, I should not give myself the least worriment. I would know that, if he again resorted to crime, I would be as sure to get him as the night is to follow the day. If he lived an honest life after his escape, he might avoid capture; and it would be far better for society that he should. An honest man does not belong in prison, no matter what may have been his past life.

At the time of Shinburn's escape, the only means for recapture were a search of the surrounding country and the sending of a description of the escaped man to the police of various cities—a description that would fit many people and often did not at all fit the one for whom it was intended. Instead of a Bertillon system of measurements, by which it is practically impossible to be mistaken, there was then only the old plan of visual identification. This always gave a fine opportunity for the Great Identifier, who constantly looked for a chance to get in his deadly work.

"I'm scheming to make a strike through Western New York and Ontario, Canada," Shinburn said to me a few weeks later, "but I'm short of the 'ready' just now, having been in retirement for some time, as you know; so, if you'll back the game, I can't see how we can lose."

"I'm with you, Mark, provided there is a chance of making good. You've been in the business long enough to know best what to do, so here's along with you."

John Ryan and Laurie Palmer were counted in the venture, and the prospect of a rich haul seemed exceedingly bright. The banks that were secured entirely by key locks Shinburn was to tackle, and those being

guarded in part, or wholly, by combination locks were to be attacked by Ryan, who had a fine kit of tools for that sort of work. We went to Buffalo, where Shinburn and Palmer called on a gambler friend. Ryan put up with a man acquaintance, while I went to a hotel. Making the Bison City our headquarters, we struck out in different directions in search of "lootable" banks, our main object being to find those using key locks. It was like convicting an egotist of his own conceit to find this class of bank, so we gave it up. About this time a friend of Shinburn's, whom he introduced as Mr. Ellis, a counterfeiter, suggested that a bank at Brockport, seventeen miles west of Rochester, would be a comparatively easy piece of loot, owing to the habits of the police guard of the village, which consisted of a lone night watchman. Ellis said this watchman invariably went off duty at eleven o'clock at night. As to the vault of the bank, he declared it could be robbed, despite the combination lock used on it and its heavy steel work in general, by tunnelling from the top. Shinburn and Ryan decided to attempt the job, agreeing to pay Ellis ten per cent of the treasure obtained.

A postponement was necessary the first night we went at the job, because there happened to be a dance in the village, which in some manner or other induced the night watchman to remain on duty longer,—in fact, until three o'clock in the morning. Several evenings later we journeyed there again, and it was a night to be remembered, because of the great snow-storm and high winds that came with it. It was a hummer—of the blizzard class. In many respects, though, it was just our sort of weather, the kind that keeps people indoors. Scarcely a dog was in the streets after eleven o'clock.

A few minutes after midnight, leaving Palmer on the outside as a guard, Shinburn, Ryan, and I broke in the bank through the front door and were soon examining the vault. We had decided to try wedges on the vault door, so Ryan went to work. He had finely drawn untempered steel ones, which were driven in the seam between the front edge of the door and the jamb. For two hours we labored with these wedges, but the best we could possibly do was to force an opening about half an inch wide, which was insufficient to admit of throwing back the lock bolt. When a space wide enough to do this was about made, the wedges would rebound. Unable to release the bolt, we abandoned the job, being hopeless of accomplishing it in that manner, and leaving behind us plenty of evidence of our failure. The vault front was

sadly defaced, but defiantly impregnable, so far as we were concerned that night, with the means at hand.

We went out in the storm, very much disappointed. Locating a hand-car, we started by rail for Rochester, but the snow being too heavy on the track, we ditched the car, and walking to the first village, hired a team and drove there. The remainder of the journey to Buffalo was accomplished by train.

My experience at Brockport and similar knowledge I had previously obtained through the work of a Jack Hartley and his mob of would-be safe-breakers at Carbondale, Pennsylvania, convinced me that success in our line could only be attained by forcing open vaults by means vastly different than any of those employed by either Ryan or Hartley or burglars of their class.

“Putting up cash to break banks with tools Ryan has,” I said to Shinburn, “is simply dumping it in the sea. As for me, I’m out of it.”

This broke the combination, so far as Ryan and Palmer were concerned, the former remaining in Buffalo and the latter returning to New York.

Shinburn and I determined to make for the metropolis also, but he recalled a tip from a friend at home, that there was a bank at Corning, New York, which might be relieved of its cash. Shinburn’s friend was of the opinion that the vault was secured by a key lock. So we concluded to stop off there and investigate, but, doing so, Mark discovered that the work entailed was not worth the risk. At two o’clock in the morning we were in the Erie Railroad depot waiting for a New York train, when a most unexpected thing happened. A mob of men and boys, led by a pair of constables, ran in the depot, one of them a big-looking fellow, yelling at the top of his voice, “Here they are!” The other constable rushed at Shinburn, crying, “We want you men; surrender!”

The big lout who made the first outcry sprang at me, but slunk back in a corner when I covered him with my pistol. Taking advantage of his cowardice, I ran for the door, and had nearly succeeded in getting out, when Shinburn, his pistol failing to work, was overcome. The mob, turning their attention to me, were just in time to block my way, and instantly I was mixed in with them. The cowardly wretch who had slunk back when I was unhampered, now took advantage of my predicament, and jumping on me,

began pounding my face as though it were an anvil and his fists were sledges. I did the best I could against so many, but fell back, and as I did so the brute tried to bite my nose. Throwing my head away from him, his teeth met on my lower lip. I made a cry of surrender, but, despite this, he continued to bite at me like a cur, until I was so wounded that I would carry a scar to the grave. I presume I would have been mangled more had not the others dragged him from me. In the midst of a howling mob, we were haled to a lockup and thrown behind bars. Of course we believed we'd been discovered as the Brockport attempted looters and were in for it from that source. We were considerably relieved, for a short time, upon learning the true cause of our arrest. It appeared that a produce merchant in Addison, an adjoining town, had been robbed the preceding night of twenty-eight hundred dollars. Two men had entered his store about nine o'clock, and, felling him unconscious on the floor, appropriated the cash and some valuable papers. Incidentally the burglars carried away a railroad ticket good on some Western road. Of course we knew we weren't guilty of the job and felt easy on that score. What did trouble us was the possibility that we might be recognized as fugitives from New Hampshire. The Corning authorities notified the Addison constable of our detention and asked that the merchant be brought over to identify us as the burglars who assaulted him. He was too ill, was the word that came back, and in consequence of it we were taken to him.

We cut desperate figures in the eyes of the countrymen as we, loaded down with irons, were carted through the farming districts. The merchant, upon looking at us through bandages which about covered all but his eyes, said Shinburn didn't look like either of the men who attacked him, but I greatly resembled one of them. As I looked at the man I wondered that he didn't say I looked like both of them. This identification played the mischief, however, for we were held for the grand jury and transferred to the county jail at Bath in the charge of Sheriff Smith.

The small affair we had had in the depot at Corning with the constables was so magnified in the county papers that it soon became talked of as a shooting affray that would rival a Texan bandit fight. It was the sort of a sensation we feared would bring trouble down on us, and it did; for a day or two after our arrest Detective Bob Watts of Buffalo appeared in Bath and told Sheriff Smith he wanted to look us over. He recognized Shinburn,

having seen him a few years prior in Buffalo, but didn't mention the fact nor intimate that he had an eye on the reward for his capture. Hurrying to Buffalo, he swore out a fake warrant for burglary, and, rushing back to Bath, flashed the document on the sheriff, claiming us as his prisoners, alleging also that his claim took precedence over the Addison affair. We knew too well what this meant for us, without being told,—that we were in for it unless we could outwit him. New Hampshire would be our next destination if Watts had his way. That it was getting to be mighty serious there was no doubt. It was in our minds to break out of jail, but there didn't appear to be any one we could reach with the slightest inclination to take a bribe. Finally I resolved I would not be deprived of my liberty again on a charge of which I was not guilty. Once was enough! Having carefully gone over every detail of the situation, it seemed to me that I saw a glimmer of hope in the bogus warrant of Detective Watts. If he could get a fake warrant in Buffalo, why couldn't I get one in New York? I determined to try, and acted with great promptness by sending a messenger to the big city for such a document and for the sinews of war. Getting the latter in a few days, I retained Lawyer Rumsey of Bath, who afterwards was elevated to the Supreme Court bench. I told him what I had done, and that he mustn't hesitate at any expense in our defence; and incidentally I expressed myself forcibly to the effect that the Addison robbery ought to be thoroughly sifted; that from what I had been able to gather the merchant complainant owed about everybody in his town, and it occurred to me that he might have plotted to escape his creditors. Further, that he had received, just prior to the robbery, twenty-eight hundred dollars for produce which he had shipped away, and for which he hadn't yet paid the shipping bills. I said it all looked exceedingly suspicious, and I urged Mr. Rumsey to investigate the case on this line vigorously. The grand jury had been sitting several days when the bit of pasteboard which the merchant described as a railroad ticket, and alleged to have been taken by the burglars, began to play a surprising part. My counsel had advised the railroad company to be on the lookout for it, as there was grave reason to doubt that a robbery had been committed. Presently there came gratifying results, but too late to help us.

In the meantime affairs had been looking bluer and bluer. At the rising of the jury our fate would be known. The last day of the sitting came, and with it came Frank Houghtaling, chief clerk of City Judge Russell of New York, with a warrant for our arrest charging about everything on the

calendar but murder. He served the paper on Sheriff Smith, alleging that it must take precedence over the Addison robbery or any claim put in by Detective Watts of Buffalo.

“I’ll take the prisoners back with me or know the reason why,” he said to the sheriff. “We know these men, and they are as desperate a pair of rascals as ever belonged behind prison bars. New York wants them and must have them. We can put them away to a certainty, while you fellows may not have a case against them here or in Buffalo. If they go at large, why, the blame will be on your heads. So you see the strength of my claim.”

It was the duty of the sheriff to determine which warrant would take precedence. I was in doubt as to the outcome, but Mr. Rumsey said Sheriff Smith would, as a favor to him, recognize the New York warrant.

We were waiting for the grand jury, along about one o’clock, when the sheriff called me aside and said, “I have no further claim on you, but there are two warrants for you boys, one from Buffalo and the other from New York.”

I asked him which one he would recognize.

“As Detective Watts’s was first placed in my hands, I suppose I must give him the preference. He is in town now and has asked me to turn you fellers over to him so he can get away on this evening’s train.”

“Why this, sheriff?” I asked, trembling over the turn of affairs. “Lawyer Rumsey assured me you would, as a favor to him, give the New York warrant the preference.”

He put up a bluff at this and said, “Let me say that I’m running the sheriff’s office of this county, and not Lawyer Rumsey.”

It was perfectly plain to me that he was fishing for money and that Detective Watts had made some kind of a cash offer, otherwise he would not have intimated to me that he’d ignore Mr. Rumsey’s request; he would have stated straight from the shoulder what he would do. I realized that prompt action must be had, or in the last deal of the cards Shinburn and I would be swamped with trumps.

“Sheriff,” I said, taking the bull by the horns, “I want you to come to some agreement with us. To Mr. Rumsey you said you’d turn us over to the

New York officer, who really has a right to us. We believe, too, that we can get justice in that quarter, while from Buffalo we'll get none. You see we are innocent of the Addison affair; were arrested and thrown in your jail without good reason, and it's up to you to help us out. I'll make it an object to you, sheriff, to turn us over to the New York officer."

I watched him for any indication of wounded dignity, but, on the contrary, I had my first impression confirmed. He would take money, I felt certain, if given enough. I drove the nail still farther home, and, as a clincher, produced a corpulent roll of greenbacks and fondled it. His greedy little eyes gazed on it as though they would pierce the very inside of the bills, to know how much I held.

"That's the kind, sheriff," I went on; "let's get down to hard-pan. What's the price? What's it worth? Watts isn't a flea-bite to me."

The sheriff fidgeted about considerably, but soon, to my satisfaction, was putting up a strong argument as to what his services were worth. Indeed, he seemed to be as accomplished in this line as were some of my New York detective friends. Finally he flat-footedly came out and said he'd accept a thousand dollars. I sent for Lawyer Rumsey and told him of the deal. He called me apart and said I needn't pay the money, for things would come out all right without it. In fact, he expressed the conviction that it would be a needless expenditure of money. So thought Shinburn. Whether or not they were correct I do not know, but I have always entertained a doubt of it. I wasn't going to take the chance of making an enforced trip to New Hampshire. I declared I'd pay the bribe. It was to be given the sheriff when we were ready to start for the depot, and while Mr. Rumsey had gone to attend to the details of our release. I began to feel, as also did Shinburn, that it was looking very much like New York. About eight o'clock in the evening Sheriff Smith summoned us to his office, in charge of a turnkey. My lawyer was there, and from the atmosphere of the place I got the impression that something unusual, and perhaps not to our liking, was about to occur. I hoped that the sheriff hadn't reconsidered the agreement, after a talk with Watts. My mind was soon settled as to what was in the air.

"Detective Watts is on a rampage," began the sheriff, quietly, "and says he's bound to get you fellers, if he has to use force. He evidently means

what he says, for he's got two more officers with him. By hook or crook, he swears that he'll take you back to Buffalo with him to-night."

"Well, sheriff," I inquired nervously, not being able to draw anything satisfactory from his words or manner up to this point, "what else have you to say?" I verily believe he enjoyed the uncertainty I felt.

"If I turn you over to the New York officer here, Watts may attempt to take you away. At the depot he may put up the plea that his warrant antedates the one from New York."

"Well, go on, sheriff," I urged, getting more unnerved; "out with it—what will you do?"

"This," he replied, closing his lips firmly. "I suggest that I heavily iron you men, hand and foot, and take you as far as Corning, where I'll turn you over to your New York man, unless you think that it would be better for me to continue farther."

I felt a thrill of relief flash through me. I had been completely mystified, and I guess Shinburn was in no different frame of mind. Seeing that we were not to be trumped out of sight in the last shuffle of the cards, I was in a joyous mood instantly.

"You couldn't have thought of anything better, sheriff," I grinned, not forgetting to pat him approvingly on the back. Then we got down to the business that was much more pleasing to him than voluble praise—the payment of the money we'd agreed upon. It was by far the strongest argument I could have put up to him. It was more potent than a plea for justice, and much more so than friendship, in obtaining our escape from the clutches of the Buffalo police.

I handed Lawyer Rumsey a well-swelled fee, and slyly put in the sheriff's palm one thousand dollars in bills, which he crammed out of sight, and gave orders for our irons to be brought in and put on. For once we were glad to wear the things. In a few minutes, looking very much like a pair of Western bandits, we were marched through the village to the depot, followed by a crowd of curious men and boys. Sheriff Smith, so far as the outsiders were concerned, thought us to be about as desperate a couple as ever came under his control, for he had two stalwart deputies with him, both of whom clung to us like unpaid gas bills.

Detective Watts and his reinforcements and a big crowd were at the depot ahead of us. Watts was angry clear through; verily, he looked as if he would bite a tenpenny nail in pieces. Shinburn and I gave him a glad smile, which he repaid with an angry glare. We got aboard the train, the sheriff and one deputy at our heels. Watts and his men came in the same car, and we were soon at Corning, where we had to wait for a connecting train. In the meantime Sheriff Smith invited us to a substantial meal with plenty of wine. When the latter was served, Smith toasted us, remarking upon the pleasure it gave him to set before us a sample of good country wine.

Of course I said something pleasant to the cunning fellow, but I must confess that there came regretful meditation over the thousand I'd paid him, a part of which was being spent in the wine I was sampling. I consoled myself with the thought that liberty has its price, whether purchased on the battle-field or close by the prison bars.

While we were dining, a Buffalo train pulled in and out again, taking with it Bob Watts, the disconsolate one, and his followers. He realized at last that the game was played; that he'd held the right bower, forgetful of the fact that sometimes there is a joker in the pack. Our train came along presently, and Sheriff Smith handed Frank Houghtaling the New York warrant, and we were off. The handcuffs were on our wrists and the shackles on our ankles as we clanked along to seats selected for us by Houghtaling. Naturally we attracted much attention and comment and drew not a few questions from the passengers. An extremely inquisitive man wasn't satisfied until he had asked Frank to tell him what crime was charged against us.

"A very serious offence," solemnly proclaimed our captor. "Indeed, sir, they are accused of a very grave crime."

"My sakes! What?" he questioned, in a voice that sounded hollow. "You don't mean murder?"

Houghtaling nodded his head in the affirmative, and looked extremely wise.

While we, in a measure, enjoyed the situation, having the knowledge that we were out of a predicament which held great danger for us, still the

irons were not to our liking, even under the conditions; so we asked Frank if it wasn't about time to liberate us.

"Wait until we've passed the next station," he advised.

Half an hour later the irons were removed and stowed away in Houghtaling's satchel. The handcuffs he brought with him, but the shackles belonged to Sheriff Smith. We were to send them to him by express. A little later Shinburn and I were strolling about the car, and once we visited the smoker. Of course this brought a lot of questions from the passengers, the most curious ones wanting to know what it all meant. To see a pair of desperate murderers thus roaming at will, seemed, to a few timid ones, like flying in the face of Providence. At last Houghtaling set these meddlesome people at rest by saying: "I received a telegram at the last station, informing me that I'd arrested the wrong men, and that I must at once release them. While I believe them to be guilty, I must obey my superiors. However, I am going to keep an eye on them."

We reached New York in fine spirits, and Houghtaling immediately arraigned us before Judge Russell in the latter's private office. Peter Mitchell, subsequently a civil justice, represented us, and upon his statement to the judge that the warrant upon which we had been apprehended, though charging many grave offences, really had no basis for issue except that growing out of an ordinary family quarrel, we were released on a nominal bail. The worst that could befall us under this action was a civil trial. But we knew that the case was as good as ended.

Detective Bob Watts, with his fake warrant, had been defeated. He might now whistle for his reward from New Hampshire.

But our trip was not without its disappointment in another direction, for Shinburn and I had a disagreement. He still insisted that it was unnecessary to have paid Sheriff Smith the thousand-dollar bribe, averring, testily, that it was money thrown away, and exhibited a disinclination to shoulder his share of it. The end of it was a decision to part company. I believed then, and I do to this day, that we would have been turned over to Detective Watts had I trusted to Lawyer Rumsey. I feel morally certain, too, that he overestimated his power with the cunning sheriff.

In the meantime Mark and I made precious little money. I was convinced that the crude methods used by the burglar craft, to master bank vaults, were too antiquated to compete with the great improvement which had been made in the construction of vaults and combination locks. In my brief experience I had become thoroughly disgusted with the lack of success in robbing banks, for fully ninety-nine per cent of failures had been recorded in my mental bookkeeping. This I had good reason to know, for hadn't I supplied much of the funds which were behind these ventures? I determined that no longer would I have anything to do with the sort of bank robbery that necessitated lugging about three hundred pounds of burglars' tools. I believed there was some other and more effective method of getting at the millions in vaults whose locks must be mastered. No doubt, if the newspapers of that period had woven the romance about the burglar that we read of to-day when one of the profession exhibits exceptional genius, I would have been dubbed the "Ethical Burglar," for I began a diligent, systematic study into the theoretical and practical aspects of the subject of bank looting. To do this, I purchased combination locks from all the leading manufacturers and plunged into the intricacies of their mechanism, and at the end of many months of almost constant investigation I felt satisfied that I had not thus applied myself in vain. I could pick every lock, work out every known train of numbers, and had mastered the finest system in the use of high explosives; and, what was of far greater importance than all, I had evolved a tiny instrument scarcely more formidable than a finely tempered piece of very small steel wire. But the possibilities of this invention were greater than I knew, for it worked wonders before the end of its usefulness came. It did away with cumbersome burglars' tools and made the necessity for the use of explosives of rare occurrence. In fact, it made safe robbing an easier proposition than it ever had been and ever will be again.

When once an entrance to a banking office was obtained, I reduced the art of getting combination numbers to a matter of little concern, by the use of this precious device. All I had to do was to take off the dial knob of a lock, adjust the wire on the inside surface of the dial, and replace the knob; returning later to the bank. The lock in the meantime having been used by the bank people to open the vault or safe, I had only to remove the knob and examine the marks made by the wire, and I had the combination numbers.

All that remained between me and the right combination was to figure out the order in which the numbers were used, and that was not difficult.

Another advantage that came to me through this schooling, was the rare accomplishment of being able to watch the unlocking of a vault door, though ten feet away from it, and, with scarcely a failure, obtain the combination numbers. Rarely, indeed, would I require more than one sitting. Thus I mastered the combination locks. Having this control over them, and with the use of the little steel wire, which I christened the "Little Joker," I went into the safe-robbing business with unlimited energy. The result of my long toil and the expenditure of several hundreds of dollars, proved to be a veritable bonanza.

I was much amazed, when next I heard from Mark Shinburn, to learn that he had been as thoroughly disgusted as I with the old-fashioned mode of breaking bank vaults and had set about to devise better means. His efforts, like mine, had opened up greater opportunities. Presently I tapped on the rock as with a magic wand, and out came a golden stream.

CHAPTER IX

BREVOORT STABLES

In the fall of 1866 my old Boston friend Charles Meriam sold out his business at that place, and, with the proceeds, some fifty-four hundred dollars, set out for the West to grow up with the country. On his way he stopped over a few days with me. I tried to discourage him, and, not being successful, finally said, in a joke:—

“Well, Charlie, when you go broke, come back to me, and I will start you in business again.”

Charlie set out for the West with visions of future wealth before him. One afternoon in the next August I returned to my apartments and found him there, waiting for me. I was delighted to see him, but could not help noticing that he did not present a very prosperous appearance. He had very little to say of his Western experience, but asked many questions about business prospects in New York City.

I soon saw that in following Horace Greeley’s advice he had met with the same fate that so often befell others who acted upon the suggestion that this worthy gentleman was always so free with.

After we had dined, and while we were alone together, Meriam pulled out a five-cent piece, saying:—

“That’s all that’s left of my fifty-four hundred dollars.”

He then went on and told me a hard luck story about buying a half-interest in a business and subsequently finding the stock mortgaged, so that his capital was swept away. In order to get back to New York he had had to pawn his trunk.

As I have before stated, Meriam was my friend; consequently it was up to me to help him to a new start. I know Russell Sage would not look at it in this way—but that's wherein I differ from Uncle Russell. I told Meriam not to worry, that fortunately I was pretty well heeled, and that we would join forces in a livery business somewhere in the city, I to furnish the capital and he to run the concern. This verbal agreement continued between us for sixteen years without a single disagreement. It would doubtless have continued longer but that it was broken by Meriam's death in 1884.

At the time Meriam and I made our verbal agreement to go into business together, a Mr. Westcott, founder of the Westcott Express Company, was transferring baggage for the New York Central Railroad, but had no passenger service. We obtained from him the right to conduct a passenger transfer under his name, and at once started with eight horses and two Concord coaches, each of the latter bearing the inscription, "Westcott's Transfer Coach."

This venture proved so lucrative that, within a few months, Mr. Westcott decided to run it himself, and made us an offer for our stock, etc. As our agreement was verbal only, and for no specific term, we had perforce to sell to him.

In February, 1869, we bought from A. R. Matthews the stock and business of the Brevoort Stables, 114 Clinton Place, for a cash consideration of twenty thousand dollars, I furnishing the money; and the title was taken in my wife's name. In fact, I gave it to her, though Meriam received one-half the profits, and it was always conducted under the name of "Meriam's Brevoort Stables."

Until the advent of the London cheap cabs this business netted over twelve thousand dollars per year. During my business career in New York I was known as George Miles, the latter being my middle name; but in the world of crooks I was known as Bliss and by other names. While in the livery business, I must add here, I had a sort of blind brokerage office in Broad Street, which was of service to me in more than one way.

The stable, as well as the hotel, was on land leased from the Sailors' Snug Harbor Association, to which it belonged, and at the time we hired it Messrs. Clark and Wait, then proprietors of the Brevoort House, owned the lease of the stable also. We hired from them under a verbal agreement, and,

during the fifteen years or more that we were their tenants we never had a single dispute, and our original agreement stood during the whole of that time.

When, on the death of his father, Charlie Wait came into control of the hotel, he got the aldermanic bee in his bonnet. In furtherance of his ambition, he made a political deal which embraced the letting of our stable to a certain politician. Consequently we were obliged to vacate and also to sell our stock at a great sacrifice. At this time Meriam was dead and I was finishing a twelve-year term of imprisonment in Vermont, where I had been since 1876, for the robbery of the Barre Bank. Consequently my wife was conducting the business with the aid of a manager, and she could not cope with Wait's political aides.

When I had been sent to prison, I had been robbed of nearly every dollar I had by the New York police and was stone broke. Therefore this livery business was my wife's sole dependence for her livelihood; and when deprived of it she was left in a bad way. On my release, in 1888, we were practically without a dollar—thanks to Charlie Wait. But he was no better off, having lost his whole fortune, including a one-third interest in the Windsor Hotel in Fifth Avenue.

Meanwhile, during our separation, Shinburn had not fared much better than I. He pulled off one good trick, got arrested for it, and escaped. This trick was the robbery of the Lehigh and Susquehanna Navigation Company at Whitehaven, Pennsylvania. A few days after our arrival in New York from the Steuben County jail, Shinburn went to Scranton. Here two sporting men of that city put him on to the safe in question, which on one night in each month contained a large sum of money with which to pay the employees of the company. Shinburn obtained wax impressions of the keys to the safe and had duplicates made.

On the night when the pay money was supposed to be in the office Shinburn entered the building and unlocked the safe. For some reason the expected amount of money was not there, the safe containing at the time only six thousand dollars. Shinburn decided not to take it, but to wait until the full amount was on hand. Therefore, replacing the six thousand dollars, he relocked the safe and left. The next month, on the day that the large sum of money was again supposed to be on hand, he returned, opened the safe,

and found thirty thousand dollars. This he took, thus getting twenty-four thousand dollars as a reward for his patience.

He and one of the sporting men had driven over from Scranton in a rig that had been hired from a livery in that city. After looting the safe, they returned to Scranton by the same means, and would doubtless have escaped detection but for one of those mysterious happenings which seem to lie in the wake of the evil-doer to bring about his downfall.

The night of the loot was rainy, and the roads were muddy. When the robbery was discovered, fresh wagon and horse tracks were found leading to and from the village. The tracks showed a broken shoe on one of the horse's feet. These tracks were traced to Scranton, where a search of the livery stables discovered the horse with the broken shoe.

This led to the arrest of the two sporting men, one of whom had hired the rig. One of these gentlemen squealed, implicating Shinburn, who, some weeks later, was arrested and taken to Wilkesbarre. Here, pending a hearing of the case, he was kept at a hotel in charge of a special deputy sheriff, who, on retiring to bed at night, handcuffed himself and Shinburn together.

Shinburn saw that he was caught dead to rights, and that, unless he could escape, he had a term of imprisonment before him. He therefore broached the subject of escape to his jailer, and finally induced him to consent to permit his prisoner to pick the handcuff lock and get away.

For this Shinburn agreed to give his jailer two thousand dollars. He did not have this amount with him, but, by convincing the deputy that he had nothing to lose, the latter was induced to take Shinburn's promise of payment. Therefore, about midnight, while the deputy was snoring like a trooper, Shinburn picked the lock of the cuff on his own wrist with a common pen which had been bent to serve the purpose.

There was another guard in an adjoining room, with an open door between. Therefore Shinburn quietly gathered up his own clothes, taking also his jailer's overcoat and gun, and slipped out into the hall and there dressed himself. He then dropped to the ground from a window, walked to Pittston, boarded a gravity railroad coal car, and rode to Waymart. From here he was driven to Great Bend on the Erie Railroad, where he boarded a train and landed safely in New York.

And now comes the sequel, which proves that crooks of a certain grade are as careful of their promises as are the most honored business men. Shinburn did not find it convenient to pay the promised two thousand dollars until July, 1869. Then he sought to reach his whilom jailer, but learned that he had left Wilkesbarre. All inquiries as to where he had gone failed to locate him. Thereupon Shinburn inserted a personal in the *New York Herald*, so worded that the person for whom it was intended, and he alone, would understand it. After weeks of advertising, the man was heard from. He came on to New York at Shinburn's expense, where he was paid the promised two thousand dollars.

I was present when he received this money, and I can tell you he was a happy man. He said:—

“It's lucky that I did not get this money when you escaped. If I had, it would all be gone with the rest of my money. I lost everything I had in a deal I went into, and have been dead broke ever since. This money will start me to going again.”

I wish I could say that with that money he built up an enormous fortune; but as a matter of fact I never heard of him after he left us, so do not know what finally became of him.

CHAPTER X

I CORRUPT A BANK CLERK

“Who’s that pale-looking chap at the first table to the left?” asked Chelsea George, one of Jack Hartley’s coterie of misfit burglars. His remark was addressed to a faro dealer at his side.

“The feller that’s just cashin’ in his last case?” whispered the dealer.

“Yes—he’s got the look of a farmer not long used to city ways and clothes,” said Chelsea George.

“You’re half right, sir; he’s a bank clerk. He came from Montreal way not long ’go,” volunteered the faro dealer. “But he’s a good thing here, though he was a greeny for sure when he first come in. He’s buckin’ in the game fast, sir, these days. Got the gamblin’ fever very much alive in ’im.”

“Can’t have much cash if he’s only a bank clerk,” remarked Chelsea George with a sniff.

“Not much to back his game, but he’s a sticker for keeps.”

“Is it possible?” ejaculated Chelsea, as though surprised. “Tell us more about him.”

“Yes, do; he seems a queer chap, doncher know,” put in a companion of Chelsea. Up to this juncture he had been a quiet listener.

“I’m not sure but he might prove an interesting acquaintance,” said Chelsea George, turning to the speaker with a peculiar light in his eyes. The third of the group was English George, a pal of Chelsea and a crook of no higher class. They dressed loudly and posed as fast young gentlemen from Britain, with plenty of cash to spend. The faro dealer believed them to be of

this class, though had he known them to be what they were, it would have made no difference to him. Occasionally they bucked the tiger.

It was in John Morrissey's gilded gambling den in West Twenty-fourth Street, New York City, that the above conversation took place. Morrissey was at the zenith of his career, and, though a gambler, he was known to be a friend of the deserving poor. This is not said, however, with a view of putting my stamp of approval on gambling, for my advice to young men is to keep away from the Gilded Palace of the Green Cloth. My warning isn't backed by personal experience, either. Of a truth I can say that I ever steered clear of the gaming-table.

It was late in the fall of 1867 that Morrissey's place was first visited by the two Georges, who hung about the tables for the most part of the time in search of information which they could turn to an account in their profession. Not infrequently words were dropped by the wealthy habitués of the den that led to the robbery of a bank or other well-stocked safe.

John Taylor, the young bank clerk being discussed by the Englishmen and the faro dealer, was fast approaching the real danger point in his gambling experience. His fascination for the pool-room and race-track had opened a straight road to Morrissey's, and at the moment of our introduction to him he had played in the last cent of his salary drawn from the Ocean National Bank that very day. His face was pale but for a patch of deep crimson in the centre of each cheek. He was about to move from the table when the faro dealer and the two Georges approached him.

"Hard luck, Mr. Taylor?" asked the dealer.

"The worst I could possibly have," said the young man, gnawing at his feverish lips. A few words of the commonplace sort ensued, and then the dealer, having adroitly brought it about, introduced the Englishmen. Presently Taylor and the two Georges were alone at a table, drinking, the former not having the slightest knowledge that the motive for seeking the introduction was an ulterior one. As innocent was the faro dealer.

"We were watching your play," explained Chelsea after a little, "and although we don't know much about the game, we concluded that your system was a good one if pushed to the limit. It's new, isn't it, Mr. Taylor?"

As a matter of fact, Taylor had played no so-called system, and at the moment was thinking of nothing but that he had lost upon plunging his all. Until then he had been winning. Like thousands of other fools who gamble, he believed his luck had come to stay until he could regain all he'd lost in other days. He placed his pile of winnings and his week's salary on one card. In an instant he saw it all vanish.

"I haven't any system," he answered Chelsea, nervously pulling at his slim black mustache, "but one thing I know well—I'm cleaned out!"

"Pardon me, old chap!" Chelsea George said, placing his hand on Taylor's shoulder in an affectionate manner, "but I was once in a fix like yours, and not so long ago either. I wasn't sorry when a friend like Mr. Wales here came along."

English George smiled benignly at this, and Chelsea continued: "He loaned me a few hundred, and they came just in season. Now if I could be of any service to you, I'd consider it in the light of a favor to me."

If Chelsea expected Taylor would resent the offer of a loan, he had overestimated the man, at least in the case in hand; for all men in the mad rush eventually reach the rash limit of their financial means, and Taylor had run the gamut! He had to meet an obligation that night, and it was this fact that made him play for a high stake. Exposure, indeed, was close on his heels. If his creditors did as they threatened to do, he would soon be looking for another position. He saw in Chelsea's loan a straw to which he might cling, consequently when two new one hundred dollar bills were thrust into his hand, it closed on them, though tremblingly. The fine sense of honor drilled into him at home by his stately Canadian father had given him a stab, for the moment. He knew he had accepted the money with scarcely a hope of returning it! But family pride went down before the crush of circumstances.

"I shan't forget you!" he said to Chelsea George, swallowing hard; "I'll be here next Saturday night at nine, and, well—"

"My dear old chap, don't mention it! Mr. Wales and I dine at the Sinclair House to-morrow evening at eight. We'd like to have you join us. We're just looking about town and taking in the sights, you know. In the meantime don't worry about this trifling, blasted loan."

English George, too, warmly pressed Taylor to accept their hospitality. He promised, and so the Georges and the young bank clerk parted.

“The young feller’s up against it, and is good for a stunt,” said English, resuming his natural self.

“He’ll be useful!” was Chelsea’s short answer.

The young bank clerk had come to New York bright, innocent, and ambitious. His gilt-edged references procured him a responsible position in a leading down-town wholesale mercantile house, and from there he soon went to a clerkship in the Ocean Bank. There appeared to be the material in him out of which the successful banker is made, so his promotion was rapid and his salary grew proportionately. It is not my purpose to be misleading; therefore, when I say his salary was increased, I do not mean that it was what it should have been. There is no doubt, to my way of thinking, that his compensation was too small when compared with his ability. Indeed, I believe that a more generous recognition of his talents would have been better for him and his employers.

Taylor was on hand promptly to dine with the two Georges, who were lavish in their supply of wines. It was a mellow trio, indeed, that were about to separate at midnight, John Taylor feeling particularly flushed with his frequent libations.

“I’ve got a scheme, Taylor, old fellow, and you can make a good commission in it!” Chelsea was saying, as he puffed a ring of cigar smoke over his head, and blew another ring quickly after, and through it.

“Heap sight better ’n faro at Morrissey’s,” put in English, with a laugh; “in fact, my boy, it’s a dead sure thing!”

John Taylor drained a glass of champagne and said his companions talked as though they were Jay Goulds and Jim Fisks.

“What is the deal, anyway?” he added. “If there’s money around, the devil knows I need it! Unless things take a lightning change soon, I’ll have to,” and he lurched unsteadily to his feet.

Chelsea gently pushed the young man back in his chair, and filled the wine-glasses once more. Then he said:—

"I've got five thousand dollars' worth of United States five-twenty bonds I want to sell, Mr. Taylor, and I think you can do it for me! I'd do it myself, only I got 'em in a queer way, old chap, and I want to get rid of 'em on the cautious. They'll sell easy, and there's twenty-five per cent in the deal for you."

"And you know the Wall Street game a long sight better 'n my friend," put in English.

"I know something about the game in the Street," said Taylor, with a contemptuous shrug of his shoulders. "I might negotiate the bonds if I could see my way clear!"

"Here, fill 'em up again, Mr. Wales!" said Chelsea George, and once more the trio drained their glasses. But the game had been played. Chelsea had brought the bonds with him, and Taylor carried them home. The next day he sold them, and that night he met the two Georges. When he left them, twelve hundred dollars were in his pocket. It occurred to him that there must have been something illegal about the transaction, but to him, then, it made no difference. He must have money. Now that he had it, he was seized with a spirit of exultation. Two-thirds of the snug sum in his pocket would pay off the old scores. These done away with, he would start anew. And, too, the ease with which he had made the money fascinated him. He began to wonder whether or not he would have another opportunity. If the bonds had come into the possession of the Englishmen by fraud, he didn't know it, so why should he care; he was not supposed to inquire where they came from. He had offered them to a broker of a fine business reputation, and no questions had been asked. Of course the bonds were all right!

As a matter of fact, they had been stolen, and were what is known in the crook parlance as "crooked." English George met Taylor a few days later, and told him what the bonds were, but did not tell him where they came from. The young clerk, in a measure, was now in the power of the men, whose true character he began to realize; but his craving for money, and their reasoning that he would not fall into the hands of the police, led him to further venture into "crooked bond" selling. Several more deals, of more or less size, were put through without a hitch, and "easy money," as he termed it, came in his way. But, as is usually the case, it went out as fast,

Morrissey's getting the most of it. There came a time when he was again out of funds, and the Englishmen had no bonds to be negotiated. In this emergency, the evil in Taylor, once aroused, asserted itself with a power not easily resisted. Mad for the want of that which would supply his craving for gambling, the young bank clerk was at the point where he would not stop at anything, short of a great peril that could be seen.

About one year later, Taylor, in a talk with Chelsea George, said, with a laugh that left his listener in no doubt as to his meaning, "What if a box of securities were left in a position in our bank to be carried off without detection?"

Chelsea eyed Taylor in astonishment. He thought there had been a mighty rapid transition from selling "crooked bonds" to putting up a job to rob a bank.

"I don't think I understand you," said Chelsea.

"I could tell you of such a box and from where it may be taken," said Taylor. "That seems pretty plain language to me."

"Well, yes, I should say so; and I could see such a box if there was enough of the useful in it to make it worth the while," answered the Englishman. "How much would there be in it for me?"

"It won't have less than a hundred thousand dollars' worth of United States government bonds," said Taylor.

Chelsea asked where they were kept so handily.

"In the paying teller's window, during business hours."

"They might as well be in the vault," declared Chelsea.

"On the contrary," quickly explained Taylor, "the box is left by itself in a most careless manner. It would be very easy for you and English to carry it off, when business is at its height, say at three in the afternoon."

"We might play the business man gag," mused Chelsea.

"What's that?" inquired the bank clerk, seemingly catching at the Englishman's meaning.

“We might call at the bank some afternoon, and English might take the box while I talked to the president.”

“That’s it—just the thing!” cried Taylor; “I didn’t know just how it could be done, but was sure you could find some way.”

“How many clerks are there in the banking office?” asked Chelsea.

“Never mind them,” replied Taylor, confidently; “I’ll see they’re kept busy.”

After the young clerk had made thus clear the possibility of success, Chelsea agreed with him that they might make a good “touch.” So English George was consulted, and the plans laid for an immediate attempt. As suggested by Taylor, the closing hour of business was selected in which to make the “lift.” The president’s room was just off the office and not many steps from the paying teller’s desk. The box of securities nearly always lay at the teller’s elbow.

The day following the completion of the arrangements, a well-dressed Englishman was admitted to the office of President Martin. Almost immediately behind him came another man, apparently the companion of the first. The first caller introduced himself to the president, saying he was anxious to obtain information about money exchange, and that he’d been recommended to Mr. Martin by the agent of the steamship line by which he’d just landed in New York. The president was delighted to meet the strange Englishman, and heartily welcomed him to America, adding, “I shall be pleased to be of service to you.”

They conversed in this manner for fifteen minutes. Apparently the Englishman had not noticed the second caller, who, upon entering the office, had remained at a distance. President Martin had wondered, while they were talking, why his visitor hadn’t introduced his fellow-traveller. Perhaps, though, the other was only a servant. At any rate President Martin was soon so engrossed with the pleasing Englishman’s humorous story of a ship passenger’s experience that the presence of the other slipped his mind.

Presently the second caller walked out in the banking office and stood idly there for several minutes. John Taylor saw him, knew him, and at once took the cue. The stranger saw that Taylor called the clerks over to his desk and was amusing them in some manner. The paying teller was attending to a

long line of bank customers before his window. At his elbow, as Taylor had said, there lay a tin box. The stranger edged along in that direction and reached over, with a quick movement, to possess it. As he did so his elbow struck hard against a high stool. He tried spasmodically to catch it, but failed. Crash it went to the floor, and every eye was directed toward him, and every eye saw a flying figure dash into President Martin's office, and, climbing to the window-sill, disappear, before the two occupants of the room, apparently, realized what had happened. Chelsea George, at Mr. Martin's side, gritted his teeth and suppressed an oath when he saw English George go through the window empty-handed.

The banking office was in an uproar in an instant. President Martin demanded what was the trouble. Clerk Taylor explained that he'd seen a gentleman standing in the office a moment before the crash, but supposed he was a friend of the president's.

"I thought the man was with you," exclaimed President Martin to Chelsea George.

"My dear fellow, no!" expostulated Chelsea; "a man came in behind me, but I thought he was your friend. It must have been a thief. Did he steal anything?" President Martin in the excitement hadn't thought of that. He was assured that everything was intact.

"How fortunate, my dear fellow," said Chelsea; "that you've lost nothing. Those rascally blacklegs are so bold! Oh, we have them in London, even worse than you have them here, don't you know."

With this comforting blather for President Martin, and "Many thanks, my dear fellow, for your kindness," Chelsea George bowed himself out of the banking office and was soon in Fulton Street, cursing English George, and his stupidity, in all the varied forms of blasphemy he could command.

In the meantime, English George might be a bungler and deserve all the cursing that Chelsea could deliver, but as to his fleetness, there could not be a question. When he disappeared from the window, it was to land ten feet below on the sidewalk in Fulton Street, making good his escape by way of the old horse-car tunnel through the block to Vesey Street at College Place.

It was not until after Chelsea had left the bank, and the police reported, half an hour later, that the thief had escaped, that the guilty bank clerk

began to feel safe. When the crash of the bookkeeper's stool came, Taylor thought there would be certain exposure for him. That night he saw the two Georges and said something far from complimentary to English.

I have related the details of this attempt to "lift" the box of securities, to demonstrate in what state of mind I found John Taylor, for it was in listening to Chelsea George berating English that I, like a flash, conceived the plot to loot the Ocean Bank. Naturally my trained mind told me that a bank clerk who was so anxious and willing to participate in the stealing of one hundred thousand dollars would be quite likely to fall a victim to a bribe which would make possible a game worth striving for.

"You can get next to him in a bond-selling deal," advised Chelsea; "but I don't know whether he'd turn to a bank job again after the bungle of English."

"It won't do me any harm to know him," said I. "I'm sure that a man who'll stand for a deal such as you've described won't stop at anything. So, if you'll put me up to him, I'll make a try."

"No try, no game, George, true enough!"

"Yes," added I; "and when you meet this Taylor, tell him you know of a man who's got a few thousands of paper fit for the market. I'll bait him with 'crooked bonds' as a stepping-stone to a bigger thing."

Well, briefly, I went to the Sinclair House a few evenings later and met John Taylor, the appointment having been arranged by English George. I measured the young man's caliber immediately, and felt satisfied that he'd be a good investment; in other words, would be the sort of stuff out of which I could make a "right" bank clerk. In order that I might become better acquainted with him at once, I placed three thousand dollars' worth of bonds in his care for the market. He made a good sale, and I paid him fifteen per cent for his pains. Finding that he was a safe one to deal with, in fact, a man who wouldn't get a "swelled head" over success, I gave him other opportunities to sell bonds, and finally I came down to the more important subject.

I must confess that I was considerably astonished over the readiness with which he met my proposition. It was more than halfway; indeed, he was overanxious to barter his honor and integrity in any reasonable scheme

in which there was an ordinary element of safety and a money return commensurate with the risk that would be taken. I will quote his own words as correctly as I can: "I am anxious to make a stake large enough to admit of resigning my position in the Ocean Bank and go West, where I can start in business for myself."

Having reached such a plain understanding, it was not long before Taylor proposed a second attempt to steal the little tin box of securities which the Englishmen failed to get.

"As a matter of fact," Taylor told me, "the securities are daily left in the same lax manner they were before that lunkhead of an Englishman fell over the chair."

"One would think the Ocean Bank folks would be more cautious after so close a call," I suggested.

"True; but they're not. I think the box could be carried away easily if the right sort of a man went after it," said Taylor, with great conviction. But I had my mind set on bigger results, and so I reminded him of our talk about tackling larger game, though at the time I had not hinted, in any way, what I expected him to do. I hadn't told him I had my eye on the Ocean Bank.

"Why not get in the vault of your bank?" said I, and intently watched his face for the effect. I staggered him! His face, usually pale, fairly blanched at the mention of the proposition. Presently he gasped, "It's a physical impossibility!"

"By no means," declared I, smiling at my flat contradiction. Still Taylor was sceptical.

"I don't believe it! You can't open it! It's a bang-up burglar-proof vault, and so much so, by the eternal, that many of our wisest customers leave their strong boxes in it," he cried.

"Nevertheless," I persisted, benignly disregarding his earnestness, "the combination lock can be picked, and I can do it! Once inside the vault, the rest is only a question of time and perseverance!"

When I had talked to him much in this vein, he began to lose some of his confidence in the burglar-proof qualities of the vault and became more susceptible to suggestions. With this change of front, and at my request, he

gave me a detailed description of the vault, its doors, and of the safes inside. Then he enlightened me as to the business methods of the bank, and, in fact, placed me in full possession, as he then knew them, of such data as would make clear to me what plans would have to be devised to get inside the vault. He wasn't able, at the moment, to tell me all I wanted to know of the bank's combination locks, but this he furnished me later, to my entire satisfaction. As a further incentive for Taylor to continue his investigation, I was unstinted in my praise of the work he had thus far done.

CHAPTER XI

A COLOSSAL BANK BURGLING ENTERPRISE

The Ocean National Bank occupied the first floor of the building on the southeast corner of Fulton and Greenwich streets. Fulton Street at this point has quite a downward slope running westerly, and, therefore, the first floor of the building in question was much higher from the ground at the corner than at its easterly end. The entrance to the bank, which was at the corner, was reached by a flight of stone steps, while the entrance to the offices above, being at the other Fulton Street end of the building, was nearly on the street level. It will be well to bear these facts in mind, the better to understand the meetings of the policeman and the janitor as hereinafter related.

Underneath the bank was a basement much below the surface at the back end, but nearly upon the street level at the Greenwich Street front. This basement was divided into offices reached by flights of steps leading down from both streets.

It might be said, in passing, that this is the same building which in later years was occupied by Charles J. Hartmann and his industrial insurance company. This company, in the late '80's, was closed up by the Superintendent of Insurance, who found twelve dollars cash on hand and over forty-three thousand dollars of liabilities. Mr. Hartmann, from his connection with this company, received considerable undesirable notoriety, resulting, among other things, in a suit for libel against a newspaper. The jury in that case awarded Hartmann a verdict of five thousand dollars, which was finally paid; though not until the case had been carried to the

Court of Appeals and the newspaper beaten at every turn and being administered scathing denunciations from the bench.

As before stated, the bank occupied the first floor of this building. The counters of the tellers and the desks of the bookkeepers were in the front, or Greenwich Street, end; the private office of the president was at the rear end, with windows fronting on Fulton Street. The corner of the building at the intersection of the two streets was rounded, as was also the flight of steps leading up to the bank. This made an entrance conspicuous, as it could be seen from a long distance away both on Fulton and Greenwich streets. Therefore it would seem that it would be a most desperate, if not a hopeless, undertaking to attempt to gain entrance to the bank vault, or, if successful, to get away with its contents, without being discovered.

But to the bank burglar the greater the risk, the greater the desire to “beat” it. For he who continues in the ranks of professional burglars does so as much for the excitement of the game as for the desire for pelf. Though, of course, the larger the loot, the larger the satisfaction. It is the same feeling as that which animates the hunter of the lion, tiger, and elephant. The only difference is in the direction of the energy.

The Ocean Bank at this time was one of the large institutions, financially, in New York City, and that, of course, means in the United States. It was situated close to the Washington markets, then the centre for all produce that came to or was dealt in in the city. And the district for the wholesale dealers and jobbers of all kinds of merchandise was then in the near neighborhood. Furthermore the bank was a depository for United States Government funds. Thus it is but natural that one should suppose that the strong vault of this bank always contained a large sum in cash and convertible securities—a sum much greater than the proverbial king’s ransom.

The lock on the vault was a three-tumbler combination made by Briggs and Huntington of Rochester, New York, and was at that time one of the most secure of its kind, and was practically, if not absolutely, non-pickable except by one in possession of the combination.

There was, however, the same fatal weakness as in Lillie’s. If, between its locking and unlocking, one could obtain access to it long enough to insert the “Little Joker,” heretofore explained, a register of the numbers of

the combination could be obtained. I learned from Taylor that there was an inside door to the vault, the keys to which, when not in use, were kept in a secret place in the bank; and that, also, within the vault the paying and receiving tellers had each a separate safe, the key to which each teller carried on his person.

In proportion as the obstacles increased, so did my zeal to overcome them; and I told Taylor that I was determined to make the attempt unless I became convinced of its utter futility. Many questions that I would ask about the vault and the bank management Taylor could not answer offhand, but would require time to observe and report upon them later. Thus it was that I obtained the name of the maker of the lock and its style, the manner of the disposition of the keys, and the conduct of the officials. For, from lack of experience, Taylor had not, until prompted by me, observed many things which it is essential for one in my line of business to know—things which it is necessary to be informed about before undertaking a job, and which assistance from the inside saves from long, weary weeks of spying and prying to learn. Taylor also ascertained the secret receptacle of the keys to the vault, and tried, by watching, to catch the combination of the inner vault door's lock as it was being manipulated. In this, however, he made no progress.

Finally I decided that the only way to accomplish our purpose was to go about it systematically, and spend money, time, and other means sufficient to insure complete success. And then began months of planning and scheming which I hoped would bring ultimately a rich reward.

Having determined that strenuous measures were necessary to gain our end, I at once set about their employment. I had seen from the first that it would be next to impossible to force the outer vault doors by means of explosives without bringing detection upon us before we could accomplish more; and that, therefore, our only hope for success lay in obtaining the combination to the lock.

I learned of Taylor that, from his desk in the bank, he could see the combination when it was being operated; but that he could not get near enough to see the marks on the dial without creating suspicion. I was pretty nearly at my wits' end, when, as a last resort, I finally determined to try the power of initiation. The scheme that came to my mind was mighty

visionary, but the thought of millions nerved me to try every expedient. And, as Taylor was particularly bright, I thought that my plan had more than a fighting chance.

Thus it was that one day I boarded a train at the New York Central depot and on the following morning found myself in the city of Rochester. I registered at the Brackett House, and, after cleaning off the dust of travel and supplying the wants of the inner man, I made my way to the office of Messrs. Briggs and Huntington. I introduced myself to Mr. Briggs as W. D. Harrington, of the banking house of J. C. Harrington and Co., Scranton, Pennsylvania. I happened to know that there was no such concern in Scranton, and I trusted to luck that Mr. Briggs did not possess a like knowledge. He did not, and I was, therefore, free to enlarge upon a mythical vault to my heart's content.

I told Mr. Briggs that the combination lock to our vault doors worked badly, was constantly giving trouble, and that we had decided to replace it with a new one, and to get the best in the market; that we had heard their locks highly spoken of, and, as I was on my way to Buffalo on business, I had stopped off to see what his firm could do for us.

Mr. Briggs, doubtless with an eye to business, began to ask questions about our vault. My general knowledge of such affairs enabled me to answer him satisfactorily. I told him that it was built of brick, lined with stone, and that it had Lillie doors. He said that while vaults of that kind were possibly fireproof, they were far from being safe from burglars. He claimed that Lillie's work was a back number, and showed me a Lillie safe that had been robbed by drilling. "Let us put you in a steel-lined vault, and some of our latest make of chilled steel doors," suggested Mr. Briggs; "then you will have a vault that you can feel is really burglar-proof."

I thought of our unsuccessful attempt on the Brockport Bank and felt that Mr. Briggs had some justification for his confidence. And I could not but speculate as to whether his confidence would remain unshaken after the ultimate ending of the scheme in behalf of which I was now visiting him. I venture to say that it did not.

Parrying as best I could Mr. Briggs's proposition,—for I did not know just the dimensions of that Scranton vault, and really did not wish it lined just then,—and it not being a vault, but a lock, that I was after, I asked to be

shown their different styles of locks. There was none just exactly like that on the Ocean Bank vault; but there was one which varied only slightly. I asked Mr. Briggs if he could not make certain changes in it. He said he could, but that the lock would not then be so good, as the things I wished altered were improvements on their old style of lock. I insisted, however, upon the changes; and he said that it would take about two days to make them. I told him to go ahead and make the changes, and I would take the lock. He offered to send it by express to Scranton, but I replied that my business in Buffalo would be finished by the time the lock was ready, and that I would stop for it on my way home.

I have often wondered since that Briggs did not become suspicious at my display of knowledge of locks, and my desire for a special pattern, especially as that pattern was palpably not as good as the one he was asked to alter. Doubtless he did wonder, but he probably put it down to the contrariness of a man who, having set his mind on one thing, cannot be turned therefrom by the most convincing arguments. For how could he surmise the purpose to which that lock was intended to be put?

The beating of combinations had not then become the success that it afterward attained, when safe-makers had continually to exercise their ingenuity to keep ahead of the safe-breakers. Then the safe-makers took extreme precautions to prevent the obtaining of knowledge of the mechanism of their locks. And many good stories could be told about how crooks circumvented these precautions, and how, by reason thereof, Troy, New York, and Akron, Ohio, became centres for bank burglars.

However, Mr. Briggs exhibited no suspicion, and promised to have the lock ready on the afternoon of the following day. To minimize all risks, I went to Buffalo and stayed over night at the Mansion House, returning to Rochester the next afternoon. Going at once to the office of Mr. Briggs, I found the lock ready for me. A careful examination showed it to be what I had come for. Therefore it was boxed, I paid the bill of two hundred dollars, and that night I was on my way back to New York City with my purchase, which was safe in my apartments the next morning.

The following night, in response to my request, Taylor came to my room, and I took the lock apart and explained its mechanism to him. I went over the details until he fully understood their workings. Then, putting the

lock together, I went to one side of the room while Taylor went to the other, and I began working the dial knob; Taylor was watching my hands to discover through their movements, if he could, the points at which I stopped and the number of revolutions the dial made. It was tedious work, but we kept at it night after night, while, in the daytime, Taylor, having made it a point to be always on hand before the vault was opened, would watch the process of unlocking its doors. He had a quick eye and was very apt, and, after some weeks of practice and watching, he felt sure that he had the combination that would open the doors of the vault.

We tried upon our lock until I was convinced that he was right, and then I began to feel that our project was in a fair way to succeed. And a few days later, to make sure of his convictions, Taylor stayed after hours at the bank on an excuse that he was behind on his books. There being no one around but the janitor, Taylor put his belief to the test and found—failure.

When I met Taylor that night, he told me the result of his attempt, and that he felt sure he had the first two numbers right and that the last number, which he had decided to be one hundred and twenty-three, must be the one he had wrong. Of course we felt a little blue, but we agreed that if he had the first two numbers right, the last would not be long in coming. It was finally arranged that Taylor should stay after hours the next day, and that he should send the janitor on an errand that would keep him away fifteen or twenty minutes; that I should be where I could watch the bank, and when the janitor left I should enter and see what I could do.

This plan was carried out. As soon as the janitor had gone, I entered the bank; the door was locked against intrusion, and I went to work at the combination, when, lo! the handle turned, the bolts shot back, and the doors opened. Taylor had the combination pat except the last stop, which was on no number, but just a little to one side of one hundred and twenty-three. No wonder he did not get it exactly, but it was great work to get it as near as he did.

When our success was apparent we did not fall into one another's arms and weep tears of joy. No. I closed the doors and made my exit; and Taylor, a few moments later, closed his books and did likewise. We met at the Astor House, and I think we may be pardoned if we indulged in a cold bottle, or even two.

Up to this time there had been no discussion of terms between Taylor and myself. He had ever been somewhat sceptical as to our success, and I had borne all the expense of the venture. Now, however, he became imbued with some of my faith in the scheme, and an agreement was made between us as to the percentage he should receive of whatever should be obtained in the loot, though this was a good deal like counting chickens before they were hatched.

Until we had secured the combination to the vault of the Ocean Bank, Taylor and I had worked in secret, no one else having the least idea of what we were doing, or that we had aught in contemplation. Now, however, it became necessary for me to find assistants in the work of getting into the bank. In this, Taylor, of course, could not help me. Burglary was not in his line, and except that he would keep me posted on the doings inside of the bank, all the work in future must be done by other hands than his.

The difficulties to be overcome and the immensity of the haul we should make, if successful, rendered it imperative that the very best men in the profession should be engaged. At this time alleged burglars were numerous, but most of them were more fit for breaking into a jail than a safe, and very few could be depended on for a job requiring nice work. No loud-mouthed, Jack Hartley crowd of grafters, with their wagon loads of English pattern-made tools, would fill the bill.

Since my separation from Shinburn after our adventure at Bath, I had not been able to find a single person whom I considered capable of helping me in any deal. Now, however, I must have some one, as I could not do this alone. I could think of no one else whom I would be willing to call in, so I determined to try to patch up matters with him. Through a mutual friend I sent word to him that I had a big undertaking under way that promised large returns, and that it would please me greatly if he would join me in the venture.

Shinburn met my advances in the spirit of friendliness and we soon came together. I shall never forget his remark when we met. "George," said he, "I guess we were both a little too much set in our ways. I am only too glad to get into a job with you, and if we pull together we ought to be able to beat the safe-makers."

This renewal of our former partnership, in the last days of 1868, continued until the winter of 1870, during which time many profitable tricks were brought off, some of which are related in this work. Taking Shinburn to my rooms, I explained my scheme, told him what had been accomplished, and he became fully as enthusiastic over the prospect as I was; and we at once set to work to complete the job.

CHAPTER XII

JUGGLING WITH DEATH

“Curses on it, George; my key won’t lock it!” groaned Mark Shinburn, as he turned, twisted, and in every way tried to move the bolt of the key lock in the door of the big steel vault.

“Don’t give it up, Mark,” I whispered encouragingly, and he manipulated the key again, until, cold night as it was, the perspiration stood like tiny bubbles on his face. I could see it with the aid of the candle which threw a dim light in the banking office.

“No use, George,” he burst out again, presently, throwing himself flat on the floor; “it won’t work, and the trick can’t be done to-night; we’ll have to try it another time!”

“But we’ve got one of the money safes,” said I, by way of encouragement, as I swung open the steel door of a safe in the vault, disclosing many packages of money, mostly in large bills and not a small quantity of gold and silver. “Your key worked on this one to a nicety.”

“Yes, curse it!” Shinburn mumbled; “it seems I got one to fit, but this one will not,” and he contemptuously tossed a key on the floor at my feet. “We might get along well enough under these conditions if I could relock the vault door, but I can’t. The duplicate key will unlock it, but will not, try as I may, lock it again. As it is, the vault door can’t be left as we found it, and we’re in a pretty mess.”

“It unlocked it easily enough,” I commented, as I took the key from his hand, and, thrusting it home in the vault door lock, attempted to turn the bolt at lock again. In vain—I could not.

"I'm losing my cunning," went on Shinburn as I was working; "here I've made three keys, and only one will do the trick for which I shaped it."

I looked at my watch, for a new thought had come to me. I said, "Lock the money safe, Mark, and let's get out of this, for the night clerk who sleeps in the bank will be here in ten minutes."

"I'll do it, but what about the d—d vault door? We can't lock that, and to leave it open means the certain discovery that some one's been tampering with the vault. We've come a long way from New York to make a failure."

"We can't leave it any way but unlocked," I said; "and, as a matter of fact, knowing the habits of cashiers as I do, I'll wager that nothing will be thought of the door being found unlocked. The cashier will think he has been careless, and you can be certain that he won't squeal on himself. In the meantime, we'll make the keys fit. Don't forget the safe key you threw on the floor."

Shinburn continued to sit on the floor like a child in a pout.

"Come, Mark, come!" I spoke harshly and almost aloud, impatient over his tardiness and seeming indifference to our danger. "We're taking a long chance remaining here like this."

"Blast the luck!" he growled again, "to think we've got to miss this fine opportunity of getting away with that swag." Never in all my experience with Shinburn, this master crook, had I seen him so confoundedly obstinate and so much disturbed. He was an icicle, as a rule—nothing stirred him. Tonight he was disgusted clean through.

"There, that safe is locked," he said at length, as, springing from the floor, he threw the money safe door to, and turned the key home. Two or three small fortunes were shut from our view. "And that one," he added, "will be open the next time we come, if we do, or I've lost all my cunning."

"Hold your tongue, Mark," I said, "and come with me." How often I had been obliged to urge discretion upon him, for he was ever running risks. As we came out of the vault I closed the great steel door, and once more tried to throw home the bolt. It was useless to try. Shinburn seemed to look at me sarcastically, as though he would tell me there was no hope of locking the door if he couldn't do it. Leaving everything as we found it, we left the

bank by the rear door. Scarcely had we done so when the night clerk let himself in by the front door.

It was the first work done on the inside of a St. Catharines bank in Ontario, Canada, the vault of which, we had been informed, held a treasure worth the miles we had come to possess it.

The prize seemed to be within our reach, when the failure of the duplicate keys to work brought irritating delay. The cash in one of the safes might have been carried off that night, but it would have been flatly unwise, from our viewpoint, to leave behind thousands which might easily be gotten. To rob one safe would mean discovery of the fact the next morning, and there would end all possibility of getting the contents of the other safe. Both, with properly made keys, could be looted with one visit to the vault.

One of those apparently insignificant oversights on the part of bank officials was the foundation upon which I constructed the plan to rob this bank, and I would direct the attention of the banking world to the incident with all the force I possess. While the method of bank protection of the present period is vastly different from then, it may be that there will be a lesson, after all, found in this history.

It was Jim Griffin, a crook with a reputation, who suggested the robbery. He lived in St. Catharines. A young man who kept company with an Irish serving-girl dropped a remark in Jim's hearing. The girl was in the employ of the cashier of the bank. Naturally she talked of his affairs, and among other things mentioned the bank keys, which "nearly every night lay on the mantel-piece in the dining room." As I have said, Jim Griffin heard this girl's sweetheart speak of the incident, and within two days Jim was in New York, looking for some one to loot the bank. Through a mutual friend I was introduced to him.

"That seems like a fine chance to get a few wax impressions," was my comment.

"Yes," rejoined Griffin, with a satisfied smile, "I thought the opportunity too inviting to give it the go-by."

"Right; if bank cashiers will let servant-girls have opportunities to talk about bank keys lying about the house, I don't know why we shouldn't

profit by it," I said. "Shall I interest Mark Shinburn in this?" Griffin assented.

Two days later I was in St. Catharines, and when I had returned to New York had succeeded in making the acquaintance of the sweetheart of the cashier's serving-girl and had with me the wax impressions of the vault door key and the keys of the two money safes inside. From these impressions I had Shinburn make duplicates.

Several days after this my associates and I were ready to begin the job, and in fact I have already told with what difficulties we had to contend. Our inability to relock the vault door, owing to the misfitting of the key, should have put an end to our hopes of robbing the vault, but, as I anticipated, the cashier, finding the vault door unlocked, believed he had been very careless, and no harm having been done, as he thought, no report of the fact was made to his superiors. Thus was our way paved with opportunity for the next attempt.

Early in the evening, about two weeks later, found us again in the bank and at our work. Two of the keys answered to the turn, but the inside safe key, which had bothered us before, still was out of fit. I decided to delay no more, and that explosives must be used on that safe, though it would require much longer than we'd planned, and there was the added danger that we would not be able to get through in time to catch the through train we expected to use as a safe "get-away." Missing the train, we would be in the position of not having provided a team. All that could be done was to hope for the best. A fleet pair of horses and a light sleigh, with a dash, we hoped, would land us safely at Niagara Falls, seventeen miles away. The serious end of this proposition would be the little time we'd have to procure a team.

But we got at the work. The holes were drilled in the safe and the "energy" applied; and a most satisfactory "blow" was the result. I had never seen a better job. We unlocked the other money safe, and soon had the cash and bonds crammed into a large travelling bag provided for the purpose, all being accomplished as expeditiously as we could. Even then it was fast nearing the time for the night clerk to put in an appearance. We did not dare to remain long enough to put the banking office in shape. Indeed, the vault had to be left open, lest we be caught red-handed. The rear door of the bank had scarcely closed behind us ere the clerk went in the front entrance. To be

accurate, we hadn't gone two blocks when he was hot-footing it to the nearest police station. Instead of a leisurely "get-away," we found ourselves forced up against the race for liberty, in a fierce snow-storm of the blizzard class. One thing in our favor was the fact that we knew of a hotel where we might get a team, and there we went. Luckily, what we wanted was found, and soon we were off for American soil and safety. It was a situation that required plenty of pluck. The snow was deep, and travelling was no joke to either man or beast. A ride in a temperature such as that night had, and in a gale of wind clouded with flour-dust snow, had nothing to recommend itself to any one; but that was what we had to face or something worse. The poor dumb brutes were much of the time in a perspiration, from the lashing we gave them, but it was either that for them or capture for us, so we were relentless. I verily believe they never fully recovered from the strain of that night. After the drive, the like of which I do not wish to experience again, we arrived at Niagara Falls about three o'clock in the morning. Putting up the team and paying to have it sent back to St. Catharines, we started for the old suspension bridge. That was the only way across the river, the new one not being open for travel, so we had ascertained on our way to St. Catharines.

A careful reconnoitre of the bridge entrance showed us that an alarm had been sent abroad, for a guard of police was waiting in the neighborhood to arrest suspicious characters. Had my original plan succeeded, we would have had none of this,—we would have been in the United States before the robbery was discovered. But that fact cut no figure in the present dilemma. To the American side we must get, and mighty soon, or we would find ourselves in a Canadian trap. The old suspension bridge, beyond doubt, was not a safe passage for us. It occurred to me that it might be worth while to examine the new bridge; perhaps we could pick our way across it. No one had made the attempt save a few workmen accustomed to that sort of climbing, as monkeys are used to gambolling in tree-tops. Verily workers on suspension bridges and the like, it seemed to me, were never quite at home unless they were dangling at the end of a wire many feet above water or *terra firma*.

We approached the entrance cautiously, and, fortunately, were soon convinced that there wasn't a police guard in that neighborhood. Undoubtedly they believed that no sane man would attempt to travel the

new bridge under the most favorable weather conditions, and certainly not on such a night as we confronted it. But escape we must, and somehow I determined we would. With this feeling we began an investigation. The wind was howling, and at intervals filled almost to suffocation with clouds of powdery snow that fairly beat its way through our clothing. It had rained the day before, a freezing temperature following, and every inch of the bridge work was covered with a veneering of ice, much of it as smooth as glass, rendering foothold extremely uncertain. The night, or rather the morning, for it was going on four o'clock, was dark, there being no moon above the storm. What little light there was to pierce the darkness came from the snow. As for the bridge, the wind swept it clean, as well it might, for at times we kept our feet with great difficulty when a powerful gust came upon us unawares.

It seemed that we were to have less trouble than anticipated, for we'd traversed something like three hundred feet toward the centre, with a well-laid flooring for our feet, and were pressing on farther, cheerfully, before we suddenly had these hopes toppled. I, being in the lead, came mighty near stepping through an opening down into the Niagara River. As I contemplate the experience at this late day, a chill runs through me. I had come to the end of the planking, where the workmen had ceased their labors, possibly on account of the storm in the afternoon. Beyond this, as far as I could discern, was a narrow path of planks laid end to end over the iron girders. The first plank was not more than a dozen inches in width. Further on, it was purely a matter of guessing as to what we would encounter. I got on my knees and felt of the plank. It proved to be what I expected—covered with ice. The only way we could get over it, with any degree of safety, would be to crawl on our hands and knees. The next thing in my mind was, whether or not we could, in the face of the gale, hold to the planking. More nerve-racking still was the uncertainty of what lay farther on in the darkness. I wondered if, and hoped that, the workmen on the American end of the bridge had laid more flooring, perhaps a great deal more, than we had found on this side. If that were the case, the skeleton which lay between us and the flooring on the other side might not be such a menace to our safety as it seemed. All this was mere conjecture, I said to Mark, and the only way to know what was before us was to proceed. It were better, I said, to make an attempt with the possibility of getting across than to remain on this side and fall into the hands of the police. While it has required considerable time to

tell all this, it really happened in a very few minutes. Perhaps five minutes after we were face to face with the danger we had determined what to do.

“It’s like juggling with death,” said Shinburn, coolly, when I asked him if we would better make the attempt to cross on the planking.

“Yes,” I admitted, “it’s a lottery—one chance in many if we get over in safety; but in that bag you have there is a quarter of a million dollars, for which we came to Canada. If we remain on this side of the river much longer, we’re bound to get mixed up with the law, and the cash will go whence it came, perhaps, and we’ll have plenty of time to think it all over in the queen’s prison. Ahead we may meet death, but that I don’t believe, for I haven’t got that feeling—that premonition that sometimes tells a fellow what evil is coming to him. We’ve got to crawl on the planks, that’s the only way I can see to safety. If you can stand it, why, I can.”

I had in mind an experience in the Alps several years before, while touring Europe, and it occurred to me that it might be of some use to follow some of the tactics adopted by my Alpine guide. He carried a long rope, and when my party came to a particularly perilous pathway, alongside a gorge thousands of feet deep, he tied the rope to each of us, so that we appeared like so many knots in it, one a dozen feet, perhaps, from the other. It was hardly possible that one would fall and drag all down with him. If one of the party lost his footing, the worst that could happen to him would be a bad fright from dangling between the sky and the almost bottomless gorge, it all ending in being dragged to safety again.

“I believe that we can find some rope, and in some such way help ourselves out of this predicament,” I said, in making a further explanation of my plan. “There must be rope about the stables in the village. Now, what say you to the idea?”

“Anything to get out of this beastly cold,” Mark answered. “To get out of this I’d go to ——”

“Never mind where, Mark,” I laughed, despite the gravity of our situation.

“Well, I’m an iceberg and no mistake, George; and I want to go anywhere to find a place that will thaw things.”

We hustled among several stables in the neighborhood, and soon had two clothes-lines and three pairs of horse reins. Then back to the bridge we went, where in a few minutes we'd rigged up a cable that seemed strong enough to withstand the strain to which we would put it. I said I'd make the first attempt to cross, so tied one end of the cable to a bridge stay and the other around my body close under the arms. The cable was about seventy feet in length, long enough, I reckoned, to let me get to the other side of the skeleton work. If the cable was exhausted before I got over, then I would have to return. That was the alternative. When ready to start, I fastened the treasure satchel to Mark's back, and told him to remain at the cable stay, and do the best he could for me, in case I slipped from the planks and fell through the skeleton work. If he could pull me to the bridge again, why, all right; if not, well—I shivered at the prospect of dangling in the air hundreds of feet above the dark river.

“If I should fall through, Mark,” I said to him, “and you can't get me back, just cut the rope. I guess that will end me. Anyway, it will be better than being suspended in the air and freezing to death.”

“Don't talk like a fool!” he said, in a sort of shivering voice, I thought; “if you think it so serious as that, you shouldn't start.”

“Well, in case anything should happen, Mark, old boy, I'll say good-bye.”

With that I stepped on the plank and, bending to my knees, began my journey over the slippery planking, with the storm raging about me. Far below was the roaring river I could hear but not see. Suddenly it occurred to me that I had not agreed with Mark on a code of signals. I dared not turn round, so cried out to him, that if I got over all right, I would pull the cable three times. In that case he was to fasten the cable about him and return to me a similar indication of his readiness for the journey. Then I would fasten the cable to a stay at my end of the bridge, and notify him by the same signal to come over. I called back another good-by, which he answered. The wind swept through the thousands of strings of the great skeleton bridge, rendering wild, weird music, it seemed to me; and at times, as I struggled along the treacherous planks, I imagined that the wires were of a prodigious harp, designed to give forth melancholy and discouragement, and that ten thousand demons were at the strings in a mad struggle to achieve my

undoing. Again, so mournful was the sweep of the wind, that I could, in my terrible position, fancy my ears laden with the weight of my funeral song. I wished with all my heart that it would cease, that I might better work out my exemption from death, but it persisted in beating on, occasionally threatening to dislodge me by a sudden and more terrifying evidence of its unlimited energy.

I had been creeping along inch by inch, and it seemed to me that I must have been on the way an hour, before I had covered a score of feet, when I paused to catch my breath, which had been almost driven from my body by a fierce shock of wind. And, too, I was compelled to clutch at the planking with all the strength left me, that I might not be hurled below as far as my cable would permit. When the wind relented, I called out to Mark, but no response came, the sound of my voice, in all probability, having been drowned ere it got ten feet away. I resumed the struggle and had traversed a dozen feet more, when a gust struck me and one hand slipped from the plank. Down I went with a crash that nearly cracked my head on the ice, and I must have gone below, had not my right hand come in contact with a girder, fortunately close by, when I met with the mishap. With this aid I was able to balance myself and regain my place on the plank. I was trembling with fright, and I knew that my forehead, notwithstanding the cold, was wet with perspiration. It was fortunate I was near a girder when this piece of ill-luck came. The girders, as near as I could guess, were five feet apart. Had I been midway of two, I dare not think of what would have been my fate. Without these supports, from time to time, I am certain that I would have been unable to keep to the path.

Perhaps I'd crawled fifty feet when I came to the end of a plank, and, feeling further ahead and to the right and to the left, I could put my hand on no support save an iron girder at my right side. It was about eight inches wide, and no doubt extended to the edge of the bridge. To the right I thought I saw another plank, but to reach it I must crawl along the narrow, ice-covered beam. I had barely saved myself from disaster on the planking; how I'd fare on the iron, still narrower, I did not know. Ahead, as I became more accustomed to the darkness, I made out the next girder, but it was too far away. I must creep to the plank at my right or go back to Shinnburn. Try as I might, I could find no other solution. My predicament can easily be understood, if any one doubts this history, by an attempt on hands and

knees, in broad daylight, to crawl fifty feet along a board twelve inches wide, at an elevation of several hundreds of feet, and coming to the end of that narrow path, turn squarely, and, still on the hands and knees, creep along an eight-inch wide ice-covered iron beam. If this journey will not put the nerves to the test, then I'm no judge of human nature and endurance. But the full force of my danger can only be realized, when the course I have outlined has been gone over in such a night as I have described, with its howling winds and blinding snow clouds. A person who can accomplish the task without the trouble I felt must be a practised athlete or a monkey with a ringed tail.

I came mighty near slipping from the girder the moment I put my knee to it. The wind seemed to come with a sort of broadside force. What saved me I don't know. At the end of the girder I found a plank, and the solution of my troubles, in part. This plank was not so heavy as the others and had not been so thoroughly frozen to the iron that a strong gust of wind could not sweep it toward the right side of the bridge, one end more than the other. In this manner had my straight passage along the planking been interrupted. I crawled on the plank, finding it very unsteady, owing to the way it rested on the girders. I crept along, and thus I bore to the left, where, after going sixteen feet, I came to the resumption of the straight and narrow path, which I hoped would lead me to the end of my perilous route; that is, I thought so, but to my disappointment I was confronted with another stretch of ice-covered iron to be struggled over. However, it proved to be only eight feet from plank to plank, and I succeeded in spanning it without a mishap. But my hands and feet were aching with the cold. If I had dared, I would have sat astride the plank and slapped my hands together, but time was so precious and the moments must seem so endless to Mark, that I would not. So, pressing on, I gained ten more feet, and felt encouraged. Then I found myself on a terribly slippery and much narrower piece of planking, which evidently had been used as a filler in the pathway. In my anxiety to get along, I did not discover it until I'd taken an insecure hold. Suddenly my hand slipped off, and, sheering to one side, I toppled over. Catching at the planking with both hands, I found myself hanging under the planking instead of shooting down to the cable's end. Vainly for a minute I tried to fetch my feet up around the plank. Struggling with all my might, it seemed impossible under the conditions, as I was almost stiff from the cold and weakened by the terrible strain upon me. As my feet swung back and forth

in an effort to get a momentum that would assist me, they struck against the girder I'd crossed just before I fell. Here was a simple solution of my nerve-taxing plight. I wondered if another man, Mark Shinburn, for instance, would have been so bewildered as not to think sooner of using the girder as a means of getting back to the planking. I always believed, without wishing to appear egotistical, that I possessed at least the ordinary common sense allotted to man. In this case I seem to have been very short-sighted. Perhaps—ay, I must believe that the awful test to which my mind and body had been subjected, and the fearful roar of the wind and the swirling of the snow, confused me.

I inched my hands along the plank till I got to the girder, and then I pulled myself to the path again. I will not dwell upon the great effort I had to put forth, nor go into detail as to my exhausted state when at last I was comparatively safe again. When I had crawled twelve feet more on the planking, I came to the solid bridge flooring, and with a glad feeling scrambled from my knees. Had I dared, I would have prayed. Pounding the palms of my hands together for a minute, a warm sensation of a freer circulation gave me renewed life, and then I signalled back to Mark that he might know I was safe, and that he'd better get ready to follow me. Unloosing the cable, I soon had the arrangements for his safety completed, had received his sign of readiness, and had notified him to proceed. I knew pretty well that he would have to surmount about every difficulty I had, and perhaps more, and I hoped he would succeed as well. One thing I was certain of, and that was, he would be handicapped more than I. I could have brought the treasure bag with me, but why should I? I might lose my life and he might be saved. If I took the bag with me and my life were lost, he would be deprived of his share of the money, for it would have gone down with me into the river finally. Now that I had accomplished the perilous task, it was more than probable that he would fare no worse.

I kept my hands on the cable constantly, that I might be ready for any emergency. Now and then I detected a trembling that told me of his coming. After perhaps three minutes had passed, I began drawing in the cable, and from the slack I coiled on the flooring it was easy to tell that Shinburn was making progress. I wondered whether he'd be as successful as I, upon arriving at the break in his narrow way. Suddenly the cable became taut, and my heart went a-thumping until I felt a choking sensation. Almost

immediately the tension was relaxed, and I knew Mark was still safe, though no doubt he had met with something unpleasant. I drew in more slack, presently, but with the utmost caution, fearful that I might, in some manner, impede his progress. I believed I could tell by the cable when he crawled over the icy iron sill, as I had done, and then obliquely, back to the straight way again. I measured the cable as a woman measures cloth, from elbow to nose, and found, as near as I could tell in that manner, that about two-thirds of the entire length was at my feet. That my comrade was getting near to the end of his tortuous journey there was no doubt. True enough, for, with the wind bearing the sounds my way, I could hear the crackling of ice on the planks.

“Mark, Mark, lad!” cried I, and waited intently for a response. It came in a sort of gasp, as though the speaker were almost exhausted,—““Right, George, ‘right!”

That the poor fellow was about done for I felt certain.

“Courage, Mark; it’s almost over, lad,” I shouted, hoping that my words would reach him, despite the wrong direction of the wind. The many anxious moments were torture to me, but they were soon to end. Five minutes later I saw him emerge from the darkness and the storm, and, forgetful of my own danger, I reached far out, and, catching hold of him, was his guide to safety. He could not have lasted many minutes more. He trembled as though stricken with ague. I beat his body with my hands and dragged him about until he must have thought I was inhuman, but I felt that I must make his blood flow faster. Presently he grew stronger and was able to speak in a whisper:—

“Jail for mine, George, if the other chance is the sort of wire-walking I’ve just done.”

“To the winds with what we’ve passed through, Mark,” I cried joyously; “for what’s it all to us now that we’re safe? Come, lad, it will be of the easiest sort to get over the remainder of the bridge now;” and, unstrapping the treasure satchel, I relieved him of this burden, and pushing my arm through his, supported him toward the American side. Soon we came to the gate, on the other side of which was a watchman’s shanty. Climbing the gate, I bade him wait while I investigated the premises to see whether any one was inside. The watchman was there, but fast asleep, and

snoring so that I could hear him above the rushing of the wind. There was no danger from him—that was certain.

While Mark lingered near the bridge with the treasure, I went after a livery team, with which to drive to the home of a Mr. Webster, according to the story I would tell the driver. Our dear Mr. Webster would live somewhere in the country, perhaps ten miles from Niagara Falls. I found the team without difficulty, and, driving after Mark, we were soon on our journey. As I have intimated, we told the driver that it was too rough weather for us to make the long trip to our friend's place; and as it was best to make as direct a course as possible, in order to facilitate the business that had taken us to that part of the country, he'd better put about in the direction of Tonawanda. Afterward I learned that this ruse saved us from arrest, and we were glad of the forethought.

On the suburbs of Tonawanda I discharged the team, and we walked to the Buffalo side of the village, where we engaged another team. As before, we started for some fictitious friend's house in the country, but after getting a mile or so out of the village, headed for Buffalo. Arriving there, we discharged that team and went to the house of a friend, where we fairly revelled in a hot breakfast; which by the way we very much needed.

About eleven o'clock in the morning we induced our host to make a little investigation of the police situation for us. He returned after an hour with the none too encouraging news that two men who were believed to be the St. Catharines looters had been traced to Buffalo. Much against my judgment, about two o'clock in the afternoon, with a small bag of cash, the other having been left, with most of the loot, with our friend, Shinburn and I set out for the Erie Railway depot to get a New York train. We had been on the street only a few minutes when I began to reason with him, and to point out the danger of exposing ourselves in so public a place as the Buffalo depot.

"Mark," I said, "when the superintendent of a railway issues orders as to the running time of trains, he never fails to say to his employees, 'When you're in doubt as to the right of way, be sure to take the course you know is safe.' Now, it's dollars to doughnuts that the depot is being well watched. I suggest that we about face and drive to another town, much smaller than this, and get a train there."

Well, we did so, and shortly after dark were in Angola. Putting our team in the stable, we went to the hotel, which was near the depot, put our cash bag carelessly under the counter, and went in to supper. On coming out a few minutes later, I saw that our baggage had been disturbed, as though some one had been examining it. Not far away stood two men in a deep conversation. They frequently, though slyly, cast their eyes in our direction. We calmly smoked our cigars and waited developments. In the meantime I felt for my pistol, to have it handy, not knowing what sort of a fight there might be any minute. Of a truth, we weren't going to surrender at the first cry of wolf. One of the men presently walked up to me and said, in a most affable manner, "That's a fine team you have in the stable."

"Yes," I answered, in a hard, cold tone, and as repelling as I could make it. My iceberg reply seemed to shut off any further conversation from that quarter, my inquisitor retiring in much confusion and no doubt mystified. He certainly had met with little success on his first fishing excursion.

I had arranged for a friend to come over by rail from Buffalo that night to take the team back, and a few minutes before the train was due I stepped to the clerk's desk and told him of it. In doing so I saw one of the men whom I believed to be detectives walk toward me. His partner, a moment before, had left the room. Shinburn was sitting a few feet away, keeping an eye on the treasure bag. The detective hadn't reached the desk when I'd told the clerk what I wanted to. However, it was a ripe moment in which I might add confusion to the trail, so, waiting until he got close enough to me, I said, at the same time handing the clerk the business card of a well-known Chicago house, "Give us commercial rates, if you please." Getting the bill, I paid it and turned away. The detective's partner came in the room just then, and, drawing him aside, took a telegram from his pocket. Both examined it critically. I would have given a good-sized greenback to know what they were reading. I hadn't a bit of doubt that Mark and I were the interesting subjects of it.

Presently it was time for the train, and with Mark carrying the bag we went to the depot, the detectives following close on our heels. They began to worry me not a little. When I bought two tickets for Cleveland, the sleuth who had shadowed me to the desk was again at my side and heard what I called for and saw what was given me. If I had any doubt as to the identity of the men, it was all removed by this time. A moment later the detectives

had wired to some point,—Chicago, I believed, and possibly Cleveland. Probably the former had been asked to wire as to whether the big business house I had mentioned employed drummers answering our descriptions, and police of the latter had, undoubtedly, been asked to watch for our arrival there. Beyond a doubt the country was well aroused over the St. Catharines burglary.

Now, for a fact, the game was getting to be exceedingly fast, and really I didn't know what to do, and Shinburn had left it all to me. It seemed that the best thing was to put on a bold front and trust to Fate. I hoped I had made no blunder.

True to his agreement, our Buffalo friend came in on the train, but we paid no attention to him, keeping our eyes better engaged in watching the doings of the detectives. They selected a seat in the car where we were, but at the opposite end. It was evident that they had determined to become better acquainted with us. On the train I was in a calmer mood and better able to think, with the result that I'd settled upon a plan to prevent the enemy ever setting eyes on us again after the arrival in Cleveland. Alighting from the car with all the dignity at our command, we walked up to a hackman, and waited until it was certain that the detectives were near enough to hear what would be said.

"Here, driver, put us at the Metropolitan Hotel, as soon as you can get there," I commanded loudly, and followed this up by springing in the hack, Shinburn following. In an instant we were gone from the view of the sleuths, who of course made haste to follow us in another carriage. Thank the stars, we were too quick for them. Safe from immediate danger, we bought another bag, and, transferring the cash to it, left nothing in the old one except a few pieces of soiled linen. Then Shinburn was driven to the house of a friend in Euclid Avenue, where I left him with the treasure. We agreed to meet in about half an hour near the Cleveland, Pittsburg, and Rochester Railway depot. I went to the Metropolitan Hotel with the old bag, expecting I'd have to dodge the detectives. It seemed to me that I must go there in order to throw the hack driver off our game. However, it turned out as I hoped. The detectives had been there, but, failing to find us, at once realized we had played a game on them. Off they had gone to search other hotels. I engaged a room, and after taking my bag there and waiting a few

minutes, I came down and told the clerk that I'd be back directly if any one called for me. It was about six A.M.

"I'm going to a drug store not far away," I said; "so be sure and tell my friend, if he calls, that I'll return soon."

In a few minutes I was with Mark, and we were walking the C. P. and R. railroad ties until the second station was reached, where we awaited a train for Pittsburg. From there we had an uninterrupted journey to New York City.

Of course my Police Headquarters friends soon got wind of our presence in town, and the usual "squaring" had to be made. I ascertained through them that the brace of sleuths who worried us at Angola and Cleveland were from Chicago, and that we would have been arrested had it not been for my commercial traveller dodge at the hotel. As I thought, they had wired to Chicago and Cleveland. Word came from the former place that no such drummers as described were in the employ of that house. This information was wired to the detectives at Cleveland, but too late to do us any harm. They found the hackman after a while and an interview with him told them a plain story. I understood that they felt about as ruffled as detectives must feel when big game has easily slipped through their fingers. They waited a long time for me to return from the drug store. Precious little but a collar was found in the satchel in my room. I laughed as I heard this story, and remarked that the boys were entitled to it and our discarded linen.

"Mark," I said, a few days later, having recalled the experiences we had had that night on the suspension bridge, "what made the cable get taut suddenly when you were about halfway on your plank-crawl?"

"Oh, not much of anything," he carelessly replied; "I just slipped a bit off the plank, but managed to hold on with my hands."

"Was the plank narrower than the others and rounded up with ice?" I questioned, curious to know if he had encountered the treacherous place I had, with the same result.

"You've described it to a dot," replied Mark; "but it happened that I could reach a girder with my feet, and that, with a little bracing, got me to the top again. I thought I was going to give you a job of hauling in the cable with a bait attached that had blamed little life in it."

“Fancy you dangling at the end of that cable of leather and rope with a few hundreds of thousands strapped to your back,” I said, with a sorry attempt at a joke. Shinburn smiled, but he was thinking of his experience, I doubt not. Subsequently I made a daylight trip to the suspension bridge. How we succeeded in getting over the skeleton section that eventful night has ever been a mystery to me. I marvel that I survived to tell of it.

CHAPTER XIII

CAPTAIN JOHN YOUNG'S GRAB

The "Little Joker" won for Mark Shinburn, me, and our associates the contents of the vault of the New Windsor Bank of Westminster, Carroll County, Maryland, while the Ocean Bank enterprise was hatching. All of the combinations were mastered in five nightly sittings. I had arranged the details, such as purchasing a team for a safe "get-away," and mapping a route for Shinburn, who was to do the work on the vault. While he was at it I went to Buffalo for the treasure of the St. Catharines robbery, made ten days previously. As will be recalled, Shinburn and I, in making our escape, left it with a friend in the Bison City.

Mark picked the lock on the front door of the New Windsor Bank, and our little steel invention soon told the tale of the combination numbers of the vault and inside safes, so that the bank people one morning discovered nearly three hundred thousand dollars gone from their funds, which was about all they had boasted of. Considerable of the loot was in government bonds, as good as gold almost, and better handling for us in a sharp "get-away." I will not occupy too much space in relating how Shinburn, with his aids Eddie Hughes and Gus Fisher, got off without a hitch, the only clew left of them being the team, abandoned on the outskirts of Baltimore.

When seating themselves in the train, Shinburn placed the gripsack, with its two hundred and eighty-one thousand dollar contents, to be exact, in the rack above his seat and gave the valuable bag no more attention. This carelessness came mighty near knocking the profits out of their previous day's work. Eddie Hughes had chosen a seat nearer the front of the car than that occupied by Shinburn, and when the train stopped at Gray's Ferry, which was the changing place for Philadelphia, he, Eddie, saw a young man

pass him with a satchel that looked the counterpart of Shinburn's. Hastily looking round, he saw that the satchel was missing from the rack over Shinburn's head. Making a rush, he caught the young man on the platform. Grasping the satchel, he exclaimed, "What are you doing with my bag?"

The young man released his hold on the bag and with one bound landed on the station platform and set off on a sprint that would do credit even to Barney Wefers. Needless to say that Eddie did not run after him, nor even yell "Stop thief!" But he did take that bag and hold it in his lap for the rest of the trip.

Suffice it to say, that I had been back in New York about twenty-four hours when Shinburn put in an appearance, with his satchel crammed full of cash and securities. We kept the loot in the background for six weeks, when we concluded it was about time to begin negotiating the bonds. Upon making an inventory, I found we had got hold of one hundred and sixty-five thousand dollars' worth of first-class securities and fifty-three thousand dollars in Union Pacific Railway bonds. In attempting to sell the securities, something happened which I, with regret, must relate.

Shinburn and a friend with much Wall Street business experience undertook to make the sale. They finally struck a deal with the reputed lobbyist, in Washington, District of Columbia, and Albany, New York, General Francis P. Spinola. Being told squarely the character of the securities, he insisted it was all right, as long as there was a good "rake-off" in the deal for him. Without much delay Spinola placed the securities in the hands of a certain broker, who was at the time a very familiar figure in Wall Street. The general represented to him that they were the assets of a large estate being closed up by an administrator, and it seemed as though we were about to realize the cash when a halt was called by the broker making a deeper inquiry as to how the securities came into General Spinola's possession. When no proof of a satisfactory character was furnished, he declared the deal off. He was one of the honest men then in Wall Street, which can boast of none too many in these days, and couldn't at the period of which I write. Of course this was a set-back, but General Spinola said he would persevere, and did, with what result we shall see. He was like all lobbyists, who, upon realizing that there is likely to be no money in one end of a deal, are mighty sure to jump to the other. Once let a lobbyist get a scent of money, and his nose is to the trail, never to be lifted. He cannot be

dragged away. Realizing that suspicion had fallen upon him, and that there was the possibility that he might be connected with the sale of “crooked” bonds, Spinola flipfopped and covered his tracks by giving information to Superintendent of Police John A. Kennedy. Hurrying to Police Headquarters, he got an interview with the superintendent.

“Kennedy,” said he, “I’m on the track of securities and bonds stolen from the New Windsor Bank in Maryland.”

“Indeed!” ejaculated the superintendent, and he called in his chief of detectives, John Young.

“General Spinola has something to say to you, captain,” said Kennedy, “and there must be a quick action in the case!”

“Very well, sir,” Captain Young answered, and at once entered into a long conference with Spinola, who told him all he had gained from us in confidence. The result was the baiting of a trap to catch the Maryland looters. They at once opened a fake brokerage office at 71 Broadway, and Spinola made sure that this information reached us in furtherance of their purpose. It proved to be alluring enough, for one day Shinburn and our sales agent walked into the office like flies into a spider’s web. I well recall the day. It was eleven o’clock in the morning, and spot cash had been promised. General Spinola was there and greeted Shinburn warmly, not forgetting to keep a greedy eye on the money bag the latter carried.

“Ah, you have them—the securities?” he questioned, with a laugh. Mark slowly removed his hat and placed it on the counter, but drew the satchel quickly from the reach of Spinola’s eager grasp.

“One moment, general! Not quite yet! You’ll pardon me, but how are we to know you have the money to satisfy us?”

“As though a living man or the spirits of the dead could doubt me!” exclaimed Spinola, drawing his stature up to its height and throwing his chest out and his head back, in emphasis of his “square” dealing.

“You’ll pardon me, my dear general,” spoke Shinburn, in a voice that would be envied by a parson; “but here are the securities, and I’ll feel obliged if you’ll do me the honor,” and he laid the package of securities on the counter, but not an inch away from his fingers.

“There’s no question as to my part of the deal being fulfilled,” said Spinola, as he threw open the door of a safe and disclosed to view what he said was a million dollars in bills.

“Good,” declared Shinburn; “the sooner we close up the sale, the better!”

“And that’s what I think, too,” cried Spinola, as he hurled the door shut with a bang loud enough to be heard in the hallway. And it was heard, for in the main door appeared Detective James Irving. Shinburn gave one glance at Spinola, who stood motionless, and then crammed the securities in the satchel. He knew that a trap had been set; the question was—how to get out of it. He would care for himself and the sales agent must do likewise. Darting toward a window that opened into the hall, he threw up the sash. Another man appeared in the window—Detective George Edsel. He was trapped to a certainty, and, knowing it, surrendered, as the sales agent had already done. The detectives closed in on him, the securities were taken, and in a moment the prisoners were handcuffed and face to face with Chief Young. The latter had come in from the hallway after the arrests were made. With one hundred sixty-five thousand dollars’ worth of securities thus captured, Captain Young drove his prisoners to Police Headquarters, smuggled them in by the basement door on the Mott Street side, and gave strict orders that no information was to be given the reporters.

The New York Detective Bureau at that time was under the command of a captain whose power was as great as his conscience would permit him to use it, in any direction. He was to all intents and purposes a power within himself, and seldom received orders from his superiors; unless it were in exceptional cases, where politics played an important part. In that event everything had to bow to the inevitable.

Now, I do not hesitate in saying that Chief of Detectives John Young was as “crooked as a ram’s horn,” which fact was well known, in and out of the department. He took his “rake-off” greedily, from pickpocket mobs and other small-fry thieves, with the same assurance that an honest man receives his wages from an honest employer. Though this was common information among his official associates, many of whom were as firmly established in the saddle for graft as he, John Young was not of the sort they would trust. He was quite likely to fail them in an important settlement. So

far as the profession was concerned, we had retained some of the headquarters associates of Chief Young, in our effort to obtain something for nothing, and when he couldn't be trusted, they told us it was because he had not been "seen." That the word "seen" may not be misunderstood, I will explain that crooks had to divide with him. However, Johnny had two confidants in Detectives Irving and Edsel, both of whom trusted him, as much as any man dared to, and stood by him pretty well, though the former had more than once rebelled. Another official with whom he associated to a certain degree was Colonel Hiram C. Whiteley, the powerful head of the United States Secret Service. When Young needed bogus money to stuff Spinola's safe in the blind brokerage office, he went to Whiteley, who supplied counterfeit money. It was a pile of this kind of bills that Shinburn was shown by Spinola and which lured the victim, blindly, into the trap. As I think of John Young now, it is with a feeling of wonderment that he would have soiled his hands with spurious money, so eager was he to get his clutches on the real kind. No doubt he withstood the ordeal in the belief that it would lead to the bona-fide currency of Uncle Sam. I recall that Johnny's eyes ever had a covetous glint in them when there was a "rake-off" in sight. Another streak in the color of John Young was his anxiety to keep out of harm's way. When the trap was laid to catch Mark and our sales agent, he was mighty careful not to make a mark of himself, but sent his men in the brokerage office to face any danger there might be, and waited on the outside, behind the door, until he was sure it was safe to enter. I have ever held this act against him. I cannot say that either Irving or Edsel was possessed of a yellow streak.

Locked in a cell in the basement of headquarters, the prisoners felt somewhat disconsolate—not over the fact that they would find a cell up the Hudson River at Sing Sing, for that was not probable. Cash would be forthcoming, from me or some one else, and their freedom would be bought, they felt assured. It was the fact that the bonds were in the hands of Young that worried them. That was tantamount to our never seeing them again. Mark knew also that he would be secreted from his friends, as long as Young could do it, pending negotiations with the New Windsor Bank officials. If Young could make a deal with them, Mark knew that all other considerations would be side-tracked. The promises to the profession and friendships for his associates would count as nothing, weighed against

Johnny's desire to line his pocket with gold. Mark could only hope that some of our friends would hear of his arrest and take the word to me.

In the meantime Chief Young had again cautioned his confidants as to maintaining great secrecy, assuring them that he had a plan maturing which would fetch them in a few dollars.

"No one is to see the prisoners," he commanded; "and, understand, I mean their counsel shall not get to them."

Now, had Chief Young been actuated by an earnest desire to do honest work for the people, or assist the bank officials, instead of fishing for gold to fill his pocket and that of General Spinola, he would have notified, as the next move in the case, the Westminster police of the arrests and of the fact that a large part of the stolen property had been recovered. I say that would have been the natural course for an honest official to pursue, but did he do that? Not John Young—he couldn't see his duty in that light. Instead, he suddenly disappeared from headquarters. No one seemed to know where he had gone. In Mulberry Street it was guessed he'd hurried to the state capitol at Albany, to obtain extradition papers. This, however, was a mere conjecture. Two days later the mystery was cleared to a certain extent. Honest people were astonished, but those on the inside thought it quite the usual thing in John Young.

Upon leaving Police Headquarters, Young had travelled by the fastest trains to Maryland, and at the earliest moment was in Westminster, advising the New Windsor Bank officials that he'd captured, by his prowess, two of their bank's looters, recovered a large part of the securities, and would soon have the railroad bonds. Naturally the bank officials were much relieved at the news; in fact were thrown into an ecstatic state, some of these directors, in their exuberance, being almost on the point of weeping out their tense feelings on the broad breast of the honest John Young. And their joy was not relegated to gloom when he assured them that he would have recovered the cash had not the robbers spent it. The bank, he said, must stand up nobly under this loss, and could afford to under the circumstances. They were fortunate, indeed, that the burglars selected New York City for a refuge, and that the astute chief of detectives was there to exercise his ingenuity. The bank officials wrung his hands and patted him on the shoulders. Such an officer of the law had never been known; his reward should be

commensurate with the service he had rendered. They looked upon him as a veritable prophet, even their Moses, come to lead them, providentially, out of a vast wilderness of banking troubles; which in other words meant that they had been saved from going down deep into their personal pockets to reimburse their customers and stockholders.

Not many hours after Chief John's advent in the New Windsor Bank, the halo began to fade from him. He looked a trifle less like the Moses he had appeared to be, the change being the result of Johnny's broad hint at what he termed a "requisite reward" for his services. The bankers saw that he was no "cheap John" Young, and that his idea of a recompense was vastly in excess of what they had in mind to pay their deliverer from the wilderness of lost securities, railroad bonds, and ready cash. However unexpected this was to the honest Marylanders, it would not have caused any rustling among the consciences of his confidants at home. They knew John's game, for some of them had hopelessly been in it. The board of directors, still regarding him as worthy of a good reward, and buoyed up by his atmospheric promises that he would recover the Union Pacific bonds beyond doubt, voted him twenty thousand dollars. Thus the object of Young's visit to Westminster having been accomplished, he made more glowing promises to serve the Marylanders, hoped that the reward would be forthcoming soon, and hastened back to New York.

"Fetch the prisoners to my office," was his instant command upon arriving at the Mulberry Street office, and forthwith Mark Shinburn and our sales agent were brought upstairs by Irving and Edsel.

There was in vogue in those days what was styled the "third degree," but it didn't mean more than a threat to really enforce the law. Subsequently, I am credibly informed, confessions were obtained from prisoners by the application of physical torture. When that system prevailed at 300 Mulberry Street the police were not so linked by crooked dealing with the criminal classes, therefore it is not my intention to discuss these immaterial things. What Captain Young wanted was the information Shinburn could give him of the Union Pacific bonds, and he was bound to obtain it if bulldozing would accomplish his end. However, he went about it in a cunning manner, and when Shinburn and his companion were arraigned, the atmosphere of the detective office seemed to be pregnant with peace and harmony. In his softest tones, Young intimated to Mark that

it would best serve all concerned if the bonds were quietly turned over to him; that self-preservation was the vital fact to be first considered by all men; that it would be much better for Mark if he produced the bonds, even though it involved faithlessness to a confederate. To all this and more Shinburn maintained a calm demeanor.

“You’ll have to see my counsel, captain,” was his reply, pleasantly but firmly said. Finding his suave manner had no effect, Young shifted his attack, and became what he could be in an emergency,—a miserable oppressor of those under his power.

“Shinburn,” he said coldly, “you owe ten years to the state of New Hampshire for that Walpole Bank robbery, and I can send you there at the tap of this bell,” and he placed one of his forefingers on the silver button. Mark smiled at what was no news to him, though he felt anything but happy under the circumstances.

“Quite true, captain, but what are you going to do about it?” he asked.

“I could better tell if I knew where the Union Pacific bonds were,” Young answered. He was stern and insinuating at the same time. Shinburn hesitated a moment before proceeding, not because he didn’t know what he would eventually say and do, but liberty was a sweet thing, after all, and Young had hinted at releasing him if the bonds were forthcoming.

“See our counsel, cap,” he said. It irritated Young greatly.

“Produce the bonds, Shinburn,” said Young, in a low, angry tone he tried hard to command, “and I’ll let you men leave here to go where you will. I think you know that stranger things than this have happened.”

“Have a talk with our counsel,” was Shinburn’s stereotyped reply, and, repeated, it seemed to fire the captain to a pitch of rashness.

“I tell you,” he cried, “if you’ll put that fifty-three thousand dollar batch of Union Pacifics in my hands before the Maryland police reach here, I promise you and your whole gang freedom.” Young waited for Shinburn’s answer. If his proposition was declined, the captain saw his twenty thousand dollar reward dwindling.

“No use talking about it,” said Shinburn; “you’ll have to see our attorneys.”

Captain Johnny was white with anger and disappointment. He roared out an order that the prisoners be taken down to their cells, and they were, and none too gently.

CHAPTER XIV

PLOTTING AGAINST YOUNG

When Captain Young left Police Headquarters for Maryland, it was whispered that he'd gone to Albany. This rumor was confused with another, to the effect that he'd been called South. The conflicting stories served to make anxious my good friends in the Detective Bureau, who were bound to give me the best possible information. Detective Phil. Farley was among the first to hear of the arrest of Shinburn and our agent, and he hurried to me with the facts, including the different stories of Young's sudden disappearance from headquarters. I was at my Brevoort Stables at 114 Clinton Place, now on the city map as West Eighth Street, when Farley came. To say that I was excited over the news would be only half the truth. I knew what sort of a man Captain John Young was, and that he'd ride roughshod over police associate or crook, in furthering his selfish pursuit after gain. In my mind there was no question that he had gone to Albany after requisition papers and would attempt to play a game of great account to himself. In accordance with this I sent a messenger to look up ex-Judge Stuart, one of my retained counsel. Word came back that he was out of town and would not return until late in the evening. This was disheartening, but as the judge was a shrewd student of the law and had a good understanding of the rights of the prisoners in our case, there wasn't anything else to do but await his arrival.

It was late in the night when he put in an appearance, but his coming was the signal for a grand hustling. The judge, upon being acquainted with the facts as they came to me, said that Young was undoubtedly in a great hurry to get the prisoners out of town and into the hands of the Maryland officers, and that, if he succeeded, we would have a hard time in fighting the game.

“So,” said the judge, “we must get a writ to stay him, and to do that we must tumble some obliging judge out of bed, no matter what the hour may be.” I suggested Judge McCunn, my next-door neighbor, ever an accommodating legal gentleman when a writ was desired on short notice.

“Just the man,” agreed ex-Judge Stuart, “and we’d better get to him without delay.” I thought so, too.

Judge McCunn was soon found, comfortably reposing in his bed, but was turned out and enlightened as to what we wanted. With much good-natured talk about the audacity of some people hammering at a decent, law-abiding man’s house long after midnight, he issued a writ of habeas corpus as strong as the law would allow, and we were soon ready for the next move. In the meantime a letter to Governor Hoffman at Albany had been given us by Thurlow Weed, another most accommodating gentleman to those in distress. This letter was in the form of a command, so to speak, that the governor hear our side of the case, in the event that the New York police should ask for requisition papers for Shinburn and our sales agent. Now that we had the material with which to go to the capital, the next thing was how to get there, for it was learned that the first train in the morning left too late for us.

“What can be done?” I asked of the judge.

“One thing—get a special train,” was his answer. And a special train we chartered. Not long after two o’clock in the morning, T. P. Somerville, a law partner of the judge, was aboard the special, and, in extraordinarily quick time for those days, was knocking at Governor Hoffman’s door. He, much to his relief, was informed that no requisition papers had been applied for, and that, as a matter of fact, no one from the New York police force had been at the executive mansion or communicated with the governor in any way. However, Thurlow Weed’s letter was what we wanted to fix things with the governor, who effusively promised that requisition papers would not be issued unless ex-Judge Stuart was afforded an opportunity to present our side of the case. And we had a right to be heard, legally, for Mr. Somerville had proof to show the executive that one of the prisoners was in New York when the New Windsor Bank was robbed. So far we had been successful.

There was another trick that Captain John Young was capable of playing, and against which we must play winning cards. Prisoners had been known to be shanghaied out of the state,—practically kidnapped from the protection of the law,—by him. The formalities of requisition proceedings had been disregarded as so much useless red tape made to adorn law books. Young wasn't the offender in the instance I will cite. It was Captain John Jourdan.

Eddie McGuire, *alias* Fairy, Rory Simms, and Dave Bartlett “turned off” the Bowdoinham Bank, of Maine, in June, 1866, and got something like eighty thousand dollars in cash and United States five-twenty bonds. Bartlett hired the team used in the “get-away.” They buried the loot in a wood, and in the wagon drove forty miles to Portland, where, scattering, the looters went by rail to New York.

Prior to this the gang had robbed Cooper's silverware manufacturing establishment in Waverly Place in New York City, and sold the silver to a “fence” kept by one Morrison. For some reason, the latter tipped off Captain Jourdan, who arrested McGuire and the others at the corner of Hudson and King streets. Fairy pleaded poverty to the captain, and having turned over to him what silver they had taken, all hands were released. But there was a string on them. Jourdan forced a promise that there would be a division made the very first “trick” the gang “turned off.” Later they did the Maine “trick.” Having given the job a chance to cool down, Fairy McGuire went to Maine and dug up the treasure, and he and Bartlett asked me to sell the bonds. I bought them outright, and, as was my custom, paid the police the usual percentage, which amounted to forty-two hundred dollars. At the same time I told them that there was more “rake-off” due them, declining, however, to mention any names.

“When they get ready, no doubt you'll hear from them,” I said reassuringly. Perhaps a week or more had gone by, during which time I presumed the lads had paid the police the remainder of the “rake-off,” but it turned out not to be so. Detective Radford came to me with a tip.

“Fairy McGuire and his pals will be pinched to-morrow by Captain Jourdan,” said he, “and you'd better tell them so. The old man was promised a ‘rake-off’ on the next job after the silver racket, and nothing has been doing. You see he knows who did the Bowdoinham ‘trick,’ for a

sheriff was down here with the description of the man that hired the team for the 'get-away,' and it fits Dave Bartlett. Jourdan wouldn't have known it, only in riding in a Fifth Avenue stage the other day he saw McGuire, Simms, and Bartlett in the same stage. They were loaded down with diamonds and heavy gold watch-chains. Worse than all, they never looked at the old man. He got thinking of what had been done in the crooked line to buy all this stuff, and the Bowdoinham job flashes across him. Then came the description of Bartlett from the Maine sheriff. That settled it. So the gang will be pinched to-morrow evening."

I recollected what McGuire had told me about the meeting with Captain Jourdan in the stage, and at the time I had protested loudly against the boys' wearing the diamonds and watches.

"It's only asking for trouble," I said, "and what's the use?"

"Oh, to hell with the cops," was the separate reply from the trio. I said no more, but hoped they would be wise. I might have left them to a big surprise, but after Radford had gone I hastened to McGuire's place in Bleecker Street and told him what I had heard, adding that they would better get out of town on the instant. They laughed at my warning. The following evening at eight o'clock Captain Jourdan arrested them, and the next morning soon after daylight he personally took them to the outskirts of the city and, boarding a train, lodged them in a Maine jail. Thus were "Fairy" McGuire, Rory Simms, and Dave Bartlett shanghaied out of New York State by Captain Jourdan, in utter defiance of the requisition laws.

Knowing what the police had done, I determined that Captain Young would not have the opportunity to thus take Mark Shinburn and our sales agent to Maryland, and ex-Judge Stuart said he would assist me. He procured a writ that would forestall any illegal procedure of the sort that might be attempted, and had it served on the Police Commissioners at headquarters. Meanwhile we kept a diligent watch on the gamblers in Mulberry Street. About the time Mr. Somerville got back from Albany with good news from that quarter, Captain Young turned up and with him the news of where he had been. Close on the heels of these developments, the officials of the New Windsor Bank and their attorneys, accompanied by Detective Pierson, of Smith, Pierson, and West's Agency, of Baltimore, arrived in town. Pierson was a very clever sleuth and a trusted friend of our

advisers at Police Headquarters. He promptly received a tip from our friends, and therewith ignored Captain Young. In an exceedingly short time he was in an earnest conversation with the attorneys of the bank officials, advising them as to the most efficacious means of recovering the Union Pacific bonds. Pierson had no difficulty in demonstrating the fiction of John Young's wonderful tale of his capture of the bank looters, and immediately there was some figuring with a view of scaling down his promised reward. Also it was presently shown to them how the bonds could be returned without the fabricator's assistance. They were thoroughly disgusted with the mode of procedure, and admitted that they had been well duped by Young's representations.

The result of Pierson's mediation was an interview between the bank's attorneys and ex-Judge Stuart. Two days later we decided to return the fifty-three thousand dollars' worth of Union Pacifics in return for the recipients' promise not to prosecute Shinburn and our sales agent. Captain Young had his reward scaled down to seventeen thousand five hundred dollars, but felt that he must turn the prisoners over to the Maryland authorities. He had his reward in hand, and if General Spinola received any part of it, the information never reached me. Knowing John Young as I did, I believe the general whistled long and loud ere he got a finger on the "rake-off."

These matters being "squared" and the Marylanders ready to start for home, Captain Young turned the prisoners over to Detective Pierson, it being lawful in this instance to do so, provided both parties were agreed. Meanwhile I was apprised of the leaving time of the Pennsylvania Railroad train that was to take the party to Maryland, and accordingly the ferry-boat that left the New York slip for the five o'clock P.M. train, bearing the party, also had me aboard with a closed carriage and ready for a part I would play. At the landing of the boat I drove my team to a convenient place close to the ferry-house and waited. Detective Pierson, with the prisoners handcuffed, and accompanied by the bankers and lawyers, went to the train in waiting and boarded it. The time was then ripe for action.

"I'm going to call a halt here, gentlemen," said Shinburn, "and there's mighty little time to waste before this train goes."

Detective Pierson tried to look solemn, as did the bankers and their attorneys, and then asked the reason for the protest.

“Simply this—we’re not going with you,” declared Mark.

“Oh, yes, you will; there’s no use crying about it. Sit down!” commanded Pierson. This made a fine by-play for the passengers.

“I’ll make an outcry,” exclaimed Shinburn, “unless you can show me your authority.”

Detective Pierson exhibited his shield. Shinburn laughed derisively. “Where’s your warrant? That’s what I want to see.”

Pierson fished a warrant out of his pocket and held it to Shinburn’s nose. He thrust it away contemptuously.

“The devil!” he cried; “that’s nothing but a Maryland warrant, and it doesn’t go in the state of New Jersey. Come, the game is up; take off these irons, quick!”

“It’s a fact, gentlemen,” said Pierson, turning to the bankers and attorneys, “that we haven’t anything more than the Maryland warrant. These men refuse to go with us without requisition papers from the state of New Jersey. In fact, the prisoners as such in New York are here no longer prisoners.”

“Call an officer of the Jersey City force,” put in one of the bank’s attorneys.

“Good day, gentlemen,” said Shinburn, walking swiftly from the car, followed by the sales agent; “you’ve made a mistake this time.”

No one offered to follow them and of course no one wanted to. Outside I was waiting with the carriage. In hopped the pair, and at a gallop we were driven on the ferry-boat. It was the one that brought us over. Upon it we landed again on the New York shore. In the meantime I unlocked the irons from the wrists of my companions with a key I had provided. Within an hour from the time the lads got out of John Young’s hands, they were back in New York streets, free to go where they pleased. To them the New Windsor Bank robbery was to pass into the realm of “has been.” But the outcome of the projected trip of Shinburn and the sales agent, with the superficial booking for their confinement in a Maryland prison, was to create a laugh. They were free, and the bankers had gone home with the one hundred and sixty-five thousand dollars’ worth of securities that Captain

Young had turned over to them in return for his reward, besides the Union Pacific bonds. With the possibility of getting nothing out of the two hundred and eighty-one thousand dollar loot, and returning to Westminster with two hundred and eighteen thousand dollars, the bankers could well count themselves lucky. We had to be satisfied with sixty-three thousand dollars, less the “rake-off” that must be paid to our Police Headquarters friends.

It was a week after the matter had been settled that we decided to “square” with Mulberry Street, and I advised that Mark had better make arrangements to meet either Detective McCord or Detective Radford. Mark hadn’t done this sort of work, leaving it for me to do.

“Try your hand, Mark,” I said, and he did. It was, however, the first and last time while we worked together. Mark made an appointment to meet Radford at Chris Connor’s place in Fourteenth Street, near Broadway, at eight o’clock in the evening, and went there in a cab. He turned over to Radford sixty-three hundred dollars, the ten per cent we agreed to give the police. It was in bills, wrapped in brown paper. Radford put it in his pocket. There was wine bought to celebrate the settlement, with the result that, nine o’clock coming, Radford had added not a little to a comfortable “jag” he had acquired before the meeting. Mark found the detective troublesome and once or twice the latter was on the point of a quarrel. And, too, he accused Mark of putting up a job to get him off the force. Of course this was a fancy of his drink-crazed brain, and, more to protect him than anything else, Mark suggested that they drive to the Metropolitan Hotel to see Jack McCord. This seemed to suit Radford. They got in the cab and were soon whirling down Broadway. At Ninth Street, Radford turned to Mark and, saying something incoherent, tore the package of money from his pocket and threw it out of the window. The cab was stopped and Mark ran back more than a block in search of the money. He heard Radford shout back in a thick way, “You can’t put up a job on me.” Fortunately Mark’s activity resulted in recovering the money, though a moment later he would have been too late. A telegraph messenger boy running across Broadway had struck the package with his foot and was about to run off with the prize when Mark snatched it. Hurrying back, no one was there but cabby, Radford having disappeared through Ninth Street. Mark drove to his rooms in West Twenty-sixth Street, where he dismissed the cab. The next day Jack McCord sent

for me and with great concern said, "Do you think Mark would put up a job on me and Radford?"

"What!" I cried, "do you think we're crazy? Why?"

"Radford came to me last night, declaring Mark had given him money, but he didn't know what became of it."

"I haven't seen Mark," said I, "but I'll guarantee he's all right."

"So I've believed," said McCord, "but it's queer somehow. Perhaps," he added, "it's the result of one of Radford's drunks. He's gone, and I'll wait until he turns up. In the meantime will you see Shinburn?"

I promised I would, and, accordingly, a few minutes later, Mark had heard from me Jack McCord's story. At that he hauled the money from his pocket and tossed it at me. I looked the surprise I felt.

"I thought you'd settled with Radford?" I said.

"So I did, but the fool threw the dust out of the cab window, and while I went back after it, he vanished." Then Mark told me, in detail, all that happened. It was all made very clear to me. I left him saying I would make an appointment for him with McCord at the Washington Parade Ground at the lower end of Fifth Avenue, that evening. Mark was there and paid McCord the money, who in no gentle language scored Radford for his drunken escapade.

"You can give me the credit of saving the dust for the duffer," said Mark to me subsequently, "for I had to run back nearly two blocks, and then got it by only a hair."

But I must return to Captain Young. He had pocketed the seventeen thousand five hundred dollars, the outcome of his secret trip to Westminster, and was in a way congratulating himself. Had he not given his two prisoners, so cleverly captured, over to the Maryland authorities? Had he not done a great piece of detective work? None better, the public would think, upon hearing of it, done up with the right sort of glamour. There was one way to put that touch on, so he called in the Police Headquarters reporters, who had offices across Mulberry Street. To them he related the story of his astuteness in getting a "line" on the looters, adding everything that he could conjure up to make a glowing yarn, in which he was the

central figure. The newspapers told at great length of the desperate encounter he and his sleuths had had with the prisoners, who had to be taken at the pistol point.

“I turned the prisoners over to the Baltimore authorities,” the newspapers quoted him as saying, “heavily ironed, and they started south with a clear case against them. They couldn’t escape from long terms in prison, with the evidence against them.”

It was not until several months later that the dear public awoke to the cold fact that Chief of Detectives Young’s great capture and brace of prisoners, which started for Maryland, only reached the Pennsylvania Railroad depot in Jersey City.

If Young had hugged the belief that he should get away with the reward, without making a division with Detectives Jim Irving and George Edsel, he soon came to a truer realization of the situation. Now, they had made the arrests, for, as I have truly told, Captain Young boldly stood in the hallway outside of Spinola’s fake brokerage office, safe from harm, while his tools did the work. Naturally they wanted a fair part of the reward, though Captain John entertained very different views on the subject. When Irving and Edsel made their demands, he firmly defined his position. After many long and heated arguments over the spoils, not unlike those occurring among crooks, Young consented to a generous division of his reward. How would the boys like five hundred each? That certainly was munificent on his part. There was more argument, in which the language used was not of the choicest, and finally George Edsel, realizing, like Bobby Bright, that it was now or never, accepted five hundred and held his peace. Not so with Jim Irving—made of sterner stuff. Besides, he was financially hungry. Not a cent would he take, and away he went, vowing he would get even with so fine a specimen of the swine as John Young.

The police at headquarters whom we regarded as our friends were known to us as the Bank Ring. This coterie of unfaithful policemen in the Detective Bureau had long hated Young because of his uncertainty in handling spoils, because he could not be depended upon to make a “divvy.” If the opportunity came along in which he could put all in his pocket, he never failed to do it. The Ring had long wanted to get rid of him. When Irving told me, with much anger, how he had been treated, steps were

immediately taken to cut off Young's police career. And when the change was made, we determined to get a "right" commander at the head of the Detective Bureau. Accordingly political and other kinds of wires soon began to hum. And Irving was instructed what his part was to be.

"Hold out for an even third of the Maryland reward," I told him, "and don't, for anything that is offered you, come down from that position."

Irving couldn't see the wisdom of this advice, but was told to go it blind and wait for the outcome. And he did. It was not for long either; within forty-eight hours Captain Young was commanded by the Police Commissioners to divide the reward equally between his associates and himself. At last the grasping one found himself confronting a strong game, —a game that was more difficult to play at successfully than had been the one he had tackled in Maryland. It was put up to him firmly by the Police Commissioners, that he must divide the seventeen thousand five hundred dollars, or hand in his shield and resign from the force.

What he did do was just like John Young—he refused to part with a cent. It was more than he would get in a year's "rake-off" from his different mob of grafters, so he clung to the whole reward, relinquished his shield, packed his grip, and turned his back forever on 300 Mulberry Street, in the year 1869, and became plain John Young.

CHAPTER XV

MY PATENT SAFETY SWITCH AND JIM IRVING

I would not have the impression go abroad that I believed the New York Police Department, as a whole, or even its detective force, at the period of which I have written, were in league with professional criminals. Quite the reverse. Though the force had a great many patrolmen, plenty of commanding officers, and the Detective Bureau had its Bank Ring, which had for its backing high ranking officers in the department and tremendous political influences on the outside, all of whom conspired with the great and small fry thieves, nevertheless I aver that there were many, many patrolmen, commanding officers, and detectives, who ever put their honor away above dishonesty, often to their official undoing. I might mention a number of instances in which the honest policeman discovered the path of rectitude a mighty tortuous one to travel, while on the contrary the dishonest one seemed to be travelling a broad road to wealth and flowery ease. In the former case, the copper would have to patrol in the outlying districts in midwinter, with a diligent roundsman constantly on hand to see that the task was not shirked, as a penance for being honest, while the grafting copper would be detailed to some easy berth, where his time would be spent in the waiting room of a hotel or in the banking district, in which opportunities for stock speculation or connivance with thieves were thicker than London fog. One class of duty was designated "Goatville," the other "Snap."

It is my purpose to devote a few pages of this chronicle to the exploitation of what I am pleased to term department politics. At the period in question—when William M. Tweed bossed New York—this sort of politics was rampant in every branch of the city government, and in none

was it so conspicuous as in the Police Department. From time to time it has been told how the craft of the Under World used the police to advantage in the mad rush of getting something for nothing. Whatever I have said, or whatever I shall say, may be taken as truth. Coming as it does to me after many years of divers experiences, I may depart from some of the minute truths because of a lapse of memory, but I assure my friends that the main facts are too plainly and too indelibly impressed upon me to be forgotten while I breathe. In the corrupt bargaining between the police and the crooks, whatever assistance my associates and I obtained was well paid for. If the craft did not “settle” with those who permitted them to rob and go free, it may as well be flatly stated that one of two courses was pursued. There was the choice: the penitentiary or Sing Sing prison without “squaring things,” or “settle” and walk about New York with the freedom of the honest, law-abiding citizen. But freedom was well paid for—many palms had to be “greased.”

When I came to New York, the partnership of the police with professional criminals was of the go as you please sort. The fat, thin, great, small, long, and short hand of the copper was held out from all sides,—in Mulberry Street, in the police court, on post. Everywhere protection was being paid for indiscriminately. If one copper got more from one crook than from another, it was quite likely to create jealousy, and be certain that the crook got the worst end of the argument. In this way police protection, always dearly bought, was ineffective. As a matter of fact, this state of affairs became exceedingly distasteful to the members of the Under World, and strong pulls, after several years of hardship, were sought to bring about a change. Great politicians were appealed to, and by the right kind of persuasion were forced to take a favorable view of the argument of the craft.

The long waited for change was brought about by the greed of Captain John Young, chief of the Detective Bureau, of whose double dealing I have written in another part of this history. Mark Shindburn and I had looted the New Windsor Bank in Maryland, and when the covetous coppers all about Young didn't get their “rake-off” there was trouble. The police grafters falling out, thieves began to get their dues—in other words, the protection for which they paid. With Captain Young out of the Detective Bureau and out of the force, the time had come for the Under World to strike. The iron

made hot to whiteness must be beaten into shape, into a switch, into a patent safety switch—something that would guide us from the crooked road of uncertainty to the broad thoroughfare of perfect exemption from lawful punishment for all kinds of crime. So I began looking about for the safety switch. It was suggested that James Irving, the detective who declined to accept Captain Young's paltry offer of five hundred as his share in the New Windsor Bank reward, would make a first-class man to succeed to the chieftancy of the Detective Bureau, so I put out a few feelers. My experience with Irving had been most satisfactory, and so far as I was able to gather, he'd dealt squarely with all of the high-class members of my craft. Besides being fearless, he was a handsome chap, with a splendid front to show on Broadway or in Wall Street, and in a question of suspicious dealing with crooks wouldn't be easily suspected of the offence. It occurred to me that the Detective Bureau plum would be just the thing for Jim, and at the earliest chance I met him at the Parker House in Broadway at Thirty-third Street. I told him he would make a fine figure on the Broadway corners of the Tenderloin, that he could associate with gamblers without it being suspected that he was doing other than obtaining information about them for official purposes, and that he could make Wall Street his frequent resort, where he could deal in bucket shops, which he ought to prosecute; and in fact, he could be a whole lot as the head of the Bureau.

Irving was anxious to get the place, but didn't see how it could be done, as there were many others with far better chances. I told him to be patient and lie low.

The question that was uppermost in police circles after John Young's hasty exit was, who would be his successor. Many loud-mouthed politicians, hungry for preferment and crammed full of arguments for their respective candidates, besieged Police Headquarters and made the life of the several Police Commissioners a veritable hive of misery. The latter, who were ruled by politicians most of the time,—the ward-heeler species,—usually disciplined, transferred, assigned, and promoted members of the force, at the behest of these threatening, browbeating fellows. Several days passed and the commissioners hadn't selected a head for the Bureau, and, so far as the importuning ones could fathom, were not anywhere near doing so. But that was no secret to me. I had gone to Boss Tweed, and told him what I wanted, and that affairs had gotten to a state where a scandal would be

raised if there wasn't an attempt to concentrate the graft from crooks in a coterie of policemen, from which protection could be gotten without a string to it. I told him that some of the Under World were being goaded to desperation by the insistent demand of the police for protection money, and who, after getting it, play the traitor.

"Mr. Tweed," I said firmly, "some of these fellows will squeal to one of the societies at Sam Tilden's heels, and there is likely to be a storm about your ears that'll not be relished. It may mean worse than that."

"Well, Miles," said he, "what can I do? You know I don't interfere with the affairs of the Police Commissioners unless it's vitally necessary."

"It seems to me that you ought to for once, Mr. Tweed," I said. "Put Detective Jim Irving at the head of the Detective Bureau, and you'll switch the whole business to safety. If not, I can't say what will happen."

"That means making him a captain?" said Tweed.

"That's it," I answered; "and he'll fill the bill in every way."

"Well, good day, Miles," said the Boss; "I'll see what can be done."

I knew what that meant.

With the captaincy hanging in the tree ready to be plucked, I went to my friends at Police Headquarters and told them practically what I'd said to Tweed, and they agreed with me. Having gotten both ends of the game working, I rested for the outcome, and it wasn't long before I had the pleasure of congratulating Captain James Irving. And in this manner was formed the first real Bank Ring and satisfactory combine between members of the police force at headquarters and certain precincts, with the Under World, in which money was to be paid for protection—the thieves to rob right and left and be allowed to sell bonds and securities unmolested, upon the payment of a ten per cent "rake-off." All the friction which had hitherto annoyed, not only the members of my profession, but the policemen who were inclined to be on the "square" with us, disappeared. In this connection I am referring to high-class men, such as bank burglars, bank sneaks, and big forgers and the like. The small-fry thief was, naturally, for some time after that, paying his "bit" to the coppers on post; but these fellows soon got to squealing on us, and we had them sent up the beautiful Hudson River,

thirty miles, where Sing Sing was their home for such a time as they could be taught better ways.

The Bank Ring, or the patent safety switch, as you please, soon getting into excellent working condition, its members began to realize what they'd lost in the great Lord bond robbery, the Star Insurance Company and the Royal Insurance Company "tricks," all of which would have paid them a fine "rake-off," but of which they had been deprived by the methods of Captain Young. Besides these big "tricks," there were many others, not quite so important, but a mighty good investment of government service, in vice-protecting stocks. But the bitterest medicine of all was the recent New Windsor Bank loot. It pinched the Bank Ring, even to recall the profits lost to them in that "trick."

Of those who were the bone and sinew of the combine, and known to me personally, and who were for the most part on the "level" with me, I must mention Captain John Jourdan of the Sixth Precinct, afterward Superintendent of Police, who was frequently spoken of as "The Little Man"; Detective John McCord, Detective James J. Kelso, subsequently Superintendent of Police, Detective George Radford, Detective Thomas Davidson, Detective Joseph Seymour, and Patrolman Michael Conners. I had many personal dealings with these men and, as I have said, they usually acted the part they took in good faith. Captain Jourdan was an officer with an excellent record in the line of duty, though he did stand high in the friendship of Boss Tweed and held an important place in the counsels of the Bank Ring. He and Jack McCord were, practically, the ruling power of the Ring. When Langdon W. Moore *alias* Charlie Adams was captured on a Jersey farm along the Delaware River, it was Captain Jourdan who did it. Moore had robbed the Concord, Massachusetts, National and Savings Banks, and had hidden three hundred thousand dollars' worth of securities under the flooring of one of his stables. In a midnight search of the farm it was Jourdan who discovered the securities and returned them to the bank. Again, when the notorious Fairy McGuire and his gang of crooks were apprehended for the Bowdoinham Bank robbery in Maine, was it not Captain Jourdan who furnished the evidence that sent all hands to prison? Not only had he obtained power in this sort of police work, but, being the protégé of Bill Tweed, he could command almost anything he wanted. This influence he acquired through the masterful work he had done for Tweed in

the famous Sixth Precinct,—the station house of which was on Franklin Street,—in the way of manipulating votes on election day. All together Captain Jourdan was a mighty handy man to know.

As to Jack McCord, who “pulled” a wonderful stroke with the captain, he was an astute copper without question—astute in the art of diverting gold from its legitimate channels into the private conduit leading to the fat pocket of the Bank Ring. I have been told that he made more arrests during his long career as a policeman than any other member of the force at that period. It was with much boastfulness that I once heard him declare in this fashion: “I never sent but one man to prison, and then it was the fool’s own fault and not mine. I told him to stand trial, but he pleaded guilty.”

It is safe to estimate that McCord’s arrests were made purely and simply for a “shake-down”; indeed, I was told that at least ninety-nine per cent of them were. He was, let me say, an adept in discovering grafters of the Under World; in fact showed advanced qualities in this pursuit. Naturally, new crooks put in an appearance frequently, and it wasn’t long before Jack learned of it, and then it was his job to see whether or not something was doing. I have a vivid recollection of his mode of procedure, and will attempt to demonstrate it as well as I am able. His headquarters were at the Metropolitan Hotel in Broadway, just below Houston Street, near Niblo’s Garden, a theatre famous in its day. A grafter would be told he’d better call on McCord at the hotel, and then came the meeting. The grafter had to examine a business card, as a starter.

“Have a card,” Jack would say; “I’m McCord, the Central Office detective.” I recall his bluff style, for it amused me.

“Glad to know you,” the crook would answer, whether he was or not, and they would shake hands—just for business, you know.

“And my office hours on week days are from seven P.M. to ten P.M., at this hotel. Don’t forget the address,” continued the detective.

“I hope I won’t,” the crook would reply, with a smile, not lost on McCord.

“Of course you won’t forget my address,” repeated Jack, “I wouldn’t, if I were you. I may be of much service, you know!”

In this manner he made himself acquainted with the new grafters, and they believed in him, and many of them never regretted the understanding. If a crook failed to keep his promise, why, McCord was merciless; no less so was Captain Jourdan. Both were counted as good friends and bad enemies. In another chapter I've referred to these police officials in a manner to bear out what I say. To me Jim Irving was as "square" as any crooked copper could be, though I will have shown, before I complete this history, wherein he displayed a trait of which I deemed him happily lacking.

With the patent safety switch working splendidly, the crooked fraternity knew just what to expect from 300 Mulberry Street; knew that it was, "walk up to the captain's office and square it—get out of town and stay out for a while, or run the risk of being railroaded to Sing Sing prison." It was a marvel. It gave the inventors and the promoters the master-key of the situation. Its intricate details earned golden gain for the Ring and prosperity for the Under World fraternity. The safety switch was unlimited in its power, it seemed. With it a subservient Police Board assisted in keeping the per cent of "rake-off" regulated, and policemen favorable to our pocket-lining were promoted at its bidding. It did heroic service for many years, and brought in Standard Oil profits, was proof against honest investigators who tried hard to break through and put its inventors and promoters in jeopardy, and was practically the only Ring to pull out of the breakers so disastrously contrived by Samuel J. Tilden, New York State's famous governor and corrupt-ring smasher, and his fellow-reformers. The Bank Ring was indeed fortunate in escaping the dire consequences of Mr. Tilden's efforts to clean out the cesspool of corruption then underlying the government of New York City.

Those were palmy days, those days of the safety switch, when men without visible means of support flourished about town like green bay trees, and certain police officials of 300 Mulberry Street with "pulls" kept fast horses and elaborate carriages, and dined and wined themselves and friends at Delmonico's, and sported diamonds in their shirt-fronts the size of English walnuts. How well I remember them! It was all possible while the Under World fraternity was feeding on the public and the police grafters were taking percentages from them—the larceny thief and the bank burglar. The legitimate income of these officials was a mere drop in the ocean in comparison with their private, illegitimate income,—that ever-flowing

golden stream, let in at the back door of 300 Mulberry Street; that golden stream flowing from the army of crooks operating in this country from New York Bay to the Golden Gate, from Hudson Bay to the Gulf of Mexico, not considering a fat goose occasionally plucked from a foreign shore.

To show to what extent Captain Irving would carry out his part of the contract with the Under World men I will mention a personal recollection of the apprehension of Roberts and Gleason for the colossal Wall Street bond forgeries in the summer of 1873. Nearly a million dollars was involved in this job. The story not only came to me from Irving, but I also had it from the lips of Henry C. Allen, the assistant district attorney who had charge of the case. Captain Irving had been asked to arrest the forgers, who were said to be in New York. And what was the result? For three weeks he fed taffy to the district attorney's office,—one day saying the fugitives had been seen in New Orleans, a few days later that they had been traced to Portland on the Pacific coast; and ere two weeks had passed, clews had been picked up in about every large city on the map of the United States. While this sop was being given the district attorney, Roberts and Gleason were in the city, comfortably living at their homes, or visiting their usual haunts under the very noses of Captain Irving and his sleuths, who, of course, didn't want to find them. One of the men, to my knowledge, was in a house not more than a stone's throw from Twenty-first Street and Seventh Avenue. But that is going more into detail than is necessary. Of course, Assistant District Attorney Allen became, not only weary, but disgusted, over this delay, and, half suspecting the reason for Irving's inactivity, employed a few Pinkerton detectives. In the meantime Irving was unconscious of Mr. Allen's activity. For once the doings of the agency detectives failed to reach him, and he continued to make an occasional report to the district attorney's office. One day he came in and said: "I've located Roberts and Gleason. I think they're on the way to Europe. Guess I'll be able to stop 'em on the arrival of the ship on the other side."

"Don't distress yourself, captain," said the assistant district attorney, quietly. There was something in Mr. Allen's manner that caused the chief of detectives to cast a searching look at him.

"And why?" asked Irving.

“Because it will be useless,” continued Mr. Allen, with an attempt to suppress a smile; “Roberts and Gleason have been under arrest in this city for twelve hours.”

“Oh,” blurted Irving, while his face flushed a deep red and then paled. I had it from Mr. Allen that the detective chief fairly ran from the office, and didn’t put in an appearance there for many days. Hitherto he had been a frequent visitor.

I have given a bird’s-eye view, so to speak, of the Bank Ring or my patent safety switch, along with which I introduced Captain Irving. To relate all my personal experiences with the Ring would be too exhausting, not only to my patient reader, but to myself. It flourished until Thomas Byrnes became the head of the Detective Bureau, with the rank of Inspector of Police, when a complete transformation of affairs took place. Byrnes grasped the headquarters situation with a mighty grip and administered a crushing blow to the patent safety switch. A member of the Bank Ring said to me one day, while discussing old times, “Inspector Byrnes keeps close tabs on us men these days. A few months ago I took a hundred dollar bill from Walter Brown, a pickpocket, and within forty-eight hours Byrnes called me in his office and said, ‘Two days ago you took a hundred from Brown, didn’t you?’ There was no use denying it, and I owned the corn—I just had to, you know. I knew I was up against it. Well, he looked at me, and said, without roaring at me as he does sometimes, ‘Turn that money in the Pension Fund, and if anything like this happens again, I’ll ask for your shield.’”

It was with this kind of force that Byrnes began his reorganization of the Detective Bureau. Whether in later years he stood true to those principles, I do not know. Never in my days, when he was in charge of the Detective Bureau, did I have knowledge that he was other than honest. I heard rumors of Wall Street deals, but whether they were true or not, I can’t say. He had some very influential friends in the financial district, and I have no doubt they gave him many a hint as to the lay of the market.

In thus briefly touching upon a period in my life when I depended upon the police to abet my vigilance in the game of obtaining something for nothing, I trust I haven’t caused any one a pang of pain or regret. And so I

pause for a while. In a subsequent volume I will, perhaps, go deeper into my experiences with crooks and their relations with the police.



CHAPTER XVI

HARD WORK UNDER GREAT DIFFICULTIES

The day following our reconciliation, Shinburn and I went down to look over the Ocean Bank and its surroundings. It was most essential that we should know the habits of the policemen on the beats around and near the bank, and the comings and goings of the janitor and other occupants of the neighborhood, as well as of the general public, day and night. Therefore it was decided to obtain quarters from which all this could be watched, and a front room on the second floor of the building on Fulton Street, opposite the bank, was hired. From this room two men kept constant watch from January until the time for the trick to be pulled off. Through these men we learned the habits and manners of all who frequented that locality.

Here is one of the results of our watch-tower: About three months after we had been at work we became alarmed at the suspicious actions of a man who constantly hovered around the bank corner. Thinking that he might be a “plain clothes man,”—that is, a detective not in uniform,—I reported the circumstance to Detective Jack McCord, who had the matter investigated, and ascertained that the man was a “look-out” for a near-by gambling game.

Shinburn and I agreed, on the first inspection of the bank building, that, because of the exposed entrance to the bank, and the constant stream of passers-by, which, owing to the near-by ferries and markets, never ceased day or night, it would not do to try to get into the bank by way of the door, and that ingress must be made from above or below. We discussed the advisability of having a room directly over the vault, but decided that, by reason of the massive masonry which we would have to cut through, it

would be much more practicable to go through the floor, provided that, in the basement under the president's room, a room could be secured.

This was finally accomplished, though it took three months of planning, to bring it about.

At the time of our first visit to the bank the whole basement was occupied by one concern. Through Taylor we learned that the lease would shortly expire, and that the tenants, who hired from the bank, had given notice that they would not renew it. In this, Fortune seemed to favor us; but, as the space was very large, we deemed it advisable not to apply for a lease of the whole place, for we could make no show of a legitimate business that would warrant the occupancy of so extensive quarters, and that an attempt to do so would probably lead the bank people to suspect our real purpose. Therefore, even at the risk of losing the chance altogether, we determined not to apply for the place just then, trusting to the hope that some one might apply for the part fronting Greenwich Street, leaving the coveted room under the president's office, with the entrance on Fulton Street, to us; and relying on Taylor's ability to keep us posted regarding offers to lease that the bank might receive.

Thus matters remained at a standstill, so far as entering the vault was concerned, for some three months, or until about the middle of March. Then an applicant appeared in the person of one William O'Kell. Taylor at once informed us of the application. On investigation we learned that O'Kell was a money broker on upper Broadway, where he had an office less than one-half as large as the basement under the bank. We, therefore, deemed it safe to let him acquire the lease, trusting to be able to hire from him the part we desired. Scarcely had Mr. O'Kell moved into his new quarters than he was approached by a man calling himself Kohler, who represented himself as being an insurance broker, and stated that he wished to hire the rear part of the basement. Mr. O'Kell was only too willing to sub-let. As Kohler was Shindburn's brother-in-law, we were soon in possession of the long-desired field of action. At this time we notified the Bank Ring—the police—of our enterprise, and arranged for the necessary protection.

And so we drew nearer and nearer to the coveted goal. But let it not be thought that all was plain sailing from then on. Far from it! for, though we were now directly under the president's office, yet we were also right beside

the steps that led to the offices and the janitor's living apartments. Two police beats met at the bank corner, and here the policemen on those beats would meet and idly swing their clubs while they gossiped by the half-hour. Then the Fulton Street officer would wander to the janitor's entrance, where nearly every evening the janitor and his wife would sit until after ten o'clock. Here another conversation would take place.

Of course at such times it would be impossible to do any pounding; and at no time would it do to allow the least amount of light to shine through the windows. To obviate this latter difficulty, we hung thick blankets over the windows, which so covered them that not the least particle of light could get through. At the same time these blankets served to deaden the noise.

Owing to the other burglaries which had been undertaken while waiting to hire the basement office,—and chiefly to the Westminster affair,—we did not get down to the Ocean Bank business until well along in May. From observations we had made we decided that it would be best to complete the job on a Saturday night, as this would, if necessary, give us two nights and one day, and May 23 was fixed upon.

We had had a special set of tools made by an expert, and on May 22 these, together with my explosives and a hydraulic jack, were stored in Kohler's office. All the locks to this office had been changed by its new tenant, and everything was in readiness to begin the attack on the ceiling the next night.

Saturday I gave orders to have a coach ready, with the team in harness, at my stable, and to be kept so all night in case of any emergency call. And we warned our lieutenants in the room opposite the bank to be continually on the alert. At five o'clock in the afternoon Shinburn and I were in the office with the doors locked, shutters closed, and blankets up, waiting for the janitor to finish his work in the bank and retire to his quarters.

But the janitor did not retire until after ten o'clock; and, in the meantime, we sat in the office, not daring to make any noise lest we be detected by those sitting on the steps without. It was very tedious watching, and it tried our patience to the utmost; but at last we heard the welcome sound of the closing and locking of the door which led to the upper floors, and we immediately prepared for action.

It had been decided to cut up through the bank floor at a place between the dead wall at the Fulton Street end of the building and the front of the president's desk. This plan was adopted because, in case we should get through the floor and yet not be able to complete the job the same night, the carpet could be replaced over the hole at that point with the least likelihood of its detection.

This spot was very near the Fulton Street side, and, therefore, great care had to be exercised lest the noise of our operations should be heard outside. Consequently, while one did the cutting the other kept his ear glued to a joint in the window shutter, with a string in hand, one end of which was tied to the other's wrist.

When the plastering of the ceiling was removed, we expected to find an open space between the girders of the floor above. But, instead, we found the space filled with rubble set in cement—a solid mass fourteen inches thick. Here was a dilemma. We had come prepared with tools to cut wood and steel only, and had no implements with which to dig through this obstruction. There was nothing else to do but put off further operations for a week, and, in the meantime, get the necessary tools.

Then a new difficulty presented itself. There was the hole in the plastering, which, with a bank overhead, would appear a very suspicious circumstance to even the most casual observer. It must be hidden. We used up all the mucilage in the office in plastering paper over it, but still it was only too apparent. We could do no more that night, so we watched our opportunity and got away unobserved.

Early Monday morning we scoured the furniture stores to find some article that would be tall enough to cover the break. At last we found, in a second-hand shop in Canal Street, a solid mahogany wardrobe which would serve our purpose. With very little dickering with the Jew owner we bought it and had it hauled to Kohler's office, where we placed it under the break.

With the aid of books and boxes the wardrobe served its purpose admirably,—and also formed a first-class receptacle for our tools.

On the Friday following our enforced stoppage, as previously related, we had obtained the necessary tools for digging through the cement, and they were safely deposited in Kohler's office. We had also arranged for

heavily padding the floor beneath the hole so as to catch any debris that might fall, and we were ready to continue the work on the following night. But at this point Taylor informed us that arrangements had been made to have the bank's quarters painted and decorated, the work to be done on Sundays and after banking hours on week days, and that the start was to be made the next day. This, of course, knocked our plans on the head for the time being, and naturally was a sore disappointment to us, as well as a source of great danger.

Our work had now reached that stage where the utmost caution was necessary—the least slip might bring suspicion upon us. If some one were to spy the break in the ceiling or doubt the legitimacy of Kohler's insurance business, all would be up with us. Then, too, we had before us the continual fear that the combination of the bank's vault lock would be changed, necessitating more long, weary weeks of waiting until Taylor should be able to secure the new numbers.

However, these were the risks of the business, and we were perforce obliged to lie low until the coast was clear. At last, on Friday, June 5, Taylor informed us that the painters would not work the following night or Sunday. This was welcome news, and we decided to use the time of their idleness in putting in our work. Our preparations were already made, and, except to order the coach to be in readiness, and notifying the lookouts across the street to keep a sharp watch, there was nothing to do but await the appointed hour.

At five o'clock Saturday evening Shinburn and myself were again locked in Kohler's office with everything in readiness to get to work just as soon as the coast was clear. But, as on other occasions, the janitor and his wife sat on the steps and the patrolman loitered around till nearly eleven o'clock.

At last, the coast being clear, we began work. We had removed quite a portion of the obstructing masonry, when clang! bang! whiz! a section of the fire department was upon us. A fire had broken out in the near neighborhood. One of the hydrants was near the bank corner. An engine was attached to it, and pumped away until three o'clock in the morning, while a crowd of people stood about, many leaning against the railing right in front of us.

This, of course, precluded our doing any work until too late to be able to complete the job that night. Therefore, when quiet again reigned outside, we slipped out and sought our beds. We did not deem it wise to try to get back into the office that Sunday evening, so we decided to wait until the next favorable Saturday.

Three weeks passed, and the painters held the premises; but on June 27 they again took a vacation. Taylor having duly apprised us of this beforehand, we once more prepared for work. So much of the tunnelling had already been done that, given half a chance, we had every hope of finishing the trick this time.

Experience had taught me that, notwithstanding our strong police protection, it was always best to have an anchor to windward in case of capture, in the shape of a good round sum to use as a basis for negotiations for liberty. This anchor, of course, had to be in the form of part of the loot, otherwise no dicker could be made. One cannot dicker with a bank for immunity from prosecution when that bank has lost nothing. Therefore, we devised a scheme to make sure of the anchor in case we were caught.

Kohler had a key to the old lock on the door between his office and that of O'Kell. Thus, while after the change of locks O'Kell could not come into our quarters, we could still go into his. From the south side of O'Kell's office was a toilet room that had a small window fronting on Greenwich Street. Our keys gave us access to this. We arranged that one of our lookouts should make periodical trips past this window, and, should he see a certain sign, he should continue a block or two, and then, returning, come close to the window and stoop as if picking up something. By this time we would have entered the vault and secured a box containing a sealed package, of which Taylor had informed us, supposed to contain one hundred thousand dollars in government bonds. This package I was to hand to the lookout as he stooped, and he was then to take it at once to my rooms and then follow the other instructions which I had given him.

It had been further arranged that, on his way to my rooms with the precious package, the lookout man was to stop at my stable and notify my coachman, who had orders to drive at once to Cortlandt Street ferry and there await further instructions.

The night was excessively warm, and the janitor, with a crowd of neighbors, sat on the steps until after eleven o'clock, while Shinburn and I, stripped to our underclothes, sweltered in the close air of the office. At last, the chatter above having ceased, the chatterers having sought their apartments, and the patrolman being away, we pulled out the wardrobe and went to work with a will.

Nothing happened to deter us except the momentary passage of some pedestrian, and by two o'clock we had cleared away all the masonry, leaving the wood floor bare. Through this we cut, taking care not to injure the carpet above. A hole being cut in the floor, we pushed up the carpet and in a twinkling we were in the president's office. The iron shutters on the bank windows hid us from view from the outside and we had a clear road to the vault.

But what if the combination had been changed! I rushed to the door, twirled the dial plate, and—the door was open. To get the keys of the inner doors from their secret resting-place was but the work of a moment, and then we were inside of the vault. There, exposed to our view, were various boxes containing the securities of the bank and of many of its customers who used this as a place of deposit for their valuables.

Taylor had told me where in the vault to find the box containing the sealed package. This box I at once broke open, took the package, and went to the toilet room off O'Kell's office. In order to save time, the signal that I had arranged for the lookout man was made to work by a cord. One end of this cord was attached to the signal, the other end I carried with me as we went to the vault.

As soon as the vault was opened, I pulled the cord. As luck would have it, the signal was displaced just before the lookout passed, so that when I reached the window I had but a few moments to wait before he was back, and that part of the scheme was completed. Meanwhile, Shinburn had so fixed the lock of the front doors to the bank that it could not be opened without a locksmith, and we were free from fear of intrusion from that direction; at least until we should have time to relock the vault and get below.

From the toilet room I returned to Kohler's office and proceeded to pass the tools up through the hole to Shinburn. This was no small

undertaking, for the shutters of the bank had holes near the top which precluded our having a light in the president's room. I had had to work the combination by the light of a cigar, and some of the tools were pretty heavy, the hydraulic jack alone weighing one hundred and twenty-five pounds.

All of the tools were wrapped in cloth to prevent clashing; yet it was ticklish business, lest they should strike against something and so make noise enough to be heard outside. At last they were all up without mishap, and I followed. Our next act after getting the tools into the vault was to close the doors and strike a light.

We then went to the various boxes and sorted their contents, taking such securities as were negotiable and putting them in a satchel. We found much jewelry, but did not take any. That was not our graft, and, besides, we felt that we would have a full load with the money and bonds. As we inspected them, we placed the boxes at the far end of the vault and when through with the last one we turned our attention to the tellers' safes.

We commenced with the receiving teller's safe, cutting a small opening directly over the lock bolts to enable their being pushed back. But the cutting, or drilling, of steel by hand is very slow and hard work, and it was not until eleven o'clock in the morning that the bolts were sprung and the doors of the safe opened. The contents of this safe were gone over and all that were negotiable were put in the satchel containing the other valuables, and the satchel let down into Kohler's office, so that we might be sure of that much were we disturbed in our further work.

We then began upon the paying teller's safe, which was much stronger and more difficult than the other. We tried our wedges, endeavoring to force them in with the jack, for we had worked so long and so hard without any nourishment that we were too fagged out for hard drilling. But the quarters were too close to work the jack, and we were forced to resume drilling.

When about halfway through the door, we were obliged to desist through sheer exhaustion. We therefore closed and locked the vault's outer doors, repaired the front door lock, and crawled down into our office. In going down I pulled the president's chair over the hole, put down the carpet as best I could, and replaced the section of the floor we had cut out; this we braced from below so that it could not give way if trodden upon.

We then took the satchel, the contents of which, now, were worth about a million and a half, and, watching our opportunity, slipped out into the street and made our way with our precious burden to Cortlandt Street ferry, where we found my carriage. Getting in, we started up-town, trusting to our outlook in the room opposite the bank to notify us if anything happened.

On arriving at my rooms, Shinburn and I washed off the grime, donned clean clothing throughout, and, leaving the satchel in a safe place, went out to recruit our wasted strength with a square meal. After satisfying the inner man, we paid a visit to Detective Jack McCord at his house in Amity Street, and told him what we had accomplished.

About seven o'clock in the evening we were driven back to the Astor House; from there we walked to the room where the lookout was. He reported that no one had entered the bank since our departure, but we could see the janitor and his wife sitting on the steps opposite. Feeling that they would remain there several hours, Shinburn and I returned to the Astor House, secured two rooms, and, giving orders to be called promptly at one o'clock, proceeded to get a much-needed rest.

The clerk forgot to call us until nearly two o'clock, when we hastened into our clothes and made for the bank. Here we were again delayed, and it was not until nearly three o'clock that we were able to get an opportunity to slip into our office unobserved. Lighting a cigar, I crawled up through the tunnel, followed by Shinburn. By cigar light I worked the combination, while Shinburn again put the front door lock out of kilter, and we were soon in the vault.

An inspection of the work that had yet to be done on the paying teller's safe convinced us that we could not succeed by drilling in the short time left at our disposal, and that we must employ other means. Consequently we decided to call the fire department to our assistance. So I slipped across the street to the lookout, and told him to go, in about twenty minutes, to the window in the toilet room, watch for the signal, and as soon as he saw it to turn in a fire alarm. Then I went back to the bank, fortunately not having to wait my chance. Shinburn and I at once set to work with wedges and copper hammers to make a seam between the jamb and the door of the safe so that we could insert explosive. Finally everything was ready, the charge was connected with a battery which Shinburn held outside the vault, and the

vault doors closed. I pulled the signal string and then we waited. By and by we heard the rumble and gongs of the fire carts; and just as an engine swept by the bank, Shinburn turned the switch, the charge went off, and as we returned to the vault, we found the safe door lying on the floor. We made short work of gathering the contents of the safe, which we crammed into the teller's trunk kept there.

As we left the vault, I dropped a package containing two hundred thousand dollars in gold notes among the debris, where it was found later by the bank officials. This seeming carelessness on my part, and of which the daily press made much, picturing the chagrin the looters would feel when they learned of what they had left, was the fulfilment of a promise I had made to Taylor. He did not wish the bank to be forced into insolvency, and had insisted that this amount should be left in order to enable the bank to meet its clearing house obligations on the morning succeeding the robbery.

So, while it went against the grain to leave so much good money, as well as to have the reputation for such carelessness, yet I kept my word, and the bank met all its obligations that day.

We lowered the trunk through the tunnel and went down ourselves, having relocked the vault and taken the other steps to obliterate all signs of our mode of ingress. Shinburn remained in Kohler's office, on guard over the trunk, while I went to the ferry where my carriage was to be.

When I reached the ferry-house, no carriage was to be seen. Minutes passed and still I waited in the greatest apprehension. It was nearly time for the bank janitor to come down, and my fears were wrought up to the highest pitch. I had about concluded to go back and chance taking the loot away by hand when the team came up. It had been delayed by the jam caused by the alarm of fire we had sent in.

With a great load lifted from my mind I jumped into the carriage and away we started. We drove to opposite the office door. I then went in and found Shinburn about as much wrought up as I had been. He told me that the janitor had already come down, and was, even then, in O'Kells office. This shows the nerve of the man. He could sit quietly in that office, awaiting my return, while the janitor might at any moment detect the robbery and give the alarm. Shinburn was certainly a very nervy man.

The presence of the janitor in the next office necessitated careful management on our part if we would get away undetected. We could hear him moving round in cleaning up the room. We got everything in readiness, and, when from the sound we judged that the janitor was where he could not see us as we left, slipped out quickly. The driver started the team and away we went, undetected, with the cashier's trunk full of plunder.

We went directly to my apartments, sending the team back to the stable. Once in my rooms, we opened the trunk and counted its contents. The total amount of the two hauls was two million seven hundred and fifty thousand dollars, made up as follows:—

Cash	\$125,000
Cash left as per agreement	200,000
U. S. government bonds	1,475,000
Miscellaneous bonds, salable	100,000
Miscellaneous bonds, unsalable	850,000
Total	<u>\$2,750,000</u>

Thus was accomplished the greatest bank robbery on record, so far as the amount stolen was concerned. To preserve its existence, the bank, contrary to the usual method in such cases, gave out its loss as much *less* than the actual amount. I believe it stated the amount stolen to be about two million dollars. This would be about right—taking out the miscellaneous bonds not salable.

CHAPTER XVII

MARK MAKES PI OF LOCK TUMBLERS

Too many irons in the fire spoiled an opportunity to add a few thousand dollars to our cash capital. This occurred in that busy year, 1869. Mark Shinburn and I got word of a bank at Lambertville, New Jersey, that seemed to hold out golden inducements, so he went to make the strike, while I remained in New York to keep an eye on more important matters, but ready to answer his summons for the final attack.

The failure was, I believe, unique in every sense of the word. Neither before nor after did anything like it fall to our lot.

Shinburn said that if I would have a double team for a “get-away” he’d do the inside work. I did my part forthwith. The plan was to get the combination numbers of the first vault door one evening, and the next enter the bank as soon as business was over and the doors locked. Getting the “dust,” it appeared, would be thus accomplished without much effort, and relocking the vault door, leaving nothing in sight to indicate our visit, we would be four or five hours on our way to New York before the discovery of the robbery.

Our planning would have been carried out to a dot had not a piece of gross carelessness on the part of the bank’s cashier occurred. In closing the vault he left the second door to it unlocked. When Shinburn got through the first door, he found the one leading right up to the very safes unfastened. This seemed to be an unexpected piece of good luck. As a matter of fact, Shinburn was able to place our “Little Joker” on the dial of the inside safe, and thereby accomplished in one sitting what might have required two or more. He got the combination to the second door of the vault, obtaining it by means of a steel wire, which he inserted in the rim of the tumbler, thus

pushing back the spring that held the combination numbers in position, but in getting them Shinburn “pied” the tumblers, as the printer would term it, which necessitated resetting them. Having the original numbers and being pressed for time, he did it hurriedly and left the bank. Everything seemed to be working toward the certain looting of the bank the following evening. Mark had been on the way a few minutes when it occurred to him that he had possibly made an error in computing the numbers of the pied combination. In some manner he believed he’d set the last tumbler at thirty-five instead of thirty-six. It was too late, if that were the case, to remedy it, so there was nothing to do but to wait and hope for the best. If the mistake had been made, there would be plenty evidence of it when the cashier attempted to unlock the vault in the morning.

Well, Shinburn did hear from it. The inner door could not be opened, try as the cashier would. A great mystery seemed to confront the bank people. What had happened to the combination? It had worked well hitherto. It did not occur to them that some one had been tampering with the lock. Unable to open the vault, the Lillie Lock Company was telegraphed to forthwith send on an expert to make an examination. In the meantime, the bank’s cash being locked up, not much business was done. The expert came, and, after working several hours, solved the mystery.

“Burglars,” he said, with a snap, as he held up to the bank people’s astonished gaze our “Little Joker.” “I found it on the dial of the money safe. Your bank would have been ‘touched’ within a few hours. Some one bungled the lock on the second vault door and that gave the snap away.”

The amazement of the bankers was taken for doubt by the expert, so he went on to a further explanation.

“We’ve long suspected something of this kind, but could never get our hands on it. Through this discovery we’ve done a great service to the banking people of the country. Any number of banks have been robbed by the mere opening of the vaults and safes with combination numbers, all of which were supposed to be kept secret; only known to one or two officials or employees of a bank. This is a great discovery.”

And the expert was right. If it so happen that these pages meet the eyes of any one using these locks with the same dials to-day, he will at once realize how utterly worthless they are as a safeguard against the real

professional burglar. I know positively that the “Little Joker” was the cause of many alterations in the Lillie locks, and its loss to me greatly interfered with my hitherto easy access to bank vaults and kept not a little funds away from me.

Having been defeated by no one but himself, Mark reported to me, and feeling much chagrined over the failure of our “on-the-side” job, he returned to New York and we continued our scheming for the millions in the Ocean Bank.

Mark had played a lone hand and lost. I was sorry, and of course he felt badly enough over his bungling, so nothing was said. None of us is infallible.

CHAPTER XVIII

DISPOSITION OF OCEAN BANK LOOT

I have no doubt that my readers will readily believe that shortly after the opening of the Ocean Bank vault on the morning after our departure there was a considerable stir in the financial world, especially that part of it located at the corner of Fulton and Greenwich streets.

The two hundred thousand dollars that we left on the vault floor enabled the bank to meet its engagements at the clearing house that day; the police closed the bank's doors early in the day, thus preventing a run; and the bank did not fail. That is, it did not fail then.

On that Sunday afternoon, after we had removed a million and a half from the vault, and paid a visit to Jack McCord's house as related in the last chapter, he went out of his house on that day, breaking his custom in this respect. He hunted up the other members of the Ring, and notified them all, including Captain Irving, to be at headquarters by nine o'clock the next morning without fail.

At that hour one of my coaches with my finest team stood in Crosby Street near Houston. My best driver held the ribbons over them. In due time came the notice to headquarters of the robbery of the bank. Captain Irving and Detectives McCord and Kelso thereupon hastened to the corner of Crosby and Houston streets and boarded my coach. The horses were started at their best gait, and the detectives were soon at the scene of the loot.

By this time the robbery had become generally known in the vicinity of the bank. The bank's offices were filled with a mob of shouting depositors and owners of boxes, who were clamoring for their money and valuables. Irving turned them all out and locked the doors and then began to question the bank officials. You will readily imagine that the information which he

derived from this questioning was of great benefit to him—it told him so much that he did not know.

The detectives listened to the officials' stories, looked wise, consulted, and then determined that the job was the work of a Western gang of burglars, which it had long been rumored was coming East. Irving said that guards would at once be placed at all ferries and railroad stations, and assured the bank people that it would be but a day before the robbers would be bagged and the loot returned.

The confident manner of the detectives reassured the bank officials, who began to feel that things were not so bad as they had at first appeared. Irving then attended to the returning of the safe deposit boxes to their owners in the crowd out in the street. The reception of one of these boxes was generally followed by wails of sorrow, long and deep. Then, after cautioning the bank officials to give nothing to the press, but to refer all reporters to headquarters, the detectives left, to place the cordon about the city.

And, to blind the press and the police officials not in the know, this cordon was placed, and many a policeman watched a ferry-house or a railroad station for mythical Western crooks. Yes, the members of the Bank Ring put in their share of this kind of watching, too, though they knew at all times where to find the looters. Indeed, I had a long talk with Jim Kelso while he was stationed at the Harlem depot to catch the robbers.

On the afternoon of the same day that they had visited the looted bank, Irving, Kelso, and McCord met Shinburn and myself at Stetson's in Central Park. Here we had a wine dinner, and Irving then narrated to us the happenings at the bank that morning. Of course, Shinburn and I expressed the wish that the police might capture that bad Western gang. But the detectives were more particularly interested in the amount they were to get out of the robbery.

Shinburn and I had gone through the stuff we had taken, and found that the precious sealed package, of which Taylor had told us, contained non-negotiable paper, upon which a customer of the bank had borrowed capital. No doubt the customer would have been pleased had the package never been heard of again. We had made a tabulated statement and, taking it with us, showed it to our table companions. It ran as follows:—

Cash taken away	\$125,000
Cash left in bank vault	200,000
U. S. government bonds—then above par	1,475,000
Miscellaneous bonds, marketable	100,000
Western R. R. bonds, unsalable	850,000
Total	<u>\$2,750,000</u>

In running over the list, McCord exclaimed: “Cash left in bank vault, two hundred thousand dollars! What in hell do you mean by that?”

“We left that amount there,” I replied.

The detectives looked at me in wide-eyed astonishment. “Were you crazy?” asked Kelso.

“No; just keeping a promise,” I replied. “It is nothing that interests you people. But it’s funny that the bank folks didn’t tell you about it.”

“Well, they didn’t,” said Irving.

This worried me, for I feared that the package had not been found and that we had left it to no purpose. How this could have happened I could not understand, as I had seen Taylor that morning, and told him just where I had left it, and did not believe Taylor would hold it out. However, it was found and used for the purpose intended. I learned this from the papers next morning as well as from Taylor, later. How the press got the news, I don’t know; but they got it.

Two or three days after the robbery we were told that there was a possibility that the bank might call in the services of the Pinkertons, who a few years before had established their New York branch. The Bank Ring also had some fear of this; and Irving was insistent in his demand that such a thing should not be done, as it would interfere with the plans laid by the police. And so it would have done, but not in the manner that the bank officials were led to suppose. If the Pinkertons were to get into the case, Shinn and I felt that it would be better to have none of the proceeds of the robbery where they could be traced to us. Therefore we discussed what would be the best disposition to make of it—it was still in my rooms, all except the cash, which had been banked. Finally, we agreed to go to Peekskill and bury the stuff in a safe place.

In pursuance of this plan we got large fruit-jars and filled them with bonds, etc., crowding them down as tightly as we could. We placed the jars in tin cans and sealed them up. With a part of these jars we went to Peekskill by train, hired a livery rig, and drove out about two miles northeast of the town. Here, in a wood, near an old mill, we buried the cans we had brought. The next day we took the rest of the cans to Staten Island and buried them in the woods then standing back of what is now known as St. George.

The weeks went by, and the Bank Ring succeeded in preventing the employment of the Pinkertons. One day I went down to Staten Island and drove up to where our plant was. Right over the spot where our cans lay buried was a tramp, stretched out, fast asleep. I left at once, but in great trepidation. The next day I returned and dug down to the treasure. It was all there, safe and sound. As everything seemed to be safe so far as the Pinkertons were concerned, I took up the cans, placed them in my wagon, and carried them back to town, where I put them in our box in the Safe Deposit Company's vaults.

A few days after this a terrific storm swept over the lower Hudson valley, uprooting trees, throwing down buildings, and washing away hillsides. Shinburn and I feared that the rain might have washed bare our plant at Peekskill. Therefore we visited the plant and found it undisturbed; but we dug the cans up and took them back to New York, and put their contents in the deposit vault along with the rest. This burying of the treasure proved to have been an unnecessary precaution; but if the Pinkertons had been put to work on the job, this burial would no doubt have saved us from being caught with the goods on us.

However, we were never molested, nor was suspicion ever directed to Shinburn or myself on account of this robbery, great as it was. For weeks the press of the country teemed with items about it. Many and wild were the speculations as to who were the robbers, whence they had come and whither they had gone. But the truth has never been known until revealed in these pages—except to the robbers themselves and to the members of the police Bank Ring.

Furthermore, we sold all the government bonds without attracting the least attention to ourselves, though Detective George Elder was at one time

pretty hot on the scent. However, his brother officers steered him off. Yes, he was even sent on several wild-goose chases after “suspected men” to keep him from interfering with us and our plans. The disposing of these bonds will make a good story. I may tell it later.

All of the non-negotiable paper that we took, amounting to eight hundred and fifty thousand dollars, turned up mysteriously one night on the steps of Captain Jourdan’s station-house, in Franklin Street, enclosed in the paying teller’s trunk, and was by the captain returned to the bank. Therefore the par value of the property that we actually realized on amounted to one million seven hundred thousand dollars. The government bonds, though, were worth at that time about one hundred and sixteen, if I remember rightly, which would make the real value of the entire property one million nine hundred and thirty-six thousand dollars. We did not realize this sum, however, as we had to sell the bonds at some discount.

The proceeds of the robbery were distributed as follows:—

Paid Insurance Agent Kohler	\$50,000
Paid our assistants, etc.	25,000
Paid Bank Clerk Taylor	275,000
Divided equally between Shinburn and myself	<u>1,225,000</u>
Total	\$1,575,000

The amount paid to the police was divided as follows:—

To James Irving, head of Detective Bureau	\$17,000
To John McCord, detective	17,000
To George Radford, detective	17,000
To James Kelso, detective	17,000
To Philip Farley, detective	17,000
To John Jourdan, Captain Sixth Precinct (afterward Superintendent)	17,000
To John McCord for Detective George Elder	17,000
To one other police detective	1,000
To Inspector Johnson	1,800
To John Browne	500
To Frank Houghtaling, Clerk Jefferson Market Police Court	10,000
Total	<u>\$132,300</u>

In addition to the above amounts paid police and court officers, James Kelso, and Frank Houghtaling were each given a James Nardenne, Swiss movement, hunting-case watch and long chain, bought at Benedict Brothers' for five hundred dollars apiece.

All moneys paid police and court officers, except John Jourdan's share, I paid direct to John McCord as early as November 1. Jourdan's rake-off was paid to him personally by me at his home in Prince Street on a Sunday evening three days before Shinburn sailed for Hamburg. At this meeting McCord was present, and it was arranged that McCord and Radford should be at the Hoboken pier to protect Shinburn from the Pinkertons.

As to the money paid to McCord for George Elder, the latter claimed he never received it. The five hundred dollars to Browne was paid after he had been bounced from the police force, and while he was runner for Mayor Oakey Hall. This money was not paid to Browne for services, but for the following reason: He came to me some time after the robbery, and, pleading poverty, said that he should have been "seen" in the Ocean Bank affair. I told him that I did not know what I had to do with that. He tried a bluff, but it didn't work. Finally he came down, said he was in trouble over a girl, and that she would have him arrested if he did not give her five hundred dollars. Purely out of compassion—more for the woman than for him—I paid her the five hundred dollars and she released him. Later, Browne tried to hold

me up again—this time for one thousand dollars. We had some rather hard words and he got nothing, and we have not been friendly since.

Many and varied were the episodes that grew out of this great robbery, owing to the great notoriety it gained throughout the country. Messrs. Linenthal and Co., wholesale tobacconists, had two hundred and fifty thousand dollars in government bonds on deposit with the bank as security in a lawsuit they had pending with the government. Linenthal and Co. sued the bank for the value of the bonds, claiming that the robbery was put up by some of the bank officials. To prove this claim they obtained a pardon for a convict in Sing Sing who claimed to be one of the burglars. He knew absolutely nothing about the robbery, and what, if any, testimony he gave I do not know. But he got his pardon.

At another time a crook named John Irving, being stranded in San Francisco and desirous of coming East, “confessed” that he was one of the burglars. The New York police were notified, and the Commissioners, not being in the “know,” ordered Captain Irving to go West after his namesake. Consequently he started, accompanied by Detective Dusenbury. About a month later I was at Suspension Bridge, on my way to attempt the robbery of a bank at Goodrich, Canada. A train from the West had just arrived, when I heard my name called. On looking up, I saw Captain Irving on the platform of a car of the east-bound train.

“Come over here, George,” he said. I walked across to the car and shook hands with him.

“Come inside,” said he. “I have something to show you.”

Together we went into the car, where we found a man handcuffed to Detective Dusenbury.

“This,” said Irving, pointing to the prisoner, “is, it is claimed, one of the Ocean Bank burglars.”

“You don’t mean it!” I replied. “How did you catch him?”

“Oh, he confessed, out in San Francisco, and the Commissioners sent us out after him. But by the time we got out there he had changed his mind and put up a fight. We have him, however; though, to tell you the truth,” said Irving, winking, “I don’t believe he did it. His story don’t sound right.”

And it didn't sound right to the bank's counsel, either; therefore the prisoner got his free ride to New York and was not tried for the Ocean Bank robbery. But, unfortunately for him, there was an old indictment against him, and on that he got five years in Sing Sing.

There were lots of just such fake stories based on the robbery.

Then the pretended selling of the stolen bonds was another scheme. Billy Matthews, my former gambler friend, in conjunction with one Jack Sudlow, worked this game for some time. Sudlow was an East-side boy who had gone to West Virginia and by some means become president of a bank there. He finally wrecked the bank, taking everything but the safe and a five-cent postage stamp. He overlooked the stamp and didn't think of it till he had reached Baltimore—then it was too late to go back after it. The safe had been too heavy for him to carry.

This Jack Sudlow could lie like a bulletin board and make one believe that black was white. Well, he and Billy juggled many a good dollar out of the people's pockets and gave in return a package supposed to contain stolen bonds, but which, in reality, held naught but an old newspaper or two. And it was not only "come-ons" that they beat, either. They took fifteen hundred dollars out of Elias, the original "sawdust man," who was called the "king of swindlers." And they "beat" Banker Sam A. Way, of Boston, out of twenty-one thousand dollars. The mode of beating Way was as follows: Way was president, and practically the owner, of the Bank of Metropolis, 36 State Street, Boston. He was widely known as a purchaser of stolen bonds if the price was right and no risk, and he was considered a very slick man. Sudlow went to him, and, showing a genuine one-thousand-dollar bond, said that he had twenty-five more that he would like to sell, at the same time stating that they were part of the Ocean Bank loot. Way bit, and finally purchased the twenty-six at thirty per cent discount on the market price, which was then one hundred and sixteen. Therefore the purchase price was twenty-one thousand one hundred and twelve dollars. The price having been agreed upon, Sudlow said:—

"Very well, I will leave this bond with you"—laying the genuine bond on Way's desk—"and will bring the other twenty-five to-morrow. Please have the money all ready in large bills."

The next afternoon, just before time for the bank to close, and when business there was the liveliest, Sudlow rushed in and said:—

“Here are the bonds, Mr. Way. Have you the money ready?” at the same time laying down a package marked “25—\$1000—\$25,000—U. S. Coupon Bonds 5/20 of 1863,” and fastened with wax seals bearing the imprint of the Park Bank of New York.

The successful pulling off of a swindle of this kind lies in the manner of the swindler. Sudlow had the right manner, and Way paid over the money without opening the package. Later he found that he had one good bond and a collection of newspapers.

When the Ocean Bank robbery had become an event of the past, it can be readily understood that I realized a comfortable sense of relief and security, as far as wealth could bring about that satisfactory state. I felt as though I was in that class of men known to the present period as Captains of Industry. In accumulating wealth I had the same object in view as have Russell Sage, John D. Rockefeller, J. Pierpont Morgan, Charles M. Schwab, John W. Gates, the United States Ship Building Company, and similar financiers and corporations, whose scheming to-day is to obtain something for nothing. I piled for myself earthly treasure outside of the Golden Rule, and they are accumulating colossal fortunes for themselves with the same persistent and bold disregard for that biblical admonition before them. However, I proceeded on somewhat different lines to gather in the shekels, though our incentives sprang from the same parent—desire for riches. Instead of employing expensive attorneys to keep me from getting into jail, I solicited the valuable assistance of the inner Bank Ring of the Police Department, whose services were expensive, I frankly admit, as was demonstrated in the percentage I paid the members of the Ring from the Ocean Bank haul. Nevertheless the Ring’s protection enabled me to remain in New York without being compelled to hide behind the cellar door, which is considerably more than some of my co-speculators of that period could say for themselves.

No doubt there are memories able to recall how Jay Gould and Russell Sage drove the Missouri Branch of the Union Pacific Railroad into insolvency by playing Wall Street tag with its stocks, and then through shrewd legal counsel secured for themselves the receivership of that

valuable property. The same memories will also recall how Messrs. Gould and Sage so juggled the finances of that railway that the original stockholders were practically frozen out of their holdings, and how those stockholders rose in their righteous wrath and appealed through the criminal courts for justice and the recovery of their own. In that great crisis Jay Gould, the master wrecker of railroads, suddenly found himself in ill health, and, hastily provisioning his palatial steamer the *Atlanta*, sailed away on an extended ocean voyage, thus making himself safe against the pursuit of the officers of the law armed with warrants for his apprehension.

In closing this chapter I will add that the Ocean Bank is no more, though the building in which it was still remains intact. The various floors are now used as offices and small stores for tradesmen. The bank itself went to pieces in 1876, several years after my handiwork depleted its rich vault; but another class of crooks was the author of its ruin. The Tweed gang of politicians got in their greedy work, and when they were done, little remained to be divided among the honest people who patronized the bank. It was long a trite saying in Wall Street that the bank suffered much from the encroachment of the burglars, but that was but a mere trifle compared with the blow given it by the politicians.

The legend in great brownstone letters, "Ocean Bank," may yet be seen over the main entrance to the building, a vivid reminder of the burglar craft and corrupt politicians of nearly twoscore years ago.

CHAPTER XIX

A CLEAN BILL OF HEALTH

Shortly after the Cadiz burglary, having been able to insure myself from arrest at the hands of the New York police by lining their palms with gold, and the life of a criminal having been accepted as a means of regaining my standing, if possible, in New Hampshire, I turned my face east in the belief that all-powerful gold would purchase there what justice, as dealt out at Keene, had withheld from me.

With this object in view I sent for A. V. Lynde, one of my attorneys in the New Hampshire case, and we conferred at great length, with the result that he assured me I would not be convicted should a retrial of the case be had. However, I wanted to get a clean bill of health, and felt disposed to leave no door closed through which I could obtain it. I believed that money would prove the strongest argument. So, after the ground had been thoroughly gone over, it was determined to offer Herbert Bellows, the power behind the burglary charge, two propositions from which to choose. One was that I would surrender for a retrial, provided reasonable bail would be vouchsafed me, with the further promise that if I were acquitted my confiscated property would be returned to me. The second proposition was that if he would consent to the quashing of the indictment a sum not to exceed ten thousand dollars would be paid him.

With these propositions, Mr. Lynde returned to Keene and submitted them to Bellows, through the latter's attorney. The first was instantly declined. The second would be accepted, provided the bribe was increased to twenty thousand dollars. That price I would not consider for a moment, and the subject was dropped until a year after, when Bellows, through his

counsel, sent word that he'd accept ten thousand to wipe out the indictment. There was a meeting, but I declared I'd not pay that sum.

"Well, what will you give us?" asked Bellows's lawyer.

"Perhaps five thousand," said Mr. Lynde, carelessly, speaking for me. He added, "We're somewhat like Judge Doe and his bail proposition—only we subtract, while, as you'll remember, he worked in addition."

No agreement was arrived at, and so another twelvemonth passed. Then Bellows's counsel came to the front again and made Mr. Lynde an offer to accept my last figure. I smile as I recall the sympathetic tone my counsel adopted in replying to Bellows's man: "Oh, really, I'm so sorry, but you know that five thousand dollar proposition of ours is outlawed—quite outlawed—in fact, a back number."

The prolonged negotiations had brought the case to a point where Bellows was no longer nibbling at the golden bait,—he was attempting to swallow it whole, now that there appeared to be danger of it vanishing forever.

"We're open to a proposition," said his attorney, feebly. "It's time the matter was closed up."

Mr. Lynde and I had grown weary of the subject months before, and decided that we would administer the other side a sample of its own medicine. Mr. Lynde said, unenthusiastically, "So far as I'm concerned, I can't say that my client, at this late day, will pay a single cent. At one time he decided to offer you ten thousand, but that was thrown in his teeth. Then he offered to pay five thousand, but that proposition Mr. Bellows declined. How he feels now I have no idea, and will not know unless I write to him."

"Suppose you let him know of our offer at once," said the attorney.

"I'll see what I can do," answered Mr. Lynde, in a hopeless way; "but I tell you I don't believe he'll pay Bellows five thousand now."

The proposition was laid before me, but it was not until another year had nearly gone by that I indicated any desire to act. The backing and filling had disgusted me in the extreme. I'd made up my mind not to discuss the subject again until there was a plain indication from Bellows that he was ready to come to the point.

But I had no reason to complain at the next negotiation, for he was willing enough to take my money. His attorney called on Mr. Lynde, and a meeting was arranged in New York, between an attorney named Pritchard, a New York friend of Bellows, and my representative Frank Houghtaling, a clerk in Jefferson Market Police Court, who had served Shinburn and me so well up in Steuben County, where we had our little adventure with Sheriff Smith. As the result of the first meeting there was a second, which took place at Delmonico's. Bellows was present and so was I. Amid a plentiful flow of wine, Houghtaling handed Bellows three thousand dollars, and the indictment was handed me. That document was destroyed. Thus, after three years, was I given a clean bill of health in New Hampshire.

That winter I paid a hasty visit to my folks, and was astonished to hear that there was a break-jail indictment out against me, and that I was likely to be arrested at any moment. The indictment had been asked for by District Attorney Lane, so I was told, soon after I'd made the deal with Herbert Bellows. It was said that Lane had expected something from Bellows at the quashing of the burglary charge, but had been turned down. Unable to proceed against Bellows, Lane, out of revenge, asked for the break-jail indictment more than three years after the offence was committed, believing, in that manner, he could make void what Bellows had guaranteed me. However despicable this was on the part of the district attorney, it did seem to me that Bellows, who depended upon Lane to quash the burglary indictment, should have been willing to pay his tool a little of the blackmail money I had paid him. But, as usual, I was the greatest sufferer, the centre upon which the storm created by others beat hardest, and I turned about to face the fresh trouble. Instinctively my hand went down in my pocket.

Summoning my brother, I told him I had only a few hours to visit with the folks, for I must be back in New York, as soon as possible, on account of important business matters. Carefully placing two one-hundred dollar bills in an envelope, I sealed it in his presence, handed it to him and said:—

“Go to District Attorney F. F. Lane, and say this to him: ‘My brother George bade me hand you this envelope, and if you retain it, he expects you will put that break-jail indictment in the after pocket in your frock coat, and then sit on a red-hot stove.’”

My brother performed his errand faithfully, and I never heard from that source again, except for an extremely unpleasant, though after all amusing, incident.

In the following June I had completed a four-day visit with my people, and was on my way home. I boarded the train at Bellows Falls, and we stopped at Charlestown, not many miles away, when my attention was attracted by an unusually long wait at the station. I was on the point of asking for the reason, when old Sheriff Stebbins, the chap I met in the sleighride party the night young Woods and I escaped from Keene jail, came into the coach almost out of breath, and cried loudly:—

“I want ye, durn it! Ye’re my pris’ner, George White.”

I was thunderstruck for the instant, to be thus exposed to the other passengers, of which there were quite a number.

“All right, sheriff,” I replied, as coolly as I was able, upon recovering myself, “but isn’t there some mistake? It’s pretty rough to accuse a fellow like this, and to interrupt his journey, too. I’ve been home to see the old folks. What have I done?”

“Never mind—come outen this—I’ll sheow ye what ye’ve done,” he cried excitedly. “There’s some folks as will be sheoutin’ when they git hold on ye thar in Keene.”

So I alighted with him, but in passing, I met “Spress” Babbitt, whom I well knew. He averted his face—purposely, I could see; and I wondered at it. He was the express messenger on the train. I realized that Stebbins had been notified by telegraph that I was a passenger on the way to Charlestown, and that some one who knew me pretty well must have been the informer.

“How did you know I was on the train?” I asked Stebbins.

“‘Spress’ Babbitt seen ye on the platform outen th’ car winder at Bellows Falls.’”

“And telegraphed on to you?”

“Thet’s the size on’t,” grinned Stebbins. I felt like pulling his whiskers, he seemed to enjoy the situation so much. I wasn’t alarmed over the

outcome, but I didn't relish being held up to view in that community after I had gone through so much trouble to fix things.

"And," I went on sneeringly, "they held the train here until you came?"

"Thet's wot 'Spress' sed he'd dew, an' he done et, b' gosh!"

I could have choked Babbitt had I had his little chicken neck in my hands at the moment.

"I hed tew drive five mile, en like sixty, tew," Stebbins said, as he walked me to a steaming team at the side of the depot. At my request he drove to Eagle Hotel, where I got him in excellent humor through frequent libations in the bar-room.

"Wal, b' gummany Christmus!" he finally said, with a silly grin, "I give ye more credit 'an ye hev. Thought ye'd hev better sense 'an t' run kerslam inter my paws. I've ben waitin' t' git my hooks onter ye ever sense ye bruck outen jail."

The rascal! I saw at once that he had his mind on getting a reward for my capture, evidently not having heard that both indictments had been done away with.

"Ah, Stebbins, my good fellow, I see you're after the thousand," I said, after he had finished taking his measure of my shrewdness.

"Ye kin betcher bottom cent on't—sartin! Why not?"

"That's so, sheriff! Yes; why not?" I returned, laughingly. "But what are you going to do with me first?"

"I ruther guess it's on'y a bit o' a trot fer my team back t' jail ye bruck from—sorter like twenty odd mile!" he said, grinning and slapping his hands together in great delight.

"I hope you won't be in too much of a hurry, Mr. Stebbins. Now, I'm going to ask you as a favor to find out from District Attorney Lane whether or not he wants me. It may be he doesn't. Do you know?"

"Want ye? Glory and snakes! Sartin, he wants ye!"

"If you don't mind, sheriff," I suggested, "I'll telegraph him. Do you object?"

“Sartin no—no objecshuns!” He seemed to relish his liquor.

“I like your ways, Mr. Stebbins,” I said with a smile, and added, “When we get through telegraphing District Attorney Lane, we’ll have something to eat, and more to drink, too, if you feel like it.”

Then I wrote the following to F. F. Lane: “Sheriff Stebbins claims to have me under arrest here—do you want me?—wire at my expense.”

While Stebbins looked on I signed my name to these words, and soon they were being clicked to their destination. Stebbins’s little eyes were wide open with astonishment and confusion. Presently he asked: “Is this here biznuss a durned bluff, George?”

“We’ll let the district attorney be the judge of that, sheriff,” was my bland reply. “Come—let’s go to the dining-room.”

In the meantime I had sent a messenger boy round town to look up Judge Cushion, my senior counsel in the New Hampshire trial. I wanted him near in case of an emergency. He arrived about the time we finished our meal. He sat with us, and I told him of the fate of the indictments. It was news to him, and I received his warm congratulations with satisfaction. Then I told him of the arrest and of the message I’d sent to District Attorney Lane. He smiled significantly. While telling the judge all this, I took no little delight in watching the various changes which appeared on the sheriff’s face. After waiting an hour, I wrote another message, similar to the first, and sent it to Lane. Another hour passed and still no reply from either. In the meanwhile Sheriff Stebbins was getting more and more nonplussed and uneasy.

I wired to the telegraph operator at Keene to know if my messages had been delivered to District Attorney Lane. I showed Stebbins the answer:—

“Both messages were delivered, personally, to F. F. Lane.”

Stebbins was absolutely worried. He had serious doubts that he’d made a smart move in arresting me. Finally, he opened up, with much confusion of speech, a discussion with Judge Cushion.

“What ’u’d ye advise me tew dew, jedge?” he asked anxiously. I secretly enjoyed his discomfiture.

“Well,” said Cushion, “you can hold Mr. White for twenty-four hours, but let me tell you, if District Attorney Lane doesn’t want him, you’ll be in a pretty pickle. It will be a clean case of lawsuit, and you’ll be the defendant without a leg to hobble on. In view of Mr. White’s statement, I can’t see any other outcome. It seems that you’ve arrested him without proper authority.”

“B’ gummany Christmus!” ejaculated the sheriff, wiping his perspiring face with a much-soiled handkerchief. “I hev cut a mus’ melon, an’ no mistake! What’ll I dew, jedge, anyhow? Ef ye wuz in my place, what ’u’d ye dew?”

“I prefer not to advise you, sheriff, but if, as you say, I had gotten myself in your predicament, I’d confess I’d made a big mistake an’ tell the prisoner to go his way in peace, as quick as he wanted to.”

Sheriff Stebbins jumped at this solution of his troubles, like a startled rabbit to cover. I was set free, but I didn’t leave until I had made the sheriff very contrite and fully understand that he had seriously interfered with my lawful rights. Bidding farewell to Judge Cushion, I was about to go, when Stebbins said I’d not be able to get out of Charlestown that night, the last train having gone.

“But I’ll drive ye to Bellows Falls,” he volunteered anxiously, “an’ thet’ll help ye ’long a lot.”

I was truly glad to accept the offer. After a tedious journey, I was at last on board a train *en route* to the metropolis.

During these months I had tried in every way imaginable to get back the property so unlawfully taken from me, but being handicapped by lapse of time and by the prejudices of influential people, I signally failed. It did me no good to make clear to the authorities that my property had been taken from me by means palpably unlawful,—to show that the suit in tort brought in Middlesex County, Massachusetts, by Herbert Bellows, was never tried; for when I sued Sheriff White, who attached my property, he had nothing to satisfy the judgment. All I accomplished was to make plain the illegality of Herbert Bellows’s procedure, and show belated, though ample, proof of the diabolical conspiracy against me.

Two years after my experience with Sheriff Stebbins I accidentally met “Spres” Babbitt on board a New London steamboat on the way to New

York. We met in the saloon cabin. He turned pale and was visibly agitated as I strode up to him.

“Here, Babbitt,” I said, trying to repress my anger, “that was a nice show you made of me at Charlestown.”

He sputtered considerably, mumbled more, and altogether I couldn’t understand what he was trying to say. I went on, “I’ve a great mind to throw you over the rail and make you swim ashore,” and I lunged forward as though to grasp him. He shrank back and trembled violently.

“Don’t be alarmed,” I said; “you’re not worth it.”

He found his voice then and whimpered that he didn’t want to cause my arrest, but that others had urged him to do it. The mean little imp wasn’t man enough to admit his blame, but must shift it, if possible, to other and innocent shoulders.

“Stuff,” I growled; “you see the error you committed—there was nothing against me. Good night, Babbitt, and I hope for your sake we don’t meet again on this boat.”

He disappeared into his state-room and didn’t come out until after we touched the New York shore the following morning.

CHAPTER XX

TALL JIM MOVES FROM COLUMBUS PRISON

A letter came to me in the summer of 1868, two years after the Cadiz, Ohio, bank robbery. It was in June, and upon opening it, with no little curiosity, it proved to be from Mrs. Hammon, a sister of Tall Jim. As will be remembered, Jim was sent to the prison at Columbus.

“If possible, come on to Ohio at once,” the letter said, among other things, “for Jim has reason to think he has a plan to free himself, George Wilson, and Big Bill. As for Jack Utley, he’ll be left to his fate.”

“Well, I think so too,” was my mental comment as to Utley.

Having full confidence in the genuineness of the letter, I made a hurried trip to Columbus and conferred with Mrs. Hammon. The gist of the whole thing was that Tall Jim had found what we called a “right” guard; that is, a prison official who is willing to betray his trust, sell his honor, or do anything in that line provided there’s money enough in it. The guard who promised to do the job said it would cost twelve hundred dollars; that is, he could arrange matters in the tier where Jim’s cell was so that escape to the roof of the hospital would be easy. At that point, outside assistance would be available. Something was said about getting Jack Utley out too, provided all hands were agreed, but I flatly declared that I would not have anything to do with the plot if Utley was to benefit by it. His mean, sneaking ways had poisoned my mind against him for all time. I would not have allowed his treatment of me in the Ohio expedition to stand in the way of his freedom, but his later betrayal of the lads who trusted him was too much for me to overlook. I was firm in this determination, declaring that he must be

left in prison, to get out the best way he could—which was no more than a man of his caliber deserved. I had often heard, when a lad, the expression, “Be a Man or a Monkey or a Long-tailed Rat,” and I had placed Utley in the rodent class, with a bright chance of carrying off all the honors.

“This ‘right’ guard will fix the cells of Jim and the boys on any night agreeable to us,” said Mrs. Hammon, “and we can help them from the hospital roof. After that it will be plain sailing.”

The plan seemed to be feasible enough, after I had been thoroughly informed of it, and I told her so. Also I assured her that I’d go to New York and with all possible haste put it in execution. I was determined to do what I could in the way of paying for and working out any plan that would get Jim out.

In a few days I was in Columbus again, with Frank, a trusted lieutenant, plenty of money, and a lot of paraphernalia, including a stout rope ladder. Sulphur Springs, a town about thirty miles away, was made the base of operations, and there I hired a team for the escape and perfected arrangements. The following Saturday night was agreed upon as the earliest hour we could undertake the job. That night was the most favorable one of the week, for on Sunday morning prison life was apt to be more sluggish than at any other time. Friday evening I met the “right” guard at Mrs. Hammon’s, and we discussed his part of the plot from every standpoint, coming to what seemed to be a perfect understanding. If he kept his agreement, I couldn’t see how there’d be a failure. Mrs. Hammon thought so too. Would the man be faithful in the deal? That was the question. I took Mrs. Hammon aside and questioned her about the guard. She said there’d be no mistake in trusting him. At this I handed him twelve hundred dollars, and he left, promising to perform every detail of his part in the plan, by the clock. How I seemed to distrust him! However, I hadn’t anything near tangible upon which to base my suspicion, so I said no more about it. I had been and was associating with many of the best crooks of the country, and I flattered myself that I knew a “square” one the moment I laid eyes on him. But the best of us are sometimes mistaken. However, I had paid him the price, and we must trust to luck. It was a situation that brought to mind the story of the old farmer whose horse was running away downhill. His wife, Sally, was on the seat beside him. “Trust in the good Lord, Joshua!” she screamed; and the farmer, tugging away at the reins, cried out: “Yes, Sal,

we'll trust in Him till the breechin' breaks, an' then the Lord knows we'll jump!"

The following afternoon Frank and I drove from Sulphur Springs to Columbus with a spanking double team for the "get-away." At nine o'clock that night I was to meet the guard and get the final word, and about midnight the job was to be put through. He was waiting for me, but with much concern and profuse apologies said that the plan could not work that night because a guard upon whom he depended for assistance had been suddenly taken ill and was not on duty. He said, further, that the best that could be done, under the circumstances, was to wait until Wednesday night of the following week.

I left him, very much disgruntled and suspicious, with a promise to meet him on Monday night, when the details of the next attempt would be discussed. I was not at all surprised when he did not put in an appearance then, and I was not much astonished, the following day, when I learned he'd drawn his salary from the state, resigned his position, and flown to parts unknown. We had been well gold-bricked. Swallowing the situation with as much grace as I could, I gathered up my tools, and Frank and I went back to New York, considerably wiser. Only the man who wears the prison stripes can fully appreciate the feelings of the lads when they learned of the "right" guard's disappearance with the twelve-hundred-dollar bribe. I wondered what would happen to him if Big Bill ever crossed his path. Mrs. Hammon was given to understand that any reasonable promise of money made in the future I would attempt to fulfil, but not a cent would be paid until the lads were delivered on the outside of the prison walls.

I heard no more of Tall Jim for twelve months, then another message came, summoning me to Columbus; also the information that Charlie, the son of Contractor Osborn, who did carting for the prison, had been induced by Jim to assist in a plot to deliver him into friendly hands on the outside of the walls.

"Charlie is of standard make," wrote Jim's sister, enthusiastically; "and you can depend upon it he'll deliver the goods or there'll be no coin."

This, Mrs. Hammon said to me in the most positive vein, upon my arrival in Columbus. After the first experience I was somewhat sceptical, but I ventured the hope that the young man would do all that was expected

of him, and more. From the description of him, it seemed to me he was worth a trial. Jim had conceived a plan by which he could be put on the outside of the walls, provided the right sort of a deal could be made with any one of the contractors who carted goods in or out of the prison. It was a ticklish undertaking, and, so far as reaching any of the contractors was concerned, a complete failure. However, through the exercise of some ingenuity, Jim ascertained that the son of Contractor Osborn was addicted to wild ways and seldom had money enough to maintain the pace. Jim put out a “feeler,” and young Osborn responded—responded like the needle to the magnet. Presently he bargained to deliver Jim on the outside of the prison for two hundred dollars spot cash, and the balance to be paid according to any agreement between the interested parties after the success of the undertaking.

I met Osborn, and we discussed the plan. It included the manipulation of a “right” driver of one of his father’s teams, and as a teamster was expected to resign in a few days, it was my duty to furnish the new one to fill the vacancy. Making a flying trip to New York, I perfected arrangements for the second time, and, returning, brought my faithful Frank with me. He took lodgings at a working-man’s hotel, disguised to fit the part, while I went to the Neil House. The day after the teamster resigned Frank applied for the place, but was told to return the following day, which he did, only to find another man had been hired. Now, young Osborn had no control over the hiring of men in his father’s employ, and had he, I doubt that it would have been wise for him to assume the responsibility for a man who might later be suspected of complicity in the escape of a convict. But Osborn was made of the sort of material we wanted in this emergency; indeed, was very much riper for the undertaking than I imagined he would be. We were discussing what would be done next, when he suddenly declared his determination to personally carry out his agreement and without a “right” driver.

Accordingly, two days later, at two o’clock in the afternoon, my man Frank was waiting with a fine pair of bays and a smooth-running buggy, in a field not far from the rear of the prison wall and close by the bank of the Scioto River. He was well out of the view of any one on the walls, but when I came up at the rear of one of the storehouses of the prison, where many of the supplies were kept, I could plainly see him, and I waved the signal that

all was progressing favorably. It was the work of some of the teamsters in the employ of Contractor Osborn to haul supplies and do other kinds of carting between the storehouses and the prison. Charlie Osborn had planned to deliver a certain package from the prison yard to a platform of one of the storehouses. This done, his part of the bargain would be finished. I had not been long in my hiding-place when I saw a team come hurriedly up to the platform. Young Osborn, who was along, was seen to roll a barrel from the wagon to the platform, and then to turn and direct the driver to hasten to the prison again after another load.

No sooner had the teamster disappeared than Osborn cut the hoops away from the barrel with a hatchet at hand for the purpose, and as the staves fell apart with a clatter, I saw Tall Jim, his face looking like death and gasping for breath, stagger into a standing posture, clothed in the convict stripes.

It was as though Osborn had been a magician, and with one sweep of his wand had smote a barrel and transformed it into a human being.

This done, Osborn was ready to take two crisp one-hundred-dollar bills from me and vanish without a word. Then I turned to Tall Jim. In the quickest possible time I had him in overalls and a linen duster which I had brought along, and was half carrying him to the waiting carriage. He couldn't have walked there unassisted, it requiring all my strength to support him, he was so nearly prostrated by his journey in the barrel. He had been in it for nearly an hour, I afterward learned. I am satisfied that we would have had a dead man in the barrel had it been delivered one minute later.

In packing him, he had been so wedged in that breathing was nearly impossible. He was in the most intense pain during his transit from the prison yard to the storehouse. I wondered that he lived. But there was no time for delay—five minutes after his release we were humming away from the scene as fast as fleet-footed horses would carry us, and no stop was made till we had put two miles between us and the prison. Then we halted long enough to give Jim a stimulant and clothe him in a suit I had provided to take the place of the convict garb, which we threw in a clump of bushes. Off we went again, in the direction of Delaware, where we intended to board a train for New York. At times I was worried more than I cared to

confess over Jim's condition. It would not have surprised me had he died on our hands. When we had traversed eight miles, he began to show signs of improvement, and when presently he began to evince some interest in his surroundings, I felt more hopeful; and finally, when he asked where we were bound, I knew that he was all right.

"We're hustling for Delaware," I explained to him, "as fast as hoofs will take us there."

"Now, George, you're making a bull of it," he whimpered, like a petulant sick child; "that's not right."

I insisted that we were doing just what we ought to do, but he persisted in telling me a plan he'd mapped out in his cell, which would take us some forty miles back in the country, and in the very worst direction we could possibly go. Not unlike most men in prison, he was tiptop in building air-castles. He kept arguing until he was about ready to shed tears of disappointment. But I wouldn't give in an inch. At last I could stand his whining no longer and determined to show my authority. It required just thirty seconds to squelch him and his pet scheme. He never again talked about it.

"See here, Jim," I said, in a voice that he knew had a business ring in it; "I didn't come away out here in Ohio to make a blind 'get-away,' so there's two things for you to do—lay aside your advice, or—" and I produced a secret service shield, a United States warrant for John Doe or Richard Roe, and a glistening pair of handcuffs. Amazed at the completeness of my scheme to make certain his escape, Jim "took a tumble to himself," as the language of the crook has it, and subsided.

When we reached Delaware, the good citizens there who took any notice of us at all, saw, as they believed, a bona-fide officer of the law, stoutly handcuffed to a desperate criminal. We left the team with a liveryman there and money to pay all the bills for its use. He agreed to return it to Columbus, and we, boarding a train, in due time arrived in New York without mishap. Tall Jim was free.

Four days later, to our astonishment, Charlie Osborn appeared in New York, with the expressed determination to remain. He was a good sort of a fellow, faithful and greatly to be depended upon, so I gave him a

bookkeeping job in the Brevoort Stables, where he remained until his health, which was not of the best when I first saw him, failed, and he had to seek another and more favorable climate. In relating this story of Jim's escape, I must not fail to say that I have not given Charlie Osborn's real name. I did not think it just to him, and again, why should I harrow the feelings of his father, who was a most esteemed citizen of Columbus.

Charlie had great nerve. Not only did he cast Tall Jim from the prison's interior, but he actually awaited Jim's coming to the storeroom, packed him in the barrel, put the head in the latter, and personally ordered the teamster to do the loading. Tall Jim easily found an excuse for leaving the shop where he was employed on state contracts.

We saw no possible chance of obtaining the freedom of George Wilson and Big Bill, so they served out their sentences. As for Jack Utley, his father had him pardoned. Two years after Jim escaped, he was rearrested in one of my enterprises and sent to a Pennsylvania prison. After serving his time there, he was taken back to Columbus to finish his unexpired term, but luckily was soon pardoned by Governor Foster.

I well remember how Tall Jim looked, though many years have passed since I set eyes on him. He was of medium height, being a trifle under six feet; of sandy complexion, blue eyes, and usually wore a well-trimmed beard. His pleasing address and ready flow of language made him wonderfully useful in our work of canvassing for lootable banks in Ohio. The only son of wealthy parents in New York, he had been given a thorough business training; but he early developed expensive habits and fast companions, the outcome of which was a twenty-year sentence in Clinton prison, New York. Five years later his father secured his pardon from Governor Fenton, and obtained him a position with Thompson & Company, at Broadway and Wall Street, New York, as a solicitor for their *Bank-note Reporter*, a publication devoted to the suppression of counterfeit money. This, with a magnifying glass, which he sold on the representation that it was the best detector of the counterfeiter's art ever devised, was bringing him in plenty of money, and he was on a fair road to financial success, when he met George Wilson, whose acquaintance he'd made in Clinton prison. His good father's advice went to the winds, and back he fell into the old ways. Finally, he entered into a partnership with Wilson, Mark Shindburn, and Big Bill. They robbed a bank near Rochester, New York,

which netted them three thousand dollars. Not long after this I met Billy Matthews and was introduced to Wilson, Tall Jim, and the other members of the Ohio bank looting enterprise.

CHAPTER XXI

JIM BURNS AND HIS CONGRESSMAN PAL

Late in May of 1870, I was driving up Fifth Avenue in one of my finest carriages, for an afternoon spin in Central Park. My name was called, and, glancing toward the sidewalk, I saw Jim Burns, a pal of Hub Frank and Boston Jack, three of the most successful sneak thieves of their day. As an inkling to their right to this credit—from the professional standpoint—I will say that in the fourteen years they conspired together, Hub Frank and Boston Jack were never arrested, and Burns only once. During that time they stole hundreds of thousands of dollars, and spent nearly as much.

“George!” called out Jim, and I drew up beside the curb, as quickly as I could control my mettled horses.

“Glad to see you, Jim,” I said, shaking his hand. He was a happy, handsome fellow, with dark hair and mustache, and on the under side of thirty.

“I wish you’d help me out,” said he. “I’ve got ten thousand in ten-dollar notes, fresh from the United States Treasury. Mind you, they haven’t been in circulation—I’d like you to do that. There’s ten per cent in it for you, without doubt.”

Then, briefly, he told me how he got the money. I thought well of the offer made me and so informed him, and making an appointment at the Sinclair House in Broadway at Eighth Street, we parted.

It seemed that a New England congressman Jim knew was much addicted to the gaming table. They met at Willard’s Hotel in Washington, and later on were gambling together. It was rather of a queer combination, this United States legislator and a sneak thief, but they became chummy,

and therein lies the secret. Of cash the congressman had none too much, without having to settle gambling bills, and when luck was against him, there were moments when it would seem to him that the muzzle of a pistol at his head wasn't the worst thing in the world.

"A clerk in the United States Treasury counting-room tells me that packages of new money lie around loose in there, like so much waste paper," the congressman said to Burns one day, when his funds were low and his conscience hard; "couldn't you get away with one?"

"Nothing easier," was Burns's assuring response.

In Jim's room at the Willard it was decided what to do, and the congressman was to get twenty-five per cent of the proceeds. His only part would be the "stalling." In other words, he would talk to the clerk while Jim took the package.

They went separately to the Treasury Department, one morning about eleven o'clock, to do the job. The congressman, who was well acquainted with the clerk, did his part splendidly. Not a dozen feet away on the counter lay two packages of greenbacks. That could be told by the wrapping paper, though there was nothing visible to the casual observer to indicate how much money each package contained. One was about the size of a square loaf of baker's bread, and the other a trifle larger. The counter was of the old-fashioned open sort, with none of the wicker windows of to-day.

Our congressman deftly talked the clerk's face away from the coveted prize, and at the opportune moment Jim slipped the larger package in the big pocket of his top-coat—a pocket that was designed for the purpose, and had been the resting-place, temporarily at least, of many a "touch." Jim walked from the building and so did the congressman presently, having bade the clerk a pleasant adieu.

Jim and his accomplice met in the former's room at the hotel soon after, and the package was opened. There were in it two thousand ten-dollar treasury notes, twenty thousand dollars in all; but an unbeliever ought to have been within ear-shot to have heard the congressman swear! He about made the room crackle with electricity.

"Why, my share won't buy my cigars!" he cried, in angry disappointment. "Sometimes those packages, the clerk told me, contained a

million dollars, in one-thousand-dollar bills.” Burns considered it a pretty good day’s work, however, and, having paid the disgruntled congressman forty-five hundred dollars, divided with his associates, and left for New York.

Jim’s selection of the larger package was the most natural thing to do under the conditions, but, as I was informed some months afterward, his eagerness to get the most he could out of the job lost him a fortune. The smaller package contained a thousand one-thousand-dollar notes. Just think! A cool million to be had for the plucking, as easily as was the twenty-thousand-dollar package! But Jim took the matter philosophically. The congressman, however, was quite ready to tear his hair.

I met Burns at the Sinclair House the next morning as we’d agreed, and that night I paid him nine thousand dollars for the two thousand ten-dollar notes. Two days later I gave two thousand dollars to my stable partner, Charles Meriam, with instructions to liquidate some personal notes that were about due. He deposited the money to the stable account in the Stuyvesant Bank at Broadway and Astor Place, where I was a large depositor, and with which I had had many cash transactions. In fact, the cashier, James Van Orden, was my friend and debtor. I considered he would do about anything in reason that I asked. Two days after that I made a deposit of ten thousand dollars, seventy-five hundred of which were the new ten-dollar notes. I passed the money to the teller and went back in Van Orden’s office and told him what I had done. I didn’t say anything of the deposit Meriam had made. The Stuyvesant Bank cleared through the Mechanics and Traders’, farther down Broadway, so I requested the cashier not to send the new bills when he made the day’s clearance. He didn’t know why I asked this, but no doubt believed there was something not altogether right. However, as he was a reckless speculator in Wall Street, and I had loaned him money at times when he was much in need of it, and in fact he was indebted to me about five thousand dollars, he said it would be all right.

“Mr. Miles,” exclaimed my second foreman, John McGurk, as I walked into the stable a few days after my talk with Van Orden, “Charley Meriam has been arrested by Colonel Whiteley, chief of the Secret Service men.”

I knew what that meant, and that there would have to be some pretty tall hustling if I didn't find myself in the same boat. No doubt Washington had discovered Jim Burns's steal, and had telegraphed on the numbers of the missing bank-notes and a description of the series. How the clew had led up to me so soon, or rather Meriam, I could not tell. Warning McGurk to keep a close tongue, I hurried to my residence, then at 206 West Twenty-first Street, took from the safe five hundred dollars' worth of the ten-dollar notes,—all I had left,—put them in my pocket, packed my satchel, told the servant-girl not to admit any one from heaven or hades, and went to a hotel. From there I made a visit to a close friend in Thirty-fourth Street, where I found I could hide, and did for more than two weeks. In the meantime I was kept well informed as to what was transpiring outside. Frank Houghtaling, then a clerk in Jefferson Market Police Court with Justice Cox, daily visited my stables and residence, always returning to the court, thence to my hiding-place in the evening. In this way I furnished bail for Meriam, and laid my plans for getting out of the city on an ocean steamer. I had determined to make a dash for Scotland, where my wife at the time was visiting her mother. The good Scottish people had often invited me to come to them, and I had always promised to. I had to smile when I thought what a mighty excellent opportunity had come to help me keep my word. In fact, I was being almost forced to. Among other things Houghtaling did for me was to purchase a ticket on the Hamburg-American Line steamer *Alimania*, which sailed from her Hoboken pier on the 5th of July. I was listed as a first-class cabin passenger, under the name of Edward Whittle.

In the meantime Colonel Whiteley of the Secret Service and a safe expert had broken through the iron gate at the basement of my home, having been refused admittance by the servant-girl, and, driving in the rivets in the hinges of the safe, went through all my papers. Owing to my care, Whiteley gained nothing for his pains.

As the time drew near for my sailing I had my Police Headquarters friends clear the way. Jack McCord and George Radford agreed to be at the pier an hour ahead of the steamer's departure, and on the arrival of my carriage I was to get a certain signal if everything was all right. When the day came, I drove to Hoboken, not, however, without some misgiving that Whiteley or some of his agents would be laying for me. But McCord and Radford were faithful, and when the latter tipped his hat that all was well, I

went aboard and, safely in my stateroom, was joined by them. They remained until the steamer sailed, wishing me a safe voyage.

The trip was a fine one, so far as the weather and passengers could make it. Of course I had no way of knowing what the Atlantic cable, that great interceptor of criminals, would do in the way of providing a warm reception for me on the other side; which naturally bothered me considerably. The passengers were for the most part Germans, but there was a sprinkling of Americans and less of Frenchmen, all of whom went to make up a very convivial party, there being scarcely any illness aboard. Next to my state-room was that of an exceedingly fat German lady and her pretty daughter. They furnished me many pleasant hours, the mother being a most amusing old soul and the daughter a veritable young, but accomplished, chatterbox. Both could speak excellent English, so I gathered that they were making a visit to the “Faderland,” after prosperous years in America.

Well, we arrived in the English Channel, and I began to be more on the watch for trouble. Not far off Plymouth a tug was sighted, and, our vessel slacking headway, several officers in uniform climbed aboard and went to the captain’s cabin. I was unable to tell whether or not they were police officials. Presently they departed, when I learned that some of them were customs officers, and others were officials of the Hamburg-American Line.

They bore news of considerable importance to the German and French passengers, and no less to the captain; that since our departure from America, war had been declared between Germany and France. Before I left the ship, the German and French men and women were ready to pitch in and wallop or scratch the eyes out of each other. To me it was amusing in the extreme. My good fat German neighbor, to whom I expressed great concern over the declaration of war, rose up in her might and exclaimed loudly: “Ach Gott! Have no alarm, for we’ll lick ’em! We’ll lick ’em!”

I decided to debark at Plymouth and go to Scotland by rail. I arrived there safely and was received with open arms. I told the good Scots that I had decided at the last moment to pay them a visit, but to my wife I said that I’d got in some difficulty with the United States custom-house officials.

When it was safe to do so I communicated with my police friends in New York and learned that affairs were pretty hot there and that I was a

very badly wanted man by the Secret Service. But in September, having made a good visit and being somewhat of the opinion that I could return to America and “square” things, my wife and I sailed. I had, however, sent a timely word to McCord and Radford that I was coming and indicated on what steamer I might be expected. I knew that they would be on hand to see me safely landed.

So when the *Europa*, of the Anchor Line, on a Sunday about noon, was pretty near her wharf at the foot of Liberty Street, I had Albert Wright, the purser of the *Europa*, a long-time acquaintance of mine, on the lookout. I had previously confided to him that I might get in some trouble with the custom-house officers. Presently Wright informed me that two Police Headquarters detectives were aboard, having put out in a small boat to meet the ship. They proved to be McCord and Radford. I met them on deck, where they assured me I could land without any fear of being arrested by the Secret Service agents. I thanked the boys for their good offices, and presently my wife and I were let out at the Ashland House on Fourth Avenue. Not long after this she went to our home in Twenty-first Street, but I remained at the hotel.

It was not much after one P.M. that we arrived at the hotel, and but mighty few minutes were allowed to pass before I was in ex-Judge Stuart’s house looking for legal advice and urging him to assist me out of my troubles. He said he’d see what could be done. Perhaps he might be able to settle the case with Colonel Whiteley, the Secret Service chief. Then I went to Cashier Van Orden’s house in Harlem. He fluttered like a bird in captivity when his eyes fell on me. I presume he had a mental picture of my arrest, and the possibility of his own implication, vividly before him. I wanted a settlement of my account in the Stuyvesant Bank. My visit was fruitless.

“Pretty soon,” he said, and I left him, intending to call again for further information as to what he had done or would do.

My next call on ex-Judge Stuart met with some satisfaction. He had seen Colonel Whiteley, and there was hope that I might fix the case. I went to Cashier Van Orden again, and told him that I must get my financial affairs in the Stuyvesant Bank settled; that I wanted to and must withdraw my account, and that I was anxious to get hold of the seventy-five hundred, Jim Burns’s money, I’d deposited there. Again was confronted with

procrastination. Van Orden said he hadn't been able to get to my account owing to the press of business in the bank. He was so sorry, you know.

A week passed in this manner and I was beginning to grumble not a little, when ex-Judge Stuart brought me further good news.

"I have arranged a meeting with Colonel Whiteley for you," he said, "and you're to name the place and time."

"That sounds like business," was my reply; "but are you sure you can trust this Secret Service man? Mind you, he's about the hungriest fellow after reputation in his business that ever came along. He may be putting up a job to nail me. I've escaped the nab too long in this case to have it come now."

Stuart was inclined to be irritated if any one questioned his word or intelligence, so I came in for a round scoring, which terminated in his demanding to know whether I thought he was an infernal fool. I assured him that he was the finest fellow that ever followed in the footsteps of Daniel Webster, whereat he regained his good humor. I named a day for the meeting in the last week of September, and added that I would send my second foreman, John McGurk, with a carriage, to the Grand Central Hotel in Broadway, near Bond Street.

"The carriage will be at the hotel not later than eight P.M.," I told Stuart, "and McGurk will be looking for you in the lobby or reading-room. You and Whiteley get in the carriage, and my man will do the rest."

What was the Grand Central Hotel then is now known as the Broadway Central. It got well advertised at one time, as the place where Jim Fisk, the Erie Railway magnate, was murdered by Ed Stokes, who became the proprietor of the Hoffman House, after serving a short sentence in the state prison at Auburn, New York. Like the Metropolitan Hotel, a few blocks below, the Grand Central was the resort of prominent professional men and Wall Street speculators, and the class of cheap men who trail them. In directing McGurk to drive ex-Judge Stuart to me, I said nothing as to whom the other man would be, not deeming it necessary, for I would have trusted my life in the hands of my second foreman.

"Be at the hotel at eight," I said to him, "and drive Stuart and his companion to me at Eighty-sixth Street and Eighth Avenue. Turn in Central

Park, and I will be there. But don't by any means tell a soul where you are going. Do you understand?"

I knew he did. Then I told him, upon leaving the hotel, to drive ten blocks north, four blocks east, five more up-town, seven blocks down-town, and west to Eighth Avenue, where, if he was not being followed, he might come straight to me.

"Trust me, Mr. Miles," said John McGurk; and I did, knowing full well that neither ex-Judge Stuart nor any one else in the world would be able to make him disobey or prove unfaithful to his promise.

I was at the appointed place ten minutes before nine, with Gus Fisher, a man of my profession. I brought him along to drive the buggy back to my stables, in case I didn't need it. With the same caution that I exercised in getting Colonel Whiteley to the appointed place, I had planned to outwit him, should he prove to be decoying me into his hands. I had one of my fleetest horses in front of my buggy, and with Gus Fisher for an assistant I felt pretty sure of getting ahead of any game the Secret Service chief might attempt. Really I had considerable confidence in Stuart's judgment, but I couldn't afford to proceed blindly.

It was a beautiful night, light with the shimmering of more stars than I think I had ever seen before. There weren't many dwellings in the neighborhood at that period, and Central Park was more like nature intended it than now. All together, the night, with its calmness, was of the kind that should bring forth man's deepest gratitude for having been given being, but I was too much concerned with my planning for liberty unquestioned, to give way to the sentiment. I had left my buggy in charge of Fisher and walked a few rods to a hill thickly covered with trees and a small growth of bushes, where I was in waiting only a minute, or such a matter, when I heard a great clattering of horses' hoofs. I needed no better indication that my visitors were coming. Five minutes later McGurk swung his team into the park and dashed up to the spot where in the shadows I stood. The horses were steaming and their flanks dripping with foam. McGurk had put them through.

Before he could alight from the box, ex-Judge Stuart, followed by Colonel Whiteley, sprang from the carriage. He was delivering himself of some very strong language, in which there was interspersed much profanity,

and the Secret Service chief was not leaving all the swearing to the ex-judge. As I stepped out of the shadows and greeted them with a “Good evening, gentlemen,” Stuart, bristling with anger, exclaimed:—

“Do you take us for thieves, Miles? Are we blacklegs, liars, or what not?”

“Be calm, judge,” said I, soothingly, but scarcely able to restrain laughter. I was fully aroused to the cause of the profanity. They had been given a much longer ride than they anticipated. Besides, the ex-judge didn’t like my distrust of his influence over Colonel Whiteley.

“Damn it,” said Stuart, “why didn’t you drive us to Yonkers and done with it? Do you think that I’ve got too much time on my hands?”

“Never mind, gentlemen,” I replied, in a most conciliatory manner; “you’re here with your bones whole, and I’m ready for business. Of course, when you examine the case from my end of it, you’ll not blame me for being cautious, I know.”

“When I give my word to a man, it’s better ’n my bond,” said Colonel Whiteley; “and this man of yours drove us to hades and back, so it seemed.”

“Yes, and I wasn’t certain but that he’d shake my poor bones apart, at times, with his infernal square turns about corners. Anything follow him? Why, the devil with his cloven hoofs and wings thrown in couldn’t have kept us in sight,” growled Stuart.

“A drink will smooth you out, judge,” laughed I; “and we can’t get it here, so let’s go to Stetson’s.”

I directed Gus Fisher to take my buggy to the stables, and McGurk drove us to the restaurant in Central Park. There we talked business over a few dainties and a bottle of wine.

“By the way, Miles,” Colonel Whiteley was saying, “when did you get to town?”

“About a week ago, on the Anchor Liner *Europa*.”

“And you were in Scotland all the time?” he continued.

“Yes, paying a visit long promised my friends,” I explained.

“And you left town—”

“On the 5th of July by way of the Hamburg-American Line.”

“Sorry I didn’t know it,” said Whiteley, with a laugh.

“I felt no discomfort at missing your *bon voyage*,” said I, joining in the laugh. “But seriously, colonel, I can’t just realize why you were so anxious to get your hooks on me. I got that money fairly through my Broad Street office. I sold ten bonds to a customer, and he gave me ten thousand in new money for them. I don’t know why I should suffer all this inconvenience.”

“Miles is right, Whiteley,” put in the ex-judge.

“But why did you get out of the country?” inquired the colonel.

“For a reason—I wanted to avoid trouble. My man Meriam was arrested—wrongfully, and I didn’t want to get in the same box. There’s no telling what you United States fellows will do to a man, once you get him in your toils.”

“Well, you gave us a good chase, Miles,” said Whiteley. “I had two hundred men looking for you, and it was lucky that you kept out of sight.”

“But you see I came back to you, colonel; that doesn’t look so bad in me, does it?”

“If you were innocent, of course you had a right to feel safe in coming back,” was his doubtful remark. “You were cautious enough in making this meeting, too.”

“For the same reason that I got out last July. Now that we’ve met, colonel,” continued I, “you will no doubt come to some sort of an agreement, in which I can claim my money in the Stuyvesant Bank. The judge, I presume, told you that a meeting between us would, in all probability, straighten out this very disagreeable tangle.”

“You surely don’t mean the seventy-five hundred you deposited in the Stuyvesant Bank?”

“I do, colonel—certainly.”

“You needn’t worry about getting that dust there,” said Whiteley. “It’s at the district attorney’s office.”

“What,” I cried, “not in the Stuyvesant Bank?”

“No. I asked Van Orden about the two thousand your man Meriam deposited, and he pulled open a drawer and showed me the rest of the stuff. I took it.”

“The devil,” I cried. “So that’s the way Van Orden deals with his friends. He didn’t tell me, in all my visits to him after a settlement, that you had the money.”

“I didn’t know that,” said Whiteley.

I thought that it would have been a pure piece of scoundrelism on Van Orden’s part to have sent the money to the clearing-house. It seems he hadn’t, but had done worse—had actually betrayed me. Not because he wanted to do me harm, but for fear of endangering his own neck, the coward. All this I said to myself. Aloud I declared that Van Orden would be held to account for his failure to settle with me.

“It seems to me that you played a pretty high-handed game,” I continued to Whiteley; “about like the burglary committed on my dwelling and on my safe.”

“I wanted the ten thousand five hundred still missing,” replied Whiteley. “I had reason to believe the money was in your safe.”

“But you were mistaken,” said I, scornfully. “The thief who stole the government money and bought my bonds didn’t pay me but ten thousand. How much was missing?”

“A matter of twenty thousand dollars.”

“I suppose you’d been after me just as hard if your thief had bought twenty bonds of me and passed over the whole twenty thousand dollars?” said I, with an attempt at a little sneer, though not wishing to play the game I was playing too far.

“Well, it looks as if you were the victim of circumstances, Miles,” said the colonel; “but it’s too late now.”

“Not to get my money back,” said I, firmly.

“Yes, too late for that,” was his reply and just as firmly.

“You mean that I can’t have the ten thousand dollars that rightfully belongs to me?”

“That’s it, Miles. The money was stolen from the government. It has been identified by the proper authorities. You had it in your possession. That you came honestly by it I shall not dispute. I’m taking your word for that. If I didn’t, you’d have to produce the man who bought the bonds, and perhaps you’d have to go farther and prove what bonds you had to sell.”

“So I can’t get any part of the money?”

“No! It’ll have to go back to the United States Treasury,” said Whiteley. I knew that it was hopeless to argue further. Stuart told me it was.

“It’s mighty hard,” I said, “to shoulder such a loss, but I suppose I must. As you say, I had stolen property.”

That end of the game was up. I had played and lost. But Van Orden’s cowardice angered me. Here was a man who owed me five thousand dollars. His fear had made him, without good reason, betray me.

“I’d like to ask a favor of you, colonel,” I said, as the interview came to an end. “Meet me at the Stuyvesant Bank as soon after ten o’clock tomorrow morning as you can. Will you?”

“I’ll be there.” With that we drove down-town. My man put the gentlemen at their doors, and I went home, satisfied that I’d made the Secret Service chief believe I’d come by the money honestly. But it had cost me nine thousand dollars, not including other expenses, and the end might not yet be in sight.

I was at the bank at ten promptly the next day, and without any warning walked into Van Orden’s office. I thought he’d drop to the floor. His cheeks grew white, and he clutched at his beard nervously. He thought I was in danger of arrest and that he might be involved. I was glad to make him suffer for his treatment of me.

“You—you—ought not to come here, Mr. Miles,” he said in a voice that trembled. “The Secret Service men are likely to drop in here at any moment. Please go away. I—”

“Let them, Van Orden,” I answered savagely. “However, I didn’t come here for trouble. I want a settlement. I must and will withdraw my account

from this bank.”

“Very well, you shall, Mr. Miles—as soon as I can balance the books!”

The door of Van Orden’s room faced the main entrance to the bank. As he spoke the last word, his face grew still whiter if that were possible, and his lips had a purplish hue. I glanced over my shoulder to ascertain the reason. It was obvious. Colonel Whiteley was just entering the office door.

“Good morning, colonel,” I exclaimed, with all the warmth of a long-time friend, for Van Orden’s benefit, and we shook hands vigorously, the colonel not being able to resist my energy without appearing unnecessarily rude.

“Let me introduce you to my friend, Cashier Van Orden,” I added, with a wide sweep of my hands.

“We’ve met,” said Whiteley; “haven’t we, Mr. Van Orden?”

“Well, yes,” responded the cashier. Seeing that I was not likely to be arrested, but still in doubt as to the meaning of the meeting, Van Orden grew calmer and invited Colonel Whiteley to be seated.

Then I proceeded to make things as uncomfortable for the cashier as I could. First I adroitly had Whiteley tell how he learned of my deposit, and how unnecessarily, through it, Van Orden had lost for me the seventy-five hundred. After grinding him with this sort of reminder, not forgetting to upbraid him for failing to tell me that my account in the bank had been tampered with, I demanded that he make a settlement at once.

“I got that money,” said I, “through the sale of Union Pacific Bonds, and deposited it with this bank. Now, I shall hold you responsible. Colonel Whiteley, as a business man, doesn’t think that I’d take those ten-dollar greenbacks, knowing they had been stolen. Do you, Colonel?”

“No, I don’t think you would,” agreed Whiteley.

“Colonel Whiteley tells me that, of your own volition, you told him I was a depositor here and showed him the money I had placed in your care. Now you must make good to me.”

I gave the cashier a look that made him fear I would inform certain superiors of his of a number of questionable money transactions, which, if

made known, would ruin him, financially, professionally, and socially. But that I would not do.

Van Orden was completely floored by the turn of circumstances. Though I knew his promises would be worthless, I could do nothing more than accept them. Colonel Whiteley left the bank presently, and I soon followed. I had had revenge, but it was dearly bought.

Colonel Whiteley and I had met for the first time, though I had been in the line of getting something for nothing about four years. He went away believing me to be an honest man. As for him, I don't know that he didn't turn the nine hundred and fifty ten-dollar notes over to the Treasury Department. But I was to meet him again before many years, and under most unusual conditions. Of this meeting I shall be able to tell in another volume of my series of Bliss books.

As to my foreman, Meriam, when he came up for a preliminary trial, ex-Judge Stuart, whom I retained for him, so confused the young woman who came on from the Treasury Department to identify the bills that her testimony was valueless. As the case depended upon her identification, it fell through, and Meriam was discharged from custody.

All together it was a costly meeting that I had had with Jim Burns in Fifth Avenue. I had started out to make a profit of one thousand dollars, and it had cost me more than ten thousand, besides bringing grief to my beloved wife; for until that time she'd been kept in entire ignorance of the fact that I was a professional burglar.

The New England congressman got more out of the job than I. Lucky congressman!

CHAPTER XXII

WILLIAM HATCH, ESQUIRE, DAY WATCHMAN

After the ingenuity of a master cracksman has been taxed to its utmost in an effort to get the combination numbers of a presumably impenetrable vault, and success seems assured, is it not most provoking, and disheartening too, when the unexpected pops up and thunders down failure upon his head? It was thus in my attempt to possess the millions kept in the vault of the Corn Exchange National Bank of Philadelphia in the winter of 1872 and the spring of the following year.

In December of 1872 Detective McCord, my friend of the New York Detective Bureau, asked me to call on Frank Gleason, the shrewd partner of Andrew Roberts, the notorious bond forger and “fence” keeper. Gleason, so Jack McCord told me, had a large job in the Quaker City, in which I could use a “right” day watchman. I saw Gleason and was given a letter of introduction to Peter Burns, a Philadelphia crook of no small reputation in his neighborhood. I was informed that he possessed a snug fortune at one time, though I will not vouch for it. I do know, however, that he was a protégé of Detective Josh Taggart, of the Quaker City Police Department, one of the slickest Hawkshaws of the period.

As to my introduction to Peter Burns, it led to an acquaintance with the day watchman of the Corn Exchange Bank. His name was William Hatch, though I never called him other than Billy. He was a friend of Burns’s, so you will observe that it was first through McCord, a detective, next Gleason, a forger, then Burns, a crook, who was a friend of Taggart, another detective, that I finally reached the man who was to play a first-class crook

part in my attempt to rob the bank. Perhaps it was Detective Taggart who tipped off Jack McCord. Who knows? I won't say.

Perhaps Billy's early training made him a most intelligent crook. For aught I know that was the case, though I won't pretend to affirm so, but I will declare, however, that he was a politician before he became a bank watchman. He was of middle age, not over strong physically, but passably good-looking, and perhaps a little proud of the latter. Now, watchmen, as a rule, have to be corrupted *after* becoming accustomed to a life in a bank—which nearly always means mingling with those who have much to do with large sums of money. There comes a yearning for wealth, and temptation usually plays havoc with a fellow when it finds him in that mood. With Billy it was different. He seemed to have been corrupted before he alighted at the bank watchman's station. At all events, I found him ripe for almost any crooked scheme in which he could use his position in a bank as a means to financial success. How I employed his pliable talents and with what willingness he used them, and with what degree of success, I shall in due time demonstrate.

The Corn Exchange Bank, one of the most conservative, yet strongest, financial institutions in the Quaker City, was situated on Chestnut, at the corner of Second Street. It had a large patronage and was never without watchmen inside, two at night and one in business hours. The watchmen employed at night were on duty from six in the evening until seven in the morning, with the exception of Sundays and holidays, when they were called on for day duty as well. But to business.

My first move was to learn something about the vault. It was on the main banking floor, in the open, and constructed of heavy solid masonry. This, almost impregnable because of its excellent workmanship and thickness, was further guarded inside by a wall of steel T rails, such as are used for railway tracks. Leading to the vault there was an especially strong door of fine steel, and still another of steel lattice work. In the vault were two steel safes, in each of which was a strong box, or money chest. In these chests were stored the millions of cash and paper constituting the entire funds of the bank.

The outer door to the vault was secured by an improved Yale combination lock, and the inner door was guarded by a Yale key lock. The

receiving and paying teller each had charge of the combination of his respective safe, and each had the key to the money chest in his safe. What I found early in the game, of considerable import to me, was the fact that Billy had, as the day watchman, practically entire control of the bank for an hour or less every business morning. As I have said, the night watchmen finished their work at seven A.M., when they were relieved by Billy. The clerks reported for duty an hour later.

I determined to begin my scheme at once by making a call on Billy at the bank, and it wasn't an unexpected one either, for I had conferred with him. Accordingly I journeyed there and was ready to be admitted when the night watchmen took their leave. I was careful that they should not set eyes on me, as there was a big job ahead and big game in it, and I knew the greatest amount of caution was necessary. I waited in sight of the Second Street door, the main entrance being kept locked until the arrival of the clerks. Scarcely had the night watchmen's footsteps died away, when the Second Street door was cautiously moved ajar, and Billy's head popped out. Making a careful survey of the surroundings, and evidently satisfied that the moment was favorable, he motioned me to enter.

I grunted with satisfaction. It was a long way to success, it occurred to me—getting inside of an institution of this character. The thought was but of the moment, for I had work to do and precious little time in which to do it. Directly I had taken in every detail of the bank room. I made a clear negative of it, and, so to speak, stowed it away in my optical gallery, for future observation when perhaps daylight might not be at hand. The vault, as Billy had told me, was a tower of strength. In fact, I can't recall of ever having seen a stronger one. Added to this was another obstacle to be overcome, and that was the situation of the vault. It was in plain sight, through a window, of any one passing in Second Street. I carefully examined its outside mechanism and took pencilled notes and mental ones also. I did all I could before the time arrived for the clerks to come on duty. Having made a general survey, and, in fact, studied the situation fairly well, I knew that my next move would necessitate a return to New York. Therefore, bidding Billy be of good cheer and assuring him that everything looked hopeful, I journeyed back forthwith.

First, I paid a visit to the Yale Lock Company's salesroom, representing myself to be a down-town business man in search of a first-class

combination lock of American manufacture.

“I want,” said I, to the gentleman who attended me; “an American lock for one of my correspondents in Glasgow, Scotland. It is to be used in a banking office.” The salesman was certain he could accommodate me and did, by permitting me to examine many intricate locks at my leisure.

“This one will suit me,” I concluded at length. It was a duplicate of the Yale lock on the outside door of the Corn Exchange Bank vault. He offered to forward it to Scotland, but as that didn’t serve my purpose, I paid him two hundred dollars and said I’d take it with me at once.

In a few hours I was back in Philadelphia, and the next few evenings I made my headquarters at Peter Burns’s house. For the time being I became the professor, and Billy, the day watchman, the pupil. He was very apt, I must confess,—far ahead of John Taylor in the Ocean Bank job, though the latter was most satisfactory under instructions. I put Billy through the same course of study to which Taylor had been subjected. I told him of the part Taylor played in the Ocean Bank job and the profit that came to him through its success. In an exceedingly short time I had the day watchman well taught and almost to the bursting point with enthusiasm. Having him so well in hand, I instructed him to try his luck on the vault lock. It wouldn’t surprise me, I told him, if he wasted many hours before attaining success. It was agreed that I wait near his house in Spring Garden Street, each evening, in quest of his report. Accordingly I was on hand. Several times I met the lad, only to know by his face, before he could tell me, that he was meeting with disappointment. It was, perhaps, the tenth evening after I had given him his first lesson on locks that I was in the vicinity of his house, anxiously waiting for him. Presently I saw him coming, a considerable distance away. The street lamps shed none too much light, yet I could divine, from his general manner, that he had good news. When he drew near so that I could see his face, it was lit up with the fire of success. I knew it right away. He was excited to the limit.

“I’ve got it, for sure. I’ve got it,” he exclaimed. His enthusiasm would not have been inappropriate in a better cause. I hadn’t time to ask him how it was accomplished, when he continued:—

“When they unlocked the vault this morning, I felt certain that I’d got my eye on the right combination numbers.”

“And you’d like to have tried the door right away?” I asked, and my eyes twinkled with mischief.

“My Lord!” he exclaimed, “it seemed I couldn’t wait till they all got out. I wasn’t fit for my regular work the rest of the day.”

“Well, the clerks went away, and you—”

“When they’d all gone,” interrupted Billy, “I tried my numbers, and they opened the lock the very first time.”

“How do you know you unlocked the vault door?” I inquired, half seriously and half teasingly.

“I proved it,” he whispered in my ear; “I proved it. I threw back the bolts and opened the door. Isn’t that proof enough?”

I admitted it was. Billy went on: “This getting combinations to safes is dead easy. If I could only be inside the vault when the tellers unlock their safes, without attracting attention, we could soon put the Corn Exchange Bank out of business.”

Now, surely here was an enthusiastic bank employee with his enthusiasm misdirected. I saw right away that I must cool him off if I was to depend upon him for a level head in an emergency. Brains and coolness, in my business, were the corner-stones of success.

“See here, Billy,” I said warningly, “you mustn’t let your shrewdness in getting combination numbers give you a big head. Keep your skull level and leave the combinations to the tellers’ safes to me. I’ll devise some way to get at them.”

Encouraged by the lad’s good fortune, I began immediately to take advantage of it.

“Get me,” said I, “a wax impression of the little key to the second door of the vault; that will be your next job.”

Later in the evening I met Billy at Peter Burns’s, where I gave him the right kind of wax to make the impression; and, too, I put my pupil through another course of my art. I showed him, with extreme care, how to get the impression of a key. Again was he apt in acquiring the knowledge that all successful crooks, in the bank-breaking line, must have. At the end of two

days he brought me an impression of the desired key, and from it I made a duplicate.

“It fitted at the first trial,” announced Billy the following evening. “My work was fine and yours must have been better.”

“It was easy to make a right key from a fine wax impression,” I replied, in a complimentary way.

The time had come when I must make my second visit to the bank, and that for the purpose of sizing up the tellers’ safes; so it was agreed that I should meet Billy at the Second Street door of the bank, as before. Unto this day I haven’t forgotten that visit. Even now I marvel at our escape from what seemed to be certain exposure. Withal, I wasn’t sorry for what happened, as it served to prove the sort of metal out of which my “right” watchman was made.

The night watchmen leaving the bank at seven A.M. and the clerks’ hour being eight, it behooved us to keep tabs on the minutes in order that I be allowed time in which to quit the banking office unobserved. We had been working on the tellers’ safes for half an hour, so it seemed, when a sharp rap came on the Second Street door. My hair rose on end, and as for Billy, he, for an instant, shook like a leaf. I glanced at my watch—it was just eight o’clock.

“Damn!” I whispered; “it must be one of the clerks. What’ll we do?”

I saw a fairly promising job knocked in the head. For Billy it meant undoubted exposure, and that was as good as a failure—to me. I’d never get another watchman of his caliber, I knew.

The main door leading into Chestnut Street was locked and Billy had no key—which I well knew. As for going out the Second Street door, the way I had entered, that seemed to me an improbability. I confess I was stupefied. Though it has taken several minutes to jot down these impressions, I assure my readers that hardly as many seconds were consumed in the actual happening. It may have been the fix we were in that brought to the surface the staying qualities possessed for the emergency by Billy. The ague which had tackled him for the instant was quickly shed, and, catching me by the shoulder, he shoved me out of the vault.

“Close the vault door right!” he whispered, “and get in the vestibule of the Chestnut Street entrance and wait there until you hear me in a fit of coughing. Then out you go by the Second Street door. I’ll let in the clerk—for it’s one of them, I know—and take him in the president’s office.”

I was in Billy’s hands and so must trust to him. Really, I began to feel safe. It took only a moment to lock the vault and less time to reach the vestibule; meanwhile Billy leisurely walked to the door. The knocking had become of the impatient sort by this time. When he finally opened the door, it was with the air of one who’d been in a mighty hurry. I could hear every word said.

“Are you dead, Billy?” was the greeting to the watchman, as the impatient knocking one stepped in; “it’s after eight, and I’ve been rapping an hour.”

“Sorry, sir; but I was in the cellar, fixing up the fires, when you came. I heard you from the first, and hustled for all I was worth.” This was a bushel-basketful of apology, and, being well put, had the desired effect. The perturbed clerk calmed down immediately.

“By the way,” said Billy, as he stepped in President Noblit’s private office, “I saw one of our old friends that used to be employed here. I met him last night on the way home—poor fellow!”

It didn’t seem to me that Billy had chosen good bait with which to catch the clerk, but it did the work, so what matter. In a moment I heard them both in the private room, and Billy was saying something about the former bank clerk being on his uppers, and that it was a case sad enough to fetch tears to a marble statue. It may have been that a shower of tears attacked Billy, for suddenly he was choking like a man with a terrible case of tuberculosis.

“Good for Billy!” I thought, as, stepping out of the vestibule and passing within a few feet of the office door, I quickly found myself in Second Street. Out in the free air again and clear from exposure, I felt glad, as can well be imagined. And as for Billy, he was a jewel, from my viewpoint, doubt not. Afterward I learned that not a thing had been left by us, in our hasty exit, to arouse suspicion. One resolution I formed immediately, and that was, to keep a more accurate knowledge of the

passing of time. I don't know that I had ever before, or have since, been guilty of such palpable carelessness. It might have been an expensive experience.

Not much was accomplished by the visit, either. I ascertained that the locks on the tellers' safes were not of the make to which my "Little Joker" could be attached and the combination numbers purloined that way. I confessed disappointment, no doubt, because everything seemed up to that time to favor me. However, I adopted a unique method to obtain the numbers, and it shall be seen with what success.

Perhaps it may be in keeping with my desire to assist the banking world to say, right here, "Follow me closely, and benefit thereby, if I show any carelessness on the part of those who had the keeping of the combination numbers of the Corn Exchange Bank." My varied experience in manipulating combination locks and with those in charge of them made me confident that I could find recorded, somewhere, the numbers of the tellers' safes. I had always believed that nine tellers out of ten would not tax their memories with lock numbers, but would, instead, record them on a slip of paper, or in a private memoranda book; so on this supposition I determined to make an investigation ere I resorted to the use of explosives on the money safes. What was more reasonable than that the records were kept in a private drawer?

Again was Billy to be useful. I started him on a silent hunt with instructions to "Wait, be patient, and take advantage of the simplest thing." For several days, he kept the keenest sort of watch. Finally, to our joy, the paying teller left his key, quite accidentally, in the lock of his private drawer; and Billy improved the opportunity and most effectually. He got a wax impression of it, doing it slyly enough, and I made a duplicate. It required a few trials and a number of extra rasps of the file to make the key right, but, persevering, we eventually were rewarded. One morning Billy opened the drawer, and, as I hoped, discovered a slip of paper containing three numbers. He made a copy of them, and when I tried the series on the paying teller's safe, the door came open, and we found ourselves right up to the money chest. As to the latter, why, a bandbox would be no easier to break! This much accomplished, my faithful Billy and I turned our attention to the receiving teller's safe. Ten days later we had mastered that by the same methods. Naturally we felt elated—we were down to the two strong

boxes which contained the cash. No doubt we could have gotten duplicate keys to the chests, but, as I have said, they could easily be forced. Thus concluding, I wouldn't put myself to further trouble on that score. Besides, it was dangerous work—this frequent injecting of my uninvited presence in the bank's vault. By some unforeseen accident I might be discovered in the midst of our secret work.

But to proceed. It seemed to me that the time was about near to plan for the removal of the treasure. The surroundings on the outside of the bank were such that I could see, from the start, that some smart engineering must be done. One factor in the coming loot of which I would not lose sight was my faithful Billy. If the success of my plotting could be assured through the blame falling on him, then I was prepared to forfeit all, though I had gone ever so far. He had been too "square" in his dealings with me to be sacrificed. That I was determined upon, no matter what others might think. Suspicion should not fall on him. He was willing enough, though, that the trick be "pulled off" in his time.

"I'll take my chances of arrest, George," he said, "anything to get away with the cash." I would not listen to him, though it was advanced that in the event that he was arrested we might make a dicker with the bank,—in other words, obtain a sacred promise of his release, provided we returned to the bank a good-sized sum of money as a ransom.

The game was a big one, and, being set on making it a clean sweep, not unlike that of the Ocean Bank, I held to my own ideas and proceeded accordingly. Although it was thought by the bank officials that the two night watchmen remained at the bank during the daylight hours of Sunday, while Billy was absent on leave, it was not so entirely. One of them occasionally would absent himself for several hours, usually going to his home in Pine Street. My plan was to profit by this watchman's negligence—loot the bank in his absence. We would then have only one watchman to deal with. Outside of business hours, as I've said, the Second Street door was the usual entrance to the bank. It was secured on the inside. The Chestnut Street door was never open on Sundays or holidays unless President Noblit chose to use it, for he carried the key. On an occasion or two, so I learned, he'd surprised the watchmen by coming in that way. It happened seldom, however. So, with one of the watchmen out of the bank for two or three hours on Sunday morning, it seemed to me that the loot could be done. We

could better get at him, I argued, if one of my associates got inside before the victim really knew who his visitor might be. If an entrance were gained by the main door with a key, he might, momentarily, be thrown off his guard in the belief that it was President Noblit coming in. There was another argument which seemed to favor an entrance by that door: it was infrequently used out of business hours, and therefore would get less attention from the watchman. He would more than likely linger in the vicinity of the Second Street door, if he had any inclination at all to perform his duty faithfully. Thus believing, I planned to overcome the lone watchman. Accordingly I made a duplicate key to the Chestnut Street door from a wax impression supplied me by Billy.

About seven o'clock in the morning of a Sunday in February, two associates and I were waiting near the bank. I had with me Tall Jim and Little Dick Moore, both of whom I could depend upon in almost any emergency. I had the Chestnut Street door key, and the surroundings were such that I felt confident of soon having in my possession the long-contrived-for cash. But it is the unexpected that is always popping up to make one glad or disappointed, as the case may be. I had schemed to overcome one watchman or possibly more, inside the bank, but I hadn't looked for interference from a watchman on the outside who had no connection whatsoever with the bank. It so happened that Tom Davis, in the joint employ of several warehouses not far from the bank, was on his way home that morning after a night's work. Confound his eyes, I would that they'd been full of sleep, but they weren't! Upon seeing three strange-looking men lingering at different points near the bank, he became curious. The greater his curiosity, the more dangerous he was to our game, for soon he grew suspicious. It wasn't policy for any of my party to run, for that would set afloat the rumor, or even worse, the truth, that an attempt was being made to rob the bank, so we stood our ground. It didn't avail my associates—they couldn't bluff it through. I did—somehow. They were charged with being suspicious characters and locked up. When Tall Jim was searched, a pair of handcuffs and a set of false whiskers, the latter very much like those worn by one of the night watchmen of the bank, were found on him. This, as I feared, gave rise to the impression that the prisoners were plotters against the bank. To make matters worse, a few days later another suspiciously acting stranger was arrested in the neighborhood of the bank. He proved to be Big Kid Wheeler, an escaped convict from the

state prison at Auburn, New York. He was a well-known crook among the grafting fraternity. The trio went to prison, and thus was my force depleted.

But I didn't let the lads go to prison without an effort to save them. The day after Little Dick and Tall Jim's arrest I went to my influential friends, who introduced me to Colonel Bill Mann, the district attorney. I had been told he was a very pleasant gentleman and usually open to a deal. I had twenty thousand dollars, one half of it for him and the other to put up as cash bail, but he declared it was impossible to accommodate me. The bank officials, he said, were pressing him too hard, and that to consent to bail for the prisoners would seem like tampering with justice. With evident regret, he said:—

“I need the money, young man, but I can't take it.”

I urged him with all the persuasiveness I possessed to come to my relief, but he, with repeated regrets, said he must not. So Tall Jim and Little Dick went to prison for two and a half years, and the Big Kid was returned to Auburn prison.

Thus came to naught, for the time being, the energetic work of Billy and my planning for three months. But I wasn't discouraged—the game was too large. I would not go down to defeat so easily.

CHAPTER XXIII

THE PLOT THAT FAILED

Despite the discovery by the bank officials that a plot was afloat to obtain the riches of their vault, and regardless of the fact that I had lost three of my trained men, I determined to push on to success. It was in vain that I more than half regretted my decision not to “turn off the trick” on a week-day morning, while Billy was on duty, inasmuch as he had offered to take every risk. “But,” I said to myself, “why wail over what can’t be undone? It’s up to you, George, to act.”

More than ever I needed success. My men were in jail, necessitating the engaging of others, and I wanted to obtain the Corn Exchange’s millions, knowing that I could, by a judicious handling of it, get them to freedom once more. I prided myself upon never leaving those associated with me in the lurch, when there was any way reasonable to assist them. I must keep my record good in this respect—my fellow-conspirators must be taken from jail. Therefore I continued to scheme, assisted loyally, as before, by my faithful Billy. One thing I was fully cognizant of, and that was, I must not be seen in the vicinity of the bank again by any one who might prove to be a meddler. I might not be so fortunate as to escape arrest a second time. To lose my liberty would entirely undo my careful plotting of months. Thinking how I must proceed next, my teeth came together with a click as I said: “Tom Davis, I’ve got to reckon with you. Where’ll my heaviest guns find you weakest?”

Well, I began to train the guns, and I soon found the most vulnerable spot in Tom’s armament of honesty. If I say it was through his pocket, I may be correct, but of that I’m not certain. He may have loved money, but I ascertained there was something he loved more than that, vastly—faro. He

was simply infatuated with the game—not with the money he might win. The excitement of winning money was, by far, more pleasure to him than its possession. It hadn't taken much shadowing to inform me that he would feed his craving at the gaming-table until every dollar he'd earned was gone, and then rise with a sigh because he hadn't more to satisfy it. He would play at no other game. No other opportunity to place money in the balance could infatuate him. As the serpent possesses the power to charm the bird, so had faro the power to rob Tom Davis of his senses.

Well, I fired a hot shot at him, and it landed. Every one addicted to gambling can be reached with money in one way or another. Armed with this knowledge, I consulted with Detective Josh Taggart as to the possibility of winning Davis's friendship by a monetary consideration. Taggart wouldn't advise me at all, confessing he didn't know how to handle him. Having ascertained how thoroughly Davis was wedded to faro, I, however, determined to fling final success on a turn of the card and take the long, long chance.

I knew that Peter Burns was friendly with Davis, so at an opportune time I, accompanied by him, went to the latter's house. I say opportune time, for the reason that a day or two previously he'd played at his favorite game, and as a result wouldn't for many days recover from his loss. To find my victim in a mood like this, it seemed to me, was fertile soil in which to sow the seeds of corruption. We called on Davis on South Broad Street on an afternoon, and I was introduced to him as Burns's personal friend. I marked well how the day watchman's eyes opened wide when they rested on me. If I had thought he wouldn't recognize in me the man who escaped on that memorable Sunday morning, it would have been too late, but as I didn't care, I quickly let him know that the recognition was mutual. Upon recovering from his astonishment, he said, none too cheerfully, "Seeing that you've come boldly to my house to see me, I'll try to forget that we've met before."

I replied that I was sorry we hadn't met for the first time this day, and it was very generous on his part to thus consider me, adding, "I committed no overt act in being near the bank, and as my associates have both been jailed for presuming to commit that act, there wouldn't be at this time any compensation to you for hauling me up."

Several visits were made to Davis's house, and we grew quite friendly. Once he expressed the dread that some one would learn the identity of Burns and myself, which might get him into serious difficulty with his employers. I assured him that we would be careful. More than once I broadly hinted that it was hard luck to be short of money, and sympathized with him or any one else who might be in that predicament when they needed it most. At the final visit we had an extremely warm conversation on the merits of my case. Finally, having decided that I could win Davis, I said: "All I ask of you is not to interfere with strangers you may see hanging about the Corn Exchange Bank. You're not in its employ, and you're not responsible; keep your eyes shut tight when you happen to pass through that neighborhood. In fact, don't go there! You can find other streets with good sidewalks."

"What you ask, I reasonably can do," Davis replied, after some thought, "but I may lose a chance of catching the bird in the tree. The bank officials wouldn't forget me then, I'm inclined to think."

"Well, you haven't got rich over interfering with my plans," I said, "and it's true you might get a stake if you caught that bird in the tree, but you haven't got it yet. Now," I went on, taking a big roll of greenbacks from my pocket, "you must know something about bird-catching when you play faro, and how mighty uncertain it is."

Davis started from his chair. Not unaware was he of the fact that employers who take the pains to ascertain what their employees do are very apt to distrust those who gamble much. I knew, too, that he was thinking hard, and I could see that his eyes curiously fastened on the bills, as though he would fathom how much I had. I could have told him that I held eight one-hundred-dollar bills in the roll, but said nothing for fully five minutes. Before Davis spoke I realized that he would fall. His eyes betrayed him.

"Since you look at it in that light," he said, slowly, and in a half-whisper—for, though we were alone, his wife, a goodly, honest dame, so far as I could tell on short acquaintance, was in an adjoining room hushing a babe to sleep on her breast—"since you look at it in that light, I won't see any one—"

"Since you look at it in that light, Tom," said I, copying his words, "there are eight hundred dollars," and I forced the bills into his hand. I must

say his fingers trembled, and let me say it truthfully to his credit, if credit it be, his hand seemed to close on the money most reluctantly. But I had him, and no faltering on my part would lose me the victory. To make the corrupt bargain more binding, I said, meaning every word, which Davis knew full well: "If anything comes off, you'll get ten per cent of it; better promise I can't give, for my word is as strong as my bond."

Davis sat rigid, grasping the money. His big fist shook, and there was a dazed look in his eyes.

"No—man," said he; "don't offer me anything like that. I don't want the bank's money. I'll just keep away—that's all."

"Talk no more about that now, Tom. We will let time deal with the rest. Just keep your hands off and your tongue dumb; don't breathe a word about money out there," and I pointed to the next room, where came sounds of a fond mother crooning to her babe. "Good-by, Tom," were my parting words. He was a sorry, pale picture, I trow. Many times since I've been smitten with remorse; but then it was different then—years change one so. It had not taken long to corrupt Davis, but he was a hard proposition, much harder than I've been able in my poor way to make clear.

Having been successful, it was time to resume my efforts to loot the bank. I had the combination numbers of the vault and safes, and all that I must do was to provide a means of getting into the bank unseen and carry off the "dust." During the days I labored with Davis my faithful Billy had not been idle. President Noblit had been induced to hire an outside watchman for the bank, whom we could use for certain purposes. This advantage had been the result of the discovery of the plot to rob the bank. I smiled at Billy's cleverness when he told me that he'd got the new watchman job for his brother, who would be "right" for us.

In proceeding with my plans it was deemed wise to keep an eye on Tom Davis. I comforted myself with the belief that he would not interfere, but a vigilant watch was kept on him by one of Josh Taggart's underlings. Besides, Billy was to report to me if he saw or heard of him in communication with the bank officials. Once Taggart reported that Davis was acting very suspiciously at times, and that there was some reason to doubt his good faith. Though bothered a little by this turn of affairs, I kept on with my plans. Occasionally I saw Davis, but I did not allow him to

know I had any doubt of him. As a matter of fact, I hadn't seen anything to break my faith. To be on the safe side I told him of certain plans, which were diametrically different from those on which I was proceeding. In this way I hoped to steer clear of an ambush. In other words, I didn't tell Davis that I intended to "pull off" the trick between half-past eleven o'clock on Saturday night and two o'clock Sunday morning of the next week. During these hours I knew that he usually stowed himself away to sleep in a Front Street building, several squares from the Corn Exchange Bank.

At my first attempt on the bank I had shipped one of my teams to Philadelphia as a means of "getaway," so similar arrangements for a dash toward New York were completed for the second attempt. I expected to be well out of town by daylight, and, having a good start, the rest, under ordinary conditions, would be easy. That there might not be any mistakes, I went over the whole plan with Billy. He was cautioned to see that his brother attended to his duties strictly, except on the night of the robbery. In other words he must remain on his post, and not wander to a near-by saloon for a great deal of whiskey, and a little heat, the weather being cold. Billy promised that his brother would not miss the chance to help make success for us. Among other things I decided on, was to use Billy's brother as a blind capture; that is, take him in the bank bound and gagged as though he'd been caught unawares on his post of duty. This would ward suspicion from him and Billy as well. I had several new associates who'd come well recommended to me, and I put them through the lesson,—at least, told them all it was needful for them to know. Two of them had police uniforms supplied by Josh Taggart. They were to enter the bank by means of the duplicate key to the Chestnut Street door. Being in the uniform of the regular police, the night watchmen would be thrown off their guard, and to add to the tangle my associates would pretend to arrest them for a violation of some one of their duties. When this part was played correctly, I and the other lads would come in with the bound outside watchman. At that moment the fake coppers would throw the night watchman or men to the floor and do the gagging and binding trick, and the way would be clear to the vault!

With these plans well in hand, it seemed to me that all that lay between me and success was the wait for the important day to come. For the second time, after months of scheming and counterplotting, I had apparently

surmounted many difficulties, and it seemed to me that perseverance was about to earn its oft-boasted title of a reward winner, in my case. It lacked only eight days of the Saturday night for which I anxiously waited, when the unexpected again happened. I swore roundly, not at President Noblit, but at another. With vigilance that should be the possession of every high official in the banking world impressed with the responsibility of handling the property of others, the president paid an unexpected visit to the bank early in the morning hours. Naturally, he wanted to know if his watchmen were attending to their duties. And simply enough, he looked for the outside watchman first. Billy's brother was nowhere to be seen. President Noblit went to the nearest saloon, and hadn't to go any farther, for there the watchman was, seated comfortably next to the stove. He was two blocks off his post of duty. Thus ended the bank watchman career of Billy's brother, and with him went my second attempt to loot the Corn Exchange Bank. A new watchman for the outside was engaged, and he proved to be the right sort of a man—for the best protection of the bank. I wasn't the only one who cursed Billy's brother, for Billy took a hand, and he wasn't at a loss for words.

Side-tracked again as I was, yet Billy remained stanch, while I was still filled with determination to make the enterprise a success. After a few weeks' rest, I began to scheme once more. We saw that the inside routine of the bank was about the same, the combinations to the vault and safes remaining unchanged. The only noticeable move made by the officials was the purchase of a building adjoining the bank on the Second Street side. I suspected that President Noblit had done this to defeat any tunnelling scheme that might be undertaken. This, with the diligent new outside watchman, constituted about the only difference in the outside conditions of the bank from those existing at the second attempt.

"Three times and out" was an expression I had often heard when a boy, and it seemed to me in this bank-breaking enterprise in which I was having so hard a time, that the saying should have been, "Three times and win." At any rate I resolved to make the third attempt to enter the door at which I had so long been knocking for millions. Ay, time had become reckoned into months since I began the plotting. Much thought, patience, pride, besides trusted associates, had been expended in my efforts. I had reached a point where it seemed to be out of the question for me to surrender, as long as I

was free of arrest. And the game most assuredly was worth fighting for. A goodly sum of money already had been put in the enterprise, but I realized that more must be used in the next attack. Weary of combating obstacles on the outside, in the form of interfering night watchmen, besotted tools, and the like, I was determined to strike from another quarter. I would work from the roof of the bank. To further this plan, the leasing of a store or an office was necessary. Not long after this decision I had hired a second-story loft in a building at the rear of the bank, devoted to the wool business. The loft, the roof of which was on a level with the bank's, appeared to possess just the vantage of which I was in quest. Within a few days a very busy lot of wholesale dealers in tobacco took possession of the loft, and it is needless to explain that these active men were myself and followers. Having established the business, I proceeded to provide a safe working road from the tobacco house to the scuttle of the Corn Exchange Bank. Of course this was done at night, when honest folk were, or should have been, in bed. The scuttle on my building was easily manipulated; and after a night or two of investigation I had succeeded in getting a clear passage from the bank scuttle down through the various floors, to the iron door which separated me from the banking office. This door was a pretty difficult proposition to solve. It was ponderous and strongly bolted and barred on the inside. To cut through it alone would have been a tough job, but with two watchmen in the bank's office it was out of the question. An entrance would have to be obtained by quieter means. It might be possible to corrupt one of the inside watchmen, but that would mean weeks, perhaps months, of valuable time. No; Billy must come into play once more. I would demonstrate how faithful to duty the inside watchmen were. If they were watchful to the extreme, why, what I had in mind would be useless in forwarding the enterprise.

Meeting Billy, I said: "Now, lad, I want you to leave the iron door leading from the office to the upper floors unlocked when you quit the bank at six P.M. I want to test the night watchmen. If they fail to discover your neglect, why, well and good for us."

The next evening Billy carefully left the door unfastened, and at the midnight following I made an inspection. Good—the watchmen had not locked it! There was hope of getting to the vault by this means. But I would not depend upon one instance of oversight on the part of the watchmen; three opportunities must be given them to prove their negligence. If they

thus condemned themselves, it would show to me that they trusted to Billy alone as the caretaker of that door. For the next two days the experiment was kept up. Upon making the nightly visits, I found the door as Billy would leave it. This seemed to be the best kind of proof that I might depend on getting at the vault through the iron door.

With this favorable outlook I decided to “turn off the trick” the next Saturday night, only forty-eight hours away. Billy was cautioned not to fail me. His task would be to leave the door unfastened, without fail. Incidentally, he was to take a look at the scuttle of the bank. About that, however, I was not much concerned, for it had been left unlocked every night since I began the work. Not over cautious were those inside watchmen. In every other respect, so far as I could determine, I had the plot well in hand. For the third time I had my team at the beck. In order to make the “get-away” quicker, I provided a relay of horses which would take the “dust” to New York, where it would never be in the possession of the Corn Exchange Bank again. I felt confident that a third disappointment wasn’t due. Surely perseverance such as had been shown would finally be rewarded, even though the recipient was a burglar.

Again a night for action came and found me ready. My associates were well drilled. Billy the faithful one—to me—had obeyed, implicitly, his instructions.

“The very last thing I did,” he assured me, that evening, “was to examine the scuttle of the bank and the iron door to the office, and both were left unfastened. All you’ve got to do is walk in on the watchmen.”

A more favorable night for the loot couldn’t have been selected, had I been the creator of the weather. It was as black as could be. In fact it was as black as a black cat would look in a dark cellar, and the moon, thanks to her queenly favor, wasn’t to put in an early appearance that night. That our working across the roofs to the bank might not be detected, I had provided thick woollen blankets, which were laid, and soon there was a pathway as soft and yielding to the foot as you please. It would have made a fine stepping for a dainty bride from church to carriage.

In the neighborhood of two o’clock Sunday morning, I sent one of my associates over the roofs to the scuttle of the bank, with a small kit of tools in case we should need them. As to the hour for making the strike, I thought

I would wait until half-past four, instead of earlier. The watchman who was accustomed to shirk his duty usually left at that hour of late. And it seemed to me that we might meet with better success by delaying, for there would be but one watchman to overcome. My bogus policemen would be quite capable of dealing with two watchmen, but there was less chance of failure, however, in handling one. I hoped to be in the vault and have its contents over the roof and in my loft at five o'clock, and soon after that on the road.

A few minutes before four o'clock I joined my associates, and we went down in the bank building. A cold sweat broke over me as I tried the iron door. It would not budge. The watchman hadn't gone yet, but I felt certain that something was wrong. Was another failure to be scored? Good heavens! We lay low for half an hour, and then I heard the departure of one of the watchmen. Then I went at the door again, cautiously, that I might not alarm the watchman. I couldn't move it. It was locked and barred! Had Billy failed me? No; of that I felt certain. He was true blue. But fastened the door was, and hope of getting into the bank through it was dead, for the present. So angry was I at the outset, that I was tempted to smash at the door, regardless of consequences! Of course, that would have been madness and would have meant discovery and state prison. Calmness came and good judgment with it. There was nothing to do but retreat, and that we did, taking our tools and gathering up the soft footway we'd made for only a failure. Back we went to the loft. Heavens! but the third failure was disappointing. My heart about failed me. Three times the iron door had been left unfastened; and as many times, when I didn't want to use it, I had found it seemingly yearning to be used. At the critical moment it had failed.

After a long consultation with my associates, including Billy, the enterprise was hung up, but not entirely abandoned. I knew that the bank's officers were contemplating extensive repairs about the building, soon, and that it would be too dangerous, under the conditions, to proceed with new plans. Besides, there was that hidden in the cellar of the bank that I would not have found there for a considerable amount of money. Billy had carried in a kit of burglars' tools, an article at a time, until a fair-sized bundle had been gathered there for use in an emergency. If repairs were to be made, the cellar would no doubt be cleaned and the tools discovered. The blame might fall on Billy. It didn't suit me, either, to have a lot of high explosive found in the bank; it would cause too general an investigation and perhaps a

change of the combination on the vault, and the safes as well. Of a truth, for several weeks there lay in the cellar several powerful jimmies, a copper hammer, several steel wedges, braces, and drills, and a number of smaller instruments for finer work. Billy removed these articles, and I felt better satisfied.

As long as I had a level-headed fellow like Billy with me, I said I'd not give up the plot to rob the bank, and I meant it. Through three separate attempts to accomplish the loot he had stood by me, ready to assume all sorts of risks; and he was just as anxious as ever to continue. During the time I knew him, even at the beginning, he did not appear to be any too strong physically, and along toward the last he seemed to be rapidly losing health. It was perhaps a month or six weeks after the last attempt, that he grew so ill that his retirement from the bank was necessary. About that time I realized, with sorrow, that he hadn't long to live. Discouraged because of the many reverses I had sustained, I at length concluded that I should be obliged to place the Corn Exchange Bank loot enterprise on the "back number" list.

Of all the "putters up" of jobs with whom I had come in contact in a long, varied experience, Billy, without a doubt, stood at the head. For faithfulness and iron nerve, and a disposition to use both with the hope of winning wealth by unlawful means, I believe he had no equal. Many times since I have wondered how long the bank continued to use the combinations which Billy purloined under my teaching. As he was the only one, except myself, having knowledge of our visits to the vault, none of the officials ever knew how we, on those occasions, surveyed the interior of the money safes, into which we might easily have broken our way and carried off a few hundreds of thousands. Perhaps these pages may come to the attention of some one connected with the bank three decades ago, in which case this history will no doubt prove interesting. If I have gone too much into detail in telling of my efforts to rob the bank, I trust that I shall be dealt with leniently; my object in doing so being to clearly demonstrate what difficulties I encountered, what watchfulness on the part of President Noblit did, what fairly faithful service of inside watchmen accomplished toward saving the bank's millions to its stockholders and depositors, and how nearly successful I was in my efforts to possess what did not belong to me. And I would have come out victorious, there's no doubt, had the iron door

been found as Billy Hatch left it. Without question the inside watchmen discovered it unfastened. I will not say how they came to do so, for I know not. Perhaps Tom Davis told them that the bank might be robbed, and they became more watchful. Whether or not Davis was faithful to me, I do not know. I am inclined to think that he was faithful. I believe the door was accidentally discovered unfastened. Had it been otherwise, it seems to me the bank scuttle would have been examined and fastened. It was open all night. It is with regret to-day that I meditate over the energy I put into the plan to loot the bank. If Billy and I had worked together as energetically in a worthy cause, we should have accomplished, no doubt, something that might have lifted us to a higher plane of thought, and fame might have crowned us; but instead naught came to us, save remorse and poverty, and at the end oblivion.

CHAPTER XXIV

THE PERFIDY OF CAPTAIN JIM IRVING

“The hounds—interfering, sneaking hounds—I hate ’em!” roared Captain James Irving, the head of the New York Detective Bureau in Mulberry Street.

“The infernal meddlers—that’s what they are, cap!” said Detective Sergeant Phil Farley, bolstering up his captain’s fury.

“I wish they were in ——!” continued Irving, as he paced—almost ran—from one end to the other of his private office.

“That same, cap—and the devil keep ’em there till it freezes over.”

“By the eternal, they’ll not beat me out of my own,” fumed Irving. “What right have these Pinkerton hounds to mix in my business? If I feel like doing things my way, suddenly these devils of private detectives poke in their noses. What right, I say, have they to interfere with the regular police?”

“None—the d——d meddlers. But what’s the last knock from them fellers, cap?” asked Farley.

“What? This: Scotland Yard has cabled me that George Macdonnell is on board the *Thuringia*, which lands here from Havre to-morrow, if on time. Macdonnell has got a lot of ‘dust,’ no doubt, and he’s cabled that I’d better get to him ahead of the Pinkertons. He expects me to help him out. That’s good enough; but what’s messed me up is the word I’ve got that that devil, Bob Pinkerton, who some folks say is honest and the police are crooks, has hired a tug and gone down the bay to meet the ship—out at sea, if necessary.”

“What will you do about it?” asked Farley.

“What’ll I do?” cried Irving; “what I should have been doing, instead of blowing here—order the patrol boat this minute, ready for a sea trip if necessary, Farley. I’ll go them one better. Don’t waste a minute. Get a double crew aboard, extra engineers and pilots, provisions for three days—anything, everything, to get away and beat out Bob Pinkerton’s mix-ins, curse ’em—the dogs.” Farley started for the door, but Irving called him back.

“Now, Farley, it means dollars, thousands, perhaps, to us if we get to Macdonnell first, so I can’t tell you to be too careful. Have the *Seneca* steamed up as I have ordered—in less than an hour. I’ll be at the Battery long before that.”

“I’ll fill the bill, cap; did I ever fail you?”

“I’m warning you—that’s all. Now hustle!” And Farley was gone in an instant. Immediately Irving called together several of his trusted followers, and made hurried preparations for a race down New York Bay after Pinkerton’s tugboat.

This was midway of the year 1873. Early in that year, the great Bank of England forgeries by the Bidwell brothers, Macdonnell, Noyes, and others almost as notorious, were first committed and carried along for several months. Finally discovery came, and the forger band scattered. Macdonnell fled from London to France and took ship for America, but, having quarrelled with his mistress, was betrayed by her. He had always acted “on the square” with the New York police Bank Ring, and, believing them faithful, had cabled to Captain Irving to get first hand on him. Macdonnell had something like eighty-three thousand dollars in United States government bonds in his pockets and one hundred and twenty-five thousand dollars in cash and bonds hidden in soiled linen in the bottom of his trunk. This was his share of the million and a half which the forger band had gotten from the Bank of England. It can be readily surmised why Captain Irving was extremely anxious to reach him before the Pinkertons.

Irving was at the pier, ready and fuming, before the *Seneca* had been properly steamed up and provisioned. He raced about, fore and aft, and

created more than a little confusion and consequent delay. Finally the pilot believed he was ready, and Phil Farley said he was certain of it.

“Extra pilots and engineers aboard?” asked the captain.

“Plenty, sir!” replied the master pilot.

“Double crews, Farley?”

“Everything you ordered has been done,” said Farley, “and we’re waiting for your word to be off.”

“What are you waiting for?” roared Irving to the pilot.

Within five minutes the *Seneca*, a fifty-foot steamer, was ploughing down the bay under a good head of steam. Sandy Hook was the objective point, for there all incoming steamers took on port pilots to guide them through the dangerous channels. Irving paced the deck of the *Seneca* like a madman and growled because more speed wasn’t forced from the propeller. He could not rest till he got where the Pinkertons were and to the steamer which bore Macdonnell.

About the same hour Captain Irving heard from Scotland Yard, the Bank of England’s attorneys communicated with their New York legal representatives, empowering them to engage the Pinkerton detectives to arrest Macdonnell. Now the chief of the agency men knew that the Bank Ring was protecting the fugitive, and also were aware of the extremely friendly relations between him and Captain Irving. More than that, the agency believed that if by any chance the former had any cash or salable bonds, the captain wouldn’t leave a leaf unturned to get possession of them; that, such being the case, the Bank of England might search ever so much for its property, but it would be in vain. To defeat a move that might entail that outcome, the chief of the Pinkertons decided to quietly steam to Sandy Hook and possess Macdonnell and whatever property he might have. Accordingly, a few minutes after this determination, a tug was chartered and equipped for a sea trip. Upon leaving the Battery it was noticed that the police steamer *Seneca* was lying at her berth, with no unusual activity aboard her. Which was good information for the Pinkertons, as it indicated that Captain Irving had not received word from Scotland Yard—otherwise he’d be up and doing.

It was sincerely hoped by the Pinkertons that their movements would escape the attention of the police. But it was not so, for the spies, ever ready to report instantly anything the agency detectives did, soon had the news to the Bank Ring.

In those days this private detective agency was yet in its infancy in New York, but had attracted a great deal of attention from the public for its honesty. Strictly speaking, I hated the Pinkertons as thoroughly as the police did, because of their interference with my professional movements. Many a time I had been enraged and beaten out of thousands by the popping up of one or more of the agency men. Nevertheless, I had to acknowledge that they were honest, and that it was dangerous for a crook when a Pinkerton was on his trail.

But the tug hadn't been an hour on the trip when Captain Irving heard of it, and dusk had just about set in when the Pinkertons realized that either they'd been given away to the police, or the latter had steamed down the bay without anticipating a race for Macdonnell. As for Irving, his eyes lighted up with delight upon recognizing the Pinkerton boat and learning that the steamer had not been sighted.

It was to be a game of vigilance and a test of the boats. Which would make the better speed? Irving had in view a rich haul for his incentive, and the chief of the Pinkertons wanted to get Macdonnell and save to the Bank of England its property. It was to be a race of corrupt purpose against common honesty,—the police Bank Ring, swift after graft, and the Pinkertons, earnest to fight for justice.

If ever there was a born fighter, Captain Jim Irving was one. He looked the part and acted it, was strong-purposed and revengeful. He wanted Macdonnell for his money and he wanted to demonstrate his prowess over that of the agency detectives.

"I hate them," he confided to me once, "as the devil hates holy water. I'd wade through the infernal regions to beat them out at anything. They are too much on the level, and they interfere with me. They'd better steer clear of Jim Irving, for I'm likely to be a peril to them one of these days."

Not the smallest detail essential to the furtherance of his plan to get first hands on George Macdonnell was neglected. He ordered the *Seneca's*

boiler steamed up to the top of its capacity, and the safety-valve was weighted down to an unheard-of degree. He would have had the engineer take even further risk, but that the latter wouldn't do. The furnace was kept well coaled and the stokers were under orders not to bank the fires. The extra crew was ordered below, that they might be in readiness should the ship be sighted that night. He said he wanted no weary men on duty at the critical moment.

"I'm going to give 'em a bitter race," Irving said with an oath to Phil Farley. "I swear to the imps of hades them Pinkertons won't get Macdonnell."

One advantage that Irving believed he had was the *Seneca's* speed. There was reason, he said, to feel satisfied that it was much greater than that of the Pinkerton tug, and with an even start, when the ship was sighted, victory would be certain to top his efforts. A watch, consisting of two of the picked men of the crews, was ordered on duty until midnight, when, the ship not being in sight, another watch would relieve it. Irving offered a reward of one hundred dollars to the man who'd first bring to him the news of the sighting of the ship, and fifty dollars to the second man so reporting. He believed that this incentive would obviate any danger of the Pinkertons' getting a lead on him in this respect. Regardless of this precaution, Irving resolved to keep an eye out himself, and he smiled happily over nature's favoring, for the night was just what he would have it. The sky was cloudless and the stars shone brilliantly, and as the night wore on to morning the full moon swept up from the bosom of the ocean and spread a broad expanse of silver which made it possible to discover anything within a mile or more in shape of a ship. The deep-sea roll played roughly with the *Seneca*, but the wind, which had blown treacherously in the early hours of the watch, had settled to a breeze, and left the sea very favorable to the *Seneca* in a race. Irving had hoped that this condition would prevail, for the big Pinkerton tug was as stanch as a pilot-boat at breasting rough seas. In fact, it seemed as though the infernal one, were it possible, had control of the night for the sole benefit of Jim Irving's scheming and was doing everything to crown him with victory.

And thus the hours—mighty long ones to those on board the *Seneca*—went by, but utilized by the captain to the best advantage. Among other things, he drilled Detective Farley in the part he was to play on boarding the

ship. In this drama on the sea, Farley was to follow a close second when Irving climbed to the ship's deck, and when Macdonnell was arrested, it was Farley's part to cover Irving when the Macdonnell package was passed. To insure success, the engineers and pilots were promised a hundred dollars each if the *Seneca* was first alongside the *Thuringia*. As a matter of fact, talk of rewards was reeled off by the yard, until every man on board was fired to a pitch of enthusiasm that satisfied all the craving the captain had for action. He was gloating over the prospect when at last a light, that could only come from a steamship, hove in sight to the southward. There wasn't anything to tell whether or not this light came from the ship Irving sought, but he wouldn't take a chance of losing a minute. He would know what ship it was that carried the light.

There was prompt action on the *Seneca*, and the Pinkertons were also stirring. The anchors of both craft were quickly weighed and full speed was ordered. Not three minutes had passed ere the race was on. The morning—for it was close on four o'clock—was still flooded with moonlight, and the sea was, perhaps, a trifle rougher than before midnight. When the two vessels had gotten well under way, it was seen that the *Seneca* had the better of the Pinkerton tug by about an eighth of a mile in the start. Again, the infernal one had scored a point for graft as against honesty. Captain Irving patted Phil Farley on the back and smiled gleefully. On dashed the police boat, throwing the spray over half her length, as she plunged through swell after swell and received each time a shaking from stem to stern.

"She's doing well," shouted the captain down to the engineer in charge. "Crowd on all steam—remember the reward—a hundred to every man if we win over them hounds behind us."

Meanwhile the Pinkertons were forcing the race, too. The big tug was ugly to look at, but in her machinery and tenacity to break through the swells there lay danger to Irving's success. Presently—perhaps fifteen minutes after the start—the tug showed certain and startling gain on the police boat. Irving was the first to discover it, and the glee with which he had taken the previous conditions was suddenly turned into concern. The ship's lights were fully two miles distant yet, and if the race continued under the existing conditions, the Pinkertons would win beyond doubt. Irving had erred in estimating the speeding qualities of the tug. Something must be done. He began to fume and curse—at which he was proficient—

and wondered if it were forgotten that rewards had been offered to all hands if victory came to the *Seneca*.

"I'll double them!" he cried down to the engineer. "Put on every pound of steam you've got. More speed!"

The engineer gritted his teeth, realized that the boiler was doing all and more than it should do, and that the furnace grates were white-hot, despite the fact that the ash-pan was clean and well wet down.

"More speed down there," repeated Irving, an oath puncturing every sentence. "Crowd on steam; I mean to blow this boat to hell, but I'll get there."

The engineer set the weight on the safety lever at the extreme end of the rod and ordered the stokers to shovel in more coal and turn on the blowers. Then the throttle-valve was thrown open wide. It seemed as though the propeller would be torn to pieces. It flew through the water, until every timber in the *Seneca* was vibrating like a timbrel. The vessel had never been forced to such work. The engineer was pale and trembling, Captain Irving flushed and gleeful. The *Seneca* was gaining again. Her nose was fairly under water half the time, and sheets of spray were flying everywhere. Those on deck were drenched to the skin. The pilot had difficulty in keeping to the course, owing to the rain of water on the pilot-house windows.

"At it, men—at it—we win," cried Irving. "Five minutes more like this, and if we're not in hell, we'll be alongside the ship and before those cheap dogs."

"It's the ship we want, cap," cried Farley, running up to Irving. "It's the *Thuringia*."

"I know it, fool," shouted Irving; "and we win, if this boat don't blow up or go down."

At the same time the Pinkerton tug was gaining on the *Seneca*. She was the better boat in the smooth sea as well as the rough. Her stack was emitting clouds of black smoke, and her long, strong exhausts of steam told what great work she was doing; but the fates seemed against her. Would honesty win over corruption? We shall see.

As I have said, the infernal one seemed to have control of affairs that time. The *Seneca*, losing at every revolution of her propeller, had too much of a lead to be overtaken. With a shout from Irving, she finally ran alongside the *Thuringia*. A deck-hand, under Irving's instructions, swung a line to the steamer's deck, where it was caught by a seaman. The pilot of the *Seneca* ran her bow to bow with the bigger vessel, and quickly they were travelling at one speed. In the meantime, Captain Irving hailed an officer who came to the rail in much wonder.

"Throw me a ladder," he said. "I'm from the New York detective force. I've a warrant for some one on board. It's a case of life and death!"

In a moment he stepped on deck, closely followed by Farley. As he did so the Pinkerton tug warped up to the *Thuringia* and there was another clamor for a ladder. A moment later the chief of the Pinkertons, followed by a lieutenant, clambered to the deck, but it was too late!

Daylight had begun to show and a number of passengers, anxious to get a first glimpse of America, were on deck when Irving came aboard. Several men were grouped on the saloon deck, among whom was George Macdonnell. He expected Irving would make a sagacious move and was not surprised when he saw the police boat making for the ship. He was ready to pass over eighty thousand dollars and more in gilt-edged bonds to the chief of detectives, having great confidence in the result. The instant Irving and Farley set eyes on the forger they went up to him. The latter made the arrest, while the former, crowding near, received a package from the forger, which he deftly slipped in his pocket. Just as the arrest was formally made known, the chief of the Pinkertons came to the group. He made but a feeble protest. He realized that it was his play to await developments. Honest motives had been defeated by the avarice of those paid to defend the rights of the people. No one was more delighted over Irving's victory than the forger himself. Nevertheless, he didn't tell, even the police, that on board of the ship, was his small trunk containing nearly one hundred and twenty-five thousand dollars. He would communicate with his sister, through his forger friend, George Wilkes, and have her get the trunk at the custom-house.

To say that Jim Irving was happy scarcely expresses his state of satisfaction over the defeat of the Pinkertons. Some time after this experience, in speaking to me of the agency men, he said: "As long as I'm

at the head of the Detective Bureau, it will be a cold day when the Pinkertons get the drop on me in making arrests. They may have the whip-hand in Chicago, but not in the city of New York.”

All hands came to the city with the ship, and before the close of the day Macdonnell was securely detained in Ludlow Street Jail; and not many hours had elapsed before the Bank of England’s legal representatives here had extradition proceedings on foot.

I know whereof I speak when I say that the fight to take Macdonnell back to England was one of the sensations of the day. It had its upper current of interest which came to the public attention, but there was an under current of which I had personal knowledge, and to that I will turn the attention of my friends.

Macdonnell engaged Somerville and Mott, of 27 Chambers Street, to defend him against extradition. This law firm was the legal adviser of Colonel Hiram Whiteley, the Secret Service chief whose acquaintance I’d made through the attempted sale of the ten-dollar bank-notes stolen at Washington. Somerville and Mott decided to use Whiteley in the interest of Macdonnell because of his great influence with high United States officials. Mr. Somerville consulted with Colonel Whiteley, with the result that there was a studious examination of the extradition clause under which the opposing attorneys expected to send the prisoner back to England. It was decided that this clause didn’t quite cover the case, yet there was considerable doubt as to the outcome. George Wilkes, who had been with the forger band in its early operations in London, but who had scented danger and returned to America in season to escape the result of the exposure, saw Macdonnell in Ludlow Street, and it was agreed to consult with me. He and Wilkes knew that I had considerable influence with Mr. Somerville, who was my attorney, and also that I had a fair acquaintance with Colonel Whiteley. Indeed, in the two years past my friendship with Whiteley had ripened wonderfully. Accordingly Wilkes came to see me and detailed the circumstances. I asked him if Macdonnell had any secrets which could be given to the United States government, in which case I said I believed that Colonel Whiteley would interest himself to an extent not yet indicated to me.

“Whiteley is a good fellow,” said I, “and will do anything reasonable to make himself solid with the administration at Washington, provided he can keep his skirts clear.”

“I don’t think that Mac would squeal—in fact, I know he won’t,” said Wilkes, decisively; “so it don’t look like doing anything on that score.”

“Tush for that,” I replied; “I’ll tell Whiteley that Macdonnell has important information about a five-hundred-dollar treasury-note plate that is missing, which I know is giving the government a lot of trouble. On that ground he’ll make a fight for Mac’s release on bail as a reward for the information. Once out on bail, and the rest will not be a hard job you can rest assured.”

With this understanding I saw Colonel Whiteley at his office in Bleecker Street, not far from Police Headquarters, and told him I believed Macdonnell had information of the missing treasury plate of which he was in search; that in the event the information didn’t pan out, there were several thousands of dollars in the deal for him anyway. With the incentive that he might add to his influence at Washington by discovering a plate from which counterfeit money was being spread abroad, together with the fact that there would be a fat roll of money in the bargain, Whiteley agreed to take energetic steps in the matter. At his first chance he went to Washington and placed the subject before an attorney highly versed in international law and who was a personal friend of George H. Williams, the United States Attorney-general. The colonel also consulted with members of the Department of Justice and, in fact, investigated at great length into the merits of the case. He returned with the report that the consensus of opinion of the Washington authorities was that the case, if properly handled before the courts, would result in favor of Macdonnell. In fact, the colonel made it plain that Attorney-general Williams would advise the Department of Justice that an extradition warrant in the case could not legally issue. I doubt not that great lengths would have been traversed in order to obtain any, almost inconsequential, information of the missing treasury plate. The mere construing of an enigmatical treaty clause was as nothing. The Treasury Department was in a heap of worry over the plate, not to mention others from which the counterfeiters were ever sending forth treasury notes to the loss of the United States. The recovery of the five-hundred-dollar plate alone would be worth the price of Macdonnell’s freedom, a dozen

times over. Charles Ballard was serving a thirty-year sentence in Albany, New York, for turning work from this plate; but where was the plate? It had been so industriously used that it was becoming a menace to the financial market. Ballard had been offered a pardon if he would disclose its hiding-place, but he had scornfully thrown the pardon, so to speak, in the very face of Uncle Sam.

Colonel Whiteley so wrought up the interest of the Washington authorities with my story of Macdonnell's alleged information that he was empowered to offer almost any terms; was commanded, in fact, to exhaust every plausible means to obtain the coveted secret. Colonel Whiteley told me that he'd be sure to obtain the prisoner's release on bail, provided there was any kind of chance of getting a clew to the plate.

"However, there will be some expense attached to it," he explained, "for I had to consult with an attorney in Washington, and his price is pretty stiff. I'll have to give him ten thousand or nearly that, and there are some other charges." I knew what he meant, but I wondered if that wasn't a pretty stiff law fee where there'd been nothing more than a consultation. However, knowing Macdonnell had made money, I was agreeable, and declared that ten thousand dollars would be placed in a Wall Street trust company subject to the colonel's order.

Immediately I sent for Wilkes, told him of the situation, and advised him to get from Macdonnell twelve one thousand-dollar bonds and that I'd see they got to the right place. Wilkes reported to Macdonnell, who wrote to Captain Irving, requesting him to deliver the bearer twelve of the bonds left in his keeping. A message came back that staggered Macdonnell: "Let the matter stand as it is for the present—the Pinkertons may demand the surrender of the property," it read.

Macdonnell knew that no one besides himself, Detective Farley, and Captain Irving had witnessed the passage of the bonds on board the steamer. In desperation, another message was sent to Irving, but there was no reply to it. Macdonnell was dumfounded. He'd always been on the "square" with the Bank Ring. Finally there had come a "throw-down"—the Ring had "done" him.

"It's a freeze-out," he gasped to Wilkes.

“What about the trunk at the custom-house?” asked his friend.

“I don’t dare have any one call for it. If it’s examined, that end of the game will be gone, too.”

“I told Bliss about it,” said Wilkes, meaning me, “and he told me that if you’d say the word he’d have the trunk sent to any address you mention within twenty-four hours.”

“I’m afraid to risk it—Bliss is right, but I’m afraid to try it; maybe a woman might get it. What do you think? My sister can try it.”

“Think you’d better trust to Bliss, George,” advised Wilkes; “he stands high with Chief Whiteley of the Secret Service. If Whiteley asks for the trunk on the ground that it will further the interests of the service, he’ll get it without an inspection being made.”

“I don’t trust Whiteley,” said Macdonnell; “my sister’ll get it—Mrs. Hosgrove.”

The next I heard from Macdonnell was that his sister had gone to the custom-house, and, posing as “the wife of George Matthews,”—the name tagged on the trunk,—put in a claim for it. The unsuspecting inspectors examined the trunk in a perfunctory way and were about to pass it, when some soiled linen tumbled apart and out rolled cash and bonds. Of course “Mrs. Matthews” didn’t get the trunk. The Pinkertons stepped in, claimed the property for the Bank of England, and it was turned over to the latter. Poor Macdonnell was disconsolate enough. He made another fruitless attempt to get bonds from Irving, and as a last resort wrote to his old father in Canada. I told Wilkes what I could have done—that Whiteley would have sent the trunk, unopened, at my request, to any address that Macdonnell had given me, and that I was sorry over what had happened.

“He ought to have trusted me,” I said.

“It wasn’t that, George, be sure; Mac was simply knocked out, beaten to jelly, by Irving’s treatment. What a crooked crook that fellow is!” said Wilkes.

“Now that you speak of it,” I remarked, “Irving wanted me to sell the bonds for him—his share; they—he and Phil Farley—divided them—something more than eighty thousand dollars’ worth.”

“And you wouldn’t help him out?” asked Wilkes.

“The devil, no,” replied I. “When I told him that it was Macdonnell’s bonds he wanted me to sell, he denied it. I knew he was lying.”

“The sneak,” said Wilkes, at parting with me. “Of all crooks, Bliss, the crooked cop is the crookedest.”

“Right, Wilkes; good-by. Wait one moment,” I called; “if I can help Mac, I will, but I am afraid he won’t get out unless he can raise the ‘dust.’”

In the meanwhile Mr. Somerville had been doing his best to aid Macdonnell, but Colonel Whiteley seemed to lose heart when no money was in sight for the Washington attorney, and all together the prisoner’s case took a most hopeless phase. Macdonnell was able to give a little information about missing government plates, but it was so immaterial and meant to be so, that, had Colonel Whiteley been disposed to ask for his release on bail, he wouldn’t have dared to do it. When this disheartening state of affairs had been communicated to the prisoner, it was quickly followed by a tearful letter from his father, telling how the old place in Canada had been mortgaged, and that the amount realized, together with every dollar that could be scraped up among relatives and friends, would not make half the sum asked for. Macdonnell actually wept with disappointment. Not because he was in sight of an English prison, for that didn’t frighten him; it was over the perfidy of Jim Irving, his miserable betrayal by the man to whom he had so implicitly trusted the bonds and his liberty. He resolved once more to appeal to the chief of detectives, and wrote:—

“Jim, I appeal to your manhood, your past friendship for me, to give me enough of the bonds to help myself out of this mess. If you must keep more than your share, do so, but send me the twelve bonds I asked for. Again I appeal to your manhood.”

It was as though the note had never been written. It was delivered to Captain Irving by the faithful Wilkes, but nothing came of it. Wilkes was told not to bother Police Headquarters too much, for it might be dangerous.

Hopeless, abandoned, and beaten, when Macdonnell’s case came before the courts, it was none the less so; and presently he sailed away in the company of Scotland Yard officers, and in due time was tried,

convicted, and sentenced to what is called a life term in England. He served his time, and is now back in America, in the West, a poor old man, who, some folks say to-day, is honest and trying to redeem the past. I hope so, for his sake.

And what became of the bonds stolen by Captain Jim Irving? Be sure they weren't turned over to the Bank of England. Be certain, too, that when Macdonnell, in a spirit of revenge, at his trial told the court that the New York chief of detectives had eighty thousand dollars' worth of the Bank of England's property, Captain Irving, indignantly denying the accusation, said:—

“What! do the Englishmen believe the word of a crook? Humph, damnable of them, I say.”

Now the bonds, as I have stated, were divided between Irving and Farley. The former sold his share in a Jersey City “fence,” and the latter to Gleason and Roberts, the forgers, who sometimes dealt in crooked bonds. Irving and Farley received eighty-five per cent of the face value of the bonds. In view of the fact that they were gilt-edged, these coppers didn't do badly. Indeed, it was a mighty profitable race at sea for Jim Irving and his faithful detective sergeant, Phil Farley, but it was an unfortunate meeting for George Macdonnell. I have talked many times with Captain Irving since that day, but I never heard him say a word to make me think that he had a twinge of conscience over his perfidious act.

CHAPTER XXV

SOME DETECTIVES I FOUND USEFUL

After the failure to capture the Corn Exchange Bank treasure, my Police Headquarters friends were exceedingly anxious that I try to even up accounts by obtaining the wealth of the United States sub-treasury vault in New York City. They contended that there were plenty of other banks in that city, at which I might take a hand, if the sub-treasury was too hard a nut to crack. I knew that it was, and said so, whereupon they insisted that I give it a trial.

“No, I will not,” I said; “it’s impossible to break through that wall of night watchmen employed by the Treasury Department.”

“Well, make a strike at the Bank of America,” said they.

This bank was near the corner of Wall and William streets, and it was a very sturdy job to contemplate from the start, but I consented to the second proposition. My first survey of the field disclosed the fact that there were two watchmen inside the bank, and that they were there after banking hours. That meant we should be obliged to overcome them if we captured the game. Besides the brace of pesky watchmen in the bank, there were half a dozen private watchmen hovering about the corners of Wall and William streets. While attending to their respective duties, any one of them might, at an extremely critical moment to me, pop on the scene and shuffle everything. It was apparent that I must plan against a stiff game—evident that there must be a base of operations established near by. With no little trouble I obtained the lease of a basement in a building in Pine Street, at the rear of the Bank of America. In this basement there sprang up, one fine morning, a full-fledged Cuban cigar store. It was a wholesale business, to be conducted as a blind. Strangely enough, though, money came in from the

venture in a surprising quantity. It proved to be the real thing. However, we made it our rendezvous.

Having accomplished this, I turned to the important work of getting a “right” policeman or two on the posts near the bank. This was not difficult, for I passed the word along, and Patrolman Michael Conners, one of the Bank Ring, was transferred to the Wall Street post. He was just the man I wanted, having been faithful to me in a number of jobs. This fixed to suit me, I turned to the night watchmen end of the plot. It was like trying to walk through a stone wall. As has been pointed out, there were two of them in the bank at night, and through the police I knew these fellows were faithful—no amount of money could bribe them. Finally, I determined to “stand” up one of them and walk him into the bank, where I could get to the other. I found this in the beginning to be a feasible plan from the fact that they made separate trips to an ice box on the Pine Street end of the bank every night, for something to eat. I believed that on one of these trips, which occurred about eleven o’clock, I could capture the watchman. In the meantime, Patrolman Conners would keep the outside private watchmen well away from the bank. With my associates carrying the needful tools and others of us “walking” the captured watchman into the bank, it would be easy to overcome the other one and work our way into the vault.

I started out on this plan, and among other things kept tabs on the time the watchmen paid the nightly visits to the ice box. I didn’t like their actions from the beginning. They were disappointingly irregular about it. One night one would do the trick and the next night the other. Once it would be nine o’clock, and again eleven o’clock. This wouldn’t do at all. Besides this obstacle, Eddie Hughes, the bright chap who was one of my first associates in crime and who formed one of the party which “turned off” the Cadiz Bank in Ohio, was terribly along in his habit of eating morphine. In fact, he was useless to me, and I had to replace him with Mysterious Jimmy, a young crook recommended to me by Detective Josh Taggart of Philadelphia. Then, to add to the trouble, the janitor and his husky wife and big family of boys were frequently happening around the bank at all hours of the night. Disgusted in the extreme, I threw up the enterprise.

Thus far, the scheme of my Police Headquarters friends and I had met with disheartening results. However, they were still anxious to make another attempt, so I took courage and pressed on. What better

encouragement could a fellow want than to have all the policemen necessary at one's beck and call?

It was very evident to me that I must have new material with which to work, and get it I did. Detective Sergeants Tom Davidson and Joe Seymour, a pair of Central Office sleuths who had been ward-men in the First Precinct and knew the Wall Street district from beginning to end, were detailed on what was called "Wall Street duty." It is needless to say that they played an important part in our loot enterprise, and were, in every meaning of the word, "right," as I looked at it. I shall be frank too, and say that, while the first names given them are correct, the surnames are fictitious. I feel justified in doing this because of their faithfulness to me throughout our acquaintance. I will, though, go a step farther and say that the initial letter to each surname is the correct one. Beyond that I must not venture.

The next bank selected upon which to make an attempt was the St. Nicholas, and it was through Davidson that I decided to try it. He had suggested that his friend, a depositor there, might be turned to our account; that through this friend, who would be innocent of it all, I might get a chance to watch an unlocking of the vault. Getting the combination numbers in this manner, we'd surely be able to do the rest. Davidson was really adept in getting something for nothing, and wasn't afraid to use any means to attain his end. His friend, he told me, had a large account in the St. Nicholas, and was on very familiar terms with its officials. As a matter of fact, he was permitted the freedom of the bank. I instructed Tom how to proceed, and he with great alacrity did so,—indeed, persevering to the extent that I couldn't expect anything but success. He looked up his friend and spun him a great yarn.

"Now," said Davidson,—and he could tell a story well, as I recall,—"Seymour and me are on a case of embezzlement by a clerk in a Wall Street broker's office, and we've got some of the securities back. The question is, will you help us out?"

"Too glad, if only I can," was the friend's answer; "but the thing is how?"

"Easy, very easy," replied Davidson; "and in this manner—" Here he unfolded the scheme. "Pending a hearing in the police court," he went on,

“Seymour and me must take care of the securities. For reasons I can’t tell—police reasons, you know—we can’t keep the stuff at Police Headquarters, yet we must be able to put our hands on it any moment. Now, can’t you suggest some one who will take temporary charge of the stuff for us?”

The depositor hesitated. He couldn’t, for his life’s sake, seem to think of a soul who’d fill Davidson’s bill; but the latter could and progressed cautiously. His watchword was ever, caution. Should his request for aid ever in any way be connected, even by suspicion, with aught that might happen to the St. Nicholas Bank, he wanted to weave the circumstances so that it would appear as though his friend had proffered assistance.

“If I knew of a depositor with an account in a Wall Street bank, it would be just the thing,” said Davidson, as a lead.

“Blast it!” cried the friend at once; “what a blamed fool I am—I can help you out. I’ve got a strong box at the St. Nicholas Bank; how’ll that do?”

“Do!” exclaimed Davidson, delightedly, “do, why, it’ll be just the thing. It couldn’t be better, could it, Joe?”

“Nothing better,” promptly agreed Joe Seymour.

“But won’t it be bothering you too much?” Davidson asked solicitously.

“By no means, no,” enthusiastically returned the friend, and before the close of banking hours that day, a box of fake securities was safely stowed away in the St. Nicholas Bank; and thus another step in the loot plot was taken by my very efficient detective assistants, who were being paid by the New York City government to protect the lives and property of its citizens.

A few days later Davidson told his friend he’d want the securities in court for a few hours the following day. This was done, the object of the withdrawal and return being to demonstrate the uncertainty of the demands by the court for the securities. Presently there would come a very urgent call at the opening of the bank. That apparently very important demand came a few days later. Quite late one night, Davidson, having informed himself that his depositor-friend would be at home, rang the bell and was admitted. With much regret Tom said the securities must be in court the next morning as soon after ten as possible.

“It’s routing you out pretty early,” apologized the detective, putting on a fine tone of regret; “but it’s the last time I’ll have to bother you, for the confounded case closes for good to-morrow, and I’m blasted glad of it.”

Of course an apology so deftly put brought out the usual response and the query as to what the detective wanted his friend to do.

“If you’ll meet me at the Stevens House on lower Broadway and fix me up again, why—”

“At what hour?” asked his friend.

“Nine-thirty,” said Davidson, “if you can get down so early.”

“I’ll be there promptly,” said the obliging depositor.

“Thanks; and then,” explained Davidson, “we’ll get the securities, and that’ll end it. I’ve asked a lot of you, my boy, and I’m sorry—hope I’ll be able to reciprocate sometime.”

He didn’t turn a hair at uttering this last falsehood—the crowning one of many. The next morning, not long after nine o’clock, Davidson and I were at the hotel, anxiously awaiting the arrival of our dupe. We’d reached the critical stage of our plans. The combination numbers were to be gotten. I was sure of it. Laughingly, a few days prior, I’d staked my reputation as a burglar against the temperance pledge of “Silly Billy,” a ne’er-do-well known to the headquarters police. This lad’s pledge was worthless. He would go before a priest at noonday and solemnly promise never to tipple again, and within the hour he’d be tipsy. When called upon to explain why he’d broken his solemn word, the silly fellow would put up the novel plea that he’d left his pledge at home in his other trousers’ pocket. I had staked my reputation thus that I’d get the St. Nicholas Bank combination numbers, if I were put within ten feet of the vault at the unlocking. This morning Davidson, through his friend, was to put me there. We hadn’t long to wait, for the latter came in smilingly, and evidently delighted to befriend Davidson at any cost. It being the first time I’d set eyes on the fellow, he came in for a close inspection. I satisfied myself that he was rather soft, as is said of some men when they appear a trifle womanish.

“Shake hands with Agent McCantry,” said Davidson, in accord with our plan. Being thus formally introduced, we shook hands. My new

acquaintance seemed to be wondering what sort of an agent I was, and Davidson enlightened him.

“He’s a Secret Service detective—a United States official,” he whispered, first looking around mysteriously, as though careful that no one should hear him. Then he added, “Don’t say anything about it—it mustn’t be known he’s in the city—we had to call him in our case.”

I cautiously, but opportunely, displayed an elegant gold Secret Service shield, which had been given to me by Colonel Whiteley, the chief of the service. It clinched matters. This shield had done me much good service on many occasions. After lighting cigars,—my companions,—all being ready, we went to the St. Nicholas Bank. We arrived there a trifle too early. The man in charge of the vault hadn’t come in, but we were admitted to the rear room, where the vault was, Davidson and his friend in the lead. I got a seat at an angle favorable to my purpose—I could get an excellent view of the lock. We didn’t have to wait long, for the employee we were awaiting came in presently, and our dupe told him Detective Davidson wanted the box of securities. The unlocking began right away. With a trained eye and a ready perception, rendered acute by experience because there was much depending upon them, I took in each turn of the hand at the lock dial. Now it went forward, now backward, and again forward, while I took careful mental notes by which to figure out the combination numbers. When the vault door had been thrown open, I knew I had the number at which the dial spindle had been placed at the beginning of the unlocking, and where it had stopped at each reverse. The remainder of the task could be accomplished outside the bank.

As I saw the great safes through the open vault door, I wondered about how many days would pass ere I could be the master of all I surveyed in the vault. How different would be the conditions then. By the time the box was in Davidson’s hands, I signed him everything was lovely, and, bidding his friend adieu, we went away. What a dupe the man had been, but of how much use after all. We walked up Broadway toward the court-house to Cedar Street, where we turned to Nassau, and from there we doubled back to our rendezvous.

While we’d been scheming to obtain the combination numbers, a close watch had been kept on one of the bank’s night watchmen, William Price,

the one upon whom the success of our enterprise much depended. It was essential that we know his habits; and in fact, we soon had him well in hand and knew he had at least one bad failing,—he frequently absented himself from duty and spent an hour, and sometimes two, in a neighboring saloon. It was ascertained, also, that he was the watchman who guarded the inside of the bank. That knowledge had been gained from the vantage of a stairway on the outside of the Stock Exchange building. One of the landings afforded us an excellent view, through a rear window on the New Street side, of the interior of the banking office. This window, we ascertained, was seldom locked. It was our opportunity.

The day that Davidson got the fake securities from the vault marked the beginning of the real active work of the anticipated loot. That evening, under instructions, Tom was in Wall Street, not far from the bank's main entrance, ready for business. His part was to hold the attention of Watchman Price, should the latter return earlier than usual from his regular visit to the saloon, and Patrolman Mike Conners was to patrol in front of the bank. With my professional associates assigned to important posts for my protection, I was to enter the bank to prove beyond doubt the correctness of my morning's work in getting the combination numbers; in other words, I was to try the numbers I'd figured out from my notes taken in the bank at the unlocking. Detective Seymour was to take a stand at the corner of Wall and New streets, with the understanding that he was to tap on the bank's rear window, in the event that an over-zealous watchman appeared on the scene.

Thus guarded, I went into the bank and was soon at the coveted combination lock. It will be sufficient to tell that my watching of the unlocking had not been in vain; my deductions were correct. I had the combination perfectly. In less than half an hour I had opened the vault door, was through, and back in the free air again.

The period in the game had been reached where I must arrange its last points, and with this knowledge we repaired to the rendezvous to discuss the next vital move—when to “pull off” the trick. The first stormy night was agreed upon, provided, however, Patrolman Conners would be on post. Should it be, unhappily for us, his night off, then we'd have to await a stormy night when he would be on duty. I wouldn't proceed without his good nerve to protect me. Having settled this, I decided to make up the list

of experts who would go into the bank with me. Tom Mead and Johnny McCann had been in the Bank of America plot, and, as I've said, Eddie Hughes. I wanted the latter badly for the job, but couldn't have him, it seemed, so Mysterious Jimmy Lough, Josh Taggart's friend, must be taken on. Taggart thought a lot of Jimmy, but I knew absolutely nothing of him. I took him on speculation, mostly with a desire to please Taggart. The latter said Jimmy was an extremely intelligent and active young fellow.

The kind of night we wanted came in a few days. It was in March of 1875. How well I remember it. The time set for the "trick" was immediately after the midnight shift of the First Precinct police. Every man had his set task. Johnny McCann and Mysterious Jimmy were to capture the night watchman, Price, Detective Davidson was to be at the head of Wall Street, and Joe Seymour in New Street to sound the alarm of approaching trouble from that side. I believed I'd planned a master "trick," and cannot to this day, despite my best effort, keep down a feeling of pride. I wish now most earnestly I could altogether rid myself of such feelings.

The last thing I did, before the start, was to warn Patrolman Conners to perform his part well, though I felt that he'd not fail me, if man could succeed. I saw McCann and Mysterious Jimmy go through the New Street window, and waited for the result. Time enough having been consumed to capture the watchman, I also entered by the bank window. The lads hadn't yet overcome the watchman, but were about ready to. They'd found him asleep in a bunk. I heard sweet music as I drew near them. I said music, and I mean it from my point of view; for if snoring by a night watchman in a bank isn't the sweetest sort of music to a burglar, then I don't know what is. I threw a bull's-eye flash full upon the owner of this nasal avalanche of sound, long enough to show the lads just how the ground lay. There was no doubt that this faithful night watchman was asleep. Verily the walls seemed to jingle with the loud sleeping of the bank's night guard. How kindly, indeed, was fate flinging wide-open avenues through great difficulties. Not a word, thus far, had been spoken—of a truth, none was to be spoken under my strict orders. It was a time for action, not talking. McCann grinned as he drew near the unconscious man. He would have throttled him to death, only he knew I wouldn't countenance such doings. Mysterious Jimmy looked cute, and when his face was lit up for an instant, I could read what he would have said, "It's a pity to wake him." But Watchman Price must not be

harm, and he must be awakened, and, according to the plan, McCann was to be the chief performer in this act. So with a quick movement he caught the sleeper by the shoulders and dragged him from the bunk to the floor, while Mysterious Jimmy clicked a handcuff on the nearest wrist. Then I shut off the light. In the meantime McCann held the watchman by the throat to allow the placing of the other handcuff. I stood by, ready for an emergency. All this had been accomplished ere Price realized what had befallen him. When he did, a fight was on, though he was no match for my lads. A man taken unawares and in the dark hasn't much of a chance with two strong men. However, he succeeded in getting his mouth open for an instant, and asked, as though he were in a dream, what was the trouble. It occurred to me that he thought he was in some bar-room squabble. Then occurred the very worst thing that could have happened at that moment. Mysterious Jimmy blathered to the prisoner in direct violation of my express commands.

"Keep still!" he whispered hoarsely, "and we won't hurt you. We've got to git the dust in this here bank, and if ye holler, it's all day wit' ye."

Now, this gave the watchman the first real knowledge of the situation. Perhaps, too, he was strengthened by thoughts of duty! Wriggling his head away from McCann and before Mysterious Jimmy could stifle him, a yell rang through the bank that must have been heard for two blocks. It was a lion's roar! Jimmy stuffed his fist in the man's throat, but it was too late—the mischief had been done. The cry had been heard. Detective Davidson heard it at the top of Wall Street. More, a regular sergeant of police, out on patrol, rushed up to Davidson and demanded a reason for the outcry.

"What's up?" he called; "where did that noise come from?"

"I heard it, too," answered the detective, innocently enough, "but I guess it came from the west side of Broadway." This was exactly the opposite direction from which it did come.

"I'll be d——d if it did," blew the sergeant, as he ran down Wall Street toward the bank. Davidson followed him—was obliged to for appearance's sake.

In the meantime Detective Seymour knew that trouble had broken out, and a moment later was tapping out a warning on the New Street window

for us. Then he ran to Wall and saw, in the light of the street lamps, the sergeant, Davidson, and Patrolman Connors coming toward New Street. In a moment there would be a pursuit.

Realizing that blather-mouthed Jimmy had spoiled the game, we, in the bank, left the handcuffed watchman and climbed or tumbled out of the window through which we'd come, and scattering as best we could, made toward the East River. At the moment of leaving the bank we were almost in the hands of the police. We did some tall dodging, but it would have availed us nothing had there been any one in the police party anxious to catch us but the sergeant. Davidson, Seymour, and Mike Connors had to appear like honest coppers under the conditions, but favored us as much as they dared. There were five minutes of lively racing, at the end of which we had reached cover. Anyway, there wasn't much chance for our capture when, out of five policemen, only one was honestly trying to do police duty.

Ten minutes after the yell of Watchman Price, the neighborhood was swarming with policemen. When the sergeant and the pursuing party returned to the bank, the hapless watchman was discovered by his calls for assistance, and marched out of the bank handcuffed, volubly trying to explain how he came to be in the predicament. Not one of the officers had a key that would unlock the cuffs, and it was necessary to march him thus to the New Street station-house. I cannot but smile, as I recall that spectacle in Wall Street, the centre of finance,—a night watchman being escorted to the police station, handcuffed by the very burglars who made their escape. I trow Detectives Davidson and Seymour and Patrolman Mike Connors must have had an odd set of thoughts that early morning in March.

It was too bad that I used Mysterious Jimmy Lough without knowing more of him. My willingness to oblige Detective Taggart, I have no doubt, ruined the St. Nicholas Bank job. Yet one can't have everything coming one's way all the time. But Jimmy Lough was a mar-plot!

CHAPTER XXVI

THE MICROBE “CALLOUSITIS”

It has been, and is yet, claimed by companies which make it a business to supply banking institutions with burglar-alarm systems, that while bank clerks and night watchmen may be corrupted, the alarm, if kept in excellent repair, can always be depended upon. While it is true that the incorruptible cannot be corrupted, nor can the ever inanimate be imbued with life-blood, yet I shall endeavor to show beyond question how, in my experience, the burglar-alarm system, with all its boasted infallibility, was utterly useless. Indeed, one of the thought-to-be points of wisdom in the device, that which had been conceived as the most inviting trap for the unwary, was betrayed by the very over-cunningness of the thing, if I may so express myself.

In the village of Port Jervis, in 1869, Shinburn and I “turned off” the bank, despite the fact that Holmes’s burglar-alarm threaded the whole building. Moreover, there was a wire from the bank to the residence of the cashier, not more than three hundred feet away. And, believe me, the alarm was in prime working order that night. The whole trouble was that the banking people placed too much confidence in the efficacy of the system,—in that instance, at least. This I will make clear; for, by my faith, the directors rubbed the sleep out of their eyes one morning, only to look upon a great financial loss. That is, they awoke to find the big doors of their steel vault and money safe lying on the floor, and every dollar of the bank’s capital gone.

We forced an entrance through an iron-shuttered window, and the first thing within the range of my bull’s-eye was an ordinary-appearing chair. It was close to the window, and seemed a most inviting stepping from the sill to the floor. In fact, it seemed as though it might have been placed there for

the sole purpose. Be sure I did not avail myself of this comfort, and my good associate Shinburn was cautioned to have similar wisdom. Being a young fellow and agile, I sprang to the floor, my sneak shoes standing between me and any unnecessary noise. Immediately I was astonished by what I saw at every window and door, and even in front of the vault. I discovered, with one round sweep of my bull's-eye, that an apparently thoughtful hand had supplied these comforts for the use of those who might, without warrant, visit the bank by night or day. There was seating accommodation, indeed, for us and half a dozen guests, had I, perchance, invited them to the performance. However, as this gathering had in view great retirement and unostentation, my good Shinburn and I, not having an over-stock of time, refrained from occupying these much present and hospitable furnishings.

When I saw an upholstered rocker or an ordinary chair left with such insistent convenience, that alone was a sufficient indication to me from my point of view that all was not right. And again, when I saw a chair left, as by neglect, in front of the vault door, there was sufficient reason in that for entertaining suspicion. Know that we didn't disturb their quietude.

All doubt of the wisdom of my caution would have been swept away, had I had any, when, upon making a careful examination of these chairs, I discovered that they were all cunningly attached to the burglar-alarm system. Be sure that we met the mute, though pathetic, appeal from these appliances to make ourselves comfortable with a stolid disregard. I will not assert that this was not a cunning device, though it might not thus appear to an inexperienced one after something for nothing. To me, the experienced bank burglar I prided myself on being, it was a danger worth counting.

At the moment we were loading ourselves with the bank's funds, this question came to me: "Do the burglar-alarm people really believe that a 'professional,' once past a window or door alive with their system, would be stupid enough not to comprehend the meaning of a chair left in front of a vault door?" I felt as certain as that I was in the bank, that if I, or my associate, sat in any one of those chairs, even before I made a close investigation, there would have been a jangling of bells and the pouncing of police down on our heads. It was a cunning device, but I must contend that it was very much overdone, and because of it failed of its original cunning.

In August of 1874, the New York sub-treasury had a burglar-alarm connected with the First Precinct station-house, now in Old Slip near the East River, but then in New Street, in the heart of the Wall Street financial district. Regardless of the fact, I went ahead with a plan to loot the very rich vault of that institution. It was, on the surface, I must admit, a scheme sufficiently bold to make the ordinary cracksman apprehensive of success from the outset. But being a young fellow, as I have said, and wildly infatuated with the idea, I couldn't get it out of my head. The burglar-alarm system in the sub-treasury was the least of my concern, and for that reason I have taken the pains to mention this subject at all. I knew that I could cope, handily, with it, for I had only to pass the word along to the First Precinct police station that I was ready to "pull off" the trick, and my friends there would put the wire out of commission. So much for the efficacy of the burglar-alarm in that case.

A greater problem to be solved was the force of inside night watchmen, of which there was an extremely complicated system. Each time I made an investigation, there seemed to have been conjured up another watchman. Finally, I found I'd have to overcome six—too many by far for me to surmount. Therefore, with the police at my beck and the burglar-alarm under control, I found myself confronted by an obstacle beyond my surmounting. It sadly injured my pride to acknowledge that I must discard the idea of looting the sub-treasury.

Electricity can and will eat its way through the hardest chilled steel, high explosive will open the strongest door of a vault ever manufactured after the most ingenious plan of the master mechanic, bank clerks and night and day watchmen of easy morals can be corrupted, burglar-alarms may be put out of service by detectives like Tom Davidson and Joe Seymour of the New York City Detective Bureau, but there is one safeguard which cannot be broken down by the burglar craft, and that is Eternal Vigilance!

Eternal vigilance! That safeguard, which should ever be employed by the high officials of financial institutions, is potent to combat the greatest genius possessed by a safe-burglar. Eternal vigilance should be the keynote of safety, struck in every banking house in the world, if its funds would be kept from the hands of the craft which seek ever to gain something for nothing. It was this kind of watchfulness that President Noblit of the Corn Exchange Bank of Philadelphia employed, and it saved more than three

millions of dollars from my clutches and created within me a profound respect for him. I declare, with all the earnestness in me, that no shrewder plan was ever devised to loot a bank. I would have ruined it had it not been for President Noblit's vigilance. He, and not high-class steel bolts and bars and faithful watchmen, stood between me and those millions.

A long experience in studying how best to "beat" steel vaults and safes has demonstrated to me that real security for personal valuables doesn't depend so much on high-grade safes, superior combination locks, heavily bonded employees, and the most efficient burglar-alarm system extant, as it does upon a common-sense use of the simple precautionary methods of protection with which any well-conducted banking institution should be equipped. Among the safeguards in mind is a systematic espionage upon the employees of a bank. Their habits should be known to the president under whom they serve. The fact that cashiers and tellers are members of a corporation in control of the bank ought not to exclude them from espionage. In proof of this, I will call the attention of the doubting one to the columns of the daily newspapers. Scarcely forty-eight hours pass without its being recorded that a bank cashier or teller in some part of the country has absconded with the bank's funds. A thorough knowledge of the social and business relations of every man holding a responsible position in a bank should be had. His habits and general character ought to be an open book for the daily perusal of his chief. The habits of the associates of cashiers and tellers should be known. The old saying, that birds of a feather flock together, ought to be considered in its fullest sense, and therefore a bank president should know what sort of a flock his cashier or teller seeks after business hours. That a cashier has been a faithful steward in a bank for many years is not a valid reason why he should not be kept under surveillance. Almost every bank employee who falls into corrupt ways was a "trusted" employee.

A careful espionage upon any one of these fallen cashiers or tellers would have preserved the bank's funds, and more than likely would have prevented a fast and furious downward career, which terminated behind the bars of a prison cell. Many and many bitter tears of stricken and shamed wives and disgraced children might have been unshed, and many happy homes might have been preserved and not have been forever blighted, had

timely warning and strong hands been laid upon the erring husbands and fathers of these firesides.

In my mind there is no question that scores of former cashiers, tellers, and other employees of banks are alive to-day, terrible examples of the wild pursuit after costly pleasures. I do not hesitate to say that if most of these men had been kept under proper surveillance, they would not have departed from the narrow path of rectitude. It is true that this is paying anything but a tribute to their manhood, but I assert that commendation or condemnation will not blind the argument, in view of the fact that most men are liable to fall under great temptation. No man may know what he will do until the fatal pitfall is reached. If he escape—well, thank Providence. Were these fallen ones called now to witness to the fact, they would unhesitatingly declare that espionage upon them would have been providential. Much woe would not now be upon them and their loved ones.

I know whereof I speak, when I say that a bank's executive should know whether or not his bright young men are habitués of the pool-room, the horse-race track, or are in the habit of taking a "flyer" in Wall Street stock gambling. Expensive living in a bank clerk is a sufficient reason for suspecting that he is not a desirable employee. It is his province to prove his fitness under the circumstances. The mere statement of a bank cashier or a teller, that the money he spends so lavishly for luxuries far out of the reach of his salary comes from his wife's private fortune, ought not to be accepted as an all-sufficient reason for his extravagance. The bank's executive should know whether it is true or false; it should be known beyond any possible doubt just what money he is spending. If a cashier or a teller objects to so severe a scrutiny of his affairs, the wisest thing in that case is to declare a vacancy, and fill it with a man whose life is not weighted by secrets. Having cognizance of the solemnity of the obligations resting upon a bank president, an honest, trustworthy cashier, teller, or bank clerk will not object to the closest scrutiny. Neither will he consider that his honor has been trampled on, when a careful inquiry is made as to his habits and as to those of his associates. On the contrary, an honest, upright employee will be pleased to have his trustworthiness put to the test and found not wanting. Beware of the bank employee whose honor is so tender that it can't be handled without gloves. There's sure to be a screw loose in almost every case. It's an honor with a subcellar, and dark things are hidden there.

I have already said that lax business methods, as practised at the Ocean Bank in New York City, and the expensive habits of John Taylor, one of the bank's trusted clerks, were the prime factors in making my plan to loot the vault an assured success. There is no doubt of this, therefore I would call especial attention to that chapter. That I may more deeply impress the fact upon the minds of those I would advise, permit me to mention yet another marked laxness in providing protection for bank funds, and that is the selection of the numbers used on combination locks.

Experience taught me to observe the custom of banks, as to the manner in which the combination numbers were used, and I soon found it to be the prevailing rule among cashiers to use figures easily divisible. For example, a train of numbers selected would be four, sixteen, and thirty-two, or twelve, twenty-four, and thirty-six. Such trains should be avoided if first-class protection against robbery is desired. I will give a sufficient reason for thus advising my friends. In a certain bank robbery, the identity of which I purpose not to disclose at present, I was reasonably sure that I possessed the first number of the train used on the vault-door lock. The number was twelve. I tried it at the first opportunity with twenty-four and thirty-six, and in five minutes was inside the vault. Finding that the numbers easily divisible seemed to be the custom of the bank, I tried four, sixteen, and thirty-two on the inside money chest. The result was not at all astonishing to me, but the officials were undoubtedly panic-stricken, the next day, when they learned that a large amount of ready cash had been carried away. No holes were drilled, and no explosive was used. Therefore I would advise more care in the selection of combination numbers. Do not think it a task to change the combination often.

The old Louis Lillie combination locks, where the spindle dial could be unscrewed, and a few other makes of the present day, most of them antiquated, could be successfully manipulated. In fact, these locks were what I termed a "dead walk-over." I must assert, however, that if it is necessary to work out a properly arranged, first-class, three or four tumbler combination lock, it can be safely said that it is, in nearly every case, a physical impossibility to master such a lock in forty-eight or even seventy-two hours.

In using combination locks, it is best to change the numbers frequently, especially when a clerk is about to leave the bank's employ. Of course what

I am speaking of now, more particularly, has to do with small banks in the villages and small cities, where clerks are loaded with greater responsibility than are those in the institutions of large cities. As an illustration of what might happen to a safe, I'll mention the case of a New York business house. There had been a pestiferous leakage of money from the safe. Small amounts ranging from five dollars to four times that sum disappeared, leaving no trace of the thief. About all the employees were suspected. Every one was wondering if every one else wasn't the thief. Finally the firm hired a private detective, and, behold, one night a man was detected red-handed opening the street door with a duplicate key, and the safe with a secret combination. The person proved to be a discharged clerk. Had the combination numbers been changed at his leave-taking, he couldn't have opened the safe, and perhaps, having failed the first time, he wouldn't have been tempted again. It doesn't pay to be lax in business methods.

I was introduced to a "right" watchman in Boston once upon a time, and having in view the looting of the bank in his charge, wanted the vault examined. The outer door of the vault was of wood and was next to the steel one. The watchman reported to me the next day what I wanted and more. The president had asked him if he'd opened the wooden door. He promptly denied it. But the president knew the door had been unlocked and opened and, not suspecting the watchman, believed that burglars, in some manner, had been tampering with the vault. How he knew it was this: Every evening before leaving the bank, the president closed the wooden door and put a certain kind of paste on one of the hinges. The morning after the watchman opened the door, the paste was found scraped back by the turning of the hinge. It was a faithful witness to the fact. Had the watchman admitted that he'd heard suspicious sounds which led him to open the door, the president would have thought no more about it undoubtedly. As it was, the watchfulness of that bank official spoiled my plans. It was a simple obstacle in my way, but it was effective in preserving the bank's funds.

Jimmy Hope, a notorious bank burglar, got into a certain bank in Bleeker Street in New York City, and, taking off the dial of the vault lock, drilled a hole through the door to strike the steel dog in the lock. The object was to get at the dog and break it. Bad aim resulted, and the dog was missed. Too much time had been consumed to drill another hole, and putty was used to fill up the useless one. For months the tampering was

undiscovered, not to mention the marks on the dial plate caused by the unscrewing of the dial. Not to have discovered these plain evidences of tampering seemed to me the rankest sort of neglect. The bank was afterward robbed.

I will mention the American Hotel in Hartford, Connecticut, as the scene of another robbery which emphasizes what I've already said as to carelessness. The hotel changed hands some thirty years ago, and one of the retiring partners retained a key to the office safe. Not having the "nerve" of the "honest" crook to do the work himself, he confided in a "putter up" of crooked jobs, a native of Wayne County, Pennsylvania. Now this "putter up"—though the telling may perhaps call forth a doubt as to the veracity of this tale—was a justice of the peace. His brother was a well-to-do, respectable physician. The justice of the peace was given the key by the ex-hotel man, and it was passed along to a man with whom I had been acquainted many years.

The next move to win was when a pair of expert safe burglars appeared at the American Hotel in the guise of two extremely busy business men from New York. They quite captured the good will of that Yankee hostelry. When they left instructions at the desk to be awakened in time for a two o'clock train the following morning, the porter, the only employee on duty at that hour, knew he'd lose his situation if the travellers were allowed to oversleep. He wasn't dilatory, and the "guests" were up betimes. While one of them kept the porter busy searching for a mythical piece of baggage, the other, with the key, cleaned out the safe and locked it again. Presently the guests were bound toward New York. Meanwhile the obliging porter hugged a generous tip for his faithfulness, and when he slid off into a dream that seemed to occupy the rest of his watch, he thought himself a millionaire. His awakening, however, was sad. The haul was more than the crooks had anticipated, and they were well paid for the journey. It was long a mystery to the hotel people how the money vanished from the safe. The moral is: "Keep tabs on the safe keys when partnerships are dissolved."

The laxity of bankers in conducting their business affairs was ever a mystery to me. I have given the subject much thought since renouncing a criminal career, and have arrived at this conclusion: That a criminal has a much better opportunity to judge whether or not the success of his unlawful projects came through the carelessness of others, than has the man who

leads a life within the pale of the law. I must say that a great deal of the success which came to me was the outcome of gross carelessness on the part of bank cashiers, tellers, clerks, and watchmen. Therefore I would urge upon those in charge of public funds to look well after the little things, in the way of providing protection.

Kindly do not think it my purpose to coin words or phrases for the use or misuse of posterity, but I would, in all sincerity, warn the bankers of the land against a microbe which I will call “callousitis.” Keep it out of your business. See to it that bank employees be not infected with it. It is germinated in the rush of financial affairs—is given life through the constant handling of immense sums of money. Afflicted by the “callousitis,” the bank employee, who once realized a keen responsibility in handling one dollar of another’s money intrusted to his care, feels no added responsibility when he, through promotion perhaps, is called upon to manipulate a million dollars. In other words, he becomes callous to the fact that large sums of money are passing through his hands. As the laborer’s palms become callous through constant contact with rough surfaces, so the brain of a bank employee arrives at a stage of indifference through his daily mental contact with millions of dollars. The wood-chopper’s hands, once blistered with the friction of the axe helve, at last became hardened to the work and there was no more tenderness. Thereafter he wielded the axe industriously, without pain to his hands. The bank employee’s brain was awed at the first handling of a million dollars, but that sensation gave place to indifference, when in time he came to handle ten times a million dollars. And so he became, eventually, a victim of “callousitis.” Thus afflicted, the victim may or may not be aware of it, but in the majority of cases he is, and such a victim is very prone to be lax in business affairs, and such laxity eventually leads to disaster when thieves abound.

Transcriber's Notes

Punctuation and spelling were made consistent when a predominant preference was found in this book; otherwise they were not changed.

Simple typographical errors were corrected; occasional unbalanced quotation marks retained.

Ambiguous hyphens at the ends of lines were retained; occurrences of inconsistent hyphenation have not been changed.

Text contains many occurrences of dialect and non-standard contractions.

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